LAW CRUX



JURISPRUDENCE – I

LEGAL METHOD · BHARATIYA & WESTERN JURISPRUDENCE

AUTHORED & CURATED BY

Ankur R. Upadhyay

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PAPER LB-106 · COMPLETE 7-UNIT DOCTRINAL, PHILOSOPHICAL & CASE-LAW ARCHITECTURE

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Evolution of Bharatiya Jurisprudence – I

Philosophical Foundations of Indian Jurisprudence, Environmental Consciousness in the Vedic Age (Ṛta & Prakṛti), Codification of Law (Śruti, Smṛti, Dharmashastras, 18 Vyavahārapadas & Mīmāṃsā) & Ancient Dispute Resolution

PART 01

Conceptual Framework — "Is there an Indian Jurisprudence?"

1.1 The problem of the colonised mind (Parasain's starting point)

India is a **"knowledge civilization"** and the **only surviving civilization of antiquity with continuity to the modern period**. Yet a deliberate misconception was created — that there is no analytical/philosophical tradition outside the West; that Indian philosophy is "primitive speculation", tied to occult cults and "an odd assortment of spirituality, mysticism and imprecise thinking" (Matilal). This misconception, coupled with the **complacency of independent India in continuing the British administrative and legal framework**, has deprived India of genuine critical inquiry into its own philosophical literature.

> *"At the touch of the Judge of the Supreme Court, who had been trained in the English school of special pleading... the rule of native law dissolved and, with or without his intention, was to a great extent replaced by rules having their origin in English law-books. Under the hand of the judges of the Sudder Courts... the native rules hardened and contracted a rigidity which they never had in real native practice."*
> — Sir Henry Maine, *Village Communities* (1895), quoted by Parasain

> *"Contemporary Indian law is, for the most part, palpably foreign in origin or inspiration and it is notoriously incongruent with the attitudes and concerns of much of the population which lives under it."*
> — Marc Galanter, "The Displacement of Traditional Law in Modern India" (1968), quoted by Parasain

Krishnachandra Bhattacharyya's ***Swaraj in Ideas*** names this: **"cultural subjection"** — an unconscious intellectual slavery in which one's traditional cast of ideas is superseded "without comparison or competition by a new cast representing an alien culture which possesses one like a ghost". He asks for intellectual decolonisation *while* assimilating foreign ideas with awareness — not becoming a "mere material supplier" to a framework built to subjugate our knowledge system. Parasain's answer to critics who call this "revivalism": those same critics praise **Europe's 13th-century relocation of the European mind in its classical Greek roots** as a "Renaissance", but condemn India's parallel move as "obscurantism". Hence: **what is needed is to relocate the Indian mind in Indian thought.**

Following A.K. Ramanujan ("Is there an Indian way of thinking?" — affirmative, but without parroting Western methods), Parasain asks: **is there an Indian philosophy of law?** His answer is affirmative and is built on four moves: (i) a critique of colonial legal historiography; (ii) the identification of the Indian foundational concept — dharma; (iii) the search for a metaphysical foundation; (iv) a systematic East–West comparison.

1.2 Two tests any true "philosophy of law" must pass

Every society has rules; but a *philosophy* of law requires more:

Test	Meaning	Indian answer
1. Pramāṇaśāstra (theory of proof)	Axiomatic principles for resolving conflicting claims — an epistemology of legal argument.	Rich tradition developed by **Nyāya, Buddhist and Jain logicians** in argumentative/adversarial settings; **Mīmāṃsā** gives rules of textual interpretation; **Carakasaṃhitā** even adds *yukti* (probabilistic syllogism) as a pramāṇa.
2. Metaphysical foundation	Validity and authority must be anchored in something more fundamental than human decree — reason, human nature, or a divine order.	In the West: Aquinas (theology) → Kant (practical reason; *sapere aude*) → Bentham (greatest good). In India: the Upanishads, Epics and Bhagavad-Gītā supply the metaphysics; **dharma** is the "institutional a-priori" (Parasain) of the Indian legal system.

Watch the trajectory of the West: Aquinas built natural law as a rational foundation for canon law; Kant ("true politics cannot take a single step without paying homage to morals") separated jurisprudence from theology using **practical reason** — the categorical imperativeisability, man as end-in-himself; Bentham freed it further by appealing to the greatest happiness of the greatest number. Indian jurisprudence, by contrast, is built on the realisation that **happiness itself is ephemeral** — the Indian ideal is *ānanda* (sat-cit-ānanda), not transient pleasure; and the American "pursuit of happiness" jurisprudence (rights-based, sometimes sacrificing collective well-being) is contrasted with the dharmic model.

> *"Many commentators opine that such a thorough metaphysics of morality is not to be found in Indian philosophy... because the Dharmashastras (Manu and Yajñavalkya) did not push their inquiries into their metaphysical foundations, nor did the metaphysicians develop the social implications of their thought. The principal direction of Indian thought has never been to social and material sciences, but to a deeper level of being."*
> — Parasain, summarising the objection (Raju) and its explanation

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Parasain's rejoinder: the metaphysics of Indian moral ideals must be sought in the **Epics and the Bhagavad-Gītā** — "the cream of the Upanishadic philosophy". The Gītā teaches two dharmas, *pravṛtti* (activity) and *nivṛtti* (renunciation): **"Twofold dharma is the cause of stability of the world order and also the means by which men attain prosperity and the highest good"** (Gītā XVIII.78). The Upanishads do not deny the world — they allow it as empirical reality (*vyāvahārika sattā*); the Smritis recognise that immutable truths must be **adapted to time and place**. Krishna's rebuke to the retiring Arjuna — "lowness of spirit, unbecoming of his svadharma, dishonourable, unmanly" (Gītā II.2-3) — shows that **spiritual enlightenment and social duty are not separate**.

1.3 Five threads that run through Indian ethical-legal thought (Parasain)

1. Karma

Every act produces an inescapable result — metaphysical causality (Matilal). It answers three problems: (i) the world is not arbitrary; (ii) free will exists — against fatalism/determinism; (iii) worldly inequality is explained without a capricious God (Śaṅkara: God creates depending on beings' dharma/adharma, "just as rain is the common cause of vegetation but the difference of species is due to the seeds").

2. Nature of the self

Many schools see the self as interconnected with ultimate reality (Advaita: Ātman = Brahman). Harming others is harming oneself — a metaphysical basis for ethics.

3. Dharma

Righteous order and obligations — with **three foundational elements: scriptural authority, tradition, "exemplary conduct"**, and only *marginally* custom. It is the ecology of well-being, emerging from devotional relationships with all elements and creatures.

4. Consciousness

Ethical development is cultivation of self-awareness (meditation, yoga) — ethics as purification of mind.

5. Ahiṃsā

Non-violence in action, thought AND language; extends to animals and all living beings.

Plus: Contextuality

Ritusamayata (appropriateness) applied to poetry, music, ritual, medicine — even to punishment: **"Punishment should be inflicted after examining the circumstances, place and time as well as the worth and offence of the culprit"** (Manu 8.126). The Brihadāraṇyaka "DA DA DA" — gods hear *dāmyata* (control), demons *dayādhvam* (compassion), humans *datta* (give).

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Note the movement from Rāmāyaṇa to Mahābhārata: the Rāmāyaṇa's ethics are "formalistic" (truth-telling and promise-keeping are unconditional); the Mahābhārata is pragmatic — formal obligations need not override all other considerations (Krishna's attitude compared by Matilal to a poet who "accepts the constraints of metre, verses and metaphors... but has absolute control over them"). The Mahābhārata also says **tradition is not Dharma if it fails to accommodate emerging situations** (Parasain's reading of the epic, with Habermas's *Legitimation Crisis* in the background) — hence *maitribhāva* (benefit of others) may even require breaking a merely personal vow.

1.4 East vs West — the four foundational distinctions (Parasain)

(Kipling's "never the twain shall meet" is the poetic foil; Parasain's point is that the two must meet on the platform of universal human values — Tagore's "surplus in man", cultures as "different altitudes... yet belonging to the same chain of hills" — and the conclusion is that the dialogical enterprise is possible.)

Point	Western paradigm	Bharatiya (dharmic) paradigm
1. Foundational concept & motive	Individualistic, realistic; contractarian (Hobbes → Rawls): self-interest is central; law is obeyed as rational strategy to maximise self-interest; no pure altruism; no improvement of the self.	Communitarian, idealistic; centred on collective well-being; presumes inherent goodness of man; ultimate objective is freedom from worldly bondage. Law as **Dharma** cannot be separated from morality and culture-specific ethics.
2. Sovereignty vs Kingship	Law *emanates* from the sovereign's command: "Honour the State, the Root of Law and Wealth."	The King is **subject to law**, not sovereign over it — merely the highest medium of enforcement of temporal law: "Honour the law (Dharma), the root of state and wealth" (Chatrapati Singh).

Point	Western paradigm	Bharatiya (dharmic) paradigm
3. Rights vs Duties	Right-based jurisprudence; protection of individual rights and enforcement of contractual obligations; orderly dispute resolution.	Duty-based (*kartavya*) and obligation-based (*ṛṇa*); ultimate purpose is to sustain cosmic and social order; law contains divine command + State legislation + unwritten custom/usage; all law subserves the **puruṣārthas** (Dharma–Artha–Kāma–Mokṣa).
4. Source of law	Law is a **human construct** — of the sovereign, of human reason, of custom or judicial decision.	Law is **inherent in the universe as Ṛta** (cosmic order/ truth/rhythm) and **revealed to mankind as Śruti**; Ṛta is simultaneously a physical, moral and ethical law of the cosmos, dictating "right conduct" of all beings.

One paragraph answer-builder for "what is Bharatiya jurisprudence?": It is the philosophy of law rooted in the Indian knowledge tradition, whose foundational concept is *dharma* (sustaining order — **dhāraṇāt dharma ityāhuḥ**), whose law is understood as *Ṛta*/ cosmic order revealed as Śruti, whose king is under law, whose ethic is duty (*kartavya*) and obligation (*ṛṇa*) rather than rights, and whose metaphysics is supplied by Karma, the self, consciousness, ahiṃsā and the puruṣārthas.
Its characteristic method: unitary and integrated vision of man, life and world (*vs* the Western fragmentation of reason/faith/emotion); contextuality (*ritusamayata*); and a reasoned, dialogical engagement (*anyamataparīkṣā* — Sudame) with other traditions — Tagore's "no absolute barriers of communication, because their foundation is the same".

1.5 Dhyani's frame — the ancient legal theory in one view

Dharma righteous order — the ring within which life moves → **Artha** prosperity (material) → **Kāma** gratification of senses →

Mokṣa spiritual liberation

Ancient Indian legal philosophers were "not mere daydreamers or other-worldly but universalistic, humanists, rationalists and above all moralists of the supreme order... law was always an instrument to maintain and promote Dharma." The advice of **Ved Vyas to the Pandavas** is the classic illustration of this integrated moral-legal vision: "No virtuous man is strong enough to live in virtue at all times... Life is a tangled web... Each and every one has to bear the consequences of his actions. Do not give way to sorrow."

PART 02

(a) Environmental Consciousness in the Vedic Age

2.1 The thesis in one line

The Vedic world-view treats the cosmos as a **single moral-legal order (Ṛta)** in which man is not the master but a **friend and participant** of nature; hence ecological restraint is not merely prudence but **dharma** — a duty with jurisprudential (not just religious) force. This is the oldest stratum of "environmental law" in India, and the DU case material treats it as the *foundation* of environmental jurisprudence in India.

> *"Dharma is the ecology of well-being which emerges organically from devotional relationships with all elements and creatures. Most of the central texts in the Indic knowledge and tradition describe the mutual relationship between nature and humans not as that of domination, but of friendship and harmony. Even people who do not believe in divine order should adhere to dharma for the sake of shared well-being. Observance of dharma secures two objectives — happiness on earth as well as salvation."*
> — Mohan Parasain, "Indian Jurisprudence: A Philosophical Overview" (DU case material)

2.2 The textual sources (the "cone" of Vedic literature)

Sudame's classification of Sanskrit literature is the cleanest map for exam use:

ŚRUTI — "heard/revealed"
Veda Saṃhitās (Ṛg, Yajur, Sāma, Atharva) + Brāhmaṇas (incl. early Upaniṣads)

SŪTRAS (not Vedas, but systematic treatises connected to them)
The 6 Vedāṅgas — Kalpa, Śikṣā, Chandas, Nirukta, Vyākaraṇa, Jyotiṣa

KALPA-SŪTRAS
1. Śrauta-sūtras (Vedic sacrifices) · 2. Gṛhya-sūtras (domestic rites) · 3. Dharma-sūtras (politics, government, civil & criminal law)

DHARMAŚĀSTRAS / SMṚTIS
Manu, Yājñavalkya, Nārada, Viṣṇu, etc. — the "codes"

COMMENTARIES & NIBANDHAS
Mitākṣarā, Dāyabhāga, etc.

Ṛgveda
hymns of praise — earliest text (Nāsadīya Sūkta X.129: doubt whether world comes from *sat* or *asat*)

+

Yajurveda
ritual formulae

+

Sāmaveda
melodies

+

Atharvaveda
daily life, medicine, social order

Exam point: The DU material (Dhyani) stresses that *both* Ṛgveda and Atharvaveda treat the world as a place to be lived in, not escaped — the "other-worldly India" image is a canard spread "by English people to subserve their political interests".

2.3 Ṛta — the cosmic law at the heart of Vedic environmentalism

Element	Detail
Ṛta	The natural order, rhythm and truth governing the universe — simultaneously a **physical law, moral law and ethical law**; dictates the proper functioning of the cosmos and the "right conduct" of all beings (Parasain). It is the *cosmic* counterpart of *dharma* (social order) and *nyāya* (justice).
Law in the Vedic age	"The nature of law in the Vedic age was of a theological character which was described as **rita for universal order and harmony**. This corresponds to the natural law of the Western world which is still the basis of their contemporary legal theory." (Dhyani)
Ideal of Vedic legal theory	A socio-legal order free from conflicts, exploitations and miseries; Ṛgveda: **"शं नः पुरंधी शं सन्तु रायः"** — may our intellect and wealth be for the good of humanity and universal peace (Dhyani).
Unity of being	Śaṅkara (Vedānta): "The seeker who has realised the self sees the entire universe as the self." Upaniṣads (Kaṭha, Bṛhadāraṇyaka) exhort meditation on "the self as a measure spanning earth to heaven" — the identification of universal and individual self (Dhyani).
Integrated vision	Parasain: the "unitary and integrated vision of man, life and world is the single most distinguishing feature of the Indian mind... This vision has an indelible mark on the concept of law as Dharma, legal philosophising and the interpretation and application of the various sources of law." The modern Western analytical mind breaks man into "reason, faith, emotions and feelings" and thereby "misses the entire forest ecosystem" while analysing tree/river/mountain as if independent.

2.4 Catalogue of Vedic values with jurisprudential bite (for quotation in answers)

Value / Source	Content	Why it is "legal" material
Ahiṃsā + control of passions (Dasgupta, via Parasain)	Despite divergences among schools, "the unity of sādhana in control of passions, non-injury to life-forms and check on all desires for pleasure serve as a common ground derived from the Yogic philosophy."	A normativeisable duty binding all beings — the ancestor of animal-welfare and non-exploitation norms.
Earth as mother & field of action (Dhyani)	Vedas describe earth as *karmabhūmi* (place of action) and *mātṛbhūmi* (like mother) "which support life and where men and women can live happily on her bounty".	Nature is an object of *duty*, not a resource to be dominated — the basis of later trusteeship ideas.
Long, prosperous life (Dhyani)	"Sharadaḥ śatam" — a hundred autumns; much progeny; good health; Atharvavedic hymns describe a happy, healthy hundred-year life as **amaratva** (immortality).	The Vedic ideal is life-affirming — a corrective to the "escapist India" caricature; welfare of the person-in-society is the aim of order.
Charaiveti / growth (Dhyani)	"March on, march on from one level of prosperity to another" is the keynote of Vedic culture; contentment with one's lot and indifference to material prospects are NOT found in the Vedas.	Development is a Vedic value — so "environmentalism vs development" is a false binary in the dharmic frame.

Value / Source	Content	Why it is "legal" material
Wealth praised, greed condemned (Dhyani)	Ṛgveda: "Revel in wealth respected"; Yajurveda: "may we live for a hundred years without poverty"; Manu: "one should continue to seek prosperity till death"; Mahābhārata: "one really becomes a man only when one is prosperous"; *dhanamāhuḥ param dharmam*.	Artha is a puruṣārtha — material welfare is legitimate, but subject to dharma: **lobha** (limitless accumulation) is the most despicable thing in Hindu ethics.
Trusteeship of wealth (Manu, via Dhyani)	**"यावत् पर्याप्तम् ... तावत् त्वं तु ददेति नाम्। अधिकं योऽभिमन्येत स स्तेनो दण्डार्हति॥"** — "Take whatever is essential for bodily sustenance; to take more is an act of theft and deserves to be punished."	Classic distributive-justice + ecological-limits principle: the individual is **trustee** of society's resources.
Enjoy by renunciation (Īśopaniṣad, via Dhyani)	**"ईशा वास्यमिदं सर्वं यत्किञ्च जगत्यां जगत्। तेन त्यक्तेन भुञ्जीथा मा गृधः कस्य स्विद्धनम्॥"** — "This entire cosmos is immersed in God; enjoy it by way of sacrifice, without greed or desire." God permeates all creation; whatever is left after offering, enjoy only that much; "Do not rob what belongs to others" (Dhyani: this is the subsoil of the trusteeship theory).	Consumption-without-appropriation — the exact logic of sustainable development, four millennia early.
Social unity in diversity (Ṛgveda, via Dhyani)	"Meet together, speak together, let your minds be of one accord, as the Gods of the old, being of one mind, accepted their share of sacrifice."	The Rigvedic vision of mutual inter-dependence and co-existence "within the parameters of social, cultural and racial diversity" was itself called **law or Dharma** — "directing and unifying the diversity of actions of men in society".
Universal welfare prayer (Dhyani)	**"सर्वे भवन्तु सुखिनः सर्वे सन्तु निरामयाः"** — "Let everyone be happy, let everyone be free from all ills."	Indian thinkers were the first to think in terms of world-unity and universal welfare — an ethic that includes the non-human world.
Contextuality (Parasain)	*Ritusamayata* (appropriateness) applies across aesthetics, sacrifice, medicine and **punishment** (Manu 8.126); the Bṛhadāraṇyaka "DA DA DA" (dāmyata, dayādhvam, datta).	Environmental and penal norms are to be applied with sensitivity to time, place and circumstance — not mechanical rules.

2.5 The institutional dimension — the state's environmental role

Dhyani (II & VIII): the Vedas and Upaniṣads enjoin both king and individuals to follow established dharma. The ancient Indian state was never a "necessary evil" — it was necessary for the advancement of dharma, and had **positive welfare duties** (the seeds of the modern welfare state):

- **State control of the economy** — "traces of state socialism can be found in the *Arthashastra* in which a positive role is envisaged for the State"; Kautilya "shows great fear of big corporations and recommends strict control over them" (Arthashastra IV.2).
- **Duty to support learning and the unemployed** (Manu; Kane): "though there were no Acts of Parliament guaranteeing services to the people, the public opinion, the view of the eminent writers and the practice of the best Kings created an atmosphere in which it was thought imperative for the King representing the State to encourage learning, to give employment to those who were unemployed."
- **Matsya-nyāya excluded:** the big fish swallowing the small was never allowed by the State; "it was believed that economic development ought to be the concern of the State and an equitable division of the available wealth was a duty of the ruler. When the government was good there occurred a **Rama Rajya**."
- **Heavy taxation to support the poor:** "Manu's Code and Kautilya's Arthashastra suggested heavy taxation to support the impoverished masses"; poverty is treated as a state of sinfulness (Mahabharata) and wealth's true purpose is discharge of social duties.

Dhavan (Administrative Code): the Mauryan state ran a huge public sector — a **state mercantile marine** (superintendent-general of navigation, *navādhyakṣa*), a **state textile industry** (*sūtrādhyakṣa*), **state mining** (*ākarādhyakṣa*) and a **state trading department**. The rules were compiled in the fourth part of the Arthashastra — an **Administrative Code** — including:

- Maritime/riparian navigation rules: state ships on large rivers with captain (*śāsaka*), pilot (*niyāmaka*) and crew; fixed passage money (*yātrā-vetanam*) for passengers on royal ships; proof that Indians were a seafaring, trading people.
- Labour-protective rules for women workers in the weaving department: an official who **"stares at the face"** of a woman worker or speaks of matters other than her work "will be punished as if guilty of first assault"; **delay in payment of wages is punishable**; paying wages "for no work done" is an offence.
- Customs/tax code: unsealed merchandise — duty doubled; counterfeit seal — penalty of **eight times** the duty; torn seal — detention.

Exam linkage: these rules show that ancient India regulated *resource use, labour and trade by written, state-enforced norms* — i.e., environmental/economic governance was not merely moral exhortation.

Ankur R. Upadhyay

2.6 Contextuality, happiness, and the modern environmental debate

Critique of the "pursuit of happiness" model

Parasain: Indian jurisprudence is built on the realisation that **happiness itself is ephemeral** ("the Indian concept of Ānanda is not ephemeral happiness but an aspect of the highest being: sat-cit-ānanda"); modern psychology has exposed the "happiness industry" and the paradoxical nature of our pursuit of happiness. American constitutional jurisprudence (Jeffersonian "pursuit of happiness" + the State's duty to remove obstacles) generated **right-based** constitutional jurisprudence which may even sacrifice collective well-being for individual rights. The dharmic frame, by contrast, derives *individual* well-being from *collective* well-being: "Kāma which is in the individual dimension reaches the societal dimension of artha and dharma and ultimately the highest well-being of the individual or Moksha."

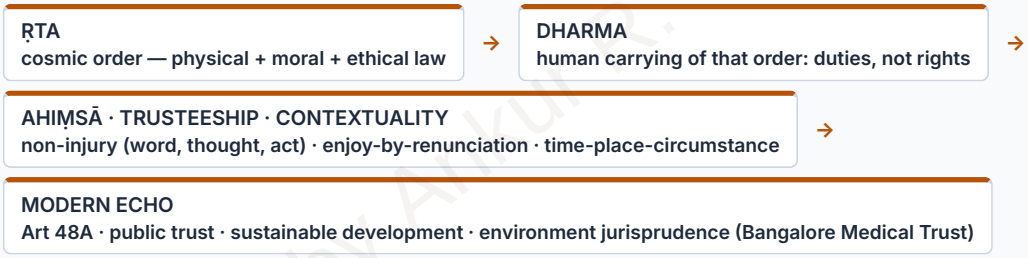
Modern environmental jurisprudence (Dhyani's links)

Dhyani lists among the "new linkages" built by the Supreme Court: **"conservation of humane environment"** as a basic feature of the emerging legal theory. The cases he cites in this chain (all in DU case material):

- **Bangalore Medical Trust v. B.S. Muddappa, AIR 1991 SC 1902** — public park / civic amenity land; environment and public health prevail over private and commercial interests; **M.J. Sivani v. State of Karnataka, AIR 1995 SC 1770**; **D. Vyas v. Ghaziabad Development Authority, AIR 1993 All 57**.
- **State of Maharashtra v. Manubhai Pragaji Vashu, AIR 1996 SC 1** and **Consumer Education Research Centre v. Union of India, AIR 1995 SC 992** — right to life/environment.
- Open government, S.P. Gupta v. Union of India, AIR 1982 SC 149; right to information, Secretary, Ministry of I&B v. Cricket Association of W.B., AIR 1995 SC 1236; L.I.C. v. Manubhai Shah, AIR 1993 SC 171.

You may add (supplementary, not from case material): Article 48A and Article 51A(g) of the Constitution, the Environment (Protection) Act 1986, and the public-trust doctrine — but always *anchor* the answer in the dharmic principle ("history of environmental law in India begins in the Vedas", as the DU material asserts).

2.7 Diagram — The Vedic environmental world-view



One-sentence answer: Vedic environmental consciousness is not "nature worship" as folklore but a *jurisprudential* position — nature is part of one moral order (Ṛta), man is its trustee, and restraint is dharma, from which modern environmental law derives its deepest legitimacy.

PART 03

(b) Codification of Law — Dharmashastras & Smritis

3.1 What "codification" means here

Codification = the reduction of customary, oral and revealed norms into **written, ordered, rule-like texts** of general application. In the Bharatiya tradition this happened in stages, and the DU case material is clear that the Dharmashastras are **both more and less than a modern code**:

> *"Dharmashastra means 'the teaching (or science) of righteousness' and includes the modern understanding of the concept 'law' and much more (Derrett). Because Dharma, as righteousness, has greater importance than the norms required for day-to-day administration of justice... the Dharmashastras are not only the repository of ancient Indian legal thought, but the Indian concept of Dharma is the 'institutional a-priori' of even its modern legal system."*
> — Parasain

> *"The period of Vedic development was succeeded by the period of Dharmashastra... The era of Dharmashastra is described as the **Golden Age of Hindu legal theory** wherein there was a blending of religion and morality with law. They deal with the religious and moral law, the duties of the castes and Kings as well as civil and criminal law."*
> — Dhyani

Note the key distinction (Parasain): "The injunctions in the Dharmashastras may be compared with the modern Bare Acts, which in itself may be proved to be outdated for modern jurisprudence. Therefore, the argument is not in favour of reviving the Dharmashastras and vigorously infusing them into the modern legal system, but to enquire how the **spirit of the Dharma** can be useful for the legal order of our times. **The Dharmashastras as texts could be static but Dharma is dynamic** and has the seeds of discursive practice in it."

3.2 Timeline — from revealed word to written code

`c. 4000-1000 BCE` **Vedic age** — Ṛgveda, Yajurveda, Sāmaveda, Atharvaveda; Ṛta as cosmic order; unwritten law of divine wisdom, reason, communal harmony (Seema Singh & Yadav).

`c. 800-400 BCE` **Upaniṣads** (Samhitās + Brāhmaṇas together = Śruti) — the metaphysical stratum.

`Sūtra period` **Dharma-sūtras** — Apastamba, Gautama, Baudhāyana, Vāsiṣṭha (+ the Kāmasūtra of Vedāṅgas: Śrauta, Gṛhya, **Dharma-sūtras**) — first systematic, aphoristic treatment of law (Sudame; Seema Singh & Yadav; Dhavan).

`Smṛti period` **The great "codes"** — Manusmṛti, Yājñavalkya Smṛti, Nārada Smṛti, Viṣṇu Smṛti, etc. — "the era of Manusmriti... which provided profound information concerning the resolution of disputes" (Seema Singh & Yadav).

`c. 7th-9th c. CE` **Dharmashastra acknowledged as "sacred Hindu law books" for dispute resolution** (Seema Singh & Yadav: "Dharmashastra (Smritis), 9th century AD, is considered to be a sacred Hindu law book for the resolution of disputes").

`Commentaries & Nibandhas` **Mitākṣarā (Vijñāneśvara), Dāyabhāga (Jīmūtavāhana), Mayūkha, Smṛticandrikā; royal digests (Bhoja, Aparārka, Pratāparudradeva; Madhvācārya, Hemādri, Vācaspati)** — law adapted to custom and place; school formation (Dhyani; Jain).

`1772-1860 CE` **Colonial codification**** — Warren Hastings' adalat system (1772) applies "the laws of the Shaster" to Hindus; Act of Settlement 1781; then the great British codes — IPC, CrPC, Contract Act (1860) "replaced customary law" (Seema Singh & Yadav).

`1950-1956` **Independent India's codes** — Constitution (1950), Hindu Code Acts (1955–56): codification continues, now constitutional.

** Colonial period details appear in §04.10 — the DU material treats this as *disruption*, not evolution.

3.3 The lawgivers (Dhyani's catalogue)

Early lawgivers — "India in the past nurtured a highly ordered and evolved legal theory as expounded by its great law-givers — the holy sages like Manu, Marichi, Atri, Angira, Pulastya, Pulaha, Krati, Pracheta, Vasistha, Bhrigu, Narda, etc."

The lawgivers enumerated by Yājñavalkya (Dhyani, quoting Yājñavalkya Smṛti):

Manu · Atri · Viṣṇu · Hārīta · Yājñavalkya · Uśanas · Aṅgiras · Yama

Āpastamba · Saṃvarta · Kātyāyana · Vṛhaspati · Parāśara · Vyāsa · Śaṅkha · Dakṣa · Gautama · Śātātapa · Vāsiṣṭha

(Dhyani notes this list itself; the DU casebook also uses the Kusuma/Parasain approach that the **Dharmasūtras of Āpastamba, Gautama, Baudhāyana and Vāsiṣṭha** are "notable works" preceding the Smṛtis — Seema Singh & Yadav.)

3.4 Internal structure of the Dharmashastras — the three Kāṇḍas

ĀCHĀRA — regulations of religious rites, ceremonies & general duties of men

+

VYAVAHĀRA — civil/criminal law — protection of life & property, with all rules & practices

+

PRĀYAŚCITTA — atonement for sin

"All these groups of laws, religious, civil and about atonement pass by one comprehensive term which is popularly known as Dharmashastra." (Dhyani) — This is the answer to "was law separate from morality?": **religion + morality + law in one corpus, but with an internal division of labour**; and, crucially, "in the Smritis one can also see the emergence of the concept of law as a distinct and separate entity from ethics and morality — some Smriti writers provide a coherent and logical treatment to law in a positive way distinguishable from other non-legal values."

Also classified as (Sudame)	Meaning
Śrauta dharma (based on Vedas)	Rites and ceremonies from the Vedic Saṃhitās and Brāhmaṇas — the "religious ordinances/ rites" aspect.

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Also classified as (Sudame)	Meaning
Smārta dharma (based on Smṛtis)	Various classes and stages of life — **from here the basic code of conduct flows**; in the context of law, "the term dharma is concerned and stays limited to the smārta aspect".

And the two great branches of law (Sudame, following Rama Jois):

Rājadharma

The law laying down the **powers, duties and responsibilities of the king** — "the basis of the modern-day constitutional law... the fundamental law of the State... which provides for division of sovereign powers and specifies the powers of each division and the manner in which sovereign power is exercised. Rajadharma was **the Constitution for all the States in the whole of India** in the real sense of the expression." Ancient thinkers held that "dharma (law) without Rajadharma for its enforcement would only be an illusion." It covers legislative/executive power, administration of justice, duties of the State, protection of property, treasury/finance, freedom and liberty, equality. "The principle of separation of powers was founded in rajadharma where the king had the power only to enforce the laws and not to legislate."

Vyavahāradharma

The system of **civil and criminal legal proceedings** — "the modern day civil and criminal laws have evolved from vyavaharadharma". *Vyavahāra* = a law-suit or legal proceeding — "proceedings in a court of law between two parties in which the violation of dharma is established by effort". Origin: "when people were dharma-abiding and truthful there existed neither hatred nor envy nor any legal disputes. Practice of dharma having declined in mankind, law-suits (vyavahara) were invented and the king was entrusted with the power to decide law-suits as he had the sanction of dharma to enforce obedience to, and to order punishment for disobedience of, dharma."

3.5 The 18 titles of law (Vyavahārapadas) — the "subject-matter index" of the codes

(Sudame, following Rama Jois; these enumerate what the written law dealt with — the true test of a "code":)

#	Title	Category
1	Ṛṇadāna — payment of debts	**Arthasamutthāni** (arising out of wealth) — 14 titles
2	Nikṣepa — deposits	
3	Aswāmivikraya — sale without ownership	
4	Sambhūyasamutthāna — joint undertakings/partnerships	
5	Dattasyānapakarma — resumption of gifts	
6	Vetanadāna — payment of wages	
7	Samvidvyatikrama — violation of conventions of guilds and corporations	
8	Strīpuṃdharma — duties of husband and wife	
9	Vibhāga — partition	
10	Krayavikrayānusaya — sale and purchase (repentance)	
11	Dyūtasamāhwaya — betting and gambling	
12	Svāmipālavivāda — master and servant	
13	Sīmāvivāda — boundary disputes	
14	Vākpāruṣya — defamation	
15	Daṇḍapāruṣya — assault	**Hiṃsodbhāvani** (arising out of violence) — 4 titles
16	Steya — theft	
17	Sāhasa — offences of violence	
18	Strīsaṃgrahaṇa — adultery	

"Apart from these eighteen major titles of law, some miscellaneous matters which were omitted from the eighteen titles or were doubtful are categorised as **prakīrṇaka**." Of the eighteen, **thirteen were classified as civil disputes and five as crimes** (Sudame).

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3.6 Sources of dharma and the rules of conflict (the "hierarchy of norms")

Manu's four sources of the sacred law (Dhyani — "the observation in the Code of Manu that Sruti, the Smriti, customs and sayings of virtuous men and one's own conscience (self-approval) are the four sources of the sacred law is sufficient to show that Dharmashastras were the inter-mixtures of law, religion and morality"):

ŚRUTI
Vedas — revealed; supreme

SMṚTI
remembered codes

SADĀCHĀRA
customs/practices of good men

ĀTMATUṢṬI
self-approval / conscience

The Smṛti-writers' own rules of interpretation (Dhyani)

- "A principle of law, established in one instance should be extended to other cases also, provided there is no impediment." (*analogy/ extension*)
- "Between rules general and special the special is to prevail." (*specialia generalibus derogant*)
- "If there be a contradiction between a Sruti and a Smriti the former is to be followed, but if there be no such contradiction, the Smriti should be acted upon."
- "If the two texts differ, **reason must prevail in practice**."

Sudame's order (Vedas > Smritis > equity):

"The Vedas and Smritis along with customs and usage are considered to be the primary source of dharma. Amongst these, the Vedas are considered to be superior and are to prevail over the smritis in case of conflict. Further, in cases of conflict between two smritis, **the principles of equity as determined by popular usages are to have an overriding effect**. Thus, even in cases of conflicts between the sources of law, the king was not given a discretionary power but was required to apply the law as approved by custom and usage by people themselves."

Dhavan's conflict-rules (law-court practice — the most exam-usable)

Courts recognised **three systems of substantive law**: (i) **dharma-śāstra** (laws deriving ultimate sanction from the Smṛtis — not always secular); (ii) **artha-śāstra** (principles of government — "uniformly secular", so much so that some writers argue it had an independent origin); (iii) **custom** (sadāchāra or charitra). Rules:

1. AVIRODHA
try to harmonise any apparent conflict (= harmonious construction) →

2. If irreconcilable, DHARMA-ŚĀSTRA prevails over ARTHA-ŚĀSTRA (Bhaviṣya Purāṇa: "when smriti and artha-shastra are inconsistent, the provision in the artha-shastra is superseded")

→

3. Two Smṛtis / two texts conflict → the one ACCORDING TO EQUITY (reason) prevails (Nārada Smṛti: "Dharmashastra Virodhe Tu Yuktyukta Vidhe Smrita")

Bṛhaspati on the letter vs. justice: "The court should not give its decision by merely following the letter of the shastra, for if the decision is completely devoid of reasoning, the result is injustice (dharma-hani)." And **Bṛhaspati on custom vs. letter**: "the court should decide according to the customs and usages of the country even if they are in conflict with the letter of the law" — with his famous regional illustrations: the maternal uncle's daughter is accepted in marriage by Brāhmaṇas of the south; in Madhyadeśa Brāhmaṇas become hired labourers and craftsmen and eat cow's flesh; eastern Brāhmaṇas eat fish and their women are addicted to drinking — "on account of the acts specified, these communities, in their respective countries, should not be liable to undergo penance or incur judicial punishment."

Nārada's four bases of judicial decision — in REVERSE order of authority: (i) Dharma-śāstra; (ii) previous judicial decisions (vyavahāra) or custom (charitra); (iii) decrees of the sovereign. "The authority of these four is in the reverse order, each preceding one being superseded by the one following it" — i.e., **the king's decree overrides custom, custom overrides precedent, precedent overrides the śāstra text**. The Arthashastra contains an identical provision. (Dhavan calls this "highly developed".)

Evolutionary law: "Both Manu and Parashara say: the laws of kritayuga are different from those of treta and dwapara, and the laws of kali yuga are different from those of all the previous ages — the laws of each age being according to the distinctive character of each age (yuga rūpānusārataḥ)."
Changing customs under state supervision: Kātyāyana — "whatever custom is proved to be followed in any particular region, it should be duly recorded as established (dhārya) in a record stamped with the seal of the Sovereign"; and the same authority — "when the Sovereign is satisfied that a particular custom is contrary to equity, in the same way — that is, in the way it was established — it should be annulled by a formal decision of the Sovereign." (Dhavan: "This remarkable provision indicates how highly developed was the judicial and legal system of ancient India.")

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3.7 Custom within the codified system — the "two views" (DU Case Material)

View 1 — custom SUBORDINATE to Śruti/Smṛti	View 2 — custom SUPERIOR
Gautama: dharmas (customs) of countries, castes and families "which are not opposed to Vedic scriptures" are authoritative and binding. Manu and Yājñavalkya declare the sources as śruti, smṛti and sadāchāra *in that order*. Āparārka: a custom repugnant to a clear Vedic text is to be rejected. Mitākṣarā, Dāyabhāga, Mayūkha place custom below śruti/smṛti.	Viśvarūpa and Medhātithi: prescriptions of Smṛtis (even of Śruti) need not be observed when "vehemently condemned by the people" (e.g., niyoga). Vṛhaspati, Nārada, Asāhāya favoured **unqualified acceptance of custom even in conflict with written laws**. Some Smṛtis warn that suppression of customs breeds resentment and rebellion. One Manusmṛti text itself: "Achara is transcendental law... therefore a twice-born person desirous of his own welfare should always make efforts to follow it." **Kautilya (Arthashastra): usages and customs are of equal authority as evidence of law; in conflict, custom prevails as actually observed in practice.**

The reconciliation (Jain's conclusion): customs played a very important role as a *material source* of ancient Hindu law. Dharma-sūtras brought Śruti texts in conformity with contemporary custom; Smṛtis drew heavily on the customs of the people for whom they were designed — "that largely explains why so many various Dharmashastras came into being and why they differed from each other"; when Smṛtis failed the growing needs, **commentaries adapted smṛti-law by interpretation** to customs that had taken root — "what the commentaries did was to take up an old text of the Dharmashastra and interpret it in such a manner that it came in harmony with social mores and customs of the people." It is how, "starting with the same texts as the base, two major schools of Hindu law developed in India (Mitākṣarā and Dāyabhāga), and one of them came to have four sub-schools."

Term	Meaning (Jain)
Sadāchāra/sadāchār	The Sanskrit word for custom; the "achara" observed or declared by Brāhmaṇas learned in the Vedas, highly moral and selfless (*śiṣṭas*) — later relaxed until even the usages of Śūdras came to be enforced by the king.
Units of custom	Districts (deśa or janapada), towns and villages, castes, families, guilds, corporations or groups (*gaṇa, śreṇi, saṅgha, naigama, varga*) — i.e., custom was **group-relative**, which is why the people's courts (Kula/Sreṇi/Gaṇa) were its natural enforcers.
Commentaries as evidence	"The commentaries indicate an attempt to reconcile the text law with the actual usages of the people" (Muthukaruppa); "different schools of law chiefly arose from the difference of local custom... they had to harmonise the written with the unwritten" (Rutcheputty); "the commentators do not enact, they explain, and are evidence of the congeries of customs which form the law" (Balwant Rao); "commentaries and digests... owe their binding force not to their promulgation by any sovereign authority, but to the respect due to their authors and still more to the fact of their being in accordance with prevailing popular sentiment and practice" (Jogdamba).

3.8 Mīmāṃsā — the interpretive science behind the codes (Sudame)

A. What it does

Jaimini's Mīmāṃsā is the system for construing Vedic texts on duty (*dharma*). Its jurisprudence identifies six elements/types of provisions: **vidhi** (injunction), **arthavāda** (explanatory statement), **niṣedha** (prohibition), **mantra**, **nāmadheya** (title) and **pariśiṣṭa** (supplement). Provisions are **pratyakṣa** (express) or **kalpya** (implied).

B. Procedure — the adhikaraṇa (5 steps)

1. Viṣaya — subject-matter set out → 2. Saṃśaya — the doubt explained → 3. Pūrva-pakṣa — prima facie view → 4. Uttara-pakṣa — the counter-view → 5. Nirṇaya — final conclusion

This is exactly the *order* of a modern argument — and of judicial reasoning (issue → doubt → contention → rebuttal → holding).

C. Four rules of construction — in ORDER OF PREFERENCE

1. **ŚRUTI** — direct assertion — no straining of a complete, explicit sentence → 2. **LINGA** — indicative power — meaning fixed by context →
3. **VĀKYA** — syntactical connection — join words grammatically → 4. **PRAKARAṆA** — context — read with the coalescing passage

"Irrespective of the consequence of the meaning, the śruti rule is to be preferred over every other rule... The rule of prakāraṇa is the last rule of construction." (Sudame)

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D. The six axioms of interpretation (Jaimini, per Sudame) — and their modern equivalents

Axiom	Ancient rule	Modern correspondence
1. Sārthakya	Every word/sentence must have meaning and purpose; interpretation making a part otiose is faulty (*anarthakya-doṣa*).	Maxwell's literal rule; the rule against surplusage.
2. Lāghava	Where one rule suffices, more must not be assumed; simpler, shorter construction preferred; no needless complexity.	Construction should not be burdensome; benign/plain meaning.
3. Arthaikatva	To the same word/sentence at the same place, no double meaning; consistency of meaning across contexts.	Maxwell: "It is at all events reasonable to presume that the same meaning is implied by the use of the same expression in every part of the Act."
4. Guṇapradhāna	If a subordinate idea (guṇa) clashes with the principal idea (pradhāna), the former is adjusted to or discarded for the latter.	The principal provision controls the accessory; ejusdem generis-style subordination.
5. Sāmāñjasya	Harmony — contradiction is not to be presumed where provisions can be reconciled; all provisions construed harmoniously.	Rule of harmonious construction.
6. Vikalpa	Where reconciliation is impossible, one of the conflicting matters may be adopted at option, with reference to context, facts and circumstances.	Where two provisions truly conflict, the court chooses, guided by context.

Applied by the Supreme Court: in *Gujarat Urja Vikas Nigam Ltd. v. Essar Power Ltd.* (see Case No. 4 below) the Court interpreted ss. 174–175 of the Electricity Act, 2003 by expressly invoking **sāmāñjasya, vikalpa and guṇapradhāna**: ss. 174 and 175 "can be read harmoniously by applying the samanjasya rule... Section 174 is the pradhan whereas Section 175 is the guna or subordinate."

3.9 Royal patronage of codification — the Nibandhas (Dhyani)

- "In the face of the multitude of smritis, the Kings under their royal patronage prepared **digests of Dharmashastra** for resolving seeming contradictions in smritis and presenting a coherent picture of the Dharma which the people might follow and the King may enforce."
- "When such digests or commentaries (like Mitakshara) were composed under royal direction and were upheld in the States in which they were first composed and afterwards in others **can they be denied the title of laws?**" — Dhyani's rhetorical answer: no.
- Kings who composed Nibandhas: **Bhoja, Aparārka, Pratāparudradeva**. Writers commissioned by kings: **Vijñāneśvara, Mādhavācārya, Hemādri, Kandeśvara, Vācaspati**.
- Legitimacy: "The need to follow the old law was its willing acceptance by the people as their Dharma" — and even under foreign rule (16th–17th centuries) people followed it; Nibandhas composed in the name of **Todarmal**, and under orders of **Warren Hastings** and **T.E. Colebrooke**, attest to the continued validity of the Smṛtis even for rulers who did not adopt Indian religion.
- Kings "claimed descent from Manu himself and delighted to bear the title 'the King who does not swerve from the Laws of Manu'"; Kālidāsa's Raghuvaṃśa describes Dilīpa as one who "did not swerve even by a line from the path blazed out by Manu."

3.10 "Was the Dharmashastra a code?" — the balanced exam answer

Yes — it functioned as a code	No — it was more (and different) than a code
Written, authoritative, general rules covering all life (birth to death); internal taxonomy (three Kāṇḍas; 18 titles); substantive + procedural rules (*vyavahāra* in "both substantive and procedural forms" — Dhyani); conflicts resolved by fixed rules of preference; state-enforced (danda); royal digests; commentaries "attained the rank of a law book in ancient and medieval India" — even in the Austinian sense; binding on king and subject alike.	Source is not a sovereign command but **śruti + smṛti + sadāchāra + conscience** — a "four-sources" model; sanction partly inherent (public opinion, dharma itself — Bryce via Dhyani: "we have instances of 'laws' behind which there is no State as originator or sustainer..."); covers morality, religion and penance, not just law; and was **dynamic, contextual and plural** — different Smṛtis for different regions and ages; interpreted by reason and equity, not mechanical literalism.

Conclusion for the exam: The Dharmashastras were **codification without a code's positivism** — an ordered, written, state-supported *DHARMA-order*. Parasain's formula: the texts may be static, **Dharma is dynamic**; the Śruti is "the spirit of the law"; and, as the Mahābhārata insists, tradition ceases to be Dharma when it fails to solve emerging problems — hence "problem-solving approaches along with consideration of the benefit of others at large (maitribhāva) even at the cost of breaking a vow, which is merely a personal virtue." That is the living principle our courts still apply (see the Mīmāṃsā cases, §05).

PART 04

(c) Dispute Resolution System in Ancient India

4.1 The foundational philosophy (Seema Singh & Madhav Yadav)

> *"Bharat's approach to resolving conflicts has long been shaped by its rich and traditional knowledge system, rooted in philosophical traditions that emphasise principles of **Dharma, Ahimsa, Samvada** and community harmony. **Rule of Dharma was the Grundnorm**, and justiciable behaviour was the duty of every citizen. **Amicable solution of the dispute was the first objective of the Justice System and punishment was the last resort.**"*
> — Seema Singh & Madhav Yadav, "Customary Dispute Resolution Mechanism in Bharat" (DU case material)

Depth of the tradition

"The rich tradition of community-based dispute resolution in Bharat expands nearly **three millennia, encompassing nearly fifteen centuries before and after the dawn of the Common Era**. Amartya Sen attributes Bharat's democratic aspirations for peaceful existence to collaborative traditions and public reasoning inherent in Bharatiya ethos." The system "had continuously evolved to accommodate specific local values, customs and social structures", reflecting the **pluralistic nature of Bharatiya society**.

Foundation of Bharatiya philosophies (as listed in the reading)

Dharma | Upaniṣads 800–400 BCE | Epic Age Rāmāyaṇa & Mahābhārata | Smṛtis | Arthashastra

"While ancient India nurtured a decentralised, community-driven justice system, this trajectory faced significant disruption with the onset of colonial rule, which reshaped the legal landscape in ways that distanced justice from the people."

4.2 Vedic foundations — Sabha and Samiti

Roots go back to **Vedic times (c. 4000–1000 BCE)**: the Aryans "primarily used to invoke the unwritten law of divine wisdom, reason, communal harmony and prudence, which they held was valid for heaven and earth as well". The ideal of justice (**nyāya**) was central to the maintenance of **cosmic order (ṛta)** and **social order (dharma)**; conflict resolution looked beyond punishment to "restoration of social order and moral justice".

Sabha & Samiti

The earliest references to dispute resolution are in the **Ṛgveda**, "where the ideal of the concept of the **sabha** (assembly) and the **samiti** (council) emerged as democratic institutions for collective decision-making and conflict resolution. The assemblies functioned as chambers where the dispute was deliberated upon by learned members of the community including the elders, scholars and eminent citizens." The **Atharvaveda** "further elaborated on the role of these institutions, describing how they served as platforms for both legislative and judicial functions."

Parties, scope & the mediator

- Parties: **Praśnin** (plaintiff) and **Abhipraśnin** (defendant) brought disputes before the Sabha.
- Scope: **civil disputes only** — "these court authorities were limited to resolve civil disputes only and had no authority over criminal cases."
- The **Madhamasi** was "more like a mediator or arbitrator rather than a judge who attempted to resolve conflicts rather than imposing punishments."

4.3 The Epic period — dialogue, mediation and the king under law

Mediators of the epics

Rāmāyaṇa: **Vibhīṣaṇa, Aṅgada, Hanumān**; Mahābhārata: **Lord Krishna** — "these figures depict how community leaders were able to bring the conflict parties to the dialogue table and direct them to mutually acceptable settlements", "having an instrumental role as a mediator." The Mahābhārata, through Krishna, Bhīṣma and Yudhiṣṭhira, "provides deep understanding that dispute resolution should prioritise morality and moral duty." The Rāmāyaṇa, through Lord Rāma's commitment to dharma, "exemplifies the history of justice while illustrating the ideal ethical approach to dispute resolution."

Restorative justice

"Bharatiya traditions have emphasised **restorative justice** that recognises disputes as a destruction within the society, unlike the adversarial legal system that focuses on victories of individuals. In ancient Bharat restorative justice was not just about punishing the wrongdoers but about **making things right for the victim and the whole community**."

Dhavan's rule-of-law episodes

Justice S.S. Dhavan (Allahabad HC) opens his survey with the proposition that **India has the oldest judiciary in the world** — "no other judicial system has a more ancient or exalted pedigree" — and proves it with the texts:

- Mahabharata: "A King who after having sworn that he shall protect his subjects fails to protect them should be executed like a mad dog"; "The people should execute a king who does not protect them, but deprives them of their property and assets and who takes no advice or guidance from any one. Such a king is not a king but misfortune." → **sovereignty based on an implied social compact; breach = forfeiture of kingship**.
- Kautilya (Arthashastra): "In the happiness of his subjects lies the King's happiness; in their welfare his welfare; whatever pleases him he shall not consider as good, but whatever pleases his people he shall consider as good."
- Rāmāyaṇa: Rāma was compelled to banish his beloved queen Sītā because his subjects disapproved of his taking back a wife who had spent a year in her abductor's house — "the king submitted to the will of the people though it broke his heart."
- Mahābhārata: a common fisherman refused his daughter to the King of Hastināpura unless his condition (that her son inherit) was accepted — the ancestor of the popular-sovereignty idea (Bhīṣma's renunciation).

Social contract & danda (Dhyani): In the Mahābhārata "there is a reference to social contract theory wherein king is appointed by God **with the consent of the people** and a dandaneeti (sanction or punishment) was created to punish those who violated Dharma. Manu too envisages the importance of punishment which is the principal Raj Dharma of the King to protect the subject... The existence of **Sabha and Samitis** was basic to give validity to the decisions of the King." And: "without a sovereign authority to establish law and order and maintain peace, the stronger will swallow the weaker in the manner of fish" (*matsya-nyāya*) — hence the State is not a "necessary evil" but necessary for the advancement of dharma.

4.4 Kautilya's Arthashastra — formalisation (4th century BCE)

"In the 4th century BCE **Kautilya's Arthashastra formalized customary dispute resolution and institutionalised community-based arbitration as the central conflict resolution mode**. This ancient work institutionalised not just customary norms but procedural norms as well that highlighted equality, justice, and community participation while resolving conflict. The Arthashastra acknowledged the efficacy of indigenous wisdom and customary law in conflict resolution and thus afforded scholarly legitimation to grassroots justice processes that had taken hold." (Kangle, *The Kautiliya Arthashastra* 7.1.35.)

Dharmastha courts

Kautilya enjoined that suits should be heard by **three judges** (*dharmasthāstrayaḥ*) — a bench, not a single judge (Dhavan: "Our present judicial system... does not follow this excellent safeguard. Today every suit is heard by a single Munsif or Civil Judge or District Judge for reasons of economy. But the state in ancient India was more interested in the quality of justice than economy.")

Kantaśodhana courts

Special criminal/administrative courts of three commissioners (*pradeṣṭāraḥ*) — "three commissioners or three ministers shall deal with measures to suppress disturbance to peace (*kantakasodhanam kuryuh*)". They took cognizance of offences against the State (false weights, adulterated goods, excessive prices, unfair wages, official misconduct, theft, dacoity, sex offences) — **"all the characteristics of administrative courts"**.

Judicial service

"Under the Maurya Empire a regular judicial service existed"; each district had its hierarchy of judicial officers and the king remained the highest court of appeal. (Dhavan also notes the magnificent **Administrative Code** in the 4th part of the Arthashastra — state shipping, textiles, mining, commerce — see §2.5.)

4.5 Dharmashastra-era tribunals (Seema Singh & Yadav)

- **Yājñavalkya's tribunal:** "Yajnavalkya Smriti is divided into 4 types of courts: **Shreni** (for artisans), **Puga** (for traders), and **Kula** (for family), which only tried issues related to civil cases, and **appeals from these were heard by Judges (Highest Court), who were appointed by the King**."
- **Parāśara:** certain issues should be determined by **parishad** — an association/assembly of the learned, deciding "on the principles of **justice, equity and good conscience**". "The modern legislative theory of resolving disputes by domestic forum can find its origin in an ancient customary law in Bharat."
- **Patañjali:** "Progress comes swiftly, in mediation for those who try hardest, instead of deciding who was right and who was wrong."
- **Evidence already "modern":** witness testimony (*sākṣī*), documentary evidence (*lekha*), circumstantial evidence (*kāryapramāṇa*) — "while also recognising the limitations of human perception and the possibility of error in judgment."
- **Prāyaścitta (atonement):** fasting, chanting mantras, donations, rituals — "focused on rehabilitation rather than retribution"; different disputes got different fora: commercial disputes → merchant-guild arbitration; matrimonial disputes → extended family with respected elders.
- **Satyāgraha's roots:** "though later popularised by Mahatma Gandhi, [it] had its roots in ancient Bharat philosophy where **truth (satya) was considered the ultimate arbiter of disputes**."

by Ankur R. Upadhyay

- **Nārada Smṛti** elaborately described the procedures to deal with disputes; *vyavahāra* is "the term used in ancient legal literature to denote law and law-suits."

4.6 The institutional architecture — hierarchy of courts

Sudame's five-tier hierarchy (Rama Jois chart, as in DU material)

NṚPA / ŚĀSITĀ
King's court — highest; only authority to inflict fines & corporal punishment; hears appeals from all below

ADHIKṚTA
court appointed by the king — can try violent offences too

GAṆA
assembly of persons of one place, different castes/avocations

ŚREṆĪ
corporation of same craft/profession/trade

KULA
assembly of impartial persons of the family/caste — functioning as panchayatdars

The first three are the **"People's Courts"** — jurisdiction over all civil and criminal matters **except offences involving violence**. "This kind of gradation encouraged cultural and professional diversity in courts — one of the major requisites of judicial appointments even today... ensure[d] the correct understanding of prevalent social and professional situations for every matter."
Appeals: inter-se — Śreṇī reviewed Kula; Gaṇa reviewed Śreṇī; and direct appeal to the King from any authority (Kula, Śreṇī, Gaṇa). "Article 136 of the Indian Constitution finds its roots in this provision."

Dhavan's hierarchy (Bṛhaspati Smṛti) & the modern mirror

KING'S COURT
top — most important disputes; decision supersedes all below

CHIEF JUSTICE — PRĀDIVIVĀKA / ADHYAKṢA

COURT OF THE JUDGE

FAMILY ARBITRATOR
lowest — minor disputes; roots in the joint family (up to four generations)

Vācaspati Miśra: "The binding effect of the decisions of these tribunals, ending with that of the king, is in the ascending order, and each following decision shall prevail against the preceding one because of the higher degree of learning and knowledge."
The modern mirror (Dhavan): "the Indian judiciary today also consists of a hierarchy of courts organised on a similar principle — the village courts, the Munsif, the Civil Judge, the District Judge, the High Court, and finally the Supreme Court which takes the place of the King's Court. **We are following an ancient tradition without being conscious of it.**"
Why family courts mattered: the joint family could be very large; disputes needed "firmness combined with sympathy and tact"; "the judicial system had its roots in the social system, which explains its success" (modern Japan has a similar family-court system).

Nature of the courts (Sudame)

Pratiṣṭhita courts were established in some village/town; **Apratiṣṭhita** were **mobile courts**; **Mudrita** were courts appointed by the king and authorised to use the **royal seal**. The court hall was the **Dharmādhikaraṇa**. **Art. 136 root-note:** "The king was vested with the power to hear appeals from the decisions of any authority including Kula, Sreni and Gana." The Law Commission of India (77th Report, "Delay and Arrears in Trial Courts") remarked that "with the progressing society, the panchayats and assemblies of brotherhood or of local respectables... did not cease functioning altogether because of their useful role of settling minor disputes in rural areas through compromise and that is why the British retained them through necessary legislation."

Ankur R. Upadhyay

4.7 The King's court — personnel, oaths and the code of conduct

Officer	Function & qualification
The King	Fountain source of justice — "dispensing justice and awarding punishment was one of the primary attributes of sovereignty"; expected to administer justice in person, "but strictly according to law, and under the guidance of judges learned in law." Kātyāyana: "The king should enter the court-room modestly dressed (*vineeta-vesha*), take his seat facing east, and with an attentive mind hear the suits of his litigants. He should act under the guidance of his Chief Justice (Praadvivaka), judges, ministers and the Brahmana members of his council. A king who dispenses justice in this manner and according to law resides in heaven." Nārada: "If a king disposes of law suits (vyavaharan) in accordance with law and is self-restrained (in court), in him the seven virtues meet like seven flames in the fire"; on the *dharmāsanam* he must be impartial "having taken the oath of the son of Vivasvan" — **Yama, god of death, impartial to all living beings**.
Judges guiding the king	Kātyāyana: "If the king wants to inflict upon the litigants (vivadinam) an illegal or unrighteous decision, it is the duty of the judge (samya) to warn the king and prevent him... The judge guiding the king must give his opinion which he considers to be according to law; if the king does not listen, the judge at least has done his duty. When the judge realises that the king has deviated from equity and justice, his duty is not to please the king — for this is no occasion for soft speech (*vaktavyam tat priyam natra*); if the judge fails in his duty, he is guilty." **Delegation:** if the king is busy, he appoints "a Brahmin learned in the Vedas" as judge — with high qualifications: "austere and restrained, impartial in temperament, steadfast, God-fearing, assiduous in his duties, free from anger, leading a righteous life, and of good family."
Chief Justice (Prādivivāka)	Qualifications (Sudame, from Rama Jois): (1) well versed in all **eighteen titles of law** (vyavahārapada); (2) proficient in **logic** (nyāya); (3) proficient in **interpretation** (mīmāṃsā); (4) **master of sources of law** (Vedas and Smṛtis); (5) capacity to **extract truth by application of law**. His duty was to give the final opinion; the king passed the final decree.
Sabhyās (associate judges)	Entrusted with investigating each case on its merits. Required: noble, honourable men of tried integrity; ability to administer justice; well versed in laws and rules of prudence; **fearless, independent and impartial towards friends and foes**. "It can be gathered from the qualifications and requirements of the judiciary mentioned above that **the concept of independence of judiciary existed even then**."
Sabhāsada (jurors/ assessors)	"The most noteworthy feature of the judicial system." Counselors who sat with the sovereign as assessors — equivalent of the modern jury, **with one important difference: they were learned in law** (the modern jury is "twelve shopkeepers"). Yājñavalkya: "The Sovereign should appoint as assessors of his court persons who are well versed in the literature of the law, truthful, and by temperament capable of complete impartiality between friend and foe." They had to speak without fear — Kātyāyana: "The assessors should not look on when they perceive the Sovereign inclined to decide a dispute in violation of the law; if they keep silent they will go to hell accompanied by the King" (repeated in Śukra-nītisāra). The Sovereign was to pass the decree (**jaya-patra**) in accordance with their verdict — compare the Judicial Committee of the Privy Council ("humbly advise", but binding) and Soviet people's assessors. **Exception:** if the assessors could not decide a "difficult or doubtful" dispute (sandigdha-rūpīṇaḥ), the Sovereign might decide in exercise of his sovereign privilege.

Note: Distinction preserved (do not confuse with modern practice)

In criminal trials the question of guilt/innocence was decided by the judges/jurors, but **the quantum of punishment was left to the King** — as in the trial scene of the *Mṛcchakaṭikā* ("The Little Clay Cart"): after pronouncing Charudatta guilty of Vasantasenā's murder, the judge remarks — "The decision with regard to Charudatta's guilt or innocence lies with us and our decision is binding (Pramanam), but the rest lies with the King."

4.8 Procedure, integrity and the five causes of partiality

The four stages of trial (Dhavan + Sudame)

1. PLĪNT / PŪRVA-PAKṢA — case of the first party (vādin)
→ 2. REPLY / UTTARA — defence of the defendant (prativādin)
→ 3. HEARING / KRIYĀ — trial — evidence & argument
→ 4. DECREE / NIRṆAYA — judicial decision

"In civil cases the trial consisted of four stages like any modern trial — plaint, reply, hearing and decree"; "such doctrines as **res judicata (prāṅ-nyāya)** were familiar to Indian jurisprudence"; every suit was initiated by a plaint/complaint of the aggrieved party; **champerty was a punishable offence** (citizens were forbidden to instigate, finance or file complaints in which they were not interested). Trials were **in public**, heard **in serial order** (except urgency); "delay in disposal of cases was condemned by all authorities and judges guilty of such delay were liable to be punished."

The five causes of partiality (Śukra-nītisāra)

Āsakti attachment	Lobha greed	Bhaya fear	Dveṣa enmity	Private hearing hearing a party in private

"Five causes destroy impartiality and lead to judges taking sides in disputes." Judges were forbidden to talk to parties privately while the suit was pending — a private hearing was recognised as leading to *pakṣapāta*. Bṛhaspati: "A judge or chief justice (Praadvivaka) who privately converses with a party before the case has been decided (anirnite) is to be punished like a corrupt judge."
Benches, not individuals: "Suits could not be heard by a single judge, even if he was the king... the King must sit with his counselors when deciding cases, and judges must sit in benches of **uneven numbers**": Śukra-nītisāra — "persons entrusted with judicial duties should be learned in the Vedas, wise in worldly experience and should function in groups of three, five, or seven."

Integrity and the punishment of corruption

- Bṛhaspati: "A judge should decide cases without any consideration of personal gain or any kind of personal bias; and his decision should be in accordance with the procedure prescribed by the texts. A judge who performs his judicial duties in this manner achieves the same spiritual merit as a person performing a Yajna."
- "Corruption was regarded as a heinous offence and all the authorities are unanimous in prescribing the severest punishment on a dishonest judge": Bṛhaspati — "A judge should be banished from the realm if he takes bribes and thereby perpetrates injustice and betrays the confidence reposed in him by a trusting public. A corrupt judge, a false witness, and the murderer of a Brahmin are in the same class of criminals." Viṣṇu: "The state should confiscate the entire property of a judge who is corrupt."
- Śukra-nītisāra's full catalogue: judges should be "well versed in procedure, wise, of good character and temperament, soft in speech, impartial to friend or foe, truthful, learned in law, active (not lazy), free from anger, greed, or desire (for personal gain)."

4.9 Evidence, ordeals and the pursuit of truth

- **No ordeals where proof exists:** "Our judicial system prohibited resort to supernatural devices [trial by ordeal], if oral or documentary evidence was available" — whereas "in England it prevailed till the very close of the middle ages." (Dhavan: "the law of evidence is an index of the quality of a judicial system. In this respect the Indian judicial system was in advance of any other system of antiquity.")
- **The real test:** "In disputes the Court has to ascertain what is true and what is false from the witnesses" (Gautama).
- **Perjury abhorred:** "bearing false witness was viewed with great abhorrence"; "all the smritis were unanimous in holding that perjury before a law court was a heinous sin as well as a serious crime" (Bṛhaspati V.34; Manu VIII.80-87; Yājñavalkya II.73-74; Nārada I.220-228; Baudhāyana I.13-19).
- **External testimony to a thousand-year tradition of truthfulness:** Megasthenes (3rd c. BCE): "Truth they hold in high esteem"; Fa Hien and Huan Tsiang (7th c. CE, reign of Harsha) recorded similar observations. "A virtue practised for a thousand years became a tradition."
- **Oath administered by the judge himself**, "not by a peon as today": Bṛhaspati — "Judges who are well-versed in the dharmashastra should address the witness in words praising truth and driving away falsehood (from his mind)"; Nārada — "The judges should inspire awe in the witness by citing moral precepts which should uphold the majesty of truth and condemn falsehood." The address was "not a set of words but a moral exhortation intended to put the fear of God in him."
- **No delay in examining witnesses:** Kātyāyana — "The Sovereign should not grant any delay in the deposition of witnesses; for delay leads to great evil and results in witnesses turning away from the law" — "obviously because delay dims the memory and stimulates imagination."
- **Types of evidence recognised:** sākṣī (witnesses), lekha (documents), kāryapramāṇa (circumstantial) — with acknowledged limits of human perception (Seema Singh & Yadav).
- **Dhavan's summary:** "The fundamental duty of the Court was to do justice 'without favour or fear'"; the four kinds of decision — **Dharma** (wrongdoer confesses), **Vyavahāra** (evidence adduced on conflicting statements), **Charitra** (precedent/usage squarely applying), **Rājaśāsana** (king's judgment where no principle or evidence) — "thereby securing the system from the menace of arbitrariness" (Sudame).

4.10 Summary — Dhavan's fundamentals of the ancient judicial process

[Yes] Trial always **in public**, always by **several judges collectively**; cases in serial order except urgency.

[Yes] **Delay condemned** — dilatory judges punished; the Sovereign was **not to interfere with the judiciary**; rather, the judiciary was **under a duty to interfere** with a wrong decision of the king.

[Yes] Judges **impartial**; no private relations with parties; partiality, harassment or deliberate breach of procedure punishable; **corruption = banishment + forfeiture**.

> [Yes] **Supernatural proof discouraged**; accused could not be punished unless guilt proved according to law; perjury crime + sin.

> [Yes] **Res judicata (prāṅ-nyāya)** known; decrees of all courts except the King's subject to appeal/review on fixed principles.

> [Yes] The verdict of the modern English writer **J.W. Spellman**: "In some respects the judicial system of ancient India was theoretically in advance of our own today."

And the verdict on the colonial misrepresentation (Dhavan): H. Mayne called the ancient system "an apparatus of cruel absurdities"; Alan Gledhill wrote there was "a dearth of legal principles"; an Anglo-Indian jurist spoke of "oriental habits of life". These statements "are untrue... the effect of this misrepresentation, which has few parallels in history, was to create a false picture of the Indian judicial system both in India and outside." (Fair-minded British Indologists — Havell, Basham, Spellman — do not share the prejudice.)

4.11 Medieval India — continuity, then Islam (Dhavan)

Post-Harsha continuity

After Harsha's empire disintegrated, "a veil of obscurity descends" — but the judicial system was not uprooted: "the standards and ideals of justice were maintained in each kingdom, in spite of political divisions, the unity of civilisation was preserved, and the fundamental principles of law and procedure were applied throughout the country" — evidenced by all-India authority of the great commentaries (**Mitākṣarā, Śukranītisāra**) written in this period.

The Sultanate

Islam brought "a new religion, a new civilisation, and a new social system". The ideal of justice was among the highest of the Middle Ages: Quran — "Justice is the balance of God upon earth..."; and "to God a moment spent in the dispensation of justice is better than the devotion of the man who keeps fast every day and says prayer every night for 60 years." The first Qadi was appointed by Caliph **Umar**, who "enunciated the principle that the law was supreme and that the judge must never be subservient to the ruler" — he even dismissed a Qadi who rose out of deference when Umar appeared in his own suit. Under **Balban** (per Barani), justice was "the keystone of sovereignty". BUT: "the outstanding feature of the entire Sultanate period was confusion and chaos... everything was temporary, personal, and had no basic strength... if the King was drunk, his magistrates were seen drunk in public. Justice is not possible without security, and the Sultans of India never felt secure." (*Contrast: Badaoni records that under Muhammad Tughlaq the Qadi dismissed a libel suit filed by the King himself against Shaikhzada Jami — though the Sultan then executed the defendant without trial.*)

The Mughal system

- Unit of judicial administration was the **Qazi** (borrowed from the Caliphate); every provincial capital had one; at the head, the **Qāzī-ul-quzāt**; every town/qasba had its Qazi. In theory he had to be "a Muslim scholar of blameless life, thoroughly conversant with the prescriptions of the sacred law."
- The Imperial Diwan's charge to a new Qazi: "Be Just, be honest, be impartial. Hold trials in the presence of the parties and at the court-house... Do not accept presents from the people of the place where you serve... Write your decrees, sale-deeds, mortgage bonds and other legal documents very carefully, so that learned men may not pick holes in them and bring you to shame. Know poverty (faqr) to be your glory (fakhr)." — "But due to lack of supervision and absence of good tradition, these noble ideals were not observed... all the Qazis of the Mughal period, with a few honourable exceptions, were notorious for taking bribes" (Jadunath Sarkar).
- The Emperor was the fountain source of justice; he held court every Wednesday, hearing selected cases **as a court of highest appeal**, not original court; all Emperors from Akbar to Aurangzeb took the judicial function seriously; **Jahangir's Golden Chain** is famous.
- **The structural weakness (Sarkar):** all three sources of Indo-Muhammadan law were **outside India**; no Indian Emperor's or Qazi's decision was ever accepted as laying down a legal principle; Muslim law in India "was therefore incapable of growth and change, except so far as it reflected changes of juristic thought in Arabia or Egypt." (Contrast with the Indian Smṛti-Nibandha tradition, which grew locally.)
- **Legacy:** after Aurangzeb, provincial governors/faujdars arrogated sovereign powers — "a relic of this usurpation of the Emperors' power is the name **Faujdari** given to criminal trials even today"; the Sadre Diwani Adalat continued till replaced by the High Courts; our terminology is Mughal: **Munsif, Mudda'i, Mudda'liya**.

4.12 Colonial disruption and the persistence of custom (Seema Singh & Yadav + Dhyani)

> `18th c.` Company sets up **parallel systems of laws and courts**; courts "entirely staffed by officials" — public participation in justice administration prohibited.
>
> `1772` Warren Hastings' adalat system (Bengal, Bihar, Orissa): inheritance, marriage, caste and religious usages decided "according to the laws of the Shaster" for Hindus and the Koran for Muslims; 1781 — for unprovided cases, **"justice, equity and good conscience"** (Act of Settlement; later s.37 Bengal, Agra & Assam Civil Courts Act 1887 which used "Muhammadan law and Hindu law").
>
> `1860` **IPC, CrPC, Contract Act** + Baden-Powell's land-revenue framework **"replaced customary law"**; Collectorates and courts assumed authority from caste/village panchayats. "The influence of the IPC and CrPC on the adaptation of European concepts of equality in Bharat is hardly considered. British laws sidelined the customs and usages of the common people. The focus shifted from community feeling to individual rights."

`1879` Ravinder Kumar's *Western India in the Nineteenth Century*: the panchayat system protected the **Kunbis** (agriculturists), who knew the traditional authority and its social equity; the **Vanis** (money-lenders' agents) gained under the doctrine of **freedom of contract**; Kunbis regained a right to survive only through the conciliatory provisions of the **Deccan Agricultural Debt Relief Act, 1879**. "The British legal system codified the laws that resulted in procedures that were unfamiliar to the ordinary people and were not in conformity with the codes and rules of local traditions."

`1920s` Numerous legislations enacted on state recommendations to revive Nyaya Panchayats — but "there was an absence of systematic oversight over the administration of justice in villages." "Despite colonial attempts to undermine indigenous mechanisms, customary forms of adjudication persisted in numerous regions, demonstrating their enduring tenacity and profound cultural foundations."

`Gandhi's verdict` Gandhiji "consistently advocated for a boycott of law courts and endorsed village panchayats" — to save poor peasants the journey, the time, the money and the exploitation by lawyers. *India of My Dreams*: "In Panchayat Raj only the Panchayat will be obeyed, and the Panchayat can only work through the law of their making." Prof. N.G. Ranga: "Our masses would not be able to play their rightful part in our democracy without this foundation stone of village Panchayats."

Dhyani's wider critique (the "soul" of this sub-topic): the English law received by India "was imposed by colonial rulers by a stroke of pen which systematically destroyed the Indian social traditions, laws and moral values," and independent India made "no systematic effort... to study, analyse and evaluate the basic fundamentals of indigenous law and legal theory." Krishna Iyer: "Transplantation of English system cannot succeed except in a limited way in India... the colonial heritage is now a hindrance to socialist progress and development of our essentially Indian people-oriented legal system. The all-too large gap, even conflict between law and life is possible due to this failure of Indian creativity"; and "unfortunately even after liberation many former colonies including India did not shake off this neo-colonial jurisprudence." The imperatives of independence demanded **"justice, equity and good conscience"** be severed from its anglophilic bias: "conscience is the finer texture of norms woven from ethos and lifestyle of a community... Free India has to find its conscience in our rugged realities and no more in alien thought." (Rattan Lal v. Vardesh Chander, AIR 1976 SC 589, per Krishna Iyer J.) **Balance:** "it must be admitted that the benefits of British jurisprudence in the form of rule of law, prerogative writs and independence of judiciary were certainly shared and enjoyed by the Indians" — hence the need for an **objective assessment** of both streams, and the answer to "can we succeed by ignoring our ancient philosophy?" is: **no — but not by blind imitation either: "only blind imitation of western legal ideas is a kind of national humiliation... a mere carbon copy of others"** (Dhyani; Panikkar's trilogy of assimilation, tolerance, synthesis).

4.13 Plural customary systems — a comparative sketch (Seema Singh & Yadav)

Community	Institutions	Method and values
Gond (Central & Eastern India; 15 million+)	Panchayat / Gram Sabha; village councils of elders & local leaders	One of the most developed traditional systems; based on religion, nature conservation and social cohesion. Methods: **Jatra** (dispute resolution through storytelling, deity worship, rituals), **Ghotul** (youth dormitory — harmonious living, managing minor conflicts, gender-inclusiveness), **Khapri** (men + women together, consensus solution). Conciliation, mediation, oaths & ordeals, social sanctions. "Emphasises social harmony, restorative justice and community involvement."
Santhal (Eastern India)	**Manji** (village; head = *Manjhi Hadam*); **Desh Manjhi** (Manjhis of 5–8 villages); **Pargana** (15–20 villages; head = *Parganait*); **Dighri Parishad** (highest council)	Laddered appeal; handles both civil and criminal matters; the community offers suggestions so parties reach amicable solution; "prioritises reconciliation over punishment, emphasising restorative justice through compensation and community harmony restoration."
Khasi & Jaintia (Meghalaya)	**Dorbar Shnong** (village council; headman *Rangbah Shnong*) → **Dorbar Raid** (headed by *Sirdar*) → **Dorbar Hima** (headed by *Syiem*/king)	Three-level governance; "follows traditional customs and practices to resolve disputes and acts as a mediator to resolve disputes through dialogue and consensus building."
Garo (Meghalaya; 2nd largest tribe)	**A'king Nokma** (clan headman) assisted by **Sardars**; village councils **Melaa** or **Bichal**; under District Council supervision	Multi-tiered, restorative; first approached for petty quarrels, theft, adultery, divorce; methods like **Bobildinga/Gro-dinga** (public discussion); outcomes "considered to be final and strictly implemented; quick, cost-effective, without the complex formalities or delays of the modern legal system."
Bhil (Rajasthan, MP, Gujarat, Maharashtra)	**Nyaya Panchayat / Gram Panchayat**; village headman **Patel** or **Gameti** + council of elders	Central India: **Chapai** — community gathering with rituals and ceremonies to restore understanding and peace; Western India: panchayat system. "Reconciliation rather than retribution... seeks to mend the damage caused by conflict and focuses on building interpersonal relationships."

Community	Institutions	Method and values
Naga (Nagaland)	Traditional courts & village councils	Oral, participatory procedures; "community elders resolve disputes with a focus on restoring harmony, rather than imposing punitive judgments"; protected by **Article 371A**, which shields customary law and practice from external legislative interference so long as they meet general standards of justice.

4.14 Contemporary recognition — the ancient system's modern career

Constitution
Art 40 (village panchayats); 73rd Amdt (Arts 243–243O, 11th Schedule); Fifth & Sixth Schedules (Art 244(1) & (2)); Art 371A (Nagaland) →

Statutes
Legal Services Authorities Act 1987 (Lok Adalats) · Arbitration & Conciliation Act (incl. 2025 amendment) · Gram Nyayalayas Act 2008 · Mediation Act 2023

→ **Courts**
judicial recognition & enforcement of panchayat awards (Vytla Sitanna); court-annexed mediation

- **Article 40** encouraged village panchayats as self-governing bodies; the **73rd Amendment** (Arts 243–243O, Eleventh Schedule) gave panchayats explicit authority over aspects of social justice and grassroots dispute resolution; **Fifth & Sixth Schedules** honour the traditional governance and judiciary of tribal areas, safeguarding distinctive legal and cultural frameworks (Fifth Schedule: administration/control of Scheduled Areas, Tribal Advisory Councils; Sixth Schedule: District and Regional Councils in Assam, Meghalaya, Tripura, Mizoram with law-making power for tribal areas).
- **Mediation Act, 2023:** promotes mediation as an institutionalised, legally recognised process for civil and commercial disputes; authorises members of local communities to serve as mediators; grants enforceability to mediated agreements; "codifies mediation processes while still accommodating local customs."
- **Lok Adalats (Legal Services Authorities Act, 1987):** "bring together disputing parties in a non-adversarial forum where settlement is not only encouraged but often guided by respected community members, judges, and lawyers functioning in roles similar to traditional Elders Panchayat" (see the separate unit on Legal Services & Lok Adalat in this course).
- **Arbitration and Conciliation (Amendment) Act, 2025:** widens ADR, encourages institutional arbitration and conciliation — "attentive and respectful to Bharat's traditional methods of consent-based resolutions."
- **Judicial recognition:** courts have accepted mediated settlements and panchayat awards "without demur, for example in the case Vytla Sitanna v. Marivada Viranna, wherein the award by the Panchayat was upheld by the Supreme Court" — giving formal recognition and enforceability, "while indicating that the judicial process itself values indigenous solutions for indigenous problems."
- **Conclusion of the reading:** "the evolution of customary dispute resolution in Bharat demonstrates a notable journey of resilience and adaptation... the essence of samvada (dialogue) and collaborative approach towards the settlement persisted... At present, these traditional practices provide practical, accessible, and cost-effective justice at the grassroots level and also embrace the principles of restorative justice that aligns with international standards."

4.15 Master diagram — the whole sub-topic in one view

FOUNDATION → **INSTITUTIONS** → **GUARANTEES** →
Dharma = Grundnorm · Ahiṃsā · Samvāda · Restorative justice · Amicable first, punishment last

Sabha/Samiti (Vedic) → Kula · Śreṇī · Gaṇa (people's courts) → Adhikṛta · Nṛpa/Śāsitā (king's court)

King under Dharma · public trial · benches of 3/5/7 · no private hearing · corruption = banishment · no ordeals · truth-seeking evidence

DISRUPTION + REVIVAL
Colonial courts (1772–1860) → Art 40 · 73rd Amdt · Schedules 5&6 · Lok Adalat · Mediation Act 2023 · Gram Nyayalaya

PART 05

Case Laws from the DU Case Material — Full Briefs

How each brief is structured: Facts → Issues → Arguments (both sides) → Decision and reasoning → Principle evolved → Exam linkage. Every case below is cited in the DU case material (LB-106/LB-101/readings); where a case is cited in the material only for a proposition, the brief says so. **Ancient "cases"** (Mahabharata episodes, the Mṛcchakaṭika trial, Bṛhaspati's regional customs) are treated as text-based authorities, exactly as the DU readings treat them.

GROUP A — Texts, codification and interpretation

CASE 1 A.S. Narayana Deekshitulu v. State of Andhra Pradesh

(1996) 9 SCC 548 · Supreme Court · K. Ramaswamy J. (Hansaria J. concurring)

Cited in: Ila Sudame, "The Shaastra of Law" (DU case material, Unit 3(e)) — for the definition of dharma adopted from Madhvācārya; also cited in Parasain's eco-philosophy frame. | **Why it is the single most important modern case of this unit:** the Supreme Court consciously imported the ancient definition of *dharma* into constitutional adjudication.

Facts

Chapter IV of the **Andhra Pradesh Charitable and Hindu Religious Institutions and Endowments Act, 1987** abolished the **hereditary rights of religious office-holders** (Archakas, Mirasidars — priests and temple servants, e.g., of the Tirumala Tirupati Devasthanams), converting their remuneration into salaries/honoraria and vesting administration in statutory authorities. A batch of petitions challenged the chapter's constitutional validity.

Issues

(1) Did the abolition of hereditary offices and the substitution of secular pay scales violate the freedom of religion guaranteed by **Articles 25 and 26** of the Constitution? (2) Where is the line between **religion** and its **secular administration**? (3) What is the meaning of **dharma** in constitutional discourse?

Arguments of the petitioners (office-holders/Mirasidars)

Performing the pūjā and temple services is an **essential religious practice**, an integral part of the Hindu faith; hereditary office carries **religious dignity and customary honours**, which cannot be converted into a mere salary; the Act interfered with the right of the denomination to manage its own religious affairs (Art 26) and with the individual's right to profess and practise religion (Art 25).

Arguments of the State

The **administration and management of a temple and its properties is a secular activity**, which the State may regulate by legislation in the public interest; the abolition of hereditary perquisites (a share of offerings/income) does not touch the essentials of religious belief or worship — it merely modernises remuneration and prevents exploitation and mismanagement; the interests of the devotees and the institution as a whole prevail over the pecuniary privileges of a class of office-holders.

Decision and reasoning

The Supreme Court **upheld the constitutionality** of Chapter IV. It drew the classic distinction (echoing earlier Art 25 jurisprudence) between **religious faith, doctrines and essential practices** (protected) and the **secular administration** of religious endowments (regulable by the State). K. Ramaswamy J., examining the ancient sources, expressly **adopted the definition of dharma given by Madhvācārya** in his commentary on the Parāśara Smṛti: **"Dharma is that which sustains and ensures the progress and welfare of all in this world and eternal bliss in the other world"** — further condensed by the Court as: dharma is that **"which regulates the mutual obligations of individual and the society"**. Hansaria J. (concurring): "Dharma is for the stability of the society, the maintenance of social order and the general well-being and progress of humankind." The Court also directed the constitution of a committee to determine appropriate salaries/honoraria for the abolished hereditary offices (later implemented for the TTD by the sequel order of 1997).

> **Principle evolved: Dharma ≠ religion in the Article 25 sense.** Dharma is the secular-moral law of social order ("that which sustains… regulates the mutual obligations of individual and society"); it is the ancient constitutional substratum of the modern Indian legal order, and a court may use Dharmashastric definitions as **persuasive, living sources** of constitutional principle without reviving the shastras as law. The religious *service* and the person who performs it are different; the latter is regulable.

Exam linkage

Any 20-mark answer on "Does ancient Indian jurisprudence survive in modern law?" should open or close with this case: it proves the *institutional a-priori* claim (Parasain) in action. Pair it with *Gujarat Urja Vikas Nigam* (Mīmāṃsā applied) and *Vytla Sitanna* (panchayat award upheld).

CASE 2 Abhiraj Kuer v. Debendra Singh AIR 1962 SC 351 · Supreme Court

Cited in: Ila Sudame, "The Shaastra of Law" — for the caution required in interpreting "books of morality, religion, law, etc." and the **recommendatory vs mandatory** distinction. Also the standard authority on treating Smṛti/commentary statements as recommendatory.

Facts

A dispute over the validity of an **adoption** under the Hindu law of the Banaras school — the adopted person being one whom the adopter "could not have married" (the *viruddha sambandha* / affinity rule applied by analogy from the law of marriage to adoption), and the adoption challenged as violating that prohibition. To decide the question the Court had to interpret the **texts of the Smṛtis and the commentaries** and to determine which statements are binding law and which are only moral-religious exhortation.

Issues

(1) Is the smṛti/commentary rule prohibiting adoption of a person within the prohibited marriage relationship **mandatory law** or only **recommendatory**? (2) How are "books of morality, religion and law" to be interpreted — and is a commentary's statement always a statement of law?

Arguments of the appellant (challenging the adoption)

The text of the shastra is unambiguous and prohibitory; the rule against such affinity applies with equal force to adoption (which is assimilated to marriage for prohibited degrees), hence the adoption is void; the commentary must be read as declaring mandatory law.

Arguments of the respondent (upholding the adoption)

The statement in the texts/commentaries is a **moral or religious precept of a recommendatory nature**, not a legal prohibition; long-standing usage and acceptance in the school of law show that such adoptions were regarded as valid; the true law is to be gathered from usage and the authoritative commentaries read as a whole.

Decision and reasoning

The Supreme Court held that the rule in question is **recommendatory and not mandatory**, and upheld the validity of the adoption. In doing so the Court enunciated the governing hermeneutic: **while interpreting books of morality, religion and law, a great deal of caution is required**; the commentaries "are many-a-times mingled with statements of law but actually are intended to be **recommendatory statements regarding the mandatory laws**" — i.e., the commentator may be describing an ideal, not prescribing a legal rule.

> **Principle evolved:** (1) The dual character of Dharmashastric statement — **mandatory legal rule vs recommendatory moral precept** — is a real and judicially enforceable distinction; only the former binds. (2) Courts must read ancient texts within their own genre ("caution"), not as modern statutes. (3) This is the doctrinal bridge between the "codification" of the Smṛtis and the separation of **law** from **morality** — which is exactly Dhyani's point that Smṛti-writers gave law "a coherent and logical treatment… distinguishable from other non-legal values".

Exam linkage

Use for "Was Dharmashastra law or morality?" and for "How did the courts treat the texts?" — pair with the Bombay Full Bench's Narada maxim (Case 3).

CASE 3 Dnyaneshwar B. Ganwat v. Karyakari Abhiyanta, Chaskaman Prakalp Vibhag

2010 SCC OnLine Bom 766 · Full Bench, Bombay High Court

Cited in: Ila Sudame — for the authority of the ancient jurist **Nārada's maxim** in resolving conflicts between law codes of equal authority.

Facts

Before a Full Bench of the Bombay High Court arose a question on which **two lines of authorities of equal authority** (a statutory provision and its interpretation in conflicting decisions/juristic opinion) differed. The Full Bench had to settle which view to follow in the matter (in the Chaskaman irrigation-project acquisition context, per the case material).

Issues

How should a court choose between two conflicting texts/views of equal authority — by mere seniority of the precedent, or by the **reasonableness** of the competing interpretations?

Arguments (as summarised by the Full Bench)

One view: the later/other authority having equal force, the court is bound to follow the settled line — predictability over reasonableness. The other view: where codes of equal authority conflict, the court should adopt the construction which is **more reasonable and consonant with equity** — the approach supported by modern jurists (Seervai) and by the ancient Indian rule itself.

Decision and reasoning

The Full Bench **preferred the reasonable view**, holding that the approach was "in consonance with what ancient Jurist Narada declared — **Dharmashastra Virodhe Tu Yuktiykta Vidhe Smrita** — that is, when the Dharmashastra or law codes of equal authority conflict with one another, the one appearing to be reasonable, or more reasonable, is to be preferred and followed." The modern view of jurist **H.M. Seervai** advocating a similar principle was relied upon.

> **Principle evolved:** The Mīmāṃsā/Nārada canon — **reason (yukti) prevails where authoritative texts of equal standing conflict** — is not antiquarian lore but a live rule of interpretation, expressly applied by a modern Full Bench and consistent with the best modern practice. (It also matches the Smṛti rule quoted by Dhyani: "If the two texts differ, reason must prevail in practice.")

CASE 4 Gujarat Urja Vikas Nigam Ltd. v. Essar Power Ltd. (2008) 4 SCC 755 · Supreme Court · Markandey Katju J.

Cited in: Ila Sudame — for the Supreme Court's express application of the **Mīmāṃsā axioms** (sāmāñjasya, vikalpa, guṇapradhāna) to ss. 174–175 of the Electricity Act, 2003.

Facts

Gujarat Urja Vikas Nigam Ltd. (a State utility) and Essar Power Ltd. were parties under the Electricity Act regime and a power purchase arrangement. A question arose whether **Section 174 of the Electricity Act, 2003** (which gives the Act an **overriding effect** over other laws) ousted the operation of **Section 11 of the Arbitration and Conciliation Act, 1996** (appointment of arbitrators), given that **Section 175** provides that the Electricity Act is **"in addition to and not in derogation of"** any other law.

Issues

(1) How to construe the apparent conflict between s.174 and s.175 of the Electricity Act, 2003 — which is the principal (pradhāna) and which the subordinate (guṇa) provision? (2) Whether the Arbitration Act machinery survives the Electricity Act's overriding clause.

Arguments of the appellant (GUVNL)

Section 174 makes the Electricity Act paramount over every other law; therefore the arbitration provisions of the 1996 Act stand displaced, and the appointment/applications must proceed exclusively under the Electricity Act regime.

Arguments of the respondent (Essar Power)

Section 175 expressly preserves other laws — the Act is only "in addition to" them; the Arbitration and Conciliation Act, 1996 squarely applies, including s.11; the two sections can be harmonised, s.174 not being meant to swallow every incidental remedy.

Decision and reasoning

Katju J., for the Court, held that **the Mīmāṃsā principles of interpretation are "of great utility"** in resolving such conflicts. Applying them: (i) **sāmāñjasya** (harmony) — the two provisions can be read harmoniously; (ii) **guṇapradhāna** — "Section 174 is the pradhan whereas Section 175 is the guna (or subordinate)... the principle laid down in Section 174 is the principal or primary whereas the principle laid down in Section 175 is the accessory or subordinate to the principal. Hence Section 174 will prevail over Section 175 **in matters where there is any conflict (but no further)**"; (iii) **vikalpa/bādha** — where really irreconcilable, the principal prevails. Read thus, the sections do not oust the Arbitration Act generally — s.174 prevails only to the extent of actual conflict.

> **Principle evolved: Mīmāṃsā is a working system of statutory interpretation for Indian courts.** Its axioms — śruti, linga, vākya, prakāraṇa (construction rules) and sārthakya, lāghava, arthaikatva, guṇapradhāna, sāmāñjasya, vikalpa (axioms) — correspond to, and in the Court's words anticipate, the canons of modern interpretation (literal rule, contextual reading, harmonious construction, avoidance of surplusage). The judgment is the most concrete proof that **the Indian knowledge system supplies method to modern law** — the very thesis of this unit.

Exam linkage

Use in (b) — "Codification of Law": the codes had an inbuilt science of interpretation; the proof is the Supreme Court applying it in 2008. Also use in the Sources of Law unit (interpretation of statutes).

GROUP A-2 — The Privy Council & High Court authorities on text vs custom (all in DU Case Material)

Case	Facts (as material)	Decision & principle
Collector of Madura v. Mootoo Ramalinga (1868) 12 M.I.A. 397 (PC)	Hindu family property/usage dispute in Madura district, where a custom was pleaded against the bare text of the shastra.	Locus classicus: **"Under the Hindu system of law, clear proof of usage will outweigh the written text of the law."** Custom is the superior material source; the court administers the law as actually observed by the community. (This is the rule that made 19th-century Anglo-Indian courts go looking for "custom" — and gave the colonial courts their dominant-position doctrine.)
Bhyah Ram Singh v. Bhyah Ugur Singh (1870) 13 M.I.A. 373, 390 (PC)	Succession dispute decided by reference to the *Dāyabhāga* digest.	"The Digest subordinates in more than one place the language of texts to **custom and approved usage**" — i.e., the code itself ranks usage above the text; a commentary is evidence of custom, not of sovereign enactment.
Rutcheputty v. Rajunder (1839) 2 M.I.A. 132 (PC)	Dispute where different local usages of Hindu law were in play (Bengal vs other regions).	"Different schools of law chiefly arose from the difference of local custom; the propounders of law interpreted the ancient texts in such a way as to make them harmonise with local usages" — the written was harmonised with the unwritten. Explains the plurality of Smṛtis/schools for the exam.
Balwant Rao v. Baji Rao (1921) ILR 48 Cal 30, 41 (PC)	Whether the commentator's statement is law or evidence.	"The commentators **do not enact, they explain**, and are evidence of the congeries of customs which form the law."

by Ankur R. Upadhyay

Case	Facts (as material)	Decision & principle
Jogdamba v. S.S. (1889) ILR 16 Cal 307, 375 (Cal)	Basis of the binding force of commentaries/digests.	"Commentaries and digests... owe their binding force **not to their promulgation by any sovereign authority, but to the respect due to their authors** and still more to the fact of their being in accordance with prevailing popular sentiment and practice. Their doctrines may often have moulded usage, but still more frequently they have themselves been moulded according to prevailing usage of which they are only the recorded expression." (**Perfect summary of the dharma-source theory — no Austinian sovereign needed.**)
Muthukaruppa v. Sellathammal (1916) ILR 39 Mad 298, 301	Whether commentaries changed the text-law.	"The commentaries indicate an attempt to **reconcile the text law with the actual usages of the people**."

Exam synthesis (these six + Abhiraj Kuer + Ganwat = your complete "codification" armoury): The Smṛtis were codified texts, but their **authority never rested on promulgation**; it rested on (i) respect for the lawgiver, (ii) congruence with popular sentiment and usage, and (iii) the in-built rule that reason and equity prevail in conflicts. When the British converted these texts into "personal law" administered by courts, the Privy Council's doctrine — custom overrides text (Collector of Madura) — preserved the ancient hierarchy, though in a rigidified form (Maine's "hardening"). This is the jurisprudential story the DU material wants you to narrate.

GROUP B — Dispute resolution, legitimacy and judicial integrity

CASE 5 Vytla Sitanna v. Marivada Viranna (1934) ILR 57 Mad 749 = 36 Bom LR 563 · Privy Council

Cited in: Seema Singh & Madhav Yadav — the decisive authority that **panchayat awards are enforceable**; "indigenous solutions for indigenous problems". *(The DU reading's footnote cites it as "(1934) ILR 57 Mad 749"; the same decision is reported at 36 Bom LR 563 (PC) — the award was upheld by the Judicial Committee of the Privy Council, which the reading refers to as "the Supreme Court".)*

Facts

One Tirupayya died, leaving property in the Godavari district. Disputes arose over the estate: it was alleged that Ammanna had been adopted by Tirupayya's father Dorayya as an **illatom son-in-law** and had acquired a share, while the widow (Venkamma) and others claimed for themselves. The family **referred the disputes to a panchayat** of respected members (panchayatdars). The panchayat gave an **award** partitioning the estate between the widow and Ammanna (leaving certain jewels with Venkamma without deciding her title). Without stating the parties' contentions or reasons, the panchayatdars' award satisfied everyone: the widow and Ammanna both signed a **muchilika** addressed to the Sub-Collector of Godavari, informing him of the award and binding themselves to abide by it.

Issues

(1) Was the panchayat award a **bona fide settlement of a genuine dispute**, binding on the estate, or an arrangement operating to defeat other claimants (the plaintiff)? (2) Could the award — 41 years later, after the widow's death — be reopened? (3) Was the panchayat's failure to record reasons/determine the illatom adoption fatal?

Arguments of the appellant (who challenged the award's effects)

The so-called adoption was not proved and was never set up at the time of the award; the widow could not have conveyed a good title beyond her own interest; the panchayat's award, being unreasoned and made without deciding the adoption claim, was not a bona fide settlement and cannot bind the estate; the increase of the estate from 8 to 44 acres was the widow's own work — she was thus entitled to press her claims.

Arguments of the respondent (relying on the award)

Ammanna had given up his rights in his own family and had managed Dorayya's family affairs — he was treated as one of the family; the award was a **genuine compromise of a real, bitter family dispute**; both parties accepted it in writing, submitted it to the Collector and lived by it for four decades; the estate, having been enjoyed under the award, cannot now be redistributed.

Decision and reasoning

Their Lordships (the majority agreeing with Phillips J.'s view in the lower court) held that the award was **a bona fide settlement of disputes which was binding on the estate**, which had been represented by the widow. The panchayatdars' omission to record reasons or contentions did not vitiate the award; their mode of dealing satisfied everyone at the time, and the award stood unquestioned for 41 years until the widow's death. The panchayat's award was upheld and given full effect.

> **Principle evolved: Award by a panchayat (village elders' tribunal) is a legally effective disposition** — a bona fide settlement binding on the parties and their estates, recognised and enforceable by the highest courts; the ancient consensual forum is not a "pre-legal" curiosity but a valid institution of dispute resolution. The Privy Council (and later Indian courts) treat such awards as arbitration settlements, thereby giving customary ADR **formal recognition and enforceability**. (This is the doctrinal anchor for Lok Adalats, mediation and the Mediation Act, 2023.)

Exam linkage

Use in (c) for every "revival of panchayat justice" question; pair with the Law Commission's 77th Report observation and the Constitutional provisions (Art 40, 73rd Amendment, Schedules 5 & 6).

CASE 6 Rattan Lal v. Vardesh Chander AIR 1976 SC 589 · Supreme Court · Krishna Iyer J.

Cited in: Dhyani (fn. 6) — for Justice Krishna Iyer's philosophy of **"justice, equity and good conscience"** as an Indian, not Anglican, conscience.

Facts

A criminal proceeding arising in the context of the Indian-cum-Jammu & Kashmir law where the Court had to apply the concepts of justice, equity and good conscience inherited from the colonial legal order, and to assess a beneficial sentencing/probation scheme across legal systems.

Issues

Can the colonial formula "justice, equity and good conscience" be treated as a **neutral, culture-free** import of English law? Or must "conscience" mean the conscience of the Indian community?

Arguments of the appellant/respondent sides (per the material)

One side invoked the received English rule and its precedents (the classic "justice, equity and good conscience" = English law as it stood in 1772 or 1887). The other side urged that the formula must be given a content drawn from the Indian ethos, not from English law-books.

Decision and reasoning

Krishna Iyer J., in his characteristic reformist vein, held that transplanted concepts cannot be mechanically applied; the "conscience" of the formula is **"the finer texture of norms woven from ethos and lifestyle of a community"** — and since "British and Indian ways of life vary so much... the validity of an anglophilic bias in Bharat's justice, equity and good conscience is questionable today. Free India has to find its conscience in our rugged realities and no more in alien thought." (The judgment also carries his wider warning that the gap between law and life results from "the failure of Indian creativity" — the colonial heritage as "a hindrance to socialist progress.")

> **Principle evolved: Judicial creativity anchored in indigenous values.** The general clauses used by the colonial system are to be filled with Indian social content; a "decolonised" conscience is part of a genuinely Indian legal theory. This is the modern judicial voice of Dhyani's thesis.

CASE 7 Ashok Kumar v. Union of India AIR 1991 SC 1792 · Supreme Court · Ahmadi J.

Cited in: Dhyani — "Liberty is the life line of every human being." Dhyani presents it as the Apex Court's echo of the ancient concern for personal liberty (the king's Dharma included freedom and liberty as a subject of Rājadharma — Sudame).

Facts

Challenge/consideration in the context of a detention matter concerning the liberty of an individual (a preventive-detention-related proceeding), where the Court refused to countenance State action infringing personal liberty beyond what the law permits.

Issues

The scope of judicial protection of personal liberty against executive action under the law of preventive detention.

Arguments

The State: statutory power to detain and the presumption of regularity; the detenu: detention not supported by the statutory conditions, and liberty being a fundamental right, its deprivation must strictly satisfy the statute.

Decision and reasoning

Striking the balance, Ahmadi J. declared: **"Liberty is the life line of every human being. Life without liberty is 'lasting' but not 'living'. Liberty is, therefore, considered one of the most precious and cherished possessions of a human being. Any attempt to take liberties with the liberty of a human being is visited with resistance."**

> **Principle evolved:** Personal liberty is the most precious possession; State action infringing it must be strictly justified by law. Dhyani uses the case to show that **the emerging human-rights jurisprudence** — which he traces to India's ancient valuation of the individual within the social order — is now the "signature tune of new legal theory".

CASE 8 Ramon Services Pvt. Ltd. v. Subhash Kapoor AIR 2001 SC 207 · Supreme Court

Cited in: Dhyani (fn. 36) — for the postulate of the **role of law and the lawyer** in the new economic order.

Facts

Proceedings arising out of a complaint (defamation-type) involving a corporate employer and an individual; while disposing of the matter the Court addressed the larger question of the profession's public role in a changing economy.

Issues

Is the practice of law a mere trade? What are the Bar's obligations in a legal-order where legal aid, PIL and rule of law responsibilities are expanding?

Arguments

Narrow view: law is a business of briefs and fees. Wider view (accepted): law is a public trust instrument.

Decision and reasoning

The Supreme Court observed: **"Law is no trade or briefs of the litigants nor merchandise. In the days ahead legal aid to the poor and the weak, public interest litigation and other rule of law responsibilities will demand a whole range of responsibilities from the Bar... the hope of democracy is the dynamism of the new frontiersmen of the law in this developing area... [and cater to] such free service to the community in jural sector as part of the profession's tryst with people of India."**

> **Principle evolved:** The lawyer is a **officer of justice**, not a trader; access to justice for the poor is the profession's constitutional tryst. Dhyani cites this as the imperative of the welfare-state stage — the modern echo of the ancient idea that the king's dharma included the protection of the weak and impartial justice for litigants.

GROUP C — Modern rights jurisprudence linked to the ancient frame (Dhyani's chain)

CASE 9 Vishaka v. State of Rajasthan (1997) 6 SCC 241 · Supreme Court

Cited in: Dhyani — non-discrimination on grounds of sex; gender justice as part of the new egalitarian legal theory.

Facts

Petition after the gang-rape of social worker Bhanwari Devi; the absence of effective law against sexual harassment of women at the workplace; international instruments (CEDAW) invoked in the absence of domestic legislation.

Issues

Is there a justiciable right of women to be free from sexual harassment at the workplace? How is the vacuum to be filled?

Arguments

Petitioners: the State had failed to protect a constitutional right under Articles 14, 15, 19(1)(g) and 21; CEDAW (ratified by India) and the Beijing platform should guide the court; guidelines needed as interim law. Respondents: absence of legislation; court cannot legislate.

Decision and reasoning

The Court **laid down the Vishaka Guidelines** (drawn from CEDAW), binding until a statute is enacted — the foundation of the later Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013. The right to a workplace free of sexual harassment was read into Article 21.

> **Principle evolved:** Where the legislature is silent, the judiciary may draw on international standards to give effect to fundamental rights — **judicial creativity for the weak**. Dhyani uses such cases to show "a powerful movement in legal theory towards... human rights jurisprudence"— "weaving a common moral law by tilting the beam of the scale of justice in favour of the common man denied so long... their legitimate due — liberty, dignity, equality, fairness."

CASE 10 A.D.M. Jabalpur v. Shiv Kant Shukla AIR 1976 SC 1207 · Supreme Court (Emergency)

Cited in: Dhyani — as part of the pre-Emergency and Emergency-era record of judicial restraint in safeguarding liberty.

Facts

During the 1975–77 Emergency, writ petitions challenged detentions under the Maintenance of Internal Security Act (MISA) and the denial of Article 21 protection by executive order.

Issues

Can a person move Article 32 for enforcement of Article 21 when the President's order under Article 359 suspends the right to move courts for enforcement of fundamental rights?

Arguments

Petitioners: Article 21 is the natural right of life and liberty — "the right to life does not depend on the Constitution" — courts cannot be shut out. Union: the suspension order is absolute; no writ lies.

Decision and reasoning

A majority (4:1) held that during the suspension, no petition for Article 21 could be maintained; the majority also rejected the "natural rights" argument. Justice H.R. Khanna's powerful dissent insisted that life and liberty are not the gift of the Constitution and even the Constitution's framers could not permit their complete effacement by a mere executive order.

> **Principle evolved (post-Emergence):** The majority's position was effectively overruled in *Maneka Gandhi v. Union of India* (1978) and the "basic structure"/natural-rights reading of Article 21 now prevails. Dhyani cites this case precisely to show that "for about three decades the judicial process could not respond in equal measure in safeguarding human liberty" — and that the post-Emergency judiciary (Krishna Iyer, Bhagwati, Desai, Chinnappa Reddy, Ranganath Misra, A.S. Anand, Kuldip Singh, K.T. Thomas) "interpreted law more radically and progressively with a slant towards protection of the interest of the weak and the poor."

CASE 11 A.K. Gopalan v. State of Madras · R.C. Cooper v. Union of India · I.C. Golak Nath v. State of Punjab

AIR 1950 SC 27 · AIR 1970 SC 564 · AIR 1967 SC 1643

Cited in: Dhyani's narrative of liberty jurisprudence [the casebook's text gives the years 1950, 1978 and 1979 for these lines of authority; the correct reports are 1950, 1970 and 1967 respectively].

Facts & issue

Gopalan — preventive detention under the Preventive Detention Act; whether Article 21 requires "due process" or only "procedure established by law" (majority: the latter — no American due process). *R.C. Cooper* (Bank Nationalisation case) — whether Article 31(2) compensation and the "direct impact" of expropriation on individual rights could be tested; the Court abandoned the Gopalan compartmentalisation of rights. *Golak Nath* — whether fundamental rights can be amended by Parliament (bare majority held: no; Art 368 cannot destroy Art 13 rights).

Arguments

State: express constitutional text confines review; structural arguments. Petitioners: substantive limits (due process; basic rights) are implicit in the constitutional scheme — the Indian analogue of the ancient limit of dharma over power.

Decision and principle

Gopalan (restraint) → Cooper (cumulative effect; rights can be tested) → Golak Nath (amendment limit) → and, after the Emergency, *Kesavananda Bharati*'s basic-structure doctrine and *Maneka Gandhi*'s reading of Article 21 with Articles 14 & 19 (just, fair, reasonable procedure). **Principle:** constitutional (and judicial) review of power is the modern continuation of the ancient maxim — **law is the king of kings; nothing is superior to law**; Dhyani notes that after decades of hesitation the Apex Court now guards "the supremacy of law — 'Be you ever so high, the law is above you'".

CASE 12 Bangalore Medical Trust v. B.S. Muddappa AIR 1991 SC 1902 · Supreme Court

Cited in: Dhyani — **"conservation of humane environment"** among the new legal values.

Facts

A civic amenity/parks site in a residential layout of Bangalore was sought to be converted for a private nursing home by a public trust; residents challenged the change of user.

Issues

Can public recreational space (a lung of the city) be diverted to private commercial use? What weight do environmental and public-health interests carry?

Arguments

Trust/developer: the change was sanctioned by the authority and would serve medical needs. Residents: the sanction was illegal and contrary to the approved layout; the park was a pre-existing amenity of the residents whose right to it the authority could not defeat.

Decision and reasoning

The Supreme Court held the conversion **invalid**: the reservation of the site as a park/civic amenity is for the public; its diversion to a private nursing home was impermissible and arbitrary; the Court stressed that **open spaces, parks and environmental quality are essential for the health and well-being of urban communities**, and public authorities act as trustees of such amenities.

> **Principle evolved:** Environmental/public-health interests of the community prevail over private commercial interest; public authorities hold land and amenities **in trust for the people** — the trusteeship idea of Manu and the Īśopaniṣad (*teṣu tyaktena bhuñjīthāḥ*) in modern constitutional dress.

Supporting chain (one-line notes — all cited in Dhyani's survey of "judicial explosion")

Case	Point (as used by Dhyani)
S.P. Gupta v. Union of India, AIR 1982 SC 149	**Open government**; locus standi widened — people as guardians of the Constitution.
Abdul Rehman Antulay v. R.S. Nayak, AIR 1992 SC 1701	Right of **speedy trial** is part of Art 21.
Consumer Education Research Centre v. Union of India, AIR 1995 SC 992; State of Maharashtra v. Manubhai Pragaji Vashu, AIR 1996 SC 1	**Right to life** — health, environment, dignity.
Secretary, Ministry of I&B v. Cricket Association of W.B., AIR 1995 SC 1236; L.I.C. v. Manubhai Shah, AIR 1993 SC 171	**Right to information**; freedom of expression includes the public's right to know.
Delhi Judicial Service Assn., Tis Hazari Courts v. State of Gujarat, AIR 1991 SC 2176; Khedat Mazdoor Chetna Sangathan v. State of M.P., AIR 1995 SC 31; In re Vinay Chandra Mishra, AIR 1995 SC 2448	**Judicial discipline, independence of the judiciary**, and contempt jurisdiction used to uphold the rule of law.
Neela Mathur v. LIC, AIR 1992 SC 392; Apparel Export Promotion Council v. A.K. Chopra, AIR 1999 SC 624; Vishaka (supra)	**Non-discrimination** — sex, caste, religion; gender justice; international standards domesticated.
M.J. Sivani v. State of Karnataka, AIR 1995 SC 548; Mohd. Aslam v. Union of India, AIR 1995 SC 548	Secularism and national integration as basic constitutional values; new moral, social and political values enforced.
D. Vyas v. Ghaziabad Development Authority, AIR 1993 All 57	Environment and development control litigation (High Court).
Surajmani Stella Kujur v. Durga Charan Hansdah, AIR 2001 SC 938	Cited by Dhyani for the need to keep the legal system rooted in the **"moorings of our indigenous culture, traditions and needs"** even while assimilating British constitutional values (custom and personal-identity questions on conversion).

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Case map — which case answers which question

"Is there Indian jurisprudence?"
A.S. Narayana Deekshitulu (dharma adopted) · GUVNL v. Essar (Mīmāṃsā applied) →

"Were the Smṛtis codes of law?"
Abhiraj Kuer (mandatory vs recommendatory) · Ganwat (Nārada maxim) · Collector of Madura · Bhyah Ram Singh · Rutcheputty · Balwant Rao · Jogdamba · Muthukaruppa

→ **"Was there rule of law & fair procedure?"**
Mahabharata/Kautilya/Rama episodes (Dhavan) · Mrichchakatika · Kātyāyana/Nārada/Bṛhaspati texts →

"Did panchayat justice work / revive?"
Vytla Sitanna · Art 40, 73rd Amdt, Schedules 5&6 · Lok Adalat/Mediation Act 2023 · Law Commission 77th & 114th Reports

"Law-life gap / decolonise?"
Rattan Lal · Krishna Iyer · Dhyani's critique →

"Modern rights & environment?"
Ashok Kumar · Ramon Services · Vishaka · ADM Jabalpur (contrast) · Bangalore Medical Trust · chain cases

DU LL.B. EXAMINATION ARCHIVE · PAPER LB-106

Previous Year & Syllabus-Pattern Questions — Unit 01: Evolution of Bharatiya Jurisprudence – I

Q.01 Official PYQ · Dec 2015 · Q5 · 20 marks
A custom to be legally recognisable and enforceable must fulfil several requisites such as certainty, reasonableness, historical origin, strict construction etc." Comment on the statement by exploring the importance of customs in different personal laws of India.

● **Refer website for detailed notes — makelaweasy.in**

Q.02 UNIT-1(a) · Q-M1 · 20 marks
Environmental consciousness in the Vedic Age was not mere religious sentiment but a jurisprudential position." Discuss with reference to Ṛta, the sources of Vedic literature and the relevance of the Vedic world-view for modern environmental law.

Q.03 UNIT-1(b) · Q-M2 · 20 marks
Dharmashastras were the inter-mixture of law, religion and morality." Critically examine this statement. Did the Smriti writers develop law as a distinct entity?

Q.04 UNIT-1(b) · Q-M3 · 20 marks
Explain the hierarchy of courts in ancient India and their jurisdiction. How far is the modern Indian judicial system a continuation of that hierarchy? (Or: "We are following an ancient tradition without being conscious of it" — Dhavan. Discuss.)

Q.05 UNIT-1(c) · Q-M4 · 20 marks
Rule of Dharma was the Grundnorm of the ancient Indian legal order — the King was never above law." Discuss. How was this guarantee institutionalised?

Q.06 UNIT-1(c) · Q-M5 · 20 marks
Examine the customary dispute resolution mechanisms of Bharat — their philosophical foundations, the colonial disruption, and their contemporary revival.

Q.07 UNIT-1 · Q-M6 · 20 marks
Is there an Indian philosophy of law? Discuss its metaphysical foundations and the major distinctions between the Eastern and the Western perspectives.

Q.08 UNIT-1 · Q-M7 · 20 marks
Write short notes on any TWO of the following: (a) Parishad (b) Vyavahārapada (c) Kantaśodhana Courts (d) Sabhāsada (e) Prāyaścitta (f) Matsya-nyāya.

by Ankur R. Upadhyay

LAW CRUX · PAPER LB-106 · UNIT 02 Seema Singh · Radhakrishnan Pillai · Ruchi Rawat · Vinayak Sharma · 9 Prescribed Authorities

Evolution of Bharatiya Jurisprudence – II

Interlinking Jurisprudence of Ṛta & Kartavya, Kautilya's Arthashastra (Saptāṅga State, Danda & Fourfold Hierarchy of Law), Rājyotpatti in Mahabharata (Matsyanyāya to Dharma-Rule) & Idea of State and Law in Ramarajya

PART 01

Conceptual framework — one chain connects all four sub-topics

ṚTA
cosmic law — the fundamental norm; the ultimate source & standard of all law (sub-topic a) →

KARTAVYA
the duty of every being (incl. the king & the prajā) that sustains Ṛta (sub-topic a) →

DAṆḌA
the sanction that enforces kartavya when beings fail — Daṇḍanīti (sub-topics a, b) →

STATE (RĀJYA)
the institution created against matsya-nyāya: Kautilya's saptāṅga rājya · Bhīṣma's two theories (b, c) →

RĀMARĀJYA
the ideal working of that state — king under Dharma, justice for all, welfare polity (d)

Memorise this chain — it is the single most useful thing in this unit. Every 20-mark answer can be structured as: source (Ṛta) → duty (Kartavya) → sanction (Daṇḍa) → institution (Rājya) → ideal (Rāmarājya).

1.1 The unit's three recurring theses

- **Thesis A — Law is cosmic before it is political:** law's root is not the sovereign's command but the self-imposed regulations of the universe (Ṛta); human law is valid only when aligned with it — "in case of conflict between man-made law and Cosmic/Natural Law, the Cosmic Law must prevail" (Seema Singh).
- **Thesis B — Duty precedes right:** the Bharatiya order is Kartavya-based; rights (Adhikār) are **natural outcomes of fulfilled duties**, "totally opposite to the modern day right-duty corollary" (Seema Singh). The modern rights-first model is a colonial-era philosophical shift, not the Indian baseline.
- **Thesis C — The state is a divine-human necessity under Dharma, not a Leviathan:** the state arises because matsya-nyāya would otherwise devour society (Bhīṣma; Valmīki; Kautilya), but the king is *under* Dharma — his orders are void if they violate it (Rawat; Sharma & Rawat).

1.2 How the four readings fit the ancient "public law" map

Rājadharma
law of the ruler's power & duties
(Kautilya · Mahābhārata · Rāmarājya)

+

Vyavahāradharma
law of suits & procedure
(Kautilya's 18 tirthas & courts)

+

Prajādharma
duties of the citizen
(Ṛta-Kartavya reading)

"The rajadharma and vyavahaaradharma in fact mark the commencement of India's legal and constitutional history" — Sudame (Rājadharma = ancient constitution; king enforcer, not legislator; that separation "ensured the existence of rule of law"). Unit 2 is precisely this trio in action.

1.3 The comparative scaffold (use in every answer)

Question	Bharatiya answer (Unit 2 material)	Western comparator
Why does the State exist?	Matsya-nyāya threat; Brahma/deities institute Daṇḍanīti; people's + divine necessity combined.	Hobbes: "war of every one against every one"; Locke; Rousseau.
Where does law come from?	Ṛta → Dharma; Śruti, Smṛti, Sadāchāra, Rājaśāsana (Kautilya's four sources).	Austin: sovereign's command; Kelsen: Grundnorm; Hart: rule of recognition.

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Question	Bharatiya answer (Unit 2 material)	Western comparator
Is the sovereign absolute?	**No.** King under Dharma; invalid orders; forfeiture of kingship; Dharma-Saṃvida limits.	Hobbes: absolute; James I: divine right (king accountable only to God); Austin: legally unlimited sovereign.
Rights or duties first?	**Duties (Kartavya).** Rights flow from fulfilled duty; the "contract" is between Nature and the individual.	Rights-based constitutionalism; right-duty jural correlate (Hohfeld).
Punishment's purpose?	Daṇḍa = restore Ṛta/balance + deterrence + reformation + compensation of Prakṛti; fines feed the treasury/welfare.	Deterrence, retribution, incapacitation — modern reformative/restorative blends.
Ideal state?	**Rāmarājya** — welfare + justice + dharma; practised, not utopian.	Plato's Republic (philosopher-king; per Popper, proto-totalitarian).

PART 02

(a) Concept of Ṛta and Kartavya

2.1 The opening image (use it as your introduction in the exam)

> *"Just imagine what would happen if the sun failed to rise, rivers ceased their flow, or the very cells in our bodies suddenly declared themselves exhausted? The result would be a swift and absolute collapse of our existence... the universe is sustained not by chance, but by the relentless and harmonious fulfilment of its **Kartavya**. Every celestial body, every natural phenomenon, and every living cell has a natural obligation to perform its Kartavya, to maintain the cosmic order.*
>
> ***Ṛta is a Cosmic Law which governs nature and Kartavya sustains the same.** If a breakdown in cosmic law, in nature's duty, brings instant devastation, what then, if in society a majority of individuals abandon their obligations for a relentless pursuit of their own rights?"*
> — Seema Singh, "Ṛta and Kartavya: The Interlinking Jurisprudence" (opening)

The author's central question: **"Is Kartavya the true epicentre of both universal existence and human civilization?"** A rights-only framework is like "a body where each cell demands its own autonomy without fulfilling its function" — it "undermines the very interdependence that is the foundation of both natural and social order." Hence: **shift from a rights-centric to a Kartavya-rooted perspective**.

2.2 Kartavya vs Duty — the philosophical distinction

Duty (modern sense)

- External — "a burden imposed from the outside", like **statutory duties**.
- Created by human authority (statute, contract, command).
- Compliance is a legal relation — breach = legal sanction.

Kartavya (Bharatiya sense)

- **Internalised natural obligation**, "intrinsically linked to the concept of Dharma, morality and the Cosmic Order."
- Not imposed from outside; it is one's own nature. *Dharma is the positive inherent nature of a thing.*
- Examples: "providing fruits, shelter and shadow are the Dharma and Kartavya both for a tree; quenching thirst and flowing is the Dharma and Kartavya both for her [the river]; similarly Sun, Mother Earth and so on."
- A "spiritual imperative, a conscious choice to live in alignment with one's true nature and contribute to the cosmic order."

Consequence: "Traditionally, Bharatiya society was structured around the fulfilment of one's Dharma... individuals were guided by an inner moral compass rather than external legal compulsion. The adherence to Kartavya created a **self-regulating society** where individuals' actions were not just for personal gain, but for the maintenance of a harmonious whole." (citing Justice M. Rama Jois, *Legal and Constitutional History of India* 575-76.)

DHARMA = inherent nature of a thing → KARTAVYA = living that nature as natural obligation →
SELF-REGULATING SOCIETY = order without external compulsion → RIGHTS = outcome of duties, not their premise

2.3 The shift from Dharma-Kartavya to rights-based governance

Bharat's "prolonged history of invasions and social disruption" created the ground for systematic exploitation, and **the modern form of government imposed by the British marked a profound philosophical shift**. The British model, "rooted in the European struggles between the king and the Church," was **fundamentally rights-centric**, establishing the ruler — king, queen or government — as the

supreme authority and the 'provider' and 'protector' of "a dependent populace". This system, "driven by the assertion of **man-made law over cosmic or customary law**", centralised power and rights in the ruler.

> **Before**
> **Kartavya-based society:** internalised Dharma; the king was himself bound; society self-regulating; collective well-being the bedrock.
>
> **The colonial break**
> Codified modern judicial system "supplanted the traditional, duty-based framework"; man-made law displaced cosmic/customary law; citizens became *dependents* of the state rather than duty-bearers.
>
> **After**
> **Rights-centric independent India:** "the law focuses on individual claims often overshadowing the collective responsibilities that were once the bedrock of social harmony."

The author's critical question: must we accept the global **right-duty jural co-relate model** (Hohfeldian), which "while providing a framework for individual liberties, often fosters an **adversarial** relationship between the citizens and the state, and between individuals themselves"?

> **The alternative: Kartavya-Adhikar**
> "In contrast to the western right-duty jural co-relate, we have the time-tested ancient concept of the **Kartavya-Adhikar**. Here, **Adhikar (rights) are seen not as inherent entitlements but as natural outcomes of fulfilled Kartavya (duties)**. The right to be protected, for instance, is a natural consequence of the ruler's duty to protect. This model fosters a sense of mutual responsibility and shared destiny, where the fulfilment of one's duty ensures the rights of all."

Bharat's unique vantage: "Bharat, as a civilisation, stands unique in its historical journey, having experienced the **full spectrum of societal structures** — the profound harmony of a Kartavya-based society, and now the complexities of a rights-based society which took root during a period of foreign influence. This dual experience presents a rare opportunity for philosophical and introspective inquiry."

2.4 Cosmic Law, Ṛta and the Purusha Sūkta — the metaphysical foundation

Step 1 — law's root is cosmic: "the inherent, self-imposed regulations that govern the universe itself... so foundational that they are often cited in human legal systems as **Natural Law**. In essence, they act as the ultimate standard, or **Grundnorm**, against which all other laws are measured. When human-made laws fail to deliver justice, courts often turn to the principles of Natural Law to interpret the rules." — *Note the explicit use of the Kelsenian term "Grundnorm" for Ṛta; this is the bridge to Unit 6.*

Step 2 — science and the Vedas converge: the Big Bang (a singularity ~13.8 billion years ago, "God particles", atoms, stars, galaxies) and Darwin (evolution of species, not origin of life) are described; then the parallel: "the Rigveda, one of the most ancient human texts, offers a complex and compelling account of the universe's origin that, in some ways, resonates with contemporary scientific thought."

The Purusha Sūkta (Ṛgveda X.90) — verses & reading

Verse 1: "The Purusha (universe) has a thousand heads, a thousand eyes and a thousand feet. Thousand is a symbol of innumerable... He pervades the world from all sides... and also extends in the ten directions." — *omnipresence.*

Verse 2: "In reality, Purusha is all this (creation); all that was in the past and all that will be in the future... the entire creation is interwoven with the immortal principle of that great Lord; by becoming His food, man rises above the gross world and becomes immortal." — *time-transcendence; the cyclic journey of beings: energy ↔ mass (the reading links it to Einstein and to Krishna's immortal-soul teaching in the Gītā).*

Verse 3: "The Purusha is greater than all the greatness that can be expressed in words. One part of Him has become all these (visible) worlds, and three parts of Him are situated in the immortal world of the Supreme Brahman." — *the reading parallels this with modern cosmology: ¾ of the universe is dark energy, ¼ baryonic (ordinary) matter.*

Verse 4: "The three parts of the Purusha are above and one part repeatedly becomes creation, pervading all living and non-living beings."

The jurisprudential conclusion

"Purusha is a manifestation carrying the infinite Universe, all the solar system and all of us as a part of its body... In Sankhya Darshan the same is known as **Purush (Consciousness) and Prakriti (Nature)**. Being the part of the manifestation of the same Purusha, **we are bound to follow the same set of rules as the multiverse and nature follows**. This Cosmic law is known as **Ṛta**."

The Austinian mirror: "As in the modern man-made law, law is the command of the sovereign, being the small part of the infinite multiverse, **the Ṛta is the command of the Supreme Consciousness, the Purusha. If we violate man-made law the sovereign punishes us. Similarly, if we violate the Ṛta, Purusha will punish us.** In crux, man-made laws must be in alignment with the cosmic laws known as Ṛta. In other words, **in case of conflict between man-made law and Cosmic/Natural Law, the Cosmic Law must prevail.**"

Etymological hint (the reading's own): words bearing the syllable **Ri (ऋ)** — Ṛta (ऋत), Rishi (ऋषि), Prakriti (प्रकृति), Ṛtu (ऋतु), Trigun (त्रिगुण), Ṛṇa (ऋण), Stree (स्त्री), Purush (पुरुष), Kartavya (कर्तव्य), Adhikar (अधिकार) — "all are and are supposed to be aligned with cosmic law."

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Ṛta — its full definition (quote this)

According to the **Nyāya Sūtras**: **"कर्तव्यानिष्ठं सम्यक् पालनं राज्यं वर्धते"** — "a nation flourishes when its citizens steadfastly uphold their duties. This enduring principle underscores that **rights can only exist within a strong culture of duty**."

- **Ṛta** = "the fundamental principle that governs and sustains the universe, encompassing all that exists... the principles of divine wisdom that regulate all phenomena, both in the heavens and on Earth. Importantly, the concept of Ṛta also signifies **the ultimate source of justice**, a guiding principle for human conduct."
- It ensures "the continuity of natural order... the regularity of phenomena such as rainfall, plant growth, daylight, and the cyclicality of the seasons."
- "Nature is neither self-centric nor right-centric. It follows the path of Kartavya where it performs its duty towards us irrespective of our visible reluctance to perform our duty towards it."
- **Ṛta is the supreme truth and sustaining force; its antithesis, 'an-Ṛta', signifies destruction.** Everything has "an inherent tendency to exist in harmony with this universal order." **"Kartavya is aligned with Ṛta, while demanding only Rights — omitting performance of Kartavya is an-Ṛta, which is against the supreme cosmic rule."**

2.5 Ṛta–Kartavya–Dharma knitted together: the law of the monarch and of the prajā

For the King (Rājadharma under Ṛta)

- Dharmashastra "prescribes Kartavya for all"; its central feature for the legal system is "the detailed exposition of the principles governing the **Monarch's role**", rooted in the belief that "Dharma underpins all world events; in its absence, the strong would subjugate the weak."
- "Dharma prescribes special duties for human beings to protect those who are weak, who cannot raise their voice; to protect the rights of every inanimate and animate object created by the supreme divine — from mountain to river, from plants to animals, from sky to earth." — *the environmental/animal-welfare bridge (Unit 1(a)).*
- The ruler's authority is of **divine origin in accordance with the cosmic order**, but "this divine origin does not imply that the Ruler is absolute or infallible." His duty: "administration of the kingdom with a primary focus on the welfare of the people" — **"Praja-sukham (happiness of citizens under good governance) is measured by the degree to which the governed prospers"** (Kautilya, Arthashastra 1.19.34).
- Protection of the kingdom through the **four Upāyas: sama (conciliation), dāna (gifts), daṇḍa (punishment), bheda (division)**; ministries as institutions.

For the Prajā (Prajādharma)

- "Kartavya of Praja... represents the ethical bedrock upon which a harmonious society is built. The Dharmashastra asserts that these duties are not mere social conventions but are **universal, foundational principles of righteous living that transcend the individual's Varna and Ashrama**."
- "Kartavya of citizens towards their Nation, Society and Family; to be a Dharma-abiding citizen; contributing to the welfare of the community through volunteering and paying taxes."
- Citizens should be **virtuous, ahiṃsak (non-violent) and sadāchārī (truthful)**; their spiritual progress aligned with cosmic order is also Dharma.
- Inner disciplines have public effects: "**indriyanigrahah** (control of the senses)... leads to a clear mind capable of discerning right from wrong, benefiting both the self and the community"; **dayā** (mercy) and **dānam** (charity) express the interconnectedness of all beings; collectively a path to **moksha**.

Rājanīti, Daṇḍanīti and Ṛṇa — the sanction theory of this reading

Transgression = spiritual debt (ṚṆA) owed to Prakṛti → Daṇḍanīti: the ruler as "cosmic accountant" → Fines (Daṇḍa) settle the debt → Ṛta restored → Wealth enriches treasury → army, public works, welfare (Prakṛti's manifestations)

"In the political philosophy of **Rajaniti**, the ruler's highest duty is to create a political order that mirrors the cosmic order of the Vedas... A key component of this is **Dandaniti**, a doctrine centred on the prevention of societal transgressions... In Sanatan political philosophy, Rajaniti is the art of governance, where a ruler's administration of justice is not merely a secular function but a **sacred duty to align the earthly kingdom with the divine cosmic order (Ṛta)**." Punishment is "a powerful metaphor for atonement... the fines collected serve to compensate **Prakriti** for the harm caused by a transgression, which restores the sacred balance" — simultaneously "pragmatic, as the wealth collected enriches the royal treasury and is reinvested into the state, to fund the army, public works, and the welfare of subjects."

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2.6 Kartavya vs the Contractarian theory — the decisive comparison

Point	Western Contractarian theory	Bharatiya (Kartavya) model
Origin	Emerged from the conflict between king and Church → separation of powers, each supreme in its domain → "the king became the most powerful entity, with the notion that the king could do no wrong."	No such genesis; "the Bharatiya model posits the supremacy of **divine law**, with the king serving as an **instrument to implement** it."
Parties to the "contract"	Sovereign and individual, based on mutual considerations; surrender of rights.	"The parties to the 'contract' differ from the Contractarian theory; **they are Nature (Divine) and the individual**. The core principle is reciprocity: **individuals are expected to protect Nature, and in turn Nature sustains them.**"
Who is sovereign	The human ruler / state.	"Nature, in this framework, is duty-centric, the ultimate provider, and thus holds the position of **sovereign**. The king's role is that of a **representative of Nature**, bound by its commands, which are widely known as the **Dharma of the King**."
Basis of obligation	Self-interest; rational maximisation (Hobbes); consent.	Kartavya/Dharma aligned with the natural order; "citizens paid taxes to the king primarily for the protection of the land and the upholding of Ṛta, the cosmic law."
Intellect	Supremacy of human intellect and man-made law.	"In reality human intellect has limitations... the Bharatiya tradition posits the **supremacy of Nature's intellect**." Natural law, due process, and the law of good conscience "resonate with the principles of Dharma."

The modern Rule of Law (as the reading defines it for comparison): supremacy of law, equality before the law, accountability to the law, fairness in application, separation of powers, participation in decision-making, legal certainty, avoidance of arbitrariness, procedural and legal transparency — roots going back to the Magna Carta; separation of powers to Aristotle; modern development through Fuller, Raz, Jowell, Waldron, Locke, Paine. **Your answer should show that the Bharatiya model satisfies these tests (and argues for its own deeper source), not that it lacked them.**

> **The Supreme Court of India's own motto — the closing proof (quote this!)**
> "The Supreme Court of India's motto, **'Yato Dharmasya Tato Jayah' (Where there is Dharma, there is Victory)**, embodies this, and the powers granted under **Articles 32, 136 and 142** are intended to uphold it. Essentially, Dharma, reflecting cosmic order and inherent righteousness, forms the foundational principles that underpin any constitution." — *The motto is from the Mahabharata (it appears 13 times, e.g., Vana/Stri Parva verse 13.153.39); it is inscribed under the Supreme Court's emblem in Devanagari.*

2.7 Conclusion of the reading (and of your answer)

- "Dharma transcends the limitations of codified law, guiding the sovereign's responsibility to protect not only land, animals, birds, rivers, forests, and the environment, but the entire cosmos. Dharma profoundly influences various branches of jurisprudence, including **environmental, restorative, compensatory, and animal rights jurisprudence**... the judiciary serving as an instrument to uphold it."
- "Contemporary rights-centric societies, with their emphasis on individualism and self-interest, often exacerbate conflict within families, communities and nations. In contrast, a society guided by the principles of Cosmic Law or Dharma fosters harmony and well-being."
- **The Constitution as Kartavya:** "the aims and objectives enshrined in its Preamble reflect our collective responsibility; this is the true essence of 'We, the People of India'. Concepts such as sovereignty, justice, liberty, equality and fraternity are... the very vision and mission that our Constituent Assembly established."
- **Fundamental Duties vs Kartavyam:** "While Fundamental Duties represent specific obligations, **Kartavyam transcends them**, embodying a more profound, cosmic and indeed divine sense of purpose and responsibility."
- **The synthesis:** "We must not abandon the hard-won principles of a rights-based society, but we must also reconnect with our civilisational roots... infuse the modern legal framework with the profound wisdom of Kartavya, creating a jurisprudence that honours both individual rights and collective duties."

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2.8 Diagram — Ṛta & Kartavya in one view

ṚTA — COSMIC LAW
command of Purusha (Supreme Consciousness) · ultimate source of justice · the Grundnorm

KARTAVYA — NATURAL OBLIGATION
every being's inherent function · aligned with Ṛta

DHARMA — INHERENT NATURE
of the tree · the river · the sun · the king · the citizen

RĀJADHARMA + PRAJĀDHARMA
king administers for praja-sukham · citizen is ahiṃsak, sadāchārī, tax-paying

DAṆḌANĪTI
when ṛṇa (spiritual debt) arises · fines restore balance · treasury funds welfare

DHARMA aligned with Ṛta → harmony, prosperity, victory ("Yato Dharmasya Tato Jayah") ↔

AN-ṚTA (rights without Kartavya) → destruction the cosmic rule inverted

PART 03

(b) Kautilya's Concept of State and Law

3.1 The classical text and its character

The **Arthashastra** (4th century BCE) is "one of the oldest surviving manuals on governance and public administration in the world"; its name means **"science of wealth"** (artha). Though usually read as economics/political science, its detailed treatment of legal concepts "makes it an invaluable legal document of ancient India": criminal law, civil disputes, commercial regulations and administrative procedures are treated "with remarkable intricacies." It has **15 books and 150 chapters**; **Book 3 ("Concerning Law", 20 chapters) and Book 4 (13 chapters) are devoted to the administration of justice**; the remaining parts deal with economic development and foreign relations. A.K. Sen called it "the first book on economics."

> *"Kautilya's philosophies exhibit a pragmatic approach to justice that reconciles moral principles with practical governance needs, emphasising social stability and state security. The treatise also elucidates the relationship between **Dharma (moral law) and Rajadharma (royal duty)**, illustrating how ancient Indian legal thought integrated ethical principles with statecraft."*
> — Radhakrishnan Pillai

Legal philosophy in one line: "Law, according to him, is an instrument of social order that supports the goals of the state: preservation of peace, economic prosperity, and protection of the people. While Vedic literature emphasised **Dharma** (righteousness), Kautilya emphasised **Vyavahara** (legal process), linking the two with **Niti** (practical policy). This tripartite lens reflects a unique Indian jurisprudential framework."

3.2 The four sources of law — Kautilya's hierarchy

RĀJAŚĀSANA
King's edict — royal decrees having the force of law; SUPREME in Kautilya's hierarchy

CHARITRA
History — social conventions & community norms

VYAVAHĀRA
Evidence — based on witnesses

DHARMA
Sacred law — based on Vedas and Smritis

"These four pillars of law operate as: **Dharma** being the governance of eternal truth governs the world; **Vyavahara** establishes the facts through witness testimony; **Charitra** draws from the wisdom of the people following historical traditions; and **Rajashasana** embodies sovereign authority through royal decrees and commands having the force of law."

The conflict rule (essential for the exam): "The King who administers justice according to Dharma, Vyavahara, Charitra and Rajashasana will be able to conquer the entire world by the four quarters (Chaturantāmmahīm). Whenever there is conflict between history (Charitra) and the sacred law, or between evidence (Vyavahara) and the sacred law, the issue must be resolved **in accordance with the sacred law (Dharmashastras)**. But whenever sacred law (Dharma) is in conflict with **rational law (Dharmanyāya = king's law)**, the latter shall be held

authoritative, for the reason that we no longer have access to the justification for how a particular shastra was derived from dharma — the original text (on which the sacred law has been based) is not available."

Compare with Dhavan/Sudame (Unit 1): the Dharmashastric order preferred dharma-śāstra over artha-śāstra and made reason prevail between two smṛtis. Kautilya's order is pragmatic: the **living king's law prevails where the sacred text's derivation is no longer traceable** — but only within the boundary of Dharma.

3.3 Structure of courts and legal officials

KING — SUPREME JUDGE
final court of appeal; source, enforcer and protector of law

PRADVIVAKA — CHIEF JUDGE
presides over important disputes

KANTAKAŚODHANA — CRIMINAL/ADMINISTRATIVE COURTS
economic crimes, offences against the state, official misconduct; "comprehensive regulatory tribunals"

DHARMASHTIYA — CIVIL COURTS
marriage, inheritance, trespass, labour, contract — presided over by Amatyas; power to impose nominal fines

Dharmasthiya Courts

Civil courts presided over by **Amatyas** (high officials). Their main function: "to dispose of the disputes arising out of violation of traditional rules and regulations"; authority to impose **nominal fines**. They handled marriage, inheritance, trespass, labour, contract and other civil aspects of life.

Kantakaśodhana Courts

"*Kantakaśodhana* literally means removal of thorns" — criminal courts, particularly for **economic crimes** and serious offences causing disturbance to peace. They took cognizance "not only of offences against the State but also violations of the law by officials in the discharge of their official duties" — from fraudulent trading and unfair labour conditions to theft, robbery and sexual offences. "They served as comprehensive **regulatory tribunals**." (See Unit 1 §04.4 for Dhavan's account — three *pradeṣṭāraḥ* commissioners.)

Also: other officials — **Amatyas** (ministers) and **Antapala** (border magistrates) — handled judicial functions. "Kautilya stressed **accountability, record-keeping, and swift justice**."

3.4 Saptāṅga Rājya — the seven-limbed organic state

"Kautilya described the structure of the state in his **Saptang theory or Saptangrajya**... Kautilya believed in the **organic theory of state**: as per him there cannot be a country without people and there is no kingdom without a country. These seven elements combine to form a state." (Sequence in the text: Svāmin — Book 1; Amātya, Janapada, Durga, Kosha — Books 2–5; Daṇḍa and Mitra — Books 6–14.)

1. SVĀMIN
The King — created by the blessings of Indra, Yama, Fire, Sun, Water, Air; "symbol of justice"; must be just, intelligent, decisive; his character decides the state's prosperity

2. AMĀTYA
Ministers — 7 or 8 carefully examined; learned, brave, skilled in weapons; consulted on peace & war, wealth, territory; selected on merit, loyalty, competence (Manu's advice)

3. JANAPADA
People & territory — fertile land, abundant resources, hardworking populace, social harmony; "no kingdom without a country"

4. DURGA
Fort — capital fortified by desert, water, trees, armed men or mountains; safety from external threats, internal stability

5. KOSHA
Treasury — trustworthy men; income & expenditure, revenue, gold mines; funds army, public works, welfare

6. DAṆḌA
Army / coercive power — well-trained, disciplined, loyal; deters aggression, maintains internal order

7. MITRA
Ally — alliances only where mutual interests align; "those who are weak today may be strong tomorrow"; isolation is weakness; support, trade, influence, security

Exam point: This is the ancient answer to "what is a state?" — five of the seven limbs are *institutions*, one is the *people*, and one is the *king*; the state is organic, not contractual-mechanical. Note the striking echo in Rāmarājya's **Saptavarga** (king, ministers, nation/

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territory, fort, treasury, army, allies — Ramayana, Ayodhya Kanda 100/68) and in the modern list of state essentials (population, territory, government, sovereignty).

3.5 Types of law — the 18 Tirthas (titles of law)

#	Title	#	Title
1	Non-payment of debts	10	Disputes about fields
2	Deposits and pledges	11	Theft
3	Rescission of sale and purchase	12	Robbery and violence
4	Ownership and division of property	13	Assault
5	Breach of contract	14	Defamation
6	Resumption of gifts	15	Adultery
7	Non-performance of agreement	16	Duties of man and wife
8	Disputes between partners	17	Inheritance
9	Boundary disputes	18	Gambling and betting

"The Arthashastra categorizes law into 18 Tirthas or titles of law, **similar to modern civil and criminal codes**." (Compare the Dharmashastric *vyavahārapadas* in Unit 1 §3.5 — same intellectual project, slightly different lists, which is itself a good comparative point.)

3.6 Procedure, evidence and the burden of proof

Evidence first

"Kautilya's Arthashastra has given prime importance to the evidence in judicial proceedings. He says: **'For whether a complaint is lodged first or last, it is the evidence of witness that must be depended upon. In the absence of witness the circumstances connected with the quarrel in question shall be taken as evidence.'** Conclusive proof was essential before sentencing a person. This doctrine is followed in Indian jurisprudence as **'innocent until proved guilty'**." Remarkably, "the testimony of witnesses was considered to be **more reliable than documentary evidence**" in the Arthashastra.

Registration & scrutiny

Before trial: the year, season, month, fortnight (paksha), date, nature and place of the deed, amount of the debt, and "the country, residence, caste, gotra, name and occupation of both the plaintiff and the defendant, both of whom must be fit to sue and defend (kṛtasamarthāvasthayoḥ), having been registered first, the statements of the parties shall be taken down... These statements should then be thoroughly scrutinised."

Perjury — the moderate stance

"For perjury, Kautilya takes a notably **moderate stance**... disagreeing with other schools, Kautilya limits punishment to recommend only a fine of **24 paṇas for giving false evidence and 12 paṇas for refusing to give evidence** (3.11.48-49). This relative leniency may reflect his concern that imposing overly harsh penalties could discourage individuals from coming forward as witnesses." He does not approve the rule (3.11.88) making a witness liable to pay the decretal amount for refusing evidence.

Suo moto jurisdiction for the vulnerable

"In normal circumstances, a judge cannot take up a case unless a formal complaint is brought by the aggrieved party. However, in matters concerning **temples, Brahmins, ascetics, women, minors, the elderly, the sick, or orphans**, the dharmastha (judge) is empowered to initiate proceedings **suo moto**, if these individuals do not themselves approach the court. In such cases, disputes involving these groups must not be dismissed by citing **lack of jurisdiction (deśacchala)**, by **deferring them (kālacchala)**, or by **rejecting them on the basis of adverse possession (bhogacchala)**." Then: put questions to parties and witnesses; "pronounce judgment after listening to both parties and weighing all the evidence produced." — *The ancient ancestor of protective jurisdiction, PIL's logic, and class-action protection for the vulnerable.*

3.7 Punishment and penal theory (Daṇḍanīti)

Daṇḍanīti ("the science of law enforcement") is an important part of the Arthashastra; **Daṇḍa is one of the seven essential elements** of the state. The king must balance Daṇḍa with the other three upāyas — **sama (conciliation/diplomacy), dāma (gifts), bheda (internal discord amongst enemies)**.

Three prerequisites of effective law enforcement

1. **Honesty of the law enforcers** — "the law enforcers themselves, including the king, must be honest and law-abiding." Kautilya: "Thus, the king shall first reform the administration, by punishing appropriately those officers who deal in wealth; they, duly corrected, shall use the right punishments to ensure the good conduct of the people of the towns and the countryside" (4.9). He lists **thirteen types of "undesirable people"** who amass wealth secretly by injuring the population — *corrupt judges and magistrates*, heads of villages/departments who extort, perjurers and procurers of perjury, sorcerers/witchcraft, poisoners, narcotic dealers, counterfeiters and adulterators of precious metals — to be exiled or made to pay adequate compensation when exposed by secret

agents (4.4). "Interestingly, **corrupt judges were in the list of the 'undesirable persons'... Kautilya considers economic crimes — bribery, hoarding, cheating — more dangerous than violent crimes.**"

2. **Judicial fairness** — standard of proof (conclusive proof before sentencing), **prompt trials**, minimisation of Type I error (convicting the innocent), and implicitly Type II error ("since the king was required to **compensate the victim if the crime was not solved**").
3. **Impartiality, proportionality and certainty of punishment — ati-daṇḍa, sama-daṇḍa, nyūna-daṇḍa** (excessive, proportionate, deficient); "Kautilya preferred **monetary fines to non-monetary punishment**" and ensured fines were actually paid.

Purposes of punishment

"Deterrence was one of the primary goals... swift and certain application of justice"; **rehabilitation** — "minor offenders were sometimes given a chance to reform." The classical warning (Shamasastry's translation, p.13): "punishment when awarded with due consideration makes people devoted to righteousness and works productively of wealth and enjoyment; while punishment, when ill-awarded or under the influence of greed and anger or owing to ignorance, excites fury even among hermits and ascetics dwelling in forests, not to speak of householders. **When the law of punishment is not in place, the proverb of fishes (matsyanyayamudbhāvayati) comes into play** — in the absence of a magistrate (daṇḍadharābhāve) the strong will swallow the weak, but under his protection the weak resist the strong."

The four purposes of daṇḍanīti (as a whole)

1. Acquisition of the non-acquiredterritory, resources, wealth → 2. Preservation of the acquired →
3. Augmentation of the preserved → 4. Fair distribution of the augmentedwealth shared justly among the people

Types of punishment (know the categories)

Fines (dhana-daṇḍa)
Economic crimes, minor transgressions; amount varies with severity, status of offender, damage caused.

Corporal
Whipping, caning, mutilation (e.g., tongue for defaming the king); torture rules: pregnant women and children exempt; torture must not cause death.

Imprisonment
Often with hard labour; removal from society, prevention of re-offending.

Death penalty
Treason, murder, certain adultery; methods brutal (burning, beheading, bulls); "simple death" for non-"cruel" offenders.

Exile & public humiliation
Banishment; branding the symbol of a crime on the forehead.

King's discretion with intent
"The king has the discretion to judge each case, considering **intent** in order to ensure fair and proportionate punishment. However, **misuse of this power is highly condemned**... punishment must be balanced — not too severe to incite resentment, nor too lenient to invite disorder."

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3.8 Contract law and civil disputes (Book 3 — an early commercial code)

"Kautilya's Arthashastra, particularly Book 3 'Concerning Law', presents one of the **earliest and most systematic legal frameworks governing commerce, contracts, and financial responsibility** in the ancient world... anticipating certain modern commercial law ideas such as **fiduciary duty, misuse of trust, and force majeure**."

Concept	Arthashastra rule
Vyavahāra	"Primarily refers to a **transaction** entered into by two parties" — hence it does not ordinarily apply to sāhasa (assault/violence), kalaha (quarrels), pāruṣya (abuse); validity depends on the circumstances of the transaction.
Validity of contracts	Parties must be **competent**; physically present; generally in the open, by daytime; "free from secrecy or fraud." Fraud and misrepresentation = serious commercial offences; contracts founded on deceit, secrecy or false statements are **void**, with penalties on the perpetrator and complicit witnesses. Suing on an invalid transaction = loss of suit + the usual fine + a heavy additional fine. Witnesses to such transactions may also be fined (3.1.2-15).
Suretyship	Guarantors liable for the principal debtor's debts; liability may extend to heirs or co-debtors — "the doctrine of joint responsibility" protecting creditors.
Rescission & restitution	Cancellation allowed for fraud, incapacity, illegality; **restitution** restores both parties to their original positions — preventing unjust enrichment.

Concept	Arthashastra rule
Fiduciary duty	"People entrusted with another's property — agents, managers, partners — were expected to act in good faith and not misuse their authority or assets; any breach causing loss to the principal required compensation."
Force majeure	Performance impossible due to natural calamities, transport delays, loss of goods in shipment — liabilities reduced or waived.
Market regulation	Anti-monopoly/cartel measures, false weights, adulteration, licensing, price control — "price ceilings set after due consideration of cost, production, taxes and transport"; the **Superintendent of Commerce** managed supply, pricing and distribution, domestic and foreign trade, judging demand/price fluctuations and the optimal timing of distribution, purchase and sale.

3.9 Property, inheritance and corporate law

Inheritance (Book 3)

- Distinction between **joint family property and self-acquired property**: the self-acquired property of a son is not divisible unless acquired by parental resources.
- Property acquired using joint ancestral property: sons and grandsons **up to the fourth generation** get specific shares (aṃśabhāgaḥ), because the family line (piṇḍa) is continuous and uninterrupted (avicchinnah) up to four generations; when the line is broken (vicchinna-piṇḍa), all such heirs take equal shares.
- No male heir: brothers or co-residents take movables (dravyam); daughters (of marriages other than the first four) take immovables (riktham); daughters of the four approved forms of marriage inherit; then father; then brothers and their sons.
- A living father dividing property must show no bias; "the father shall not deprive any of his sons of his share without sufficient reason"; the eldest son must support younger brothers unless of bad character.
- **Adoption** as a legal method to preserve lineage: where a person is "fallen" (from caste, born of outcastes, eunuchs) and his line is at the verge of extinction, relatives may beget sons for him, who receive proportional shares.
- **Land disputes, encroachments, boundaries:** resolved by **inspection (pariksha)**, witness testimony and documentary evidence — careful examination of facts plus physical inspection of the land.

Corporate & commercial law

- **Śreṇis (guilds) recognised as legal entities** with specific rights and responsibilities — internal governance, manufacturing standards, ethical codes, price and quality control; they "acted as assemblies for resolving disputes internally, and **their verdicts could not be questioned or challenged in royal courts**"; guild leaders represented members before the king and managed taxation and market conduct — "effectively functioning as **early corporate bodies with legal standing**."
- **Superintendent of Accounts** (Book 2, ch. 7 "The Business of Keeping up Accounts in the Office of Accountants"): precise records of every department — profits, losses, wages, taxes, prices, domestic and foreign trade; **monthly and annual audits mandatory**, verified by inspection, precedent, arithmetic checks and espionage; rewards for officers increasing net revenue; severe penalties for delay, falsification, double entries, omissions, manipulation — fines from equal to **20 times the loss**; sealed books; annual verification on the **Vyuṣṭa day** with reference to place, time, source and officer responsible; "the king is urged to punish fraud but reward capable superintendents."
- **Anti-corruption:** the thirteen "anti-social elements"; honesty of enforcers as a prerequisite; checks and balances; economic crimes treated as more dangerous than violent crimes.

3.10 The king in legal administration

> *"The king is the source, enforcer, and protector of law... If the king is energetic, diligent and active then his people will also be the same as him. But if he is careless or negligent then his people will also mirror that energy and will end up wasting and undermining the king's achievements. Hence,* ***the king shall always be wakeful and mindful****. When in court, he shall* ***never cause his petitioners to wait at the door****, for when a king makes himself inaccessible to his people and entrusts his work to his immediate officers, he may be sure to engender confusion in business, and to cause thereby public disaffection, and himself prey to his enemies."*
> — Arthashastra (Shamasastry trans.), quoted by Pillai

His responsibilities: (i) sitting in court daily to hear cases; (ii) appointing and supervising judges; (iii) ensuring justice without bias; (iv) protecting the weak. "The Arthashastra warns that a king who fails to uphold justice **will lose legitimacy**. The concept of **'Dharmaraja' — a just ruler — was central to Kautilya's vision.**"

3.11 The ethical frame — Dharma, Nyāya and Nīti (the triad)

DHARMA
ethical code rooted in Vedic tradition & Ṛta; sets the moral boundaries of law & governance

+

NYĀYA
fairness in procedure AND outcome: fair trials, impartial adjudication, adherence to legal policy, proportionality

+

NĪTI
pragmatic statecraft — strategy in war, diplomacy, resources, crime control

"Kautilya brilliantly balanced all three: **Niti without Dharma and Nyaya risks tyranny; Dharma without Niti may become idealistic and impractical; Nyaya without Niti might be too rigid to adapt to practicality.**... Thus the framework ensures that Law is not only about command and control but also emphasises harmonising the individuals' rights with stability, security, and prosperity of the collective."

3.12 Comparative perspective with modern law (the reading's own table)

Aspect	Arthashastra	Modern law
Source of law	Dharma, Vyavahara, Charitra, Rajashasana	Constitution, Statutes, Precedents
King's role	Supreme judge and legislator	Separation of powers
Legal categories	18 Titles of Law	Civil, Criminal, Commercial, etc.
Procedure	Oral/written, witnesses, punishment	Due process, fair trial, appeals
Punishment	Daṇḍa — deterrence, retribution, reform	Mostly reformative or restorative

The critical caveat (for "critically examine" answers): "While modern legal systems with a clear separation of powers... emphasise safeguarding individual rights and personal freedoms, Kautilya's Arthashastra emphasised **state-centric utility and moral order** that serves the stability, security, and prosperity of the state. His framework placed the ruler at the apex, combining political authority, administrative control, and judicial oversight in a single office." — *i.e., the Arthashastra's state is strong, not liberal-individualist; its safeguard is Dharma, not separation of powers.*

3.13 Contemporary relevance (the reading's conclusion in points)

Corporate governance & anti-corruption
Transparency, accountability, strict supervision of officials — "in line with contemporary frameworks that aim to curb corruption"; auditing, severe penalties for fraud and embezzlement, checks and balances.

The triadic leadership model
Dharma + Nyāya woven into Nīti — leaders "expected to act not only with strategic acumen but also with a deep sense of moral responsibility and justice."

Restorative justice
"Focuses on restorative and reformative approach to Danda rather than purely retributive measures... reintegrate the offenders into mainstream and maintain social harmony" — resonates with modern alternatives to punitive justice.

And the verdict: "even in modern times, the relevance of Arthashastra has **not increased but has remained the same**, especially in the arena of international affairs and warfare... integrating these teachings in today's legal and regulatory framework will provide a strategic and comprehensive approach that demonstrates how intellectual rigour, combined with strategic flexibility, can transform our legal system **from arbitrary decision-making into a systematic pursuit of equitable and sustainable decisions**."

3.14 One-view diagram — Kautilya's state & law

STATE = SAPTĀṄGA Svāmin · Amātya · Janapada · Durga · Kosha · Daṇḍa · Mitra →

LAW = 4 SOURCES Dharma · Vyavahāra · Charitra · Rājaśāsana (king's law prevails over untraceable texts) →

JUSTICE = 2 COURTS Dharmasthiya (civil) · Kantakaśodhana (criminal/administrative) + Pradvivaka + King (appeal) →

ETHICS = DHARMA–NYĀYA–NĪTI boundaries · fairness · pragmatism

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PART 04

(c) State & Law in the Mahabharata period — Rājyotpatti

4.1 The text and its setting

The **Śāntiparva** of the Mahabharata, "particularly the **Rājadharmānuśāsana Parva**, stands as a foundational text on ancient Indian statecraft, where **Pitamaha Bhishma, in dialogue with Yudhishthira in the aftermath of the Kurukshetra war**, centrally addresses the core questions regarding the origins and nature of the state." The epic "describes the words **Raja (King) and the Rajya (State) as so closely linked** that the state is considered to come into existence only with the advent of the king. It depicts the institution of the state as a **divine necessity to ensure security and justice for humanity in response to Matsyanyaya** — a condition marked by lawlessness and anarchy, which led to the extinction of Dharma and the gradual deterioration of social order as it took hold among people at the end of **Satya Yuga**."

Two distinct theories of the origin of the state appear in Chapters 59 and 67 of the Śāntiparva: **first, the Divine Origin Theory; second, Dharma-Samvida (Dharma-based Contract theory)** — "which aligns with the modern Social Contract Theory, though with important contextual and philosophical differences." Both "extensively explore the entire process of social evolution, starting from its roots in the original state of nature, incorporating both divine creation and the concepts of a coronation oath or popular agreement."

Set the cosmology first: Śāntiparva ch. 231 describes the **Yuga cycle** — Krita/Satya (Golden), Treta (Silver), Dvāpara (Bronze), Kali (Iron) — each with its own characteristics and progressively declining duration; and the **Triguna**: **Sattva** (wisdom, purity, tranquility, higher consciousness), **Rajas** (energy, drive, desire — excess leads to restlessness, aggression), **Tamas** (darkness, ignorance, inertia — lethargy, apathy).

4.2 Theory I — The Divine Origin Theory (Śāntiparva ch. 59)

Step 1 — Yudhishthira's two questions (59:5, 59:6-8)

> *"How did the title of king (Rajan) come into existence?" (59:5)*
> *"Why does one person rule over others who are equally intelligent and courageous, even though all are subject to the same life cycles and share similar physical and mental attributes?" (59:6-8) — "equal in hands, arms, necks and intellect... equal in birth and death, equal in all qualities of men — why do the superior-in-brilliance-and-courage bow to one?"*
> — Śāntiparva 59:5-8 (as quoted in the DU reading)

Step 2 — the pre-political Golden Age (59:14-16)

> *"In the beginning, there was neither any kingdom (Rajya) nor a king (Raja), no punishment (Danda) nor anyone to impose it. All the people governed themselves by following Dharma (their duty), and in doing so, they protected each other's rights. All the people were nurtured and nourished by Dharma. However, after some time, they began to experience great hardship in carrying out this mutual protection. Gradually, a sense of delusion clouded their minds. When all individuals were overtaken by delusion, they lost the ability to judge right from wrong, leading to the downfall of their Dharma."*
> — Śāntiparva 59:14-16 (DU reading's translation)

Step 3 — the decline

"Society gradually deteriorated. Men became increasingly envious, desiring what was not theirs. This desire grew into lust, which brought forth anger and greed, eventually unravelling order and plunging society into chaos." With religious practices and Vedic study lost, noble deeds diminished; **fear overtook the gods**; they sought refuge in **Brahma**, lamenting that greed (lobha), attachment (moha) and other vices had reduced them to mortals (59:21-25).

Step 4 — the creation of Daṇḍanīti

"Brahma saw that society could not thrive without laws enforced by a ruler. Therefore, at the request of the Gods, **he created the system of Dandaniti, the science of punishment/chastisement**, to establish law and order in the world. To codify this system, Brahma composed a scripture comprising **one hundred thousand chapters**, infused with divine wisdom, detailing the principles of **Dharma (virtue), Artha (profit), and Kama (pleasure)** in great depth, collectively referred to as **Trivarga** — the fourth principle, **Moksha** (salvation), differing in purpose and character, transcending the worldly concerns of the other three."

> *"दण्डेन सहितो ह्येष लोकरक्षणकारकः॥ निग्रहानुग्रहरतो लोकाननुचरिष्यति॥७७॥ — The law of chastisement that accompanies this Niti (policy) is the protector of the whole universe. It will be enforced everywhere, diligently punishing the wicked and extending grace to the righteous."*
> — Śāntiparva 59:77

Shiva (lord of Uma) first studied and mastered it, then **Indra, Vrihaspati and Shukracharya**. The gods then approached **Vishnu** to choose a king: Vishnu gave birth to **Virajas**, who refused, seeking Moksha; his descendants (Krittimat, Kardama, Ananga) upheld Dharma; Ananga's son **Ativala** married Sunita, daughter of Mrityu, and their son **Vena** became king.

Step 5 — Vena's fall and Prithu's coronation

"Driven by his intense desires, **Vena abandoned Dharma and acted unrighteously towards all forms of life. The rishis expelled him and killed him through the power of their mantras.** From Vena's thigh came the **Nishadas**, the tribal inhabitants of the mountains. But from his right arm emerged **Prithu**, a noble figure who mirrored Indra in his strength and wisdom — well-versed in the Vedas, warfare and the principles of governance. **Prithu pledged to the Rishis that he would uphold Dharma and the Dandaniti as a ruler of the mortal realm.** Prithu is revered for levelling the uneven land of the earth with his bow and is celebrated as the eighth incarnation of Vishnu. The gods, sages and celestial beings gathered to crown him king of the world. **Because of his protection of the Brahmanas from harm**

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(Kshati) he earned the title of Kshatriya. Prithu made the Earth prosperous through righteousness and elevated its glory; as a result it came to be known as **'Prithvi'**." (59:81-126)

Divine Origin theory vs the Western "Divine Right of Kings" — the crucial contrast

Divine Right of Kings (Western)

The monarch derives authority directly from God, and is hence **accountable only to God** — not to the people, parliament, or even the church. James I of England (1609): "The state of monarchy is the supremist thing upon earth: for kings are not only God's lieutenants upon earth, and sit upon God's throne, but even by God himself they are called gods." Subjects must obey unconditionally; resistance is defiance of the divine order; a tyrannical king is a punishment for the people's own sins; "loyalty to a wicked monarch becomes the ultimate religious duty, effectively removing any accountability of the ruler to the populace."

Bhishma's divine origin (Bharatiya)

"The king is **not a representative or agent of God on earth**. He is indeed **divine, but his divinity is based on his virtuous character**. He is **accountable for his actions**, and his orders hold authority **only when they align with Dharma (the law)**. Orders that violate Dharma are **invalid**, and the king himself is confined by the boundaries of **Rajadharma**, with no authority to exceed these limits." — A **Devansh** (divine being) in human form who rules in accordance with Dharma: "a distinct place in the history of ancient Bharatiya political traditions."

Cross-support from Unit-1 material (Dhyani): "No Indian ruler could claim with impunity and so brazenly as **Alauddin Khilzi** of medieval India and **Louis XIV** of France did that they were the State"; the king was a **trustee** (Ashoka, Harsha); "fear of popular revolt was another deterrent"; "the **Mahabharata sanctions rebellion against a worthless king**"; and Manu — "Dharma when violated verily destroys; Dharma when preserved preserves." Dhavan adds the Mahabharata's rule: **"A King who after having sworn that he shall protect his subjects fails to protect them should be executed like a mad dog"** and **"the people should execute a king who does not protect them... Such a king is not a king but misfortune"** — "sovereignty was based on an **implied social compact**, and if the King violated the traditional pact, he forfeited his kingship."

4.3 Theory II — Dharma-Samvida (Dharma-based Contract) (Śāntiparva ch. 67)

"Ancient Indian texts on polity scarcely enunciated a theory directly akin to the Western concept of the Social Contract... Nevertheless, certain parallels can be observed, particularly in the **Dharma-Samvida** and the notions of political obligation expressed by ancient Indian scholars like Bhishma and Kautilya. What is most crucial to emphasise here is **the evidence of a governmental contract between the people and the ruler**." — and "the roots of such ideas can actually be found **much earlier in the Mahabharata**, which was written long before Hobbes, Locke and Rousseau."

Bhishma's three stages of human society

STAGE 1 — Pre-political (Krita Yuga; Sattva)
"ideal stateless society": no institutionalised political authority; people lived harmoniously, acting virtuously, dutifully and protective of others' rights

→

STAGE 2 — Matsyanyāya / State of Nature (Treta Yuga; Rajas & Tamas)
desire, attachment, greed, pride, arrogance, anger → loss of virtue, chastity, righteousness; strong prey on weak; "the fear of anarchy became deeply rooted"

→

STAGE 3 — Institution of kingship
as remedy: royal authority established; "rulers were entrusted with the responsibility to safeguard Dharma, enforce justice, and maintain social order"

The two fish slokas (67:16-17) — quote in the exam

"राजा चेन्न भवेल्लोके पुमर्थ्यां दण्डधारकः॥ जले त्स्याविव भक्ष्यन् दुर्बलं बलित्तरः॥१६॥ — *If in this world there were no kings on earth wielding the rod of chastisement, then just as in water large fish devour the smaller ones, so too would the strong exploit the weak.*

अराजके प्रजाः पूर्वा विनेशुरिव नः श्रुतम्॥ परस्परं भक्षयन्तो मत्स्या इव जले कृशान्॥१७॥ — *In ancient times, in consequence of anarchy, the people oppressed each other, leading to mutual destruction."*
— Śāntiparva 67:16-17

The first, failed, self-rule agreement (67:18-19)

"During Matsyanyaya, social disorder takes over, leading people to seize what isn't theirs, lose their chastity towards women and disrupt human relationships." The community then made an agreement: **"He who speaks harshly or becomes violent in temper, imposes**

severe punishment, engages with other people's wives, or takes others' wealth — such people should be cast out from society. Thereafter, in order to build confidence among people of all castes, they created a mutual agreement, and by following it, they all began to live peacefully." — **The agreement failed:** "they realised that they could not manage their affairs on their own and needed someone to govern them."

The appeal to Brahma (67:21) and Manu's contract

> *"O Lord! We are perishing without a king. Please appoint a ruler who has the strength to govern, someone whom all of us will honour together and who will look after us."*
> — Śāntiparva 67:21

Brahma proposed **Manu**; Manu declined — "ruling over men is extremely challenging, as they are naturally deceitful and full of greed" (67:22). **The people then bargained** (67:23-27):

> **+ 1/50th of their animals**
> 1/50th of their gold — to grow his treasure (67:23)

> **+ 1/10th of their crops**
> (67:23)

> **+ the most skilled in weaponry would follow him**
> "just as the gods follow Indra" (67:25)

"In return, they requested the **king's protection** and pledged that **a quarter of the merit gained by his protected subjects would be given to the king** (67:27). Upon such a plea by the people, the great and courageous King Manu agreed to accept the position of king."

The meaning of the contract — and how it compares

"The origin of the state is rooted in **the people's acceptance of the king's authority**, with the primary objective of establishing a stable and well-regulated social order. To achieve this, political power was established, and **the people granted the king only those powers that were necessary and appropriate** for governing the state. The core idea behind this notion was that **a ruler should be benevolent toward his subjects, rather than autocratic**."

Theorist	Position	Contrast with Bhishma
Hobbes (*Leviathan*)	State of nature = "Solitary, poor, nasty, brutish, and short"; a "time of war... of every one against every one"; **fear** is the driving force; men surrender all natural rights to the sovereign for self-preservation and **cannot reclaim them**; the sovereign is **absolute**.	"There is much in common between Bhishma's state of Matsyanyaya and Hobbes' State of Nature" — **but**, for Bhishma, "the foundation of human civilisation... lies not solely in the pursuit of self-interest, but in **the mastery and transcendence of internal vices**"; and Bhishma **rejects absolute authority** — "obedience to the king's command is only justified as long as it aligns with Dharma."
Locke	Contract leaves men with three inalienable rights — **life, liberty, property**; if the ruler abuses authority, **the people retain the right to remove him**; the state is not absolute.	Direct parallel: "both Bhishma and Locke shared similar views that the state should not be characterised by absolute authority... the king's powers are limited and the king is obligated to rule in accordance with Dharma." (Bhishma's specification of the limit is Dharma; Locke's is natural rights.)
Rousseau / general contractarian tradition	Consent-based legitimacy; general will.	The Bhishma contract is **not merely consent**: it is **Dharma-Samvida** — the contract itself is under Dharma, and Dharma "transcends both the king and the state." That is "a more rational framework than many Western political philosophies, as it prioritises the **supremacy of Dharma over the authority of the sovereign**."

Two theories, two objectives (a favourite exam point): "While the first theory (ch. 59) aims to **restrict royal power** (the king's divinity is conditional on virtue — hence accountability), the second theory (ch. 67), in its given context, **emphasises the significance of royal power** — by detailing the evils that arise in the absence of a king. In addition, **the duties imposed on the people are greater than those imposed on the king**. From the perspective of ancient Bharatiya political philosophy, **the theory of Dharma-based Contract (Dharma-Samvida) should be regarded as the most thorough explanation for the emergence of the state**, as it incorporates both the king and the citizens — the king as sovereign, the people as subjects (Praja)."

Yudhishthira's other question (ch. 67) — the primary duty of a kingdom: Bhishma answers that **coronating/electing a ruler is the foremost duty** of a kingdom and its citizens; the absence of a ruler leads to **arajakata** (anarchy), which destabilises society and makes it vulnerable to thieves, oppressors and external threats; the King/State is "a guardian of dharma and the enforcer of order."

4.4 One-view diagram — Rājyotpatti

SATYA YUGA
no state, no king, no danda — Dharma self-rule
→ DECAY: lobha → kāma → krodha; loss of Veda & Dharma →
MATSYANYĀYA — state of nature
strong devour weak; arajakata
→ DAṆḌANĪTI created by Brahma (ch.59) + PEOPLE'S CONTRACT (ch.67)
Manu accepts: 1/50 animals, 1/50 gold, 1/10 crops; quarter of merit →
KING UNDER DHARMA
divine by virtue, not by office; invalid orders; forfeiture; Dharma-Samvida

PART 05

(d) Idea of State and Law in Ramarajya

5.1 The thesis — an indigenous model of the ideal state

The chapter opens with the **crisis of our age** — unchecked state power, erosion of civil liberties, disintegration of community values — and the "resurgence of debates within contemporary social science concerning the nature of an **Ideal State**." The dominant (Western) narrative credits **Plato** with the first systematic conception of the Ideal State in *The Republic* — "justice, education and communism at the centre"; "for him, that state is ideal where philosophers are the rulers." The chapter's charge against Plato: **fundamentally utopian**, born of disillusionment with Athenian democracy after Socrates' execution; and per **Karl Popper** (*The Open Society and its Enemies*), the philosopher-king was "his philosophical critique of democracy that was politically unrealistic and famously accused of laying the intellectual foundation for **totalitarianism**."

> *"Challenging these long-standing biases within the social sciences, this chapter seeks to present the ancient Indian conception of the ideal state as exemplified by the model of **Ramarajya** — a vision that is **neither apolitical nor irrational but fundamentally state-centric** and representative of a highly sophisticated body of political thought, **arguably more advanced than that of the West.**"*
> — Sharma & Rawat

The definition

"**Ramarajya can be defined as the just and welfare-oriented rule of Prabhu Shri Rama** as depicted in the **Valmiki Ramayana**... the seventh avatar of Lord Vishnu. If one defines a welfare state as one fundamentally committed to the well-being of all citizens, where the ruler is morally obligated to serve the public good, remains open to criticism, and is accountable to the people, then **Ramarajya fully embodies those ideals**."

Swami **Karpatri Maharaj** (*Marxwaad Aur Ramrajya*): "Ramarajya is a form of governance rooted in the principles of Dharma as prescribed in the scriptures (Sastra). In such a rule, **the will, interests, and consent of the people are given utmost importance**." The system is also known as **Ishwarrajya (God's kingdom), Dharmarajya (kingdom of righteousness), impartial Dharma-based state, spiritual governance, and Dharma-controlled administration**.

5.2 Valmiki's description of Ramarajya — the "constitutional text"

The concept appears at **three places**: (i) **Bala Kanda** — Narada's six verses on Rama's future reign (concise); (ii) **Yuddha Kanda, Canto 128** — the **most detailed** description of the actual state of the kingdom under Rama's rule, "rooted in Dharma and cosmic order"; (iii) **Uttara Kanda** — Bharata recounts the reign's characteristics as a "philosophical archetype of righteous governance." "Across all three accounts, the depiction of Ramarajya remains largely consistent."

Feature (Yuddha Kanda 128)	Verse & content
No sorrow, no fear, no illness	128/98: "न पतिदेवन्धित्वं न च व्यालकृत्तं भयम्। न व्याधिनं भयं चासीद्रामे राज्यं प्रशासति।" — no widowhood's sorrow, no fear of dangerous creatures, no trace of illness.
Crime non-existent	128/99: no theft, no violence, no immoral conduct — "निदुस्युरभवल्लोको नानर्थं कणश्चिदस्पृशत्।"
Harmony & devotion	128/100: all devoted to Rama; mutual respect; no one harmed another.
Long, healthy, prosperous lives	128/101: people lived long, healthy lives with abundant progeny and without grief.
Nature in perfect balance	128/102: "trees remained ever fruitful, rains fell as needed, and the breeze was gentle and pleasant" — *environmental harmony as a mark of good governance.*
All four varṇas content & dutiful	128/104: Brāhmins, Kshatriyas, Vaishyas and Shudras content, free from greed, engaged in their prescribed responsibilities.
Truthful, moral, religious people	128/105: truthfulness, moral conduct and adherence to dharma defined the people — all auspicious, all dharma-abiding.

Note the frame: Ramarajya is presented not as mythology but as "a political vision of ethical governance grounded in **Dharma and Nyaya**", "long before the emergence of Greek political philosophy or the modern liberal welfare state... the primary objective being the

universal welfare (sarvajana hita) of all beings." The ruler is not merely an administrator but a **moral exemplar (Dharma-parvartaka)**. "Unlike the modern welfare state, which is largely rooted in secular, materialist, and rights-based paradigms, Ramarajya integrates spiritual, ethical, duty-based and metaphysical dimensions into the structure of political life... **Indigenous problems require indigenous solutions.**"

5.3 The Ayodhya polity — continuity, consent and a "constitutional" monarchy

Continuity of the ideal (not an innovation of Rama)

"A closer and more critical reading of Valmiki Ramayana suggests that the foundations of this ideal governance were laid much earlier — **King Dasharatha's reign was already based on Dharma, morality and public welfare**... inherited from a well-established tradition within the **Iksvaku Dynasty**, sustained and transmitted across generations." (This is the answer to "Ramarajya = only Rama's reign?" — no; the model is dynastic-constitutional.)

Political fragmentation with political consciousness

"India was culturally unified but politically fragmented into numerous small kingdoms... Yet the political consciousness of the time was developed enough for the people of Ayodhya to recognise the **dangers of a stateless society**." Valmiki, like the Dharmashastra and the Mahabharata, invokes **Matsyanyaya**: "in an anarchic state... larger fish swallowing the smaller ones... people exploit and destroy one another and society descends into chaos" (Ayodhya Kanda 67/31). This fear explains why, immediately after Dasharatha's demise, the citizens urgently appealed to **Vashistha** for a new monarch (67/38).

Kingship's own origin-story (Uttara Kanda, Agastya's narration): in Satyuga humanity lived ruler-less; with sin and disorder, people prayed to Brahma, who appointed **Ksupa (Kaśyapa)**, "endowed with the radiance and powers of the guardian deities", as ruler — "the institutions of the state came into being with the emergence of the king."

Limited / constitutional monarchy — the evidence

- **Succession not automatic:** "The outward structure of Valmiki's kingship appeared hereditary, but a closer examination of the Iksvaku lineage reveals that **dynastic succession was not absolute**... subject to a complex and nuanced system of **political consent**, involving not only ministers and royal elders but also **feudal lords**, whose endorsement was crucial."
- **Ratification by the assembly:** "Even when Dasharatha nominated Rama as **Yuvaraja**, this decision was only formalised after it was **ratified by the royal assembly** (Ayodhya Kanda 1–2; and 2/10 — Dasharatha obtained the consent of all the eminent Brahmanas in his court). **The monarch's will, therefore, was not final**; it had to be negotiated within a framework of collective authority... **signifies the presence of democratic tendencies within the monarchical framework of Ayodhya**."
- **Rules of succession:** the eldest son customarily inherited (79/7), but "if deemed unfit, he could be bypassed in favour of a more capable younger son"; in the absence of a direct heir, the king's brother could assume the throne; the Yuvaraja typically succeeded on death/abdication — **semi-elective kingship**, "challenging the notion of a purely autocratic or divine-right monarchy."
- **King as representative of the divine, but under Dharma:** Rama's dialogue with **Vali** on the ruler–subject relation as father–son (Kishkinda Kanda 18/41-42): "rulers are **givers of the most essential elements of life: Dharma (moral order), Artha (material prosperity), and Jivana (life itself)**... do not harm them, do not slander them... for they are truly **deities who roam this Earth in human form**" — an ideal of rule "not by power alone, but through **moral integrity and virtue**."
- **The reciprocal relationship:** "Even though the people considered the king to be supreme, they expressed their responses according to the king's conduct... **The people are not portrayed as passive recipients of rule. They observe, evaluate, and react to royal conduct**... a ruler who leads by example, governs with Nyaya, and continuously earns the trust of his people."

Rama's character — the "qualification clause" (Ayodhya Kanda 2/28-48)

Valmiki's catalogue: truthful, heroic, endowed with divine qualities like Indra, upholder of Dharma and Artha, pleasant like the moon, patient like the Earth, wise like Brihaspati, powerful like Indra, modest, "one who does not covet others' wealth", calm, comforter of the distressed, soft-spoken, grateful, self-restrained, gentle, steady-minded, always welfare-oriented, devotee of scholars/elders/Brahmins, master of all weapons, knowledgeable in the Veda, well-versed in all branches of learning, master of Gandharvaveda (music), generous and large-hearted, protector of villages and towns, skilled in warfare, victorious, **affectionate toward his people (praja-vatsala)**, keeper of all four varnas engaged in their duties, a great archer, cheerful, Dharma-abiding, radiant like Vishnu, **free from vices like attachment and anger, just**, radiant as the sun (2/28-47) — so ideal that "the people of the earth wished to make him their ruler" (2/48).

5.4 The science of governance — Rama's lessons to Bharata (Ayodhya Kanda 100)

What good governance (Sushasan) requires

- The king should **protect and care for all the people in accordance with Dharma** (100/48); through the righteous exercise of **Danda** (punishing wrongdoers justly), "the wise ruler ensures the welfare of his subjects, secures order over the entire earth, and ultimately attains heaven" (100/76).
- "By adhering to righteous policies (**Niti**), the king ensures the safety and prosperity of his subjects; but if he fails in his duties, they face destruction" (Uttara Kanda, Praksipta Sarga 2/5).
- Governance of the kingdom = the king's **Sanatan Dharma** (Bala Kanda 25/19½); he must be prepared to act "severe or mild, culpable or harmless, in order to safeguard his subjects" — that is why he is **Praja-palak** (25/18); he "does not act out of self-interest but places public welfare above his own comfort."

- **One-sixth share of merit:** "A righteous king shares in one-sixth of the spiritual merit earned by his subjects through study of the Veda, austerities and virtuous deeds, as he protects and upholds the dharmic order" (Uttara Kanda 74/31).

Rama's checklist of vices, virtues and strategies

- **14 flaws to avoid** (100/65-67): atheism, falsehood, anger, carelessness, procrastination, ignoring wise counsel, laziness, narrow-mindedness in planning, pointless strategies, failure to execute plans, failure to safeguard secrets, and others — the "king's defects".
- **Dasvarga** — ten vices born of desire (100/68; Manu 7.47 lists them as hunting, dice, sleeping by day, censoriousness, overindulgence in sensuality, intoxication, the musical triad, and listless wandering).
- **Ashtvarga** — eight vices born of anger: slander, reckless daring, treachery, jealousy, fault-finding, misuse of wealth, harsh speech, excessive punishment.
- **Saptavarga** — the **seven limbs of the state**: king, ministers, nation (territory), fort, treasury, army, allies *(exactly Kautilya's saptāṅga)*.
- **Chaturvarga** — the four **Upāyas**: Sam (conciliation), Dam (gifts), Danda (punishment), Bheda (dissension).
- **Shadgunya** — the six measures of statecraft: **Sandhi** (alliance), **Vigraha** (war), **Yana** (strategic movement / seeking shelter), **Asana** (neutrality), **Dwaidhibhav** (dual policy), **Samshraya** (taking refuge under a stronger power) — chosen as the situation favours the state (100/69).

5.5 The Mantriparishad and the Sabha — institutions of accountability

Council of Ministers — two tiers

(1) Ritvija / Purohita / Gurus — the advisory council: consulted before important tasks; generally Brahmins; performed duties similar to ministers (Bala Kanda 7/4, 7/6). "The **Rajpurohita**, who was in fact a minister, played a significant role in all affairs of the state — **even the king could not disregard his counsel**. He served as the Prime Minister, and his position was second only to that of the king." **(2) Amatya — the cabinet (Mantri Mandal):** each minister the head of a department; consultation vital for good governance. Rama's own test at Chitrakoot (100/15-16): "the main reason for the king's victory rests on **good advice**, effective only when ministers, well-versed in ethics and scriptures, keep it completely secret." Through a network of **spies**, they knew "what was being done, what had been done, and what was intended" (7/9); as vigilant guardians they observed every judgement "through the eyes of Dharma" (7/16). After Dasharatha's death, in the absence of Rama and Bharata, the Gurus handed the decision on the succession to **Sage Vashishtha**.

The Sabha — assembly with real (if limited) power

The king was **Sabhapati** (president) of the Sabha; in his absence the **Purohita** presided (typically only in emergencies, 3/24-35). Amatyas and Purohitas/Gurus were ex-officio members. The term Sabha appears in two senses: (i) a **public gathering** for discussion (Ayodhya 6/20 — after Rama's declaration as Yuvaraja); (ii) the **Royal Assembly** hall (67/2). **"The approval of the Sabha was mandatory for all important state decisions"** — the coronation of Rama, of Bharata, general administration, war. The Sabha's primary duty: accept the king's proposal or suggest a better alternative; the king generally consulted ministers before presenting proposals.

Modern parallel given by the reading itself: "The final power was with the king, like even today, if any law has to be implemented, then the help of **ordinance** is taken for implementing it and when the circumstances are favourable, it is passed by the parliament. Though the independence of the Sabha was limited, its functioning reveals that **governance was, to some extent, accountable to society**, and the social order was shaped with the collective welfare in mind. If any system proved detrimental to society at large, the people in the Sabha did not merely oppose it; they actively provided alternatives and often implemented change."

5.6 Nyāya-Daṇḍa Vyavasthā — the judicial system of Ramarajya

"The Idea of Ramarajya was not merely a mechanism for maintaining political order, but a **pragmatic constitutional framework** grounded in Dharma, where justice was not treated as an abstract legal category, but as the concrete realisation of righteousness (Dharma), rooted in the Sastras and sustained by the traditions. **Rama himself administered justice according to the established tradition of Rajadharma** and thus became the fountain of both Dharma and Nyaya for all alike."

EPIC CASE **The Dog's Justice — Ramarajya's most famous judicial precedent**

Uttara Kanda (Praksipta) Sarga 1-2 · Valmiki Ramayana

Facts

Rama sat in his court every day, where every grievance was heard. One day, after all cases were disposed of, he asked Lakshmana to check outside for any remaining petitioner. Lakshmana found **a dog, injured on the head**. The dog would not speak to Lakshmana: **"I want justice from Rama. I will only tell him my problem."** Brought inside, the dog complained that a Brahmin ascetic named **Sarvathasiddha** had struck him on the head without any reason, though he had done nothing wrong.

Issue

What is the just punishment where the offender is a **Brahmin** (who, under the Śāstras, cannot suffer corporeal punishment) and the victim is an **animal** — with no ordinary legal provision squarely applicable?

Arguments (as recorded)

For the complainant (the dog): an unprovoked assault; compensation/justice due regardless of the offender's status. **For the offender (Sarvathasiddha):** he admitted his crime candidly — "In a moment of Krodha, I hit him on the head with a stick. I am guilty of this. You can give me whatever **Danda** (punishment) you want." **The ministers and courtiers (the Sabha's view):** "This case is highly intricate, for the offender is a Brahmana, and according to the Sastric injunctions, **no corporeal punishment may be inflicted upon a Brahmana**. Hence the ordinary provisions of law are inapplicable here. Therefore, being a king, it is within your prerogative to give the judgment."

Decision

"Then, in keeping with Dharma, **Rama asked the dog itself what punishment should be given**." The dog replied: "My lord! **Make him the chief Mahant of the Kalinjar Math.**" Rama did so; the ascetic was happy; the court was astonished — "the punishment seemed more like a reward than a penalty." Rama then instructed the dog to explain.

Reasoning (the dog's explanation)

"In his previous birth, [the dog] was the **head of the same Math**. Due to **pride, arrogance, and the misuse of his authority**, he had deviated from the path of Dharma and, as a result, was reborn as a dog. **If this priest, who is already marked by Krodha and cruelty, is elevated to the same position, he too will sink into misery and ultimately degrade himself.**"

> **Principle evolved:** (1) **Justice is for all beings** — "so impartial and inclusive that not only human beings but even animals had their appeals heard and duly redressed"; (2) **accessibility** — the court is open daily, without professionals' fees, the petitioner (Karyarthi) has immediate access; (3) **the victim participates in the sentence** (restorative-consensual justice — the ancestor of victim-impact and restorative justice); (4) **punishment may be invisible** — the highest penalty here is trust: elevation to a seat of authority, which becomes the corrupt man's ruin; a punishment that is "the most relevant to the offender's karma", not merely a retributive tariff; (5) **no crime goes unaddressed because of the status of the offender** — where the śāstra's ordinary rule fails, the king, guided by Dharma, still must do justice.

The judicial architecture

- **Court = Sabha / Rajsabha** — "Judiciary, in that period was centred in the Sabha or Rajasabha, which functioned as the court of law."
- **King as Chief Justice:** "Unlike modern times, where the judiciary operates independently, in Ramarajya the king himself acted as the chief justice, personally presiding over the royal court; that is why the king was often referred to as the **Dharmapala** (guardian of Dharma) (Aranya 1/18) and **Dandadhara** (executor of punishment) (Aranya 1/19)."
- **Dharmasana:** the king sat daily upon the **seat of Dharma** (Uttara 1/1), "wherein Dharma denoted Nyaya or justice."
- **Sabhasads — the ancient jury:** the Sabha included "ministers knowledgeable in state affairs, scholars well-versed in the Dharmashastra, experts in ethics and governance, and kings called **Sabhasads** (1/3)... their duty to assist the king in the Court of law. They may be termed as **the jury of that ancient period**."
- **No lawyers, no costs:** "Since there were neither professional lawyers as we see today nor the burden of court expenses, **justice remained impartial and accessible**. A petitioner (Karyarthi) has the right to immediate access to court (1/5.5)."
- **Delay is sin:** Rama told Lakshmana that "a king who **fails to dispense justice each day**, or who delays and neglects its administration, incurs grave sin and becomes destined for hell" (Uttara 53/6).
- **Few cases = sign of strength:** "Litigation was rare... the judiciary was strong, as society preferred to abide by Dharma and avoid transgression... neither children, nor youth, nor those of middle age faced death, nor did anyone encounter obstacles in seeking justice" (1/9).
- **Final court of appeal:** "Rama's Court of Justice probably also discharged the functions of the **final Court of Appeal** in the state" (P.C. Dharma).
- **The king as agent, not author, of law:** "The king acted merely as an **agent of the state**, administering justice impartially to enforce the Dharma **which was neither of his own making nor necessarily of his own choice** but based upon the Sastras and traditions in society... Rama himself was the living embodiment of Dharma, always committed to the welfare of all beings (1/22)."

5.7 Daṇḍa — the four types and the law of punishment

Four types of Daṇḍa (Valmiki)

Type	Meaning	Instances
Dhik Daṇḍa	Condemnation	Vibhishana
Vak Daṇḍa	Punishment by words	Maricha, Malyavaan
Artha Daṇḍa	Punishment by fine	Thieves
Badh Daṇḍa	Capital punishment	Vali

Plus other forms: imprisonment/confinement, exile, bodily mutilation.

Principles

- **No punishment without crime:** "The Valmiki Ramayana makes it clear that **imposing Danda without the commission of a crime is unjust**" (Uttara 79/8).
- **Punishment only on deviation from Dharma:** "Rama's decision to punish **Vali** only upon his deviation from the righteous path" (Kishkinda 18/20-21) — "those who act against the social order can be brought back to their righteous path only through Danda."
- **Just punishment → heaven; unjust → downfall:** "A king who inflicted punishment justly and lawfully was led to heaven (Uttara 79/9), but if he punished unjustly, whether with bias or deceit, he paved the way to his own downfall" (Ayodhya 100/59).
- **Failure to punish = sharing the sin:** "If he failed to punish an offender he became a sharer in that person's sin, expiable only through penance; but if he punished lawfully in accordance with the crime, both king and offender were freed from karmic debt."
- **Equality before the law (Dharma):** "The king would punish even his own son if he committed a crime; all were equal before the rule of law (Dharma), even the king was also bound by it and must work for the welfare of society at large. In Rama's Kingdom, **Dharma was upheld above all else**... his actions exhibit respect for the established laws and traditions of society" — and "members of the Nyaya Sabha i.e., the king's council, would not hesitate to give Danda to their own sons if the situation demanded, ensuring that the **Dharma remained supreme and impartial**" (Bala 7/10).

5.8 Conclusion of the reading

> *"Ramarajya is not merely a metaphor for an ideal state; it represents a **lived civilizational experience of Dharma** in India's historical consciousness... His vision of political leadership was ideal as it fell under the purview of Dharma, which set the benchmarks for statecraft and administration, with the primary objective being the **welfare and happiness of all beings**... The Dharmarajya of Rama has been described as the 'विग्रहवान् धर्मः' (Dharma embodied) or the epitome of morality, where the ruler himself worshipped people (आराधनाय लोकस्य) and the kingdom (राज्यम् उपासित्वा)... [and] consequently emerged as a well-established metaphor for the **welfare state**... Several rulers in ancient India sought to associate their reigns with this ideal... Such a Dharmic polity served as a constant reminder to those in authority of their ethical obligations, **resonating with the modern notions of constitutional morality, where the legitimacy of authority rests not merely on the power of the state, but on adherence to rule of law and the welfare of the citizenry.**"*
>
> — Sharma & Rawat (conclusion)

5.9 One-view diagram — Ramarajya

FOUNDATION
Dharma + Nyāya; matsya-nyāya feared; king as Dharmapala/Dandadhara; Dharma above king →

INSTITUTIONS
King (Sabhapati) · Sabha (approval mandatory) · Sabhasads (jury) · Mantriparishad (Purohita + Amatyas) →

JUSTICE
daily open court · Dharmasana · no lawyers' fees · Karyarthi's immediate access · dog's case · 4 types of Daṇḍa · punish own son →

OUTCOME
no widow's sorrow, no illness, no crime · nature in balance · varṇas content · sarvajana hita = welfare state · constitutional morality

PART 06

Authorities in Full Detail — Texts, Epics, Comparators & Modern Law

How to use this section. Unit 2's "case law" is of three kinds: (i) **epic/judicial episodes** — the great "cases" of the Mahabharata and Ramayana, which the DU readings brief like judgments (below, each with facts · issue · arguments of both sides · decision · principle); (ii) **comparative theorists** (Hobbes, Locke, James I, Plato/Popper) — your counter-authorities; (iii) **modern constitutional law** — where the same principles live today. In the exam, quote the *principle* and attribute it to the *text* (e.g., "Śāntiparva 67:16-17", "Uttara Kanda, Praksipta Sarga 1"); that is exactly what the DU material does.

by Ankur R. Upadhyay

GROUP A — The Epic "Cases" (full briefs)

EPIC CASE 1 The Origin of Kingship — Yudhishthira's Enquiry and Bhishma's Answer (Divine Origin Theory)

Mahabharata, Śāntiparva ch. 59

Facts / Setting

After the Kurukshetra war, Yudhishthira, burdened with kingship, sits with Bhishma in the Rājadharmānuśāsana Parva. He poses the foundational question of political philosophy: "How did the title of king (Rajan) come into existence?" — and why does one person rule over others equal to him in intelligence, courage, birth, death and all qualities?

Issue

What is the origin and justification of kingship, and what follows from it for the limits of royal power?

Arguments / Account of both sides

The pre-political condition (Bhishma's opening proposition): initially, "there was neither any kingdom nor a king, no punishment nor anyone to impose it. All the people governed themselves by following Dharma... they protected each other's rights." — life governed by Dharma, not by force. **The counter-movement:** mutual protection became burdensome; delusion obscured right from wrong; envy, desire, lust, anger and greed "unravelled order and plunged society into chaos"; Vedic study and noble deeds disappeared. **The gods' position (their plea to Brahma):** the loss of Vedic wisdom through human greed (lobha) and attachment (moha) had diminished even the gods, making them "akin to mortals" — hence some corrective institution was necessary.

Decision

Brahma "saw that society could not thrive without laws enforced by a ruler" and created **Daṇḍanīti** — "the science of punishment/chastisement" — as a scripture of **one hundred thousand chapters** detailing Dharma, Artha and Kāma (Trivarga), with Moksha as the transcendent fourth. The law of chastisement "is the protector of the whole universe... diligently punishing the wicked and extending grace to the righteous" (59:77). It was studied by Shiva, then Indra, Vrihaspati and Shukracharya. At the gods' request, Vishnu produced the line of kings — Virajas (who refused, seeking Moksha), Krittimat, Kardama, Ananga, Ativala, and Vena.

> **Principle evolved: Kingship is of divine origin — but as a trust for the preservation of Dharma, not as a delegation of divine authority.** The king is **Devansh**: divine by virtue of character and dharmic conduct, not by blood or office alone; his orders are valid only when they conform to Dharma (explicitly the opposite of the Western Divine Right of Kings). The state comes into being with the king and exists because Dharma, left unenforced, collapses into matsya-nyāya.

EPIC CASE 2 Vena's Fall and Prithu's Coronation — the unrighteous king is extinguished Śāntiparva 59:81-126

Facts

Vena, descendant of the pious kings, becomes king. "Driven by his intense desires, Vena abandoned Dharma and acted unrighteously towards all forms of life."

Issue

What may be done with a king who abandons Dharma? Can divine origin protect him?

Arguments

Vena's position (implicit): royal power is his by descent and divine appointment — hence beyond question. **The rishis' position:** kingship is conditional on Dharma; the guardians of Dharma have the duty — and power — to remove the unrighteous ruler who harms "all forms of life."

Decision

The rishis expelled Vena and killed him through the power of their mantras. From his thigh came the Nishadas (mountain tribes) — an emblem of the degraded issue of an unrighteous line; from his right arm emerged **Prithu**, "a noble figure who mirrored Indra in strength and wisdom", learned in the Vedas, warfare and governance. **Prithu pledged to the Rishis that he would uphold Dharma and the Daṇḍanīti.** On his pledge — a coronation contract — the gods, sages and celestial beings crowned him king of the world; "because of his protection of the Brahmanas from harm (Kshati) he earned the title of **Kshatriya**"; his righteous rule made the earth prosperous, so it came to be called **Prithvi**.

> **Principle evolved:** (1) **Divine origin is no immunity** — an unrighteous king forfeits his kingship and may be removed and even executed by the guardians of Dharma (cf. Dhavan's Mahabharata rule: a king who fails to protect his subjects "should be executed like a mad dog"; "the people should execute a king who does not protect them"). (2) **Legitimacy is created by a pledge (coronation oath/agreement)** to uphold Dharma and Daṇḍanīti — the earliest form of a coronation oath limiting the ruler. (3) Royal titles are earned by protective conduct (Kshatriya; Prithvi).

EPIC CASE 3 The People v. Anarchy — the failed self-help agreement and the Contract with Manu (Dharma-Samvida) Śāntiparva ch. 67

Facts

In the condition of arajakata (kinglessness) described at 67:16-17 — "if there were no kings on earth wielding the rod of chastisement, then just as in water large fish devour the smaller ones, so too would the strong exploit the weak" — the community first tried self-regulation: they agreed to cast out those who spoke harshly, used violence, imposed severe punishment, engaged with others' wives or took others' wealth, "in order to build confidence among people of all castes" (67:18-19). **The agreement failed**, and the people appealed to Brahma: "We are perishing without a king. Please appoint a ruler... whom all of us will honour together and who will look after us" (67:21).

Issue

Can order be established by mere agreement among equals, or is a ruler necessary? And on what terms may rulership be accepted?

Arguments of the people

Brahma proposed **Manu**; Manu declined — "ruling over men is extremely challenging, as they are naturally deceitful and full of greed" (67:22). The people then bargained, promising: **1/50th of their animals, 1/50th of their gold, and 1/10th of their crops** for the treasury (67:23-24); that the most skilled in weapons would follow him as the gods follow Indra (67:25); and — in return for his protection — **a quarter of the merit earned by his protected subjects would accrue to the king** (67:27).

Decision

On these terms, Manu accepted. The king's authority was thereafter **grounded in the people's acceptance**, and the people "granted the king only those powers that were necessary and appropriate for governing the state."

> **Principle evolved (Dharma-Samvida): The state originates in a dharma-based contract between people and ruler — and the contract itself is under Dharma.** Tax is consideration for protection (*praja-sukham*); the king is a **benevolent, not autocratic, ruler**; his powers are enumerated (limited); the people's duties (taxes, weapons-service) are specified — and in the ancient scheme **the duties imposed on the people are greater than those imposed on the king**. This is the closest Indian analogue of (and historical predecessor to) the social contract — aligned with Locke (limited authority; right to resist abuses: note Bhishma's other texts sanctioning rebellion against a worthless king), but opposite to Hobbes (no irrevocable surrender; no absolute sovereign). The reading calls Dharma-Samvida **"the most thorough explanation for the emergence of the state"**.

EPIC CASE 4 The Dog v. Sarvathasiddha (the Brahmin ascetic) — "I want justice from Rama" Valmiki Ramayana, Uttara Kanda (Praksipta) Sarga 1-2

Facts

Rama held court daily; after all cases were heard he sent Lakshmana to see if anyone remained. A dog — injured on the head — refused to speak to Lakshmana, insisting on Rama alone. In court, the dog alleged that the Brahmin ascetic **Sarvathasiddha** had struck it on the head without cause. The ascetic, summoned, admitted the assault: "In a moment of Krodha, I hit him on the head with a stick. I am guilty of this. You can give me whatever Danda you want."

Issues

(1) Does the court's protection extend to a non-human complainant? (2) What punishment fits where the offender is a Brahmin (exempt from corporeal punishment under the Śāstras) and the ordinary provisions are "inapplicable"?

Arguments

The dog: unprovoked injury; wants justice, not sympathy — and only from Rama. **Sarvathasiddha:** candid admission; accepts any punishment. **The ministers/courtiers (Sabha):** the case is "highly intricate" — no corporeal punishment for a Brahmana; the ordinary law cannot yield an answer; "being a king, it is within your prerogative to give the judgment."

Decision

"In keeping with Dharma, **Rama asked the dog itself what punishment should be given.**" The dog demanded: "**Make him the chief Mahant of the Kalinjar Math.**" Rama decreed accordingly; the ascetic rejoiced; the court was astonished that a penalty looked like a reward. On Rama's instruction, the dog explained: in a previous birth he himself had been the head of that very Math; **pride, arrogance and misuse of authority had turned him from Dharma and reduced him to a dog**; elevating the already wrathful, cruel priest to the same seat would lead him to the same ruin. "In his previous birth... he will sink into misery and ultimately degrade himself."

> **Principles evolved:** (1) **Justice is universal — for all beings**, human or animal; the weakest complainant has direct access to the highest court (the ancestor of animal-welfare jurisprudence — see Unit 1(a), and the reading's argument that Dharma protects "every inanimate and animate object... from mountain to river, from plants to animals"); (2) **accessible, simple, costless justice** — no lawyers, no fees, daily court, no delay (delay "incurs grave sin" — Uttara 53/6); (3) **the victim**

> **participates in sentencing** — restorative justice; (4) **the fitting penalty may be non-corporeal and even disguised as a favour** — what the offender "deserves" is measured by dharma and consequence, not by a tariff: the punishment is precisely the office that bred his karma; (5) **where the textual law is silent, the king, guided by Dharma and advised by the Sabha, must still do justice without leaving a wrong unredressed.**

EPIC CASE 5 Rama and Vali — the ruler as giver of Dharma, Artha and Jivana; punishment only upon deviation

Kishkinda Kanda 18/20-21, 18/41-42

Facts

Rama kills Vali (the monkey king) in the Kishkinda episode — a killing that needs justification, since Vali was not present to Rama's cause. Rama's dialogue with the dying Vali supplies the jurisprudence of the ruler's position and of legitimate punishment.

Issues

(1) On what basis may the king punish? (2) What does the ruler owe his subjects — and who is the ruler himself?

Arguments

Vali (the grievance): punishment visited upon me without my having harmed you — is this just? **Rama (the justification):** Vali was punished only "upon his deviation from the righteous path" (18/20: "this punishment is meted out because of your transgression") — and "those who act against the social order can be brought back to their righteous path only through Danda" (18/21). In the same discourse (18/41-42), about the ruler–subject relationship (framed as father–son), Rama declares: **rulers are the givers of the most essential elements of life — Dharma (moral order), Artha (material prosperity) and Jivana (life itself)** — therefore subjects must not harm, slander, accuse or speak harshly to them, "for they are truly deities who roam this Earth in human form."

Decision

Vali's punishment is upheld as **consequential on his own deviation from Dharma** — not arbitrary royal violence; and the ruling fixes the reciprocal duties: the ruler is the giver of dharma, prosperity and life (justifying the subject's reverence), while the subject's reverence is conditional on the ruler's own dharma.

> **Principles evolved:** (1) **Daṇḍa without transgression is unjust** (explicitly stated at Uttara 79/8: "imposing Danda without the commission of a crime is unjust"); (2) **the ruler's authority is a function of the goods he delivers** (dharma, artha, jivana) — welfare legitimacy, not mere power; (3) the same discourse yields the ideal of rule "not by power alone, but through moral integrity and virtue."

EPIC CASE 6 Rama's Lessons on Sushasan to Bharata — the 14 flaws, the seven limbs, the six policies

Ayodhya Kanda 100 (also 25/18-19½; Uttara 74/31)

Facts

In exile at Chitrakoot, Rama meets Bharata (who refuses the throne) and delivers a systematic exposition of Rājadharma/Rājanīti — what it "genuinely means for a king to govern justly."

Issue

What is the content of good governance (Sushasan)?

Arguments / Positions

The king's obligations: protect and care for all the people in accordance with Dharma (100/48); exercise Danda righteously to ensure welfare, secure order and attain heaven (100/76); follow Niti — "the king ensures the safety and prosperity of his subjects; but if he fails in his duties, they face destruction" (Uttara, Praksipta 2/5); governance is the king's **Sanatan Dharma** (Bala 25/19½); he may be "severe or mild... to safeguard his subjects" (25/18); he shares **one-sixth of his subjects' merit** as he protects the dharmic order (Uttara 74/31); and he must avoid the **14 flaws** (atheism, falsehood, anger, carelessness, procrastination, ignoring wise counsel, laziness, narrow-mindedness, pointless strategies, failure to execute or to keep secrets, etc. — 100/65-67). For personal discipline: renounce the **Dasvarga** (ten vices of desire: hunting, dice, sleeping by day, censoriousness, overindulgence in sensuality, intoxication, musical triad, listless wandering — Manu 7.47) and the **Ashtvarga** (eight vices of anger: slander, reckless daring, treachery, jealousy, fault-finding, misuse of wealth, harsh speech, excessive punishment). For the state: the **Saptavarga** (king, ministers, nation, fort, treasury, army, allies); for diplomacy the **Chaturvarga** (Sam, Dam, Danda, Bheda) and the **Shadgunya** (Sandhi, Vigraha, Yana, Asana, Dwaidhibhav, Samshraya).

Decision and principle

> **Principles evolved:** (1) Good governance is a **catalogue of virtues, vices and institutions** — a complete "science of administration" mirroring Kautilya's saptāṅga, upāyas and ṣāḍguṇya; (2) **the king's success or ruin tracks his moral**

> **discipline** — vices of desire and anger are not private matters but governance failures; (3) **welfare is the measure** — the ruler's acts are judged by their effect on the subjects (sarvajana hita).

EPIC CASE 7 Dasharatha's Nomination of Rama — ratification by the Assembly (semi-elective kingship)

`Ayodhya Kanda 1-2, 2/10, 79/7`

Facts

King Dasharatha, wishing to retire, announces his decision to appoint **Rama as Yuvaraja** (crown prince) "for the welfare of the people."

Issue

Is the monarch's will alone sufficient to settle the succession?

Arguments

Royal prerogative view: succession is hereditary; the eldest son takes the throne "by custom" (79/7); the king's word suffices. **The constitutional view (prevailing in fact):** the nomination was "only formalised after it was **ratified by the royal assembly**" — Dasharatha obtained "the consent of all the eminent Brahmanas present in his court" (2/10); succession was "subject to a complex and nuanced system of **political consent**, involving not only ministers and royal elders but also **feudal lords**, whose endorsement was crucial"; an unfit heir could be bypassed for a more capable younger son; in the absence of a direct heir, the king's brother could succeed.

Decision and principle

> **Principles evolved: "The monarch's will was not final; it had to be negotiated within a framework of collective authority"** — kingship in the Ramayana was **limited/constitutional and semi-elective**; "it signifies the presence of **democratic tendencies within the monarchical framework of Ayodhya**." This is the textual basis for the reading's bold claim that Ramarajya was "a practised and sustained model of governance," not utopia.

EPIC CASE 8 The Citizens of Ayodhya and the Succession after Dasharatha — "a kingdom without a king is a wilderness"

`Ayodhya Kanda 67/2, 67/31, 67/38; Uttara Kanda 77/37-43 (Agastya's narration)`

Facts

Dasharatha dies while Rama is in exile and Bharata is away. The citizens assemble (67/2) and, terrified of kinglessness, urge Vashistha to crown a successor immediately — "the citizens of Ayodhya urgently appealed to Sage Vashistha for the appointment of a new monarch" (67/38). In the Uttara Kanda, Agastya narrates to Rama the original emergence of kingship: in the Satyuga humanity lived ruler-less; with sin and disorder the people prayed to Brahma, who appointed **Ksupa (Kaśyapa)**, endowed with the radiance and powers of the guardian deities, as ruler of the earth.

Issue

Why must a ruler be appointed at once, and what is the origin of the institution?

Arguments

The citizens: "नाराजके जनपदे स्वकं भवति कस्यचित् — in a kingdom without a king nothing remains one's own; मत्स्या इव जना नित्यं भक्षयन्ति परस्परम् — as fish, people devour each other" (67/31) — the fear of matsya-nyāya makes immediate appointment imperative. **Vashistha (as the institution's guardian):** "स नः समीक्ष्य विज्ञाय वृत्तं नृपं विना राष्ट्रमरण्यभूमिम् — a realm without a king is a wilderness" (67/38).

Decision and principle

> **Principles evolved:** (1) **The state (rājya) and the king (rāja) are co-extensive** — "the state is considered to come into existence only with the advent of the king"; from the people's own perception of anarchy flows the demand for authority ("the institutions of the state came into being with the emergence of the king"); (2) **kingship's origin is both divine (Brahma's appointment) and popular (the people's petition)** — the Ramayana's own blend of the two theories Bhishma expounds; (3) **the state's function is protection** — "the king was ordained to protect the people, for without a king, the state could not survive."

GROUP B — Comparative authorities (know these as counter-arguments)

Authority	Their proposition	Your Unit-2 rebuttal (from the DU material)
Thomas Hobbes (*Leviathan*)	State of nature = "war of every one against every one"; life "solitary, poor, nasty, brutish, and short"; fear drives men to surrender all rights to an **absolute** sovereign, irrevocably.	Bhishma's matsya-nyāya matches the diagnosis, but not the prescription: the foundation of human civilisation "lies not solely in the pursuit of self-interest, but in the **mastery and transcendence of internal vices**"; the king is **not absolute** — "obedience to the king's command is only justified as long as it aligns with Dharma."
John Locke	Contract leaves three inalienable rights (life, liberty, property); a ruler abusing authority may be removed.	Direct parallel: "both Bhishma and Locke shared similar views that the state should not be characterised by absolute authority." Bhishma's limit is Dharma; Locke's is natural rights — same anti-absolutism, different foundation.
Jean-Jacques Rousseau	Consent and general will as the basis of political obligation and law.	The ancient Indian tradition "scarcely enunciated a theory directly akin to the Western Social Contract" — yet Dharma-Samvida evidences "a governmental contract between the people and the ruler," earlier than Rousseau, and one made *under* Dharma: consent alone is not the ultimate norm; Dharma is.
James I of England (1609) — the **Divine Right of Kings**	"Kings are not only God's lieutenants upon earth… but even by God himself they are called gods"; accountable only to God; resistance is sin.	Bhishma's exact opposite: the king is "not a representative or agent of God on earth"; "his divinity is based on his **virtuous character**"; he is accountable; orders violating Dharma are invalid; the Mahabharata even sanctions rebellion against a worthless king (Dhyani); Dhavan: a king failing to protect his subjects may be "executed like a mad dog."
Plato (*The Republic*) and **Karl Popper**	Plato's philosopher-king as the first Ideal State; Popper: it was politically unrealistic and "laid the intellectual foundation for totalitarianism."	Ramarajya "is neither apolitical nor irrational but **fundamentally state-centric**… a practised and sustained model of governance," not a utopia — "arguably more advanced than that of the West."
John Austin (command theory) — Unit 6 preview	Law is the command of a sovereign backed by sanction; sovereign is legally unlimited.	The Bharatiya frame: law is Ṛta/Dharma; the king is the instrument, not the author; even the Arthashastra's "supreme" source (Rājaśāsana) operates within Dharma; and Seema Singh explicitly answers Austin — Ṛta "is the command of the Supreme Consciousness, the Purusha," so that "in case of conflict between man-made law and Cosmic/Natural Law, the Cosmic Law must prevail."
Hans Kelsen (pure theory) — Unit 6 preview	A legal order's validity rests on a presupposed **Grundnorm**.	Seema Singh himself uses the term: cosmic laws "act as the ultimate standard, or **Grundnorm**, against which all other laws are measured" — Ṛta is the Indian Grundnorm; and unlike Kelsen's empty presupposition, it carries substantive content (truth, order, justice, duty).
Hohfeld (jural correlatives) — Units 5-6	Rights and duties are correlative, equal halves of one relation.	The Kartavya-Adhikar model is "totally opposite to the modern day right-duty corollary": rights are **consequences** of fulfilled duties, not the other half of a symmetric relation (Seema Singh, citing Paranjape).

GROUP C — Modern law: where these principles live today

Modern principle / authority	Ancient counterpart (Unit 2)	Unit-2 relevance
Constitution as Grundnorm; Art 13; Preamble's "sovereign, justice, liberty, equality, fraternity"	Ṛta as Grundnorm; Rājadharma as the ancient "constitution" (Sudame); Ramarajya's Dharma-based order	"The aims and objectives enshrined in the Preamble reflect our collective responsibility; this is the true essence of 'We, the People of India'" (Seema Singh) — the Kartavya reading of the Preamble.
Supreme Court's motto "Yato Dharmasya Tato Jayah"; powers under **Arts 32, 136, 142**	Ṛta as ultimate standard; king's daily court; "the powers granted under Articles 32, 136 and 142 are intended to uphold it"	Direct textual link in the DU material — the judiciary as instrument of Dharma (Seema Singh).

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Modern principle / authority	Ancient counterpart (Unit 2)	Unit-2 relevance
Articles 51A (Fundamental Duties) vs **Kartavyam**	Prajādharma; indriyanigraha, daya, danam; moksha as the path	"While Fundamental Duties represent specific obligations, **Kartavyam transcends them**, embodying a more profound, cosmic and indeed divine sense of purpose" — ready-made conclusion for any 20-marker.
Rule of law; due process; natural justice (Maneka Gandhi, ADM Jabalpur line — fully briefed in the Unit-1 notes §05, Case 10)	King under Dharma; invalid royal orders; "Be you ever so high, the law is above you" (Dhyani's post-Emergency summary); the king's judicial code (Katyayana, Narada)	The Indian answer to Dicey is older than Dicey: the ancient guarantees — public trial, bench of judges, no private hearing, no punishment without proof — are the substantive rule of law.
PIL / protective jurisdiction (S.P. Gupta, AIR 1982 SC 149; Art 32/226 widening — briefed Unit 1)	Kautilya's **suo moto** jurisdiction: the dharmastha may act for temples, Brahmins, ascetics, women, minors, the elderly, the sick, orphans — and must not dismiss for deśacchala/kālacchala/bhogacchala	"The earliest ancestor of protective standing for the vulnerable" — a striking original point for full marks.
Anti-corruption law; Lokpal; public accountability	Kautilya's **thirteen "anti-social elements"** (corrupt judges first), audits, penalties up to 20 times the loss, rewards for honest officers (4.4, 4.9; Book 2 ch. 7)	"The Arthashastra advocates for rigorous policies with respect to auditing, severe penalty for fraud and embezzlement, and the need for an optimum system of checks and balance still pertinent today."
Contract Act 1872 (capacity, fraud, void contracts, s.56 force majeure, suretyship, unjust enrichment), **Consumer Protection**, **MRTP/ Competition law**	Kautilya's Book 3 (validity, competence, fraud, secrecy; rescission & restitution; suretyship; fiduciary duty; force majeure; price control, anti-cartel, false weights, adulteration)	"One of the earliest and most systematic legal frameworks governing commerce, contracts and financial responsibility in the ancient world."
See 191/193 IPC; Evidence Act (perjury; burden of proof); **"innocent until proved guilty"**	Conclusive proof before sentencing; witness evidence primary; circumstances in absence of witnesses; moderate perjury fines (24/12 paṇas) to protect the institution of witnesses	"This doctrine [innocent until proved guilty] is followed in Indian jurisprudence... is relevant in today's time too."
Arbitration; company law (legal personality of associations); Lok Adalats	Śreṇis as legal entities with internal dispute resolution; "their verdicts could not be questioned or challenged in royal courts"	Guild autonomy = institutional arbitration; "early corporate bodies with legal standing."
Victim compensation; restorative justice; probation	King required to **compensate the victim if the crime was not solved**; rehabilitation of minor offenders; the dog's sentence	"Arthashastra's restorative justice model... resonates with contemporary approaches in criminal justice that seek alternatives to punitive justice alone."
Welfare state; Art 38; DPSP; **Gram Nyayalaya/Mediation Act 2023** (Unit 1/4 links)	Praja-sukham as the measure of governance (Arthashastra 1.19.34); Ramarajya as "the welfare state's metaphor"; sarvajana hita	Ramarajya "consequently emerged as a well-established metaphor for the welfare state... resonating with modern notions of constitutional morality."
A.S. Narayana Deekshitulu (dharma definition — full brief in Unit-1 notes, Case 1); **Gujarat Urja Vikas Nigam v. Essar Power** (Mīmāṃsā — Unit-1, Case 4)	Dharma as "that which sustains... regulates the mutual obligations of individual and society"; Mīmāṃsā's interpretive axioms	Proof that this jurisprudence is **living**: the Supreme Court defines dharma from Madhvācārya and interprets statutes by Jaimini's axioms.

Answer-builder for "modern-day relevance": four movements prove the ancient theory is alive — (1) **constitutional**: Preamble's collective responsibility; Fundamental Duties as the statutory echo of Kartavya; Arts 32/136/142 and the SC motto as the institutionalisation of Ṛta; (2) **institutional**: whether it is Kautilya's suo-moto jurisdiction → PIL, his śreṇis → arbitration and company law, his administrative code → regulatory tribunals (kantakaśodhana's modern career); (3) **doctrinal**: the Dharma–Nyāya–Nīti triad → constitutional morality, rule of law, policy-making; (4) **criminal-justice**: restorative/reformative punishment, victim compensation, proportionality (ati/sama/nyūna daṇḍa). Always close with the reading's verdict: relevance "has not increased but has remained the same."

DU LL.B. EXAMINATION ARCHIVE · PAPER LB-106

Previous Year & Syllabus-Pattern Questions — Unit 02: Evolution of Bharatiya Jurisprudence – II

Q.01 20 marks · 900 words

The concept of Ṛta and Kartavya is the foundational jurisprudence of ancient India. " Discuss.

- **Refer website for detailed notes —** makelaweasy.in

Q.02 20 marks · 950 words
Explain Kautilya's concept of the State and Law as expounded in the Arthashastra, and assess its relevance in the contemporary world.

Q.03 20 marks · 950 words
Trace the origin of the State and the concept of law in the Mahabharata period with reference to the Śāntiparva's two theories of Rājyotpatti.

Q.04 20 marks · 950 words
Elucidate the idea of the State and the Law in Ramarajya as depicted in the Valmiki Ramayana, and show how it answers both Plato and the Divine Right tradition.

Q.05 20 marks · 900 words
Compare the Bharatiya concept of the origin of the State (Mahabharata & Ramayana) with the Western Social Contract theory.

Q.06 15 marks
Examine Kautilya's courts and procedure with reference to Dharmasthiya, Kaṇṭakaśodhana and the law of evidence, and show how they reflect a dharma-based legal order.

Q.07 15 marks
Critically examine the Divine Origin Theory of the State in the Mahabharata. Is it a theory of divine right or of divine duty?

Q.08 15 marks
Evaluate the relevance of the ancient Bharatiya jurisprudence of the State (Ṛta, Dharma-Samvida and Rāmarājya) for the modern Indian legal system.

by Ankur R. Upadhyay

LAW CRUX · PAPER LB-106 · UNIT 03 René David & J.E.C. Brierley · Ila Sudame (Shaastra of Law) · N.R. Madhava Menon · 9 Authorities

Major Legal Systems of the World & Indian Legal Methods

Common Law Family, Romano-Germanic Civil Law Family, Hybrid/Mixed Systems, Islamic & Socialist Systems, Ancient Indian Legal System, Tantrayukti, Pramāṇa & Nyāya Syllogism, and N.R. Madhava Menon on India's Legal System

PART 01

Conceptual Framework — How to Think About "Legal Systems"

1.1 The starting proposition

> *"There would appear to be three at least which occupy an uncontested place of prominence: the Romano-Germanic family, the Common law family and the family of Socialist law. These three groups, whatever their value and extension throughout the world, do not however take into account all contemporary legal phenomena. There are other systems, situated outside these three traditions or sharing only part of their conception of things, which prevail in a large number of contemporary societies."*
> — David & Brierley (opening)

Note that the extract begins with the **West's own map** — three principal families — and then immediately destabilises it: three families "do not take into account all contemporary legal phenomena." The whole reading is a controlled argument against a "naive sense of superiority" (its own words) that expects every other system to disappear.

1.2 The two questions a comparative asks of any legal system

Question 1 — What is law?

Western/positivist answer (the reading's paraphrase): "law is... the body of rules that are really observed, the application of which is entrusted to the courts"; or in the sociological version, "only those rules which are really observed as a matter of practice." **The ideal-law answer**: "law may also be seen as a model of ideal behaviour, one not to be confused with the actual rules by which individuals act which courts apply" — the pre-nineteenth-century European university tradition "taught, almost exclusively, an ideal law constructed on the basis of Roman law." Muslim, Jewish and Hindu communities take the second view for their own law; Far Eastern societies take a third view — **the very value of law is questioned**.

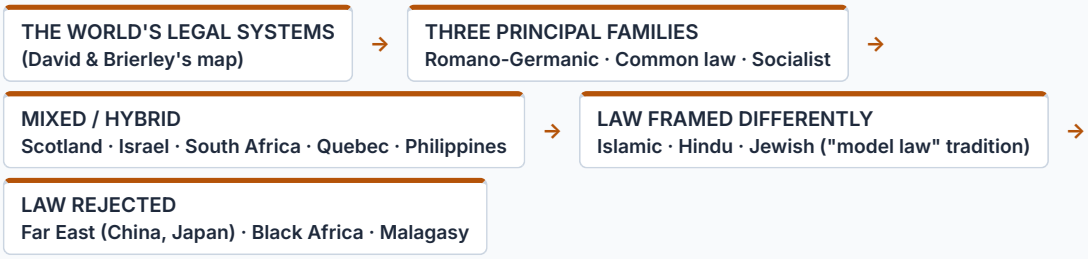
Question 2 — What is law's place in society?

In the West (and, with qualifications, in Islamic and Hindu communities) "law is held to be a necessary part of, indeed a basis for, society. Good social order implies the primacy of law: men must live according to law and, where necessary, be prepared to fight for the supremacy of law; administrative authorities, no less than any other part of society, must act legally, courts must ensure that law is respected. **Law, a mirror of justice, is in this conception superior even to equity itself; outside the law, there can only be anarchy, or arbitrariness, chaos or the rule of force. Law is therefore venerated, the courts are temples of justice, the judges its oracles.**" — In the **Far East**, the opposite: "for the Chinese, **law is an instrument of arbitrary action** rather than the symbol of Justice; it is a factor contributing to social disorder rather than to social order."

1.3 The two postulates of non-Western societies

> *"In non-western societies the governing social principles to which reference is made are of two types. **On the one hand law is fully recognised as being of great value but the law itself is framed in a different concept than it is in the West; on the other, the very notion of law is rejected,** and social relations are governed by other extra-legal means. The first view is that of **Muslim and Hindu societies**, while the latter is that adopted in countries of the **Far East and large parts of Africa and Malagasy**."*
> — David & Brierley

This single distinction is the **spine of sub-topics (a)–(d)** and the most quotable line of the reading: it divides the non-Western world into *law framed differently* (Islamic/Hindu) and *law rejected in favour of extra-legal ordering* (Far East, Black Africa, Malagasy). Learn it verbatim.



1.4 Reception, colonisation and the survival of the old

- **Two routes of expansion** — identical for both Western families: "colonization or reception." Colonisation annexed territories outright; **voluntary "reception"** occurred in countries not colonised but driven by "the need for modernization, or the desire to westernize," leading to "the penetration of European ideas."
- **Reception does not erase.** European laws were often "received" even by countries "which possessed their own civilization, had their own ways of thinking and acting and their own indigenous institutions, all of which antedate such reception." Sometimes "reception has left some of these original institutions in place"; nowhere is this clearer than in **Muslim countries**, where reception was "only partial, leaving some legal relations subject to the principles of the traditional, local law."
- **The application differs.** "The old ways of thinking and acting peculiar to these countries may also mean that the application of the new has been quite different from what it is in Europe" — critical for the Far East; and for Africa and America one must ask whether geography, population distribution and local conditions "have not led to the development of laws substantially different from their European models."
- **India's own case (per David):** the Common law in India was "only partially received"; "attention must be given to its transformation or adoption by reason of its co-existence with the tradition of previous civilizations." This is the sentence that connects David to Menon and Sudame.
- **Cross-check (Menon):** "the legal system we now have is largely the gift of the British rulers... the system is still alien to the majority of Indians whose legal culture is more indigenous and whose contact with the formal legal system (the imported British model) is marginal if not altogether non-existent." The entire Unit 3 is an argument about the meaning of that fact.

Connecting thread with Units 1–2 (same casebook): Parasain's plea to "relocate the Indian mind in Indian thought"; Dhyani's demonstration that the ancient order was "a government of laws and not of men"; Sudame's own challenge that legal education in India is "broadly based upon the Anglo-Saxon law" whose foundations, "born out of their indigenous customs... do not find a natural blending with the Indian societal fabric." Unit 3 gives you the **world map** on which to locate that argument — and the ancient system is one of the "other systems" David & Brierley refuse to dismiss.

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PART 02

(a) Common Law Legal System

2.1 Definition and composition of the family

> *"A second family is that of the Common law, including the law of England and those laws modelled on English law. The Common Law, altogether different in its characteristics from the Romano-Germanic family, was formed primarily by judges who had to resolve specific disputes. Today it still bears striking traces of its origins."*
> — David & Brierley

Membership: England and Ireland (Europe), and the extra-European common law world — **India, the United States, Canada**, and the many states modelled on English law. The family is defined **not by geography but by genealogy**: membership = descent from the English law. The reading is emphatic that the family's peculiarities are **originary** — "traces of its origins" still mark it today.

Three origin-trait(s) that explain everything

1. **Judge-made.** "Formed primarily by judges who had to resolve specific disputes" — the law was built *case by case*, out of adjudication, not out of doctrine.
2. **Dispute-specific rules.** "The Common law legal rule is one which seeks to provide the solution to a trial rather than to formulate a general rule of conduct for the future. It is then **much less abstract** than the characteristic legal rule of the Romano-Germanic family."
3. **Procedure-first.** "Matters relating to the administration of justice, procedure, evidence and execution of judgments have, for Common law lawyers, an **importance equal, or even superior, to substantive legal rules** because, historically, their immediate pre-occupation has been to re-establish peace rather than articulate a moral basis for the social order."

2.2 The link with royal power — Common law as a public law

> *"The origins of the Common law are linked to **royal power**. It was developed as a system in those cases where the peace of the English kingdom was threatened, or when some other important consideration required, or justified, the intervention of royal power. It seems, essentially, to be a **public law**, for contestations between private individuals did not fall within the purview of the Common law courts save to the extent that they involved the interest of the crown or kingdom."*
> — David & Brierley

ROYAL POWER → KING'S PEACE
the crown intervenes where the kingdom's peace is threatened

→ **COURTS OF THE KING decide those matters**
private disputes enter only when the crown's interest is involved

→ **PROCEDURE IS THE HEART OF THE SYSTEM**
writs, forms of action, evidence, execution — "re-establish peace", not articulate morality →

A PUBLIC LAW ISSUING FROM PROCEDURE
the reading's own summary of the Common law's genealogy

Why this matters for the exam: this is why the Common law rule is concrete (it answers *this* trial) and why its lawyers care about procedure before substance; and it is why the family is "altogether different" from the Romano-Germanic — **in the Common law, Romanist learning "founded on the jus civile played only a very minor role."** "The divisions of the Common law, its concepts and vocabulary, and the methods of the Common law lawyer, are entirely different from those of the Romano-Germanic family."

2.3 Expansion of the family — and its fragmentation

The two engines — colonisation and reception

"As with the Romano-Germanic family, so too the Common law has experienced a considerable expansion throughout the world — and for the same reasons: colonization or reception. The observations made with respect to the Romano-Germanic family apply with equal value."

Europe v. outside Europe — a crucial division

"A distinction between the Common law in Europe (England and Ireland) and that outside Europe must be made. In certain extra-European countries, the Common law may have been only partially received — as, for example, in certain Muslim countries **or India** — and where it was received, attention must be given to its transformation or adoption by reason of its co-existence with the tradition of previous civilizations."

The American example — autonomy within the family

"A different environment has, in any event, created differences between the Common law of the countries where it originated and that of those into which it was imported. This observation is particularly true with respect to the Common law family because it groups some countries such as the **United States and Canada** where a civilization different in many respects from that of England has developed. **The laws of these countries enjoy a largely autonomous place within the family.**"

Three lessons for Indian answers: (1) India is a case of **partial reception** + **co-existence** with previous civilisations — exactly the framework Menon uses for the "alien system" critique; (2) a legal family is not a monolith — the US/Canada enjoy **autonomous** places even inside it; (3) the same must be asked of India: has a different environment created an Indian common law "substantially different from its English model"?

2.4 One-view comparison — Common law v. Romano-Germanic (prepare this table for any "distinguish" question)

Point	Common Law family	Romano-Germanic (Civil Law) family
Who made it	"Formed primarily by judges who had to resolve specific disputes"; judge-made, case by case	Built by **legal scholars** of the universities "absorbed by... enunciating the 'doctrine'"
The legal rule	"Seeks to provide the solution to a trial rather than to formulate a general rule of conduct for the future" — **much less abstract**	Rules "conceived as rules of conduct intimately linked to ideas of justice and morality" — general and abstract
Priority ranking	Procedure, evidence, execution of judgments — "equal, or even superior," to substantive rules	Doctrine first; administration and practical application "are the responsibility of the administration and legal practitioners"

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Point	Common Law family	Romano-Germanic (Civil Law) family
Historical character	Essentially **public law**, "a public law issuing from procedure," linked to royal power; private disputes only via crown interest	Essentially **private law** — "a means of regulating the private relationships between individual citizens"; other branches "developed later, but less perfectly"
Intellectual parentage	Romanist learning "played only a very minor role"; divisions, concepts, vocabulary, methods "entirely different"	Built "on the basis of Roman *jus civile*"; "the civil law... still remains the main branch of legal science"
Modern form	Case-law tradition; no code-based system	Since the nineteenth century, "special importance to enacted legislation in the form of **codes**"

Beware one over-simplification: the reading never says code-based systems are "the same" as civil law systems, nor that case-law countries have no statutes — it contrasts **origins, rules and methods**. And it immediately adds (next section) that the two families have "tended, particularly in recent years, to draw closer together."

PART 03

(b) Civil Law Legal System — the Romano-Germanic Family

3.1 Definition, membership and the scholars' science

> *"A first family may be called the **Romano-Germanic family**. This group includes those countries in which legal science has developed on the basis of **Roman jus civile**. Here the rules of law are conceived as rules of conduct intimately linked to ideas of **justice and morality**. To ascertain and formulate these rules falls principally to **legal scholars** who, absorbed by this task of enunciating the 'doctrine' on an aspect of the law, are somewhat less interested in its actual administration and practical application. These matters are the responsibility of the administration and legal practitioners."*
> — David & Brierley

ROMAN JUS CIVILE
the Justinian compilations (A.D. 483–565) → EUROPEAN UNIVERSITIES (from 12th c.)
Latin and Germanic schools together — hence "Romano-Germanic" →
LEGAL SCIENCE / "DOCTRINE"
scholars formulate the rules; administration & practitioners execute → GENERAL RULES OF CONDUCT
linked to justice and morality; the model for all branches →
CODES (since the 19th c.)
enacted legislation as the family's distinctive modern form

Membership: the countries "in which legal science has developed on the basis of Roman jus civile" — most of continental Europe, and (by colonisation or reception) vast territories across Latin America, parts of Africa and Asia. The name itself "is selected to acknowledge the **joint effort** of the universities of both Latin and Germanic countries."

3.2 Four distinctive features (the exam checklist)

1. Rules of conduct, not trial-solutions
The legal rule is a **general rule of conduct** — "intimately linked to ideas of justice and morality." Contrast the Common law's rule which "seeks to provide the solution to a trial." The civil-law judge's reasoning runs from the general rule to the case; the common lawyer's from case to rule. (The reading's word for the civil-law rule: much more **abstract**.)

2. Doctrine leads; practice follows
"To ascertain and formulate these rules falls principally to legal scholars... absorbed by this task of enunciating the 'doctrine'." Application is "the responsibility of the administration and legal practitioners" — a division of labour unknown to the Common law, where the judges themselves made the law.

3. Private law first
"The law has evolved, primarily for historical reasons, as an essentially **private law**, as a means of regulating the private relationships between individual citizens; other branches of law were developed later, but less perfectly, according to the principles of the 'civil law' which today still remains the main branch of legal science." (Compare Common law's public-law origin; the two families are mirror-images.)

4. Codes since the nineteenth century

"Since the nineteenth century, a distinctive feature of the family has been the fact that its various member countries have attached special importance to enacted legislation in the form of **'codes'**." The code is the scholar's science made statute — the concrete link between university doctrine and state law.

3.3 Reception in the non-European world — the three scenarios

"Through colonization by European nations, the Romano-Germanic family has conquered vast territories where the legal systems either belong or are related to this family. The phenomenon of voluntary 'reception' has produced the same result in other countries which were not colonized, but where the need for modernization, or the desire to westernize, has led to the penetration of European ideas." **But outside Europe the laws, "although retaining membership in the Romano-Germanic family, nonetheless have their own characteristics which, from a sociological point of view, make it necessary to place them in distinct groups."**

Reception scenario	What the reading says	Example / lesson
1. Reception into an old civilisation	European laws were "received" even though the country "possessed its own civilization, had its own ways of thinking and acting and its own indigenous institutions, all of which antedate such reception."	Muslim countries — reception "only partial, leaving some legal relations subject to the principles of the traditional, local law."
2. Reception into a rich ancient culture (Far East)	"The old ways of thinking and acting peculiar to these countries may also mean that the application of the new has been quite different from what it is in Europe."	Japan: codes on the European model exist — but "the population makes little use of them" (see §05).
3. Reception into different geography (Africa & America)	"It will also be necessary to ask whether their geographical conditions and populations' distribution, creating conditions entirely different from those in Europe, have not led to the development of laws substantially different from their European models."	Black Africa & Malagasy — Western law is "hardly more than a veneer" (see §05).

Analytical point (often the examiner's hidden demand): David & Brierley are saying that **membership of a legal family is a formal genealogical fact, but the sociology of a legal system is local**. A country can be formally Romano-Germanic and sociologically quite different — the very situation Menon describes for formal-English-law India.

3.4 Test yourself — the four mini-answers

1. **Why "Romano-Germanic"?** Because the family was built by the joint scholarly effort of the universities of both Latin and Germanic countries from the twelfth century, on the basis of Justinian's compilations.
2. **Why is doctrine central?** Because ascertaining and formulating the rules "falls principally to legal scholars" — the code is the product of a science, not of litigation.
3. **Why is civil law "private law" first?** For "primarily historical reasons" it evolved as regulation of private relationships; public branches came later "but less perfectly."
4. **Why codes?** Since the nineteenth century member countries "attached special importance to enacted legislation in the form of codes" — the systematised, accessible, general form of the scholar's law.

PART 04

(c) Hybrid Legal Systems — the Mixed Systems and the Convergence of the West

4.1 The hybrid idea

> *"The inclination to speak of a family of western law is all the stronger when one considers that* ***the laws of some states cannot be annexed to either family, because they embody both Romano-Germanic and Common law elements.*** *The laws of* ***Scotland, Israel, the Union of South Africa, the Province of Quebec and the Philippines*** *would fall into this group."*
> — David & Brierley

Definition for the exam: a **hybrid (or mixed) legal system** is one which "cannot be annexed to either family" because it "embodies both Romano-Germanic and Common law elements." Hybridity is thus not a third family but a **compositional fact**: the system combines civil-law (codified, doctrinal, Romanist) and common-law (judge-made, procedural, English) elements within one legal order.

State	Why it is hybrid (as the reading's category suggests)	In one line
Scotland	(Grouped here by David & Brierley as embodying both elements: a civilian base under strong English influence since the Union, in a common-law state.)	Civilian doctrine + English influence — inside a UK framework

State	Why it is hybrid (as the reading's category suggests)	In one line
Israel	Ottoman/continental foundations overlaid by English mandatory law — plus its religious-law tradition (see §05).	Mixed Western + religious layers
Union of South Africa	Roman-Dutch civilian base under substantial English common-law influence; "laws… enjoy a largely autonomous place within the family."	Roman-Dutch + English
Province of Quebec	Civil law (French tradition) inside a common-law federation (Canada) — "a civilization different in many respects from that of England has developed."	Civil law island in common-law Canada
Philippines	Romano-Germanic-based codes received through Spanish rule, operating with American common-law institutions.	Spanish codes + American case-law

Tip: do not invent detail the reading does not give. The exam-marking core of this table is the **list of five states** and the **definition** — both verbatim from the reading. The "in one line" column condenses what the reading itself implies (mixed elements).

4.2 The convergence — "one great family of western law"

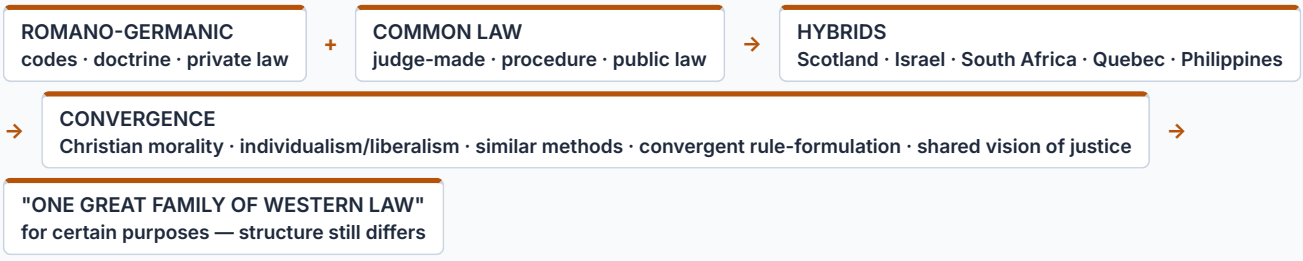
> *"Over the centuries there have been numerous contacts between countries of the Romano-Germanic family and those of the Common law, and **the two families have tended, particularly in recent years, to draw closer together.** In both, the law has undergone the influence of **Christian morality** and, since the Renaissance, **philosophical teachings have given prominence to individualism, liberalism and personal rights.** Henceforth, at least for certain purposes, this reconciliation enables us to speak of **one great family of western law.**"*
> — David & Brierley

The five forces of convergence

1. **Contacts** between the two families' countries over the centuries — "numerous."
2. **Christian morality** — a shared moral substrate in both.
3. **Renaissance philosophy** — "individualism, liberalism and personal rights" gained prominence in both.
4. **Method, not structure** — "the Common law retains, to be sure, its own particular structure, very different from that of the Romano-Germanic system, but *the methods employed in each are not wholly dissimilar*."
5. **Convergent rule-formation** — "Above all, **the formulation of the legal rule tends more and more to be conceived in Common law countries as it is in the countries of the Romano-Germanic family**" (i.e., statutory-general formulation grows in the common-law world).

And its limit (the reading's discipline)

- Convergence is "**at least for certain purposes**" — not the dissolution of the families.
- "The Common law retains, to be sure, **its own particular structure, very different** from that of the Romano-Germanic system."
- What converges is **substance and method**: "As to the substance of the law, a **shared vision of justice** has often produced very similar answers to common problems in both sets of countries."
- The word "**western**" is doing quiet work: the "great family" is a Western coalition; what the hybrid states and the non-Western systems show is that the map does not end here.



4.3 The second hybridity — and the socialist inversion

The reading notes a second grouping from "another point of view": "the Romano-Germanic and Common law families are included in the same deliberately ignominious term of **'capitalist' or 'bourgeois laws'** by jurists of the socialist camp, made up of the **Soviet Union** and those countries that have used its law as a model or which, like the U.S.S.R., profess an adherence to **Marxist-Leninist teachings**."

Use this in any "hybrid" or "classification" answer as the closing move: hybridity is not only compositional (both families' elements in one system) but also **perspectival** — the socialist jurist sees the two Western families as one object (bourgeois law). Classification itself

depends on the classifier's standpoint. This sentence is also the doorway into Section 05: the Socialist family is the third principal family, and it is defined precisely by its opposition to the other two.

PART 05

(d) Islamic and Socialist Legal Systems — and the Systems that Reject Law

5.1 The spectrum: three answers to "what is law?"

WEST
law = positive rules enforced by courts; law venerated, courts = temples of justice, judges = its oracles (equivalence of justice, positive law & social manners) →

ISLAM · HINDU (· JEWISH)
law = ideal "model" norm; local custom = fact; sovereign decrees = administrative measures →

FAR EAST · BLACK AFRICA · MALAGASY
the very notion of law is rejected; harmony & reconciliation, not rights & courts

This is the reading's own spectrum — the "two postulates" of §01.3 (law framed differently / law rejected) rendered as three positions, with the West's position implicitly third for comparison.

5.2 Islamic law (with Hindu and Jewish law) — the "model law" tradition

Why a Western jurist can understand it

"The attitude of the Muslim, Hindu and Jewish communities about the law is easily understood by a western jurist, even though the definition of law itself in western jurisprudence has always given rise to difficulties and no single definition has so far elicited any general acceptance. One of the fundamental reasons for this lack of agreement is the debate between the proponents and adversaries of the notion of 'natural law'. **But it is because the idea of 'natural law' exists that we are able to understand the starting premise of these other systems.**"

The two-faced debate (and where each side stands)

> **Positivist face:** "law is held by some to be no more than the body of rules that are really observed, the application of which is entrusted to the courts. This is the view today in our western universities in which our national laws are taught."

> **Ideal-law face:** "law may also be seen as a **model of ideal behaviour**, one not to be confused with the actual rules by which individuals act which courts apply. European universities, in their pre-nineteenth-century tradition, paid very little attention to national or customary laws of the time and taught, almost exclusively, an ideal law constructed on the basis of Roman law."

> *"In Muslim countries, in the same way, more attention is given to the model law linked to the Islamic religion than to local custom (treated as a phenomenon of fact) or the laws and decrees of the sovereign (treated as merely administrative measures) and neither of these is thought to possess the full dignity of law. The same can be said of Jewish law and, in a very different context, Hindu law."*
> — David & Brierley

The consequences (learn these five)

1. **Ideal law ≠ observed law.** "Law, then, whether linked to a religion or corresponding to a particular way of thinking about the social order, is not in either case always necessarily observed by private persons or applied by courts. It may nonetheless exert considerable influence on both" — "righteous men may endeavour to rule their own lives according to what they consider to be truly the law."
2. **The Western equivalence does not hold.** "In western societies there is a large degree of equivalence between justice, positive law and social manners. The same cannot however be said of non-western societies where 'rules of law' (in the western sense) remain **unorganized, fragmentary and unstable**, and where there is generally feeling that **true law is to be found elsewhere than in legislation, custom or judicial decisions**."
3. **And yet they are legal systems.** "Without taking sides in the debate between positivists and advocates of natural law, **Muslim and Hindu law, therefore, must be included within the major contemporary legal systems**."
4. **Jewish law is excluded — on reach, not worth.** "Jewish law, despite its historical and philosophical interest, must be omitted because **its sphere of influence is incomparably less** than that of the other two."
5. **Partial reception confirms the distinction.** In Muslim countries the reception of European law "has been only partial, leaving some legal relations subject to the principles of the traditional, local law" (§03.3) — the model law refused to yield entirely.

> **Connect to Unit-2 (same casebook):** this is the comparative-legal-systems face of the Ṛta/Dharma thesis — Hindu law's "true law found elsewhere than in legislation" is exactly Sudame's dharma (a command, not a statute), Seema Singh's Ṛta (the Grundnorm behind all enacted law), and Kautilya's hierarchy (Dharma > Vyavahāra > Charitra > Rājaśāsana). You can use this reading to

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answer the examiner's favourite follow-up: "is Hindu law a legal system?" — David & Brierley: **yes, it must be included among the major contemporary legal systems.**

5.3 The Socialist legal family

Its status and ancestry

> *"The Socialist legal system makes up a third family, distinct from the first two. To date the members of the socialist camp are those countries which formerly belonged to the Romano-Germanic family, and **they have preserved some of the characteristics of Romano-Germanic law**. Thus, the legal rule is still conceived in the form of a general rule of conduct; and the divisions of law and legal terminology have also remained, to a very large extent, the product of the legal science constructed on the basis of the Roman law by European universities."*
> — David & Brierley

The family is therefore **derived but detached**: "apart from points of similarity, there do exist such differences that it seems proper to consider the socialist laws as detached from the Romano-Germanic family — the socialist jurist most decidedly do — and as constituting a distinct legal family, at least at the present time."

Six marks of originality

1. **Revolutionary character** — "in opposition to the somewhat static character of Romano-Germanic laws, the proclaimed ambition of socialist jurists is to **overturn society** and create the conditions of a new social order in which **the very concepts of state and law will disappear**."
2. **Sole source: the legislature** — "The sole source of Socialist rules of law resides therefore within the revolutionary work of the legislature, which expresses popular will, **narrowly guided by the Communist Party**."
3. **Law subordinate to economics** — "legal science as such is not principally counted upon to create the new order: law according to Marxism-Leninism — a scientific truth — is **strictly subordinate to the task of creating a new economic structure**."
4. **Collectivised production** — "all means of production have been collectivised. As a result the field of possible private law relationships between citizens is **extraordinarily limited** compared to the pre-Marxist period."
5. **Private law loses pre-eminence** — "**all law has now become public law**." (The mirror-image of the Romano-Germanic family's private-law-first history.)
6. **A narrower realm of law** — "This new concept removes from the very realm of law a whole series of rules which jurists of bourgeois countries would consider legal rules."

Its geography — three tiers

- **USSR** — "The family of Socialist laws originated in the Union of Soviet Socialist Republics where these ideas prevailed and a new law has developed since the **1917 Revolution**."
- **Socialist republics of Europe** — "in those of the first group a **greater persistence of characteristics properly Romano-Germanic** is detected."
- **Socialist republics of Asia** — "it is useful to enquire how these new concepts are reconciled in practice with the principles of **Far Eastern civilization** which governed such societies before the Socialist era" (the same question the Far East section poses of China's communism).

Exam note: two families have "the same" label from opposite directions — the socialist jurist uses the single contemptuous term **"capitalist" or "bourgeois laws"** for the two Western families together (§04.3). Always pair: (i) the socialist family is derived from the Romano-Germanic (general rules, divisions, terminology) and (ii) it is revolutionary and anti-private-law (all law = public law; state and law destined to disappear).

5.4 "Other systems" — the world beyond the three families

The claim of the three families' universality — and the answer

> *"The three families just described, each of which has numerous variants, are undoubtedly the three principal families of law existing in the contemporary world. Strictly speaking there is no law in the world today which has not drawn certain of its elements from one or other of these families. **Some even hold the view that all other systems, no more than survivors from the past, will ultimately disappear with the passing of time and the progress of civilization.**"*
>
> *"**This attitude however proceeds from a rather naive sense of superiority** and is really no more than an hypothesis, it does not acknowledge an observable reality in the modern world. All contemporary states have, it is true, taken over a number of western ideas either because it was necessary to preserve their independence or because it was useful in their internal development. It does not follow that the older ways of thinking which, not so very long ago, were widely accepted in these different societies have been totally abandoned. **Everyone will recognise the superiority of western***

> ***technology; opinions differ however on the superiority of western civilization taken as a whole.*** *The Muslim world, India, the Far East and Africa are far from having adhered to it without reservation. These countries remain very largely faithful to [their own philosophies]."*
> — David & Brierley

This is the reading's **moral centre** and the single best quotation for any "critically examine" question. Note the names in the list — **India** is among the civilisations "far from having adhered" to western civilisation "without reservation" — the hook on which Menon's and Sudame's readings hang.

The Far East — law put into question

"Here there is no question of studying an ideal law distant from rules laid down by legislators or simply followed in practice: **here the very value of law itself has traditionally been put into question.**"

- **The Chinese view:** "law is an instrument of arbitrary action rather than the symbol of Justice; it is a factor contributing to social disorder rather than to social order. The good citizen must not concern himself with law; he should live in a way which excludes any revindication of his rights or any recourse to the justice of courts. The conduct of individuals must, unfailingly, be animated by the search for harmony and peace through methods other than the law. Man's first concern should not be to respect the law. **Reconciliation is of greater value than justice; mediation must be used to remove conflicts rather than invoking law to resolve them.** Laws may exist to serve as a method of intimidation or as a model; but law is not made with a view to being really applied, as in the West. Scorn is reserved for those who aspire to regulate matters according to law..."
- **The traditional formula:** "Countries of the Far East have, traditionally, held the view that **law is only for barbarians**."
- **Modern continuity:** "The Chinese communist regime and the westernization of Japan have not fundamentally changed this conception rooted as it is in their ancient civilizations." **China**: "rejected the legal codes drawn up after the fall of imperial rule along western lines and, after some brief hesitation, then repudiated the Soviet method of building communism. The techniques finally adopted... have given up to the present time a **very narrow place to law**." **Japan**: "Codes on the European model have been instituted... but, generally speaking, the population makes little use of them; people abstain from using the courts and **the courts themselves encourage litigants to resort to reconciliation**; and new techniques have been developed for applying or removing the need of applying the law."

Black Africa and Malagasy — cohesion over law

"The preceding observations regarding the Far East apply as well to the black African countries and the Malagasy Republic (Madagascar). There too, in milieux in which **the community's cohesion prevails over any developed sense of individualism**; the principal objective is the **maintenance or restoration of harmony rather than respect for law**. The Western laws adopted in Africa are often hardly more than a **veneer**; the vast majority of the population still lives according to traditional ways which do not comprise what we in the West call law and without heed to what is very often nothing more than an artificially implanted body of rules."

5.5 Master table for sub-topic (d)

System	What law is	Key markers
Islamic law	A "model law linked to the Islamic religion" — ideal norm; custom = fact; sovereign decree = administrative measure	Partial reception of European law; relations remain under traditional local law; natural-law analogy makes it intelligible to Western jurists
Hindu law	Same model-law conception ("in a very different context"): true law "to be found elsewhere than in legislation, custom or judicial decisions"	Must be included among the major contemporary legal systems; law may not be observed or applied yet still governs the righteous
Jewish law	Model-law character, like Islamic	**Omitted** — sphere of influence "incomparably less"
Socialist law	Revolutionary tool of the legislature (guided by the Communist Party); subordinate to the economic task	All law = public law; production collectivised; state & law destined to disappear; USSR 1917; derived from Romano-Germanic but detached
Far East (China, Japan)	Not law — or at best intimidation/model; harmony and mediation over justice	"Law is only for barbarians"; codes unused; courts push reconciliation; communism/westernisation did not change the conception
Black Africa & Malagasy	Community cohesion; harmony as the objective	Western law "hardly more than a veneer"; population lives by traditional non-legal ways

PART 06

(e) Legal System in Ancient India — Dharmashaastra, the Constitutional Frame and the Courts

6.1 Why this reading, and what "shaastra" means

Legal education in India, Sudame opens, "is broadly based upon the **Anglo-Saxon law**. The foundations of western or Anglo-Saxon schools of jurisprudence are secure with the profundity of their philosophies. However, since they are born out of their indigenous customs; **these do not find a natural blending with the Indian societal fabric.**" The "unparalleled dynamism of heterogenous Indian societal foundations" produces the daily challenges of the profession — and prompts the need "to get back to our roots – our indigenous knowledge systems flowing from the **shaastras**."

Shaastra = science

"The word 'shaastra' needs to be recognised as being **synonymous with 'science' — an organised body of knowledge on a given subject.** It is generally used as a suffix to the name of a specialised area of knowledge." Legal Methods itself, "as a shaastra, is an organised body of knowledge on the subject of law" — hence **Dharmashaastra**, **Nyaayashaastra**, **Arthashaastra**, **Meemaamsa**, the shaastras of law.

Anyamatapariksha — the forgotten Indian practice

"In this modern world, in the context of what was our age-old traditional practice **anyamatapariksha** (examination of parallel contemporaneous doctrines/knowledge systems/theories/opinions etc.), our indigenous knowledge systems have become the 'anyamata' and its study has now become a **demand of globalization**." Indian scholars should complement foreign-knowledge research by "exploring the parallel knowledge systems relying and banking on its own intellectual heritage... and borrowing from such other rich systems by interfacing them with our own system" — for the **threefold purpose**: (i) to revive our own identity; (ii) to find novel and indigenous solutions to contemporary problems; (iii) to bring our uniqueness to the global village.

6.2 Understanding Dharma — laying "dharmoprudential" foundations

> *"Dharma is one of those Sanskrit words that defy all attempts at an exact rendering in English or any other tongue. That word has passed through several vicissitudes."*
> — Prof. P.V. Kane (as quoted by Sudame)

Purushārtha — the four ends

Right conduct (**dharma**), economic interests (**artha**), satisfaction of desires (**kāma**), liberation of spirit (**moksha**). The first three = **Trivarga**, meant for "the welfare and happiness of people"; this doctrine "sets humans apart from animals." **Dharma is superior to all other objects**; artha and kāma must always conform to dharma (law).

Dharma ≠ religion

"The precise import of dharma is not conveyed by the word 'religion' which is generally taken to denote a particular faith, dogma or doctrine, rites and rituals." "Dharma, in the case of Dharmashaastra, includes **everything that a person ought to do in life**... a **code of conduct**: it teaches both religious and secular matters."

Śrauta & Smārta

Dharma was divided into **śrauta** (based on the Vedas — rites and ceremonies from the Vedic Samhitas and Brahmanas, the "religious" aspect) and **smārta** (based on the Smritis — "the various classes and stages of life," from which "the basic code of conduct flows"). "In the context of law and legal methods, the term dharma is concerned and stays limited to the **smārta aspect** i.e. the law or code of conduct."

Two definitions you must quote

1. Madhvāchārya (Minister in the Vijayanagar Empire; commentary on Parāshara Smriti): "Dharma is that which **sustains and ensures the progress and welfare of all in this world and eternal bliss in the other world**." — "This definition of dharma was also adopted by the Supreme Court and was further briefly put as dharma is that '**which regulates the mutual obligations of individual and the society**'." [*A.S. Narayana Deekshitulu v. State of A.P.*, (1996) 9 SCC 548 — full brief in §09.]

2. Brihadaranyaka Upanishad (as quoted): "mere creation of kingship was not enough, **the most excellent dharma (law) — a power superior to that of the king, was created to enable the king to protect the people**... **Law is the king of kings; nothing is superior to law.**" — "Dharma is promulgated in the form of commands."

Origin: dharma "originated in the form of a solution to the eternal problems confronted by human race owing to the natural human instincts." Manusmriti (quoted through Rama Jois): "There is no act of man which is free from desire; whatever a man does is the result of impulse or desire" — and fulfilment of desires and wealth is appreciated "only when these are in consonance with the law or dharma." Oxford dictionary (as quoted): dharma = "truth or law that affects the whole universe."

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6.3 Indigenous sources of law — and their "recommendatory" character

The organisation of Sanskrit literature (the ladder of authority)

VEDIC SAMHITAS (Rig · Yajur · Sāma · Atharva) + BRAHMANAS (incl. early Upanishads) = ŚHRUTI →

SUTRAS — systematic formal treatises connected with the Vedas (not themselves Vedas) →

SIX VEDĀṄGAS — auxiliary disciplines; **KALPA** contains the KALPASUTRAS →

THREE KINDS OF KALPASUTRAS: Śrautasūtras (sacrifices) · Gṛhyasūtras (domestic ceremonies: upanayana, marriage) · **DHARMASŪTRAS** (politics, government, civil & criminal law)

The hierarchy of sources (learn the priority)

"The Vedas and Smritis along with customs and usage are considered to be the **primary source of dharma**." Then the rules of conflict:

1. **Vedas > Smritis:** "Amongst these, the Vedas are considered to be superior and are to prevail over the smritis in case of conflict."
2. **Equity/popular usage > conflicting Smritis:** "in cases of conflict between two smritis, the principles of **equity as determined by popular usages** are to have an overriding effect."
3. **No royal discretion:** "Thus, even in cases of conflicts between the sources of law, **the king was not given a discretionary power** but was required to apply the law as approved by custom and usage by people themselves."

The Supreme Court's caution (Abhiraj Kuer, AIR 1962 SC 351)

"The Supreme Court of India has dwelt upon the importance of these texts while recognising the **recommendatory nature of dharmasutras and grihyasutras**. It observed that while interpreting the books of morality, religion, law, etc., **a great deal of caution is required to be exercised**. The court also observed that the commentaries thereon are many-a-times mingled with statements of law but actually are intended to be **recommendatory statements regarding the mandatory laws**." [Full brief in §09.]

The Bombay High Court and Narada's rule of conflict (Dnyaneshwar B. Ganwat, 2010)

"The Full Bench preferred to accept the latter view... this approach was in consonance with what ancient Jurist **Narada** declared — **Dharmashastra Virodhe Tu Yuktiyukta Vidhe Smrita** — that is, **when the Dharmashaastra or law codes of equal authority conflict with one another, the one appearing to be reasonable, or more reasonable, is to be preferred and followed**. The views of modern Jurist **Seervai**, has also advocated a similar principle." — "It can be gathered how the judiciary has been taking conscious efforts to resort to indigenous sources of law for finding conformity in cases of conflict." [Full brief in §09.]

6.4 The sophistication of the ancient system — the frame

"The ancient Indian society had a highly evolved unique and sophisticated legal system. The study of this ancient system is important not just as a matter of history but to understand the intricacies of the Indian society, the circumstances that existed then, the nature of problems which were resolved, its stages of evolution, the levels that the judicial system has achieved in the past and the manner in which the problems were sought to be resolved. **After all, the impact of all this evolution is the present day's growth and development.**"

"The importance of the study of Dharmashastra lies in the fact that **the entire range of basic legal concepts of rights, duties, liabilities, powers, offences, punishments, constitutional, civil and criminal jurisprudence is embedded in it.** The jurisprudence that has evolved today and is being followed by sovereign states in the form of various enactments finds its roots in the different facets of **rajadharma** and **vyavahaaradharma**."

6.5 Classification of Dharma — Rājadharma and Vyavahāradharma

Rājadharma — the king's constitutional law

- "Rajadharma is the law laying down the **powers, duties and responsibilities of the king**. This is the basis of the modern-day **constitutional law**. It is supposed to be the fundamental law of the State, containing the principles upon which the government is founded, which provides for **division of sovereign powers** and specifies the powers of each of the division as also the manner in which the sovereign power is exercised."
- "**Rajadharma was the Constitution for all the States in the whole of India in the real sense of that expression.**"
- "It was the firm view of ancient Indian thinkers that **dharma (law) without Rajadharma for its enforcement (through instrumentality of the State) would only be an illusion.**"
- Subjects of Rajadharma: legislative and executive powers, administration of justice, duties of the king (State), protection of property, treasury/finance, freedom and liberty, equality, etc.

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Vyavahāradharma — the law of proceedings

- "The system of civil and criminal legal proceedings is known as vyavahaaradharma. The king was to decide cases in accordance with the vyavaharadharma. **The modern day civil and criminal laws have evolved from vyavahaaradharma.**"
- "Vyavahaara means a law-suit or a legal proceeding. It is defined as **proceedings in a court of law between two parties in which the violation of dharma is established by effort**."
- **Origin:** "When people were dharma abiding and truthful there existed neither hatred nor envy nor any legal disputes. **Practice of dharma having declined in mankind, law suits (vyavahaara) were invented** and the king was entrusted with the power to decide law-suits as he had the sanction of dharma to enforce obedience to, and to order punishment for disobedience of, dharma."

The 18 Vyavahārapadas — the ancient heads of litigation (quote at least ten)

"Earlier, eighteen topics of disputes or laws were identified and collectively known as **'vyavahaarapada'**": **1. payment of debts (runadaan)**; **2. deposits (nikshepa)**; **3. sale without ownership (aswamy vikraya)**; **4. joint undertakings/partnerships (sambhuya samuthana)**; **5. resumption of gift (dattasyanapakarma)**; **6. payment of wages (vetanadaana)**; **7. violation of convention of guilds and corporations (samvidvyatikrama)**; **8. duties of husband and wife (stripumdharma)**; **9. partition (vibhaaga)**; **10. sale and purchase (krayavirayanusaya)**; **11. betting and gambling (dyutasamahavaya)**; **12. dispute between master and servant (swamipala vivaada)**; **13. boundary dispute (simavivaada)**; **14. defamation (vakparushya)**; **15. assault (dandaparushya)**; **16. theft (steya)**; **17. offence by violence (saahasa)**; **18. adultery (strisangrahana)**.

The classification within the classification (a favourite examiner's probe): "Out of these, the first **fourteen topics are said to be arising out of wealth (arthasamutthaani)** and the last **four, out of violence (himsodbhavaani)**." Matters omitted from the eighteen titles or doubtful were categorised as **prakirnaka**.

Also note the procedural division: "Out of these eighteen topics of litigation, **thirteen were classified as civil disputes while five were categorised as crimes**" (§06.7).

The founding quotation (Rama Jois, as quoted)

> *"Dharma in the context of legal and constitutional history only means Vyavaharadharma and Rajadharma evolved by the society through ages which is **binding both on the king (the ruler) and the people (the ruled).**"*
> — Justice M. Rama Jois

Evolution in one line: "In the stateless society, people were acting in accordance with dharma and protected each other. It was a **duty-based society**. As time progressed and natural human instincts of desires and material wealth began to overwhelm the populace, the authority of king was created to protect the weak and punish the wrongdoers" — and at that point **Rajadharma and Vyavaharadharma came to be established**, "mark[ing] the commencement of India's legal and constitutional history."

6.6 Rule of law and separation of powers — the Parishad and the King

The Parishad and its exceptional competence — the ancient legislature

"The principal sources of law... were the shrutis, smritis, puranas, customs or usages. But in situations where the law was silent and required legislation, **the power to lay down new legal provisions was vested in an assembly of persons known as parishad**." The parishad consisted of **at least ten members**, competent in: (i) knowledge of one of the three Vedas; (ii) a logician; (iii) a Meemaamsaka; (iv) one who knows Niruktah (etymology); (v) one who recites the sacred law; (vi) **three men belonging to the first three orders** — a student-bachelor (Bramhachari), a householder (Grihastha), a hermit (Vanaprastha). "Further, in some exceptional cases, the power to decide **complicated questions of law by resolving conflicts** was also recognised in the parishad."

The King — the highest office under the law

"Rajadharma had given the king the highest position in the State. **But dharma or law was placed even above the king.** Therefore, **the king had no power to legislate.** Only in cases of absence of laws in the Shrutis, Smritis or customs, the king was empowered to decide according to his conscience." The king was entrusted with **dual prime responsibilities**: the highest executive (**shaasaka**) and the highest judiciary (**nyaayadhishah**). "Welfare of the people was to be the king's chief concern and their protection, his highest duty. Administration of justice was considered to be his **personal responsibility**."

The five fundamental duties of the king (quote as a list)

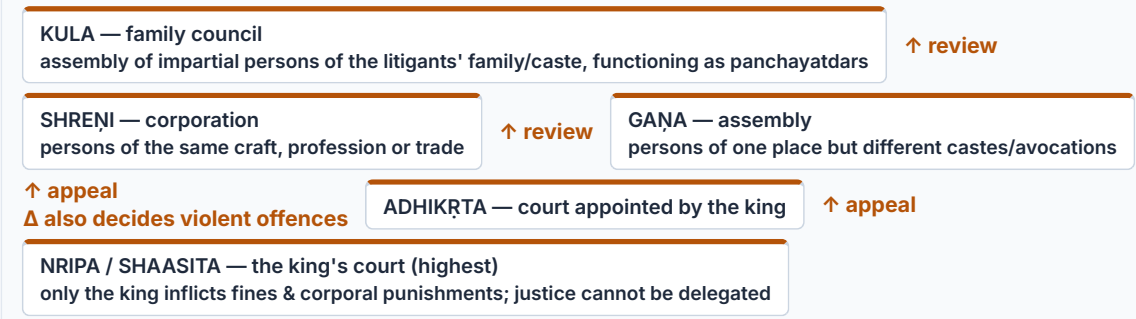
1. To **punish the wicked**;
2. To **honour and protect the good**;
3. To **enrich the treasury by just methods**;
4. To be **impartial towards litigants**; and

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5. **Protection of the country**.

The conclusion the reading draws: "This separation of powers between the parishad and the king ensured the existence of **rule of law**." Two modern doctrines in one breath: **rule of law** "flows from rajadharma which also made the king its subject," and **separation of powers** "was founded in rajadharma where the king had the power only to enforce the laws and not to legislate."

6.7 The five-tiered judicial system of ancient India



The People's Courts

"The first three courts from the bottom of the legal system were the **Kula**..., the **Shreni**... and the **Gana**... These three were known as the **'people's courts'** and had the jurisdiction to decide **all civil and criminal matters except those involving offences committed with violence**."

Why this design matters (quote it): "This is a very peculiar way of gradation of courts wherein the various categories of **impartial peers** had the original jurisdiction to decide matters. This kind of a gradation encouraged **cultural and professional diversity in courts** which is one of the major requisites of judicial appointments even today. This diversity ensured the correct understanding of prevalent social and professional situations for every matter."

Hierarchy, appeals and the apex

"These courts had inter-se appellate jurisdictions. **The Shreni could review the decision of Kula and the Gana had the power to review the decision of Shreni.** Superior to the Gana was the court of **Adhikrita** or the court appointed by the king... [which] had the power to decide cases relating to commission of **violent offences** also. The highest court in hierarchy was the court of **Nripa** or the king himself. This court was known as **Shaasita**. **Only the king had the authority to inflict fines and corporal punishments.** Administration of justice was a matter solely looked after by this court and **this function could not be delegated**. The king was vested with the power to hear appeals from the decisions of any authority including Kula, Shreni and Gana."

Article 136 and the Law Commission — the ancient system's modern echo

"**Article 136 of the Indian Constitution finds its roots in this provision**" (the king's power to hear appeals from any authority). The Law Commission of India (in its report on *"Delay and Arrears in Trial Courts"*) examined the indigenous judicial system and remarked: "With the progressing society, the panchayats and assemblies of brotherhood or of local respectables, however, did not cease functioning altogether because of their **useful role of settling minor disputes in rural areas through compromise** and that is why the **British retained them through necessary legislation**." (Cross-link: the same Law Commission passage supports the panchayat jurisprudence in the Unit-1 notes; and *Vytla Sitanna*, the Privy Council's Panchayat award case, is briefed there.)

Other courts — the classification

"Apart from these courts (known as **Pratishthita**) that were established in some village/town, there were **mobile courts (known as Apratishthita)** also. **Mudrita** were the courts that were appointed by the king and authorised to use the **royal seal**."

The last word of the Commission

"We have just noticed that the present judicial system is the result of a gradual process which has been going on incessantly, and that it is not the product of one day. Changes, modifications and amendments have been made both in the hierarchy of courts as well as in the procedures followed by them, as the society gradually became more and more developed."
— Law Commission (quoted via Kerala Solvent Extractions v. A. Unnikrishnan)

6.8 The judges — qualifications that enact independence

The Chief Justice of the king's court (Shaasita)

WELL VERSED IN ALL 18 TITLES OF LAW (Vyavahaarapada) + PROFICIENT IN LOGIC (Nyaaya) +
PROFICIENT IN INTERPRETATION (Meemaamsa) + MASTER OF THE SOURCES OF LAW (Vedas and Smritis) +
CAPACITY TO EXTRACT TRUTH BY APPLICATION OF LAW

The other judges (Sabhyas)

Qualified on these grounds: "**noble, honourable men of tried integrity**; **ability to administer justice**; **well versed in laws, rules of prudence**; **fearless, independent and impartial towards friends and foes**."

The reading's conclusion — quote it: "It can be gathered from the qualifications and requirements of a judiciary mentioned above that **the concept of independence of judiciary existed even then**." The court's functionaries: the king, whose duty was to pass final decrees; the Chief Justice, "who was required to give the final opinions"; and other judges or **sabhyas**, "entrusted with the duty to investigate each case on merits." All were appointed by the king himself.

6.9 The proceedings — the four parts, and the four kinds of decision

Dharmādhikaraṇa — the court hall

"The court hall was known as **Dharmadhikarana**. The king could appoint Judges or Sabhyas as the members of Courts of Justice. In the absence of the king, the **Chief Justice could preside** over the court." A singular detail — proof of the separation of functions: "while acting as a Judge, **the king was to be in a simple dress, without ornaments and with a pleasant demeanour**. This was to create **distinction between judicial and executive functions**."

The four sequential parts of a proceeding

1. **Purvapaksha** — case of the first party (**vaadin**);
2. **Uttara** — reply of the defendant (**prativaadin**);
3. **Kriya** — trial of the case;
4. **Nirnaya** — the judicial decision.

(The mirror of the modern structure: plaint → written statement → trial → judgment.)

The four types of judicial decision (remedies)

1. **Dharma** — where the wrongdoer admitted or confessed his guilt;
2. **Vyavahara** — after adducing evidence, where parties made conflicting statements;
3. **Charitra** — following the precedent of an earlier decision or a usage squarely applying;
4. **Rajashasana** — the king's judgment where there was no legal principle applicable or no evidence adduced.

"The guiding principles for application of mind in choosing one of the above ways of deciding a matter were laid, thereby **securing the system from the menace of arbitrariness**."

One-view map — the ancient system in a single frame

SOURCES
Vedas > Smritis > customs/usages; equity via popular usages; parishad legislates where silent →

DHARMA
Rājadharma (constitution; king under law) + Vyavahāradharma (18 padas; procedure) →

COURTS
Kula → Śreṇī → Gaṇa → Adhikṛta → Nripa/Shaasita; Pratishthita/Apratishthita/Mudrita →

PROCEEDING
Purvapaksha → Uttara → Kriya → Nirnaya; 13 civil + 5 criminal padas →

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DECISION
Dharma · Vyavahāra · Charitra · Rājaśāsana — arbitrariness excluded →

LEGACY
rule of law · separation of powers · independence of judiciary · Art 136 · panchayats

PART 07

(e, contd.) Indian Legal Methods — Tantrayukti, Prāmaṇa, Nyāya's Syllogism and Mīmāṃsā

7.1 The map of Indian legal methods (Sudame's own chart)

RESEARCH METHODOLOGY & SCIENTIFIC WRITING → TANTRAYUKTI (Arthashaastra) + APPRECIATION OF EVIDENCE → PRAMAṆA (Nyaayashaastra) +

LEGAL REASONING → ANUMAANA-PRAMAṆA (Nyaayashaastra) + INTERPRETATION OF STATUTES → MEEMAAMSA

The claim: each of the four "methods" subjects of modern legal education has an indigenous counterpart in the shaastras — and "the Indian systems of knowledge have not just comprehensively but exhaustively dealt with the subjects of law, logic and their interpretative techniques."

7.2 Tantrayukti — the Indic model of research methodology & scientific writing

What it is

"Tantrayukti... is a combination of two words: 'tantra' and 'yukti'. **'Tantra' means a scientific work** (root 'tan' = to compose, to write; tantra "holds the diffused elements or the expanse of a subject"). **'Yukti' connotes a device or a means** (root 'yuj' = to arrange). Tantrayukti can thus be said to literally mean '**the arrangement of a scientific work**'. These are the devices that need to be employed while composing or reading a scientific work. **It is not possible to compose or construe any scientific or organised work without these devices.**"

The thirty-two devices (yuktis)

subject (adhikarana), arrangement (vidhaana), union of words (yoga), category (padaartha), implication (hetvaartha), enunciation (uddesha), declaration (nirdesha), instruction (upadesha), specification (apadesha), extended application (atidesha), determination from a statement to be made (pradesha), analogy (upamaanam), presumption (arthaapattih), doubt (samshaya), connected argument (prasanga), reversion (viparyaya), context (vaakya-shesha), assent (anumata), description (vyaakhyaana), etymological explanation (nirvachana), example (nidarshana), exception (apavarga), special term (sva-samjna), question/prior-view (purva-paksha), reply (uttara-paksha), certain (ekaanta), anticipation (anaagatavekshana), retrospection (atikraantavekshana), injunction (niyoga), alternative (vikalpa), aggregation (samuchchaya), ellipsis (uhya).

Customisation — the number depends on the work

- **Brief work / limited-scope paper:** subject (adhikarana), etymological explanation (nirvachana), question/prior-view (purva-paksha), doubt (samshaya), presumption (arthaapattih), example (nidarshana), and assent (anumata)/reply (uttara-paksha).
- **Detailed work:** add anticipation (anaagatavekshana), retrospection (atikraantavekshana), extended application (atidesha), special term (sva-samjna).
- **The basic steps of any work:** subject matter (jijnasavishaya/adhikarana) → doubt (samshaya) → questions/objections/prior-view (purva-paksha) → thesis (siddhaantah) → review (samanvaya).

"This model of research methodology is highly adaptable to the nature of a text... the yuktis should be studied systematically and employed **cautiously, judiciously and discriminatingly**."

The two functions

1. Arrangement of sentences (Vaakya-yojana) — a yukti bringing about "a coherent or meaningful connection between/ among the apparently unconnected sentences." It relates to the **form** of the treatise: yoga, uddesha, nirdesha etc.

2. Organisation of meanings (Artha-yojana) — the yukti which "reveals the concealed meaning and which shows that it is consistent with the context." It relates to the **matter** of the text: adhikarana, padaartha, uhya. The meanings revealed are of

> four types: (i) that which cannot be explicitly expressed; (ii) that which appears contradictory; (iii) that which is only slightly expressed; (iv) that which is expressed through peculiar words.

Utility — and the quotation to remember: the yuktis are "like a substantial academic index to the work"; they guide the writer's vidhaana (arrangement) and the reader's decipherment. "Just as the sun causes a bed of lotuses to blossom or just as a lamp lights up a house, so also the tantrayuktis shed light on the meanings of the scientific subjects." **Why now:** the Supreme Court has repeatedly observed problems of legal drafting — "lack of precision in expression, legal language and the complications that it entails" — and has remarked that "writing lengthy judgments particularly while deciding interim matters is the main cause of delay in disposal of cases" (citing *Rajesh Kumar v. Rajendra Kumar Saxena*); hence the need to "look into parallel knowledge systems."

7.3 Epistemology and appreciation of evidence — the Prāmaṇa theory

The problem

"The object of any legal proceeding is the determination of rights and liabilities which depend upon determination of facts. It is the law of evidence which consolidates methods and techniques of classification of facts and appreciation of evidence... **Epistemology** is a branch of knowledge that theorizes knowledge itself. When principles of epistemology are applied to the field of law, the branch is known as **legal epistemology**... it defines and classifies knowledge and goes ahead to give parameters for its validity and invalidity." Every Indic philosophical system — "Nyaaya-Vaisheshika, Saankhya-Yoga, Puurva-Uttar Meemaamsa" — has its own recognised set of **pramaanas** (sources of knowledge).

KNOWLEDGE →

VALID SOURCES (prāma): Pratyaksham (perception) · Anumaanam (inference) · Upamaanam (comparison) · Shabdah (verbal testimony)
[N.S. 1.1.3: प्रत्यक्षमनुमानमुपमानं शब्दः प्रमाणानि]

→ **INVALID SOURCES (aprāma): Samshayah (doubt) · Viparyaya (error) · Tarkah (hypothetical assumption)**

Why it matters in court

1. "In matters of evidence, it is only upon **the Court's belief in the existence of a fact** that it can be said to be 'proved'" (Section 3, Indian Evidence Act, 1872) — hence the question of evaluation is really a question of **validly sourcing knowledge**.
2. The Supreme Court has enforced the same discipline for affidavits: Order 19, Rule 3 CPC "requires the deponent to **disclose the nature and source of his knowledge with sufficient particularity**" (*Sukhwinder Pal Bipan Kumar v. State of Punjab*, (1982) 1 SCC 31 — full brief in §09).
3. The critique: legal epistemology is "a lesser explored area in modern Indian legal education. **Legal methods without epistemic foundations** will keep a legal researcher distant from understanding the validity, invalidity, classification of knowledge and thereby result in **increasing subjectivity** while placing reliance upon a particular source of knowledge."

7.4 Logic and legal reasoning — Nyāya's five-member syllogism

First, the distinction (say it, don't blur it)

"**Logic** is concerned with the validity of the conclusion based on the proposition and reason employed. It is a technical and formal process of arriving at a conclusion according to principles of validity. Logic ensures the stability of an argument or a judicial-decision. **Legal reasoning** can be said to be a part of the logical process... consists of reasons employed from the legal framework in view of the facts and circumstances of a case. This step also consists of the less technical touchstones of **humanitarian approaches which require the exercise of judicial discretion**."

Svaartha- and Paraartha-anumaana

Inferences may be drawn "for one's own self (svaartha-anumaanam)" or "for other's sake (paraartha-anumaanam)." The latter involves "a much more formal procedure": demonstrate the proposition, the reasoning, cite examples of similar nature, prove their applicability, and thereby conclude — "all these steps are required to be organised in specific logical method to have a correct **sthaapana** of the argument... developed through a **syllogism**."

The Pancha-avayava — Nyāya's five-member syllogism (learn the five in order)

1. **PROPOSITION (Pratijna)** — the declaration of what is to be established →
2. **REASON (Hetuh)** — the statement of the reason/means of establishing what is to be established →
3. **EXAMPLE (Drshtaantah)** — illustration of the proposition; provides a supporting reason →
4. **APPLICATION (Upanayah)** — states the validity of the example so cited →
5. **CONCLUSION (Nigamanam)** — re-stating/confirmation of the proposition after the reason has been mentioned

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Worked illumination of the difference (the reading's own point): a syllogism for **arguing** and one for **decision-making** differ in structure depending on their purpose — but "for the purpose of legal reasoning in argumentation or decision-making, one needs to use **all** the elements of a syllogism."

The controlling authority: "Reliefs granted by courts must be seen to be logical and tenable within the framework of the law... It is essential to maintain the integrity of legal reasoning and the legitimacy of the conclusions. They must emanate logically from the legal findings and the judicial results must be seen to be principled and supportable on those findings" (*Kerala Solvent Extractions Ltd. v. A. Unnikrishnan*, (2006) 13 SCC 619). — "Reasons are the lifelines of legal arguments and judgments."

7.5 The five fallacies (Hetvābhāsā) — critical thinking's Indic toolkit

"Critical thinking skills in law can be enhanced not just by acquiring the knowledge of components of legal reasoning. It needs to be supplemented with the sensitization regarding the various **fallacies of reasoning**... [which] equip a researcher of law with sharpened rational faculties... to [1] steer clear of them in legal reasoning... and [2] identify them in the course of legal research."

1. Savyabhichaarah
erratic reason
the reason that wanders — does not firmly prove

2. Viruddhah
the contradictory reason
proves the opposite of what is asserted

3. Prakaranasamah
reason equal to the question
assumes what it must prove

4. Saadhyasamah
the unproved reason
itself stands in need of proof

5. Kaalaatiitah
the mistimed reason
valid only when the time has passed

Consequence
"These fallacies can produce conclusions that are not logically justified and ultimately cause errors in judgment." [N.S. 1.2.4]

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7.6 Mīmāṃsā — the indigenous parallel to Maxwell

The premise

"In India and globally, Maxwell's Principles of Interpretation are popularly resorted to... What needs to be put in perspective is the fact that these principles of interpretation are one of the systems of interpretation... What came to be ignored in the course of its appreciation was **another system of interpretation which was awaiting contextualization in the field of law and, which was indigenous to us.**" — the **Meemaamsa principles of interpretation developed by Jaimini in his sutras** (though they existed prior to Jaimini). Created "for religious purposes like enabling correct performance of yagya," they were "adopted by various disciplines like philosophy, law, grammar etc." Jaimini defined duty as "that which is to be fulfilled as the object of a command" — and since "law and duty are inseparably connected terms that also reverberate with the concept of dharma, Jaimini is said to have also defined the term law by way of implication."

The Supreme Court's two rulings (quote both)

Surjit Singh v. MTNL, (2009) 16 SCC 722: principles of interpretation are "not principles of law but a methodology of explaining the meaning of words used in a text" — and "**Any system of interpretation can be used which helps in solving a difficulty. In certain situations, Maxwell's principles would be more appropriate, while in other situations the Meemaamsa principles may be more suitable.**"

B. Premchand v. Mohan Koikal, (2011) 4 SCC 266: "Meemaamsa rules of interpretation were our traditional principles of interpretation used for thousands of years by our jurists. It is deeply regrettable that in our law courts today these principles are not cited. Today, our so-called educated people are largely ignorant about the great intellectual achievements of our ancestors, and the intellectual treasury which they bequeathed to us. The Meemaamsa rules of interpretation are one of these great achievements, but regrettably they are hardly ever used in our law courts. **There is no reason why Meemaamsa principles of interpretation should not be used in appropriate occasions. It is not stated anywhere in the Constitution of India that only Maxwell's principles of interpretation can be utilised.**"

7.7 The Mīmāṃsā apparatus — classification of provisions

Obligatory texts (the commands)

- **Pradhan chodanas** — primary commands, "in the form of one wide statement in the shape of a general injunction which expresses the whole of its object and purpose."
- **Vidhi** — positive command: "You shall do it."
- **Nishedha** — negative command: "You shall not do it." *"The force of command of both is the same in principle."*

Non-obligatory texts (attached to the commands)

- **Arthavaada** — explanatory/illustrative text "connected with a vidhi... may explain the reason of a vidhi or illustrate it."
- **Namadheya** — "descriptions of names... the same as the **definition clauses** in modern laws."
- **Niyama** — directory rules: "subsidiary or incidental statements."
- **Paryudasa** — provisos/qualified exceptions: "The rule of modern laws that **a case falling under the proviso cannot come under the main clause and vice versa** resonates with the concept of paryudasa."
- **Vidhivaishamya** — inconsistency between provisions: "if the construction of one is accepted, then the other cannot stand. Such constructions are not permitted even under other parallel systems of interpretations."
- **Nyaaya** — maxims: "devices that can be used to interpret a provision or explain the given case forcefully... correspond to the term 'maxims'... of immense importance just like the Latin maxims." (Some govern interpretation; some govern general experience.)
- **Pratyaksha / Kalpya** — express provisions (pratyaksha) and implied rules (kalpya).

7.8 The procedure — the Adhikaraṇa (five steps) and the four rules of construction

The five-staged adhikarana (say it as a sequence)

1. The subject matter requiring interpretation is set out → 2. The doubt arising in the matter is explained →
3. The purva-pakshah (prima facie argument) is set out → 4. The answer (the other side) is set out →
5. The conclusion (final interpretation) is arrived at

The four "golden rules" — and their strict order of preference

1. SHRUTI — Direct Assertion
"when a sentence is complete and explicit in sense and grammar, no attempt should be made to strain or twist its meaning" (preferred over every other rule, "irrespective of the consequence of the meaning")

→ if unhelpful →

2. LINGA — Indicative Power
"the power or capacity of a word to denote a certain thing": a word with more than one meaning takes the meaning given by its context

→ if ineffective →

3. VAAKYA — Syntactical Connection
words not explicitly connected "should be joined grammatically so as to make a sensible proposition"

→ last resort →

4. PRAKARANA — Context
a clause clear but incomplete in sense is read with the passage "with which it coalesces with due regard to the context"

The reading's emphasis: "the Meemaamsa system has abundantly insisted on the **literal interpretation** of any provision. As far as possible, assumption of meanings by drawing inferences is to be avoided."

7.9 The six axioms of interpretation (Jaimini) — with their Maxwell correspondences

Axiom	Meaning	The reading's modern correspondence
1. Sarthakya	"Every word and sentence must have some meaning and purpose. If there are more words, there will be more meanings. Any interpretation rendering a part of the provision **otiose** is a faulty interpretation known as **anarthakya-dosha**."	Maxwell's **literal rule** of interpretation.

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Axiom	Meaning	The reading's modern correspondence
2. Laghava	"Where one rule or proposition would suffice, more must not be assumed... the construction which makes the meaning simpler and shorter is to be preferred."	"The rule that construction should not be burdensome."
3. Arthaikatva	"To a word or sentence occurring at one and the same place, double meaning should not be given... consistency in the meaning given to the same word or sentence in different contexts, unless the context requires otherwise."	Maxwell: "It is at all events reasonable to presume that the same meaning is implied by the use of the same expression in every part of the Act."
4. Gunapradhan	"If a word or sentence which, on the face of it, purports to express a subordinate idea, clashes with the principal idea, the former must be **adjusted to the latter or altogether be discarded**... the main clause carries the principal idea," and the subordinate clause is interpreted on that basis, not vice versa.	Principal–subordinate (pradhāna–guṇa) reading of clauses.
5. Samanjasya	"**Harmony**... any contradiction between words and sentences is not to be presumed where it is possible to reconcile them... all the provisions of law must be construed harmoniously without presuming any inter se contradiction."	The **rule of harmonious construction**.
6. Vikalpa	"**Option**... where there is real contradiction [and it is impossible to reconcile], one of the contradictory matters may be adopted at option... to be done with reference to the context, facts and circumstances of the case."	Where harmonisation fails, a reasoned choice between irreconcilable provisions.

The Supreme Court's application — Gujarat Urja Vikas Nigam Ltd. v. Essar Power Ltd., (2008) 4 SCC 755

Interpreting the **Electricity Act, 2003**, the Court "explained and applied the axioms of **samanjasya, vikalpa and gunapradhan**. It held that **Sections 174 and 175 of the Electricity Act, 2003 can be read harmoniously by applying samanjasya rule**. Further, it held that **Section 174 is the pradhan whereas Section 175 is the guna or subordinate**. Therefore, **Section 175 (the guna or subordinate) has to be adjusted to make it in consonance with Section 174 (the pradhan or principal)**." [Full brief in §09.]

7.10 The conclusion of the reading — akhanda-vidya

> *"The Indian systems of knowledge have not just comprehensively but exhaustively dealt with the subjects of law, logic and their interpretative techniques. The need of the hour is to revive and put the Shaastric parameters embedded in Dharmashaastra, Nyayashaastra, Meemaamsa etc. to practical utility in the field of law. Introducing Shaastric legal education shall promote* ***'akhanda-vidya'*** *i.e.* ***analysing the object or issue as a whole as opposed to segregating it into subjects that are allied to it****... This leads to the creation or dissemination of an all-encompassing profound body of knowledge related to that subject and enables one to* ***'think like a lawyer' in the truest sense.*** *In fact, the present-day trend of a* ***'multi-disciplinary' research finds its roots in this concept of akhanda-vidya.*** *The revival of our indigenous knowledge system in the field of law and thereby aiding India's sustenance in the globalised world is promised by this revolution of Shaastric legal education."*
> — Ila Sudame (conclusion)

Exam summary of §07 in three lines: Tantrayukti = Indic research methodology (32 devices; arrangement of sentences + organisation of meanings); **Prāmaṇa** = Indic epistemology for evidence (4 valid, 3 invalid sources of knowledge); **Pañcāvayava** = Nyāya's five-member syllogism for legal reasoning (+ 5 hetvābhāsā fallacies); **Mīmāṃsā** = the indigenous interpretation system (adhikaraṇa procedure; Śruti–Liṅga–Vākya–Prakaraṇa; six axioms) — recognised, and applauded, by the Supreme Court itself.

PART 08

(e, contd.) Our Legal System — N.R. Madhava Menon

8.1 The opening proposition — and its two-edged consequence

> *"The legal system of a country is part of its social system and reflects the social, political, and cultural characteristics of that society. It is, therefore, difficult to understand the legal system outside the socio-cultural milieu in which it operates.* ***It is true in the case of India also even though the legal system we now have is largely the gift of the British rulers.*** *There is a view that the system is still alien to the majority of Indians whose legal culture is more indigenous and whose contact with the formal legal system (the imported British model) is marginal if not altogether non-existent.* ***The language, technicality and procedure of the inherited legal system are indeed factors which limit access to justice*** *for the illiterate, impoverished masses of our country. Nevertheless,* ***the rights and benefits conferred by the laws and the Constitution offer the opportunity for those very people to enjoy the fruits of a welfare democracy which the people of India have given unto themselves on the 26th January 1950.*** *It is in this context familiarity with law and its processes becomes essential to every Indian, rich or poor, man or woman, young or old."*
> — N.R. Madhava Menon

Frame it as the reading's own resolution: the inherited system is **alien in form** (language, technicality, procedure) but **owned in substance** (the Constitution is self-given — "which the people of India have given unto themselves"). That is why "familiarity with law" is essential for every Indian. Also note the direct echo of David & Brierley's India remark (§02.3: partial reception + co-existence with previous civilisations) and of Sudame's Anglo-Saxon-vs-Indigenous diagnosis (§06.1).

8.2 Components of a legal system — the four-part definition (a guaranteed 5-marker)

1. **BASIC PRINCIPLES & VALUES** — largely outlined by the Constitution
2. **OPERATIONAL NORMS** — rights and duties of citizens spelt out in laws — Central, State and local
3. **INSTITUTIONAL STRUCTURES** — for enforcement of the laws
4. **A CADRE OF LEGAL PERSONNEL** — endowed with the responsibility of administering the system

Memorise this four-part structure — it is Menon's skeleton, and every later section of the reading is one of these four components in detail (Constitution = 1 & 2; courts = 3; judges & lawyers = 4).

8.3 The Constitution: the fundamental law of the land

What it is

- "The Constitution of a country is variously described depending upon the nature of the policy and the aspirations of the people"; "generally a written document"; federal (several independent units joined together) or unitary. **India: Socialist, Secular, Democratic Republic — quasi-federal structure.**
- "The Constitution of India represents the collective will of 700 million Indians and, as such, the reservoir of enormous power. It describes the methods by which this power conferred on the State is to be exercised for the benefit of the people."
- "It is a **political document** which **distributes State power** amongst different organs (Central and State Governments; Legislative, Executive and Judicial wings of each Government) and regulates its exercise in its incidence on the people."
- Form of government: **democratic and republican**; method: **parliamentary through adult franchise**.

The goals: Preamble + Fundamental Rights + DPSP

Preamble: "Justice, social, economic and political; Liberty of thought, expression, faith and worship; Equality of status and of opportunity, and to promote among them all"; "Fraternity assuring dignity of the individual and the 'unity and integrity of Nation'."

Fundamental Rights (the reading's own list): (a) equality before law; (b) equality of opportunity in matters of public employment; (c) prohibition of discrimination on grounds of religion, sex etc.; (d) protection of life and personal liberty; (e) protection of the right to freedom of speech, assembly, association, movement, profession or occupation; (f) prohibition of forced labour; (g) right to freedom of religion; (h) protection of interests of minorities; (i) right to constitutional remedies for enforcement of the above.

DPSP: "the Constitution gives certain Directives to the State to follow in its policies and programmes. **Principles of State Policy have been recognised to be as sacrosanct as Fundamental Rights**... they together constitute a reference for State action in every sphere."

Enforcement: FRs enforceable through the High Courts and the Supreme Court.

The judiciary's unique place — and the reading's key sentence

"The Constitution envisages a **unique place for the judiciary**. Apart from overseeing the exercise of State power by the Executive and the Legislatures of the State and the Central Governments, the Supreme Court and the High Courts are charged with the responsibility of effectively protecting citizens' rights through its **writ jurisdiction**. This offers a **cheap and expeditious remedy** to the citizen to enforce the guaranteed rights. The Supreme Court **liberalised the rules** so as to enable poor and illiterate citizens to have easy access to courts for enforcing their basic rights."

> ***"The Rule of Law is supreme, and the independence of judiciary is reality in our country.*** *This forms the bulwark of democracy and compels everyone to abide the law... must be understood and subscribed to by every Indian if we are to succeed in our declared goals."*
> — Menon

8.4 Laws, civil and criminal

"The laws of the country are too numerous, varied and complex; they are bound to be so because **law is as large as life itself**... In a Welfare State like ours, laws are the more so because they are expected to regulate a variety of social and economic activities so as to subserve the common good." Parliament, State legislatures and local councils "make and unmake the laws day in and day out"; "Courts

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interpret them in specific fact situations and, in the process, **extend the scope and application of the laws**"; the common man adds to the maze "by creating his own laws through contracts and agreements."

CLASSIFICATION BY REMEDIES SOUGHT & PROCEDURE FOLLOWED →

CIVIL LAW
rights, duties and obligations of individual members of the community between themselves →

CRIMINAL LAW
wrongs against the community as a whole, prosecuted and punished by the State

Civil law — the six or seven major headings

- **Family law** — source both statute and religion: marriage, divorce, maintenance, custody of children, adoption, inheritance and succession. "Though the Constitution envisages a Uniform Civil Code, **each religious group at present follows largely its own norms** in matrimonial and family relations."
- **Law of property** — rights of ownership, transfer, mortgages, trusts, intestacy.
- **Law of contract** — enforcement of obligations arising from agreements and promises: sale of goods, loans of money, partnerships, insurance, guarantees, negotiable instruments, agency.
- **Law of torts** — "propriety of actions and infraction of duties"; injuries to person or property "caused by failure to take reasonable care and caution" → actionable wrongs, "which usually compensates the victim."
- **Laws of commerce and business** — economic operations of individuals, partnerships, companies and governmental regulation of them (taxation included).
- **Labour law** — the relationship between employer and employees in the production and distribution of wealth.

Criminal law — its structure

- **Nature:** public wrongs — "wrongs against the order and well being of the society in general"; "the persons guilty of such wrongs are prosecuted and punished by the State"; "specific and... defined in the **Penal Code** and a few other special and local laws."
- **Mens rea:** "criminal laws insist (apart from a few exceptional offences) on a **particular intent or state of mind** as a necessary ingredient of a criminal offence. It also recognises **degrees of criminality and gradations of crime**."
- **Two principles:** "**Ignorance of law is never taken as an excuse.** Certain situations where guilty intention could not have been entertained — such as **infancy, insanity, mistake of fact**, etc. — are recognised as defences to criminal responsibility."
- **Classification by object:** crimes against the human body, property, reputation of the individual, against the State, against public rights.
- **Procedural classification: cognizable** (police can investigate or arrest without judicial warrant) and **non-cognizable**; **bailable** and **non-bailable**; **compoundable** or otherwise.

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8.5 Procedural law, civil and criminal

Civil procedure — the course of a suit

1. **Initiation:** a suit before a civil court; procedure for trial, appeals, execution of decrees and orders laid down in the **Code of Civil Procedure**; jurisdiction variations under the **Suits Valuation Act**; court fees under the **Court Fees Act**; periods of limitation under the **Limitation Act**; relevancy, admissibility and probative value of evidence under the **Evidence Act** (civil and criminal).
2. **Nature:** "adversary proceedings where two parties oppose each other."
3. **Pleadings:** set out "the precise question in dispute or the cause of action"; the defendant may file a **written statement** admitting or denying the allegations; pleadings may be supplemented by admissions of fact, answers and interrogatories, oral statements, and admissions and denials of documents.
4. **Hearing:** commences with service of the plaint copy; a party may appear personally, through an agent or a pleader — but "according to the **Advocates Act**, right to practise law before courts is given to **Advocates only**"; parties summon their witnesses; evidence recorded day-to-day; judgment pronounced in open court.
5. **Ending:** civil proceedings being private, "they can at any time be abandoned or compromised"; judgments enforceable through the authority of the court; refusal to obey may lead to penal consequences; decrees appealable within the specified period.

Criminal procedure — the four stages and the guarantees

Governed by the **Code of Criminal Procedure**; its purpose: "to determine whether the accused is guilty of the offence charged and, if so, to decide the punishment"; designed "to give every accused a **'fair trial' consistent with the constitutional commitment to individual liberty and freedom**."

1. INVESTIGATION → 2. PROSECUTION → 3. TRIAL → 4. DISPOSITION

- **Police powers and duties:** on information, the police investigate — interrogate, arrest (with a Magistrate's warrant in non-cognizable cases), search, seize, report; **arrested person produced before the nearest Magistrate within 24 hours**; **no 'third degree methods'**; **confession to police is not admissible**; in all bailable cases, bound to release on bail.
- **Accused's rights:** aid of a lawyer of his choice; cannot be compelled to give evidence against himself; **presumed innocent**; prosecution must prove **beyond reasonable doubt**; any doubt → benefit of doubt → acquittal; right to **cross-examine every prosecution witness**; cannot be questioned unless he consents to be sworn in his own defence; **legal aid at State expense** for indigent persons; if guilty — right to be heard on sentence.
- **The modern philosophy:** "The emphasis in modern criminal justice being **reformation and rehabilitation**, there is enough scope for a deserving convict to get correctional treatment as part of sentence."

Beyond the two codes — the informal track

"Apart from the civil and criminal proceedings prescribed in the respective codes, there are a variety of adjudicative procedures followed in **tribunals, quasi-judicial administrative agencies, arbitration councils, Nyaya panchayats** etc. where private disputes are processed and settled through informal procedures. They are found to be **cheap, expeditious and less cumbersome** in terms of adjudication." — and **legal aid** "has now assumed an important place": right to counsel by a lawyer of one's choice is a constitutional right; CrPC provides State-expense counsel "in all major criminal cases"; a poor person in civil proceedings may declare himself a **pauper** — exempt from court fees and related expenses; Legal Aid Schemes provide lawyers. (Cross-link: the ancient people's courts of §06.7 that the British retained — the Nyāya panchayats are their modern descendants.)

8.6 Courts of law — the pyramid

"Courts are institutions wherein disputes are adjudicated and justice administered. They are created by **Statutes** and enjoy such powers and jurisdiction, which the Statutes confer." The Constitution itself provides the Supreme Court and a High Court in each State at the apex (original + appellate jurisdiction: Union–State and State–State disputes, State–citizen disputes, and limited appeals in private disputes "involving substantial questions of law").

SUPREME COURT OF INDIA
Union Judiciary · appointed by the President on the advice of the Chief Justice · original + appellate + writ jurisdiction · supervisory over all courts

↑ appeal (exceptional: 2nd appeal)

HIGH COURT (each State)
writ jurisdiction under Art. 226 (with SC under Art. 32) · civil, criminal, supervisory over State Judiciary

↑ appeals

STATE JUDICIARY — CRIMINAL SIDE
Sessions Court (one per district) ← Magistrates' Courts (First/Second Class by powers of punishment)

↑

STATE JUDICIARY — CIVIL SIDE
District Court → Sub-Divisional Court → Munsiff Court (limited pecuniary jurisdiction)

↑

SPECIAL COURTS & TRIBUNALS
e.g. Motor Vehicles Compensation Tribunals, Sales Tax Tribunals — judicial bodies for assigned areas; appeals to High Courts

Key phrases for the exam: the higher judiciary is named the **Union Judiciary**; the subordinate courts are the **State Judiciary** set up by each State "according to its requirements under the Civil Procedure Code, Criminal Procedure Code or other State laws"; jurisdiction on both sides is organised by **territorial or monetary** limits; citizens "can directly approach the High Courts or the Supreme Court to seek redress for the violation of Fundamental Rights."

8.7 The personnel of the law

"Administration of justice requires the co-operation not only of the parties and the judges but also of officers of court who include the **Advocates, the court staff and the para-legal personnel** who assist the lawyers and judges."

Judges

- "All judicial officers from the Supreme Court Judge to the Munsiff in a small taluka are **independent of both the legislature and the executive**. They are free to administer law **without fear or favour** and they cannot be interfered with by anyone including the top functionary of the Government. They have the power to punish those who commit **contempt of court** or disobey their legitimate orders."
- **Appointment:** President, acting on the advice of the Cabinet and the Chief Justice of India, appoints SC and HC judges; the Governor appoints State judicial officers "similarly on the advice of the State High Court/Government."

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- **Security:** "Their salaries and service conditions are determined by law and cannot be changed to their disadvantage. Their removal from service requires a **special procedure** and the control of their judicial functions vests on the higher judiciary."

Lawyers and the Bar

- "Lawyers are the **key functionaries** assisting the judges in the administration of justice. They are **officers of court** and are constituted into an independent profession under an Act of Parliament — **the Advocates Act, 1961**. No others may practise before the courts."
- Why they matter: "Without the expert assistance of lawyers on either side of a dispute, judges will find it difficult to find the truth on disputed facts in issue and interpret the law applicable to varied situations. That is why the legal profession is often referred to as a **noble and a learned profession**."
- **Numbers & organisation:** approximately **2,30,000** Advocates practising (the reading itself says: kindly refer to the current figure); organised into **bar associations**; enrolled by the **Bar Councils** created by Parliament under the Advocates Act; State and Central Bar Councils consist of **elected members** of the profession — responsible for admitting new entrants, improving the quality of legal services and **exercising disciplinary powers** over erring members.
- **The obligation:** "Legal Services to the poor is one of the **social obligations of every lawyer** required under the Bar Council rules of professional conduct."

8.8 One-view map — the Indian legal system (Menon)

SOCIO-CULTURAL FRAME
legal system = part of social system; imported form, self-given Constitution →

PRINCIPLES & VALUES
Constitution: Socialist · Secular · Democratic · quasi-federal; Preamble goals; FRs (enforceable); DPSP (sacrosanct) →

OPERATIONAL NORMS
Civil law (family, property, contract, tort, commerce, labour) · Criminal law (Penal Code; mens rea; defences; classifications) →

PROCEDURES
CPC (pleadings → trial → judgment) · CrPC (investigation → prosecution → trial → disposition) · writs (Arts 32/226) · tribunals/Nyāya panchayats · legal aid

→ INSTITUTIONS
SC → HC → Sessions/District → Magistrates/Munsiff → special courts & tribunals →

PERSONNEL
independent judges (fear or favour) · Advocates Act 1961 · Bar Councils · legal services as social obligation

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PART 09

Authorities in Full Detail — Cases, Texts and Statutes

How to use this section. The Unit-3 "case law" has three layers, exactly as the casebook arranges it: (i) **cases** — mostly from Ila Sudame's reading, which is built on the Supreme Court's own resort to indigenous sources; each is briefed below with facts · issues · arguments of both sides · decision · principle evolved; (ii) **ancient texts** — the real "authorities" of sub-topic (e); (iii) **statutes and modern materials** — from Menon's reading. In the exam, quote the principle and attribute it to its source; for the ancient system, cite the *text* (Jaimini Sūtra, N.S. 1.1.3, N.S. 1.2.4, Narada's maxim) — that is exactly how the DU material argues.

GROUP A — The case briefs

CASE 1 A.S. Narayana Deekshitulu v. State of Andhra Pradesh (1996) 9 SCC 548 · Supreme Court · K. Ramaswamy J.

Facts

Chapter IV of the **Andhra Pradesh Charitable and Hindu Religious Institutions and Endowments Act, 1987** abolished the hereditary rights of religious office-holders (Archakas, Mirasidars — temple priests and servants), converting their perquisites into salary/honoraria and vesting administration in statutory authorities. A batch of petitions challenged the chapter's constitutional validity.

Issues

(1) Did the abolition of hereditary offices violate the freedom of religion under **Articles 25 and 26**? (2) Where lies the line between religion and its secular administration? (3) **What is the meaning of "dharma" in constitutional discourse?**

Arguments of the petitioners

Performance of pūjā and temple services is an essential religious practice integral to the Hindu faith; hereditary office carries religious dignity and customary honours which cannot be reduced to a salary; the Act touched the right of the denomination to manage its own religious affairs (Art. 26) and the individual's right to profess and practise religion (Art. 25).

Arguments of the State

Administration and management of temples and their properties is a **secular activity** which the State may regulate by legislation in the public interest; abolition of hereditary perquisites does not touch the essentials of belief or worship but only modernises remuneration, prevents exploitation and mismanagement, and protects the interests of devotees and the institution as a whole.

Decision and reasoning

The Supreme Court **upheld the constitutionality** of Chapter IV, drawing the classic distinction between the religious and secular aspects of a temple. The judgment is famous for the Court's excursion into Hindu jurisprudence: it quoted **Madhvāchārya** (the Minister in the Vijayanagar Empire, in his commentary on the Parāshara Smriti) — "**Dharma is that which sustains and ensures the progress and welfare of all in this world and eternal bliss in the other world**" — and summarised dharma as that "which **regulates the mutual obligations of individual and the society**."

> **Principle evolved: Dharma is a live constitutional concept**, not a museum piece: it "regulates the mutual obligations of individual and the society," connects the individual's duty to social welfare, and is invoked by the Supreme Court itself while adjudicating modern statutory disputes. (Also the anchor of Unit-1's eco-dharma discussion and Unit-2's Kartavya thesis — the same definition returns in every unit.)

CASE 2 Abhiraj Kuer v. Debendra Singh `AIR 1962 SC 351 · Supreme Court`

Facts

A dispute over the validity of an **adoption** under the Hindu law of the Banaras school: the adopted person stood in a relationship akin to the prohibited degrees of marriage, and the adoption was challenged on that ground. Deciding the question required interpreting the **texts of the Smritis and the commentaries**, and distinguishing binding law from moral-religious exhortation.

Issue

Is the Smriti/commentary prohibition **mandatory law** or only a **recommendatory** precept — and how should "books of morality, religion and law" be interpreted?

Arguments of the appellant (challenging the adoption)

The śāstric text is prohibitory on its face; the rule against such affinity applies by assimilation to adoption; the commentary must be read as declaring mandatory law; hence the adoption is void.

Arguments of the respondent (upholding the adoption)

The statement is a **moral or religious precept of a recommendatory nature**, not a legal prohibition; long-standing usage of the school shows such adoptions were treated as valid; the true law is gathered from usage and from the authoritative commentaries read as a whole.

Decision and reasoning

The Court held the rule **recommendatory, not mandatory**, and upheld the adoption. The governing hermeneutic it laid down: "while interpreting the books of morality, religion, law, etc., **a great deal of caution is required to be exercised**"; the commentaries "are many-a-times mingled with statements of law but actually are intended to be **recommendatory statements regarding the mandatory laws**" — the commentator may be describing an ideal, not prescribing a command.

> **Principle evolved: Recommendatory v. mandatory** — the master-key for reading the Dharmasāstra as a source of law. A statement in a Smriti or commentary is not automatically law; the court must distinguish what prescribes (mandatory) from what praises or idealises (recommendatory). This is the modern judiciary's method of handling the "model law" character of Hindu law that David & Brierley describe (§05.2) — and exactly what Sudame calls recognising the "recommendatory nature of dharmasutras and grihyasutras."

by Ankur R. Upadhyay

CASE 3 Dnyaneshwar B. Ganwat v. Karyakari Abhiyanta, Chaskaman Prakalp Vibhag

2010 SCC OnLine Bom 766 · Bombay High Court (Full Bench)

Facts

Before the Full Bench of the Bombay High Court arose a question — arising out of proceedings connected with the Chaskaman irrigation project — on which earlier decisions of the Court had taken **two conflicting views** (what Sudame describes as "law codes of equal authority"). The Bench had to choose between them.

Issue

When two equally authoritative statements of law conflict, which is to be followed — and by what criterion?

Arguments

For the view the Full Bench eventually adopted: it was in consonance with "what ancient Jurist **Narada** declared — **Dharmashastra Virodhe Tu Yuktiyukta Vidhe Smrita** — that is, when the Dharmashaastra or law codes of equal authority conflict with one another, **the one appearing to be reasonable, or more reasonable, is to be preferred and followed**." The same principle was "also advocated" by modern jurist **H.M. Seervai**, and was reinforced by the various other judgments considered by the Full Bench.

Decision

The Full Bench "preferred to accept the latter view" — the one harmonious with the Narada maxim and Seervai's principle — after considering the conflicting authorities.

> **Principle evolved: Reasonableness as the tie-breaker between conflicting authorities** — a criterion stated by Narada, rediscovered by Seervai, and applied by a modern Full Bench. The significance for the unit: "It can be gathered how the judiciary has been taking **conscious efforts to resort to indigenous sources of law** for finding conformity in cases of conflict."

CASE 4 Gujarat Urja Vikas Nigam Ltd. v. Essar Power Ltd. (2008) 4 SCC 755 · Supreme Court · Markandey Katju J.

Facts

Gujarat Urja Vikas Nigam Ltd. (a State utility) and Essar Power Ltd. were parties under the Electricity Act, 2003 regime and a power-purchase arrangement. The question was whether **Section 174** of the Act (giving it an **overriding effect** over other laws) ousted the operation of other law — in particular the arbitration machinery under **Section 11 of the Arbitration and Conciliation Act, 1996** — notwithstanding **Section 175**, which provides that the Act is "in addition to and not in derogation of" any other law.

Issues

(1) How is the apparent conflict between s.174 and s.175 to be construed — which is principal (pradhāna) and which subordinate (guṇa)?
(2) Does the Arbitration Act's machinery survive the overriding clause?

Arguments of the appellant (GUVNL)

Section 174 makes the Electricity Act paramount over every other law; the arbitration provisions of the 1996 Act stand displaced; the matter must proceed exclusively under the Electricity Act regime.

Arguments of the respondent (Essar Power)

Section 175 expressly preserves other laws — the Act is only "in addition to" them; the 1996 Act squarely applies; the two sections are capable of harmony, and s.174 must not be read to swallow every incidental remedy.

Decision and reasoning

Katju J., for the Court, held that the **Mīmāṃsā principles of interpretation are "of great utility"** and applied them: **(i) sāmāñjasya** (harmony) — ss.174 and 175 "can be read harmoniously"; **(ii) guṇapradhāna** — "Section 174 is the **pradhan** whereas Section 175 is the **guna** (or subordinate)... Hence Section 174 will prevail over Section 175 in matters where there is any conflict (but no further)"; **(iii) vikalpa** — where truly irreconcilable, the option is exercised with reference to context. So the sections did not oust the Arbitration Act generally — s.174 prevails only to the extent of actual conflict.

> **Principle evolved: Mīmāṃsā is a working system of statutory interpretation in India's highest court.** The axioms (śruti–liṅga–vākya–prakaraṇa as construction rules; sārthakya, lāghava, arthaikatva, guṇapradhāna, sāmāñjasya, vikalpa as axioms) are applied as living doctrine to a 2003 statute — the most concrete proof of Sudame's thesis that "the Indian knowledge system supplies method to modern law."

CASE 5 B. Premchand v. Mohan Koikal (2011) 4 SCC 266 · Supreme Court · Markandey Katju J.

Facts

Dispute over **seniority and promotion** in a government service governed by Rule 27(c) of the relevant rules, which fixed seniority by reference to the date of the candidate's **first effective advice by the Public Service Commission**. The appellants, who were so advised earlier but with a later entry into service, claimed seniority ahead of respondents who had been selected earlier.

Issue

Is Rule 27(c) plain enough for the literal rule to decide the dispute, or must equitable considerations (the respondents' earlier selection/ appointment) prevail?

Arguments of the appellants

Rule 27(c) is plain and clear; seniority is governed by the date of first effective advice; equity favouring the respondents cannot override the clear text — "if there is a conflict between equity and the law, it is the law which must prevail."

Arguments of the respondents

They were selected earlier by the PSC and, on that basis, claim a better equity; a construction favourable to them should be preferred.

Decision and reasoning

The Court applied the **literal rule**: "In our opinion, Rule 27(c) of the Rules is plain and clear. Hence, the literal rule of interpretation will apply to it." The judgment then expounds the philosophy of the literal rule ("we mean what we say and we say what we mean... if we do not follow the literal rule of interpretation, social life will become impossible") and — critically for this unit — **links it to Mīmāṃsā**: "In Mimansa, the literal rule of interpretation is known as the **'Shruti' or 'Abhida' Principle**," illustrated by the **Gārhapatya nyāya** (where the word "aindrya" is a liṅga and "gārhapatyam upatiṣṭhate" is the śruti, the śruti prevails). The Court added its famous lament: "Meemaamsa rules of interpretation were our traditional principles of interpretation used for thousands of years by our jurists. **It is deeply regrettable that in our law courts today these principles are not cited... There is no reason why Meemaamsa principles of interpretation should not be used in appropriate occasions. It is not stated anywhere in the Constitution of India that only Maxwell's principles of interpretation can be utilised.**"

> **Principle evolved:** (1) **Literal construction = Śruti rule** — the Mīmāṃsā apparatus is not a competing exotic doctrine but the indigenous name for the canons courts already apply; (2) **equity yields to clear law**; (3) the Constitution imposes no monopoly of Maxwell — Mīmāṃsā is equally available, and should be used.

CASE 6 Surjit Singh v. Mahanagar Telephone Nigam Ltd.

(2009) 16 SCC 722 · Supreme Court (2008) · Markandey Katju J.

Facts

The appellant and his wife lived together at Rajouri Garden, Delhi. The premises had a telephone line in the appellant's name (No. 5121187) and another in his wife's name (No. 5416493); a third line (No. 3265301) stood in the appellant's name at his business premises. On default in payment of dues for the **wife's** line, MTNL disconnected **both of the appellant's** lines under Rule 443 of the Indian Telegraph Rules.

Issue

May a subscriber's telephone lines be disconnected for non-payment of dues on a line registered in the name of a relative living in the same house — and does it matter whether that relative is economically dependent?

Arguments of the appellant

He and his wife are two separate legal entities; Rule 443 permits disconnection only for the subscriber's own default; the definition of "subscriber" in Rule 2(pp) supports him — and a literal reading of Rule 443 confirms that he cannot be penalised for his wife's fault (relying on Dr. B.V. Manek AIR 1996 Bom 53 and Y. Pridhvi Kumar AIR 1993 AP 131).

Arguments of the respondent (MTNL)

The wife was a housewife with no independent source of income — economically dependent on the appellant, who in substance paid her bills; the Delhi High Court's consistent view (Madan Tayal; Rajiv Gosain; Sukh Dayal Narula) and the Gujarat High Court's view (Indravadan Pranlal Shah) support disconnection where the defaulting relative lives in the same premises; and the intention of Rule 443 — prompt payment — would be defeated by a strictly literal reading.

Decision and reasoning

The Court drew the distinction: where the defaulting relative is **economically independent** and paying his or her own bills, the other subscriber's line cannot be disconnected; where the relative is **economically dependent** (the wife here), the bills are in substance paid by the breadwinner, and disconnection of his lines is lawful. "In this case, the literal rule has not to be adopted, because we have also to see the intention of the rule... **we have to adopt a purposive construction**." Then the indigenous turn: "We can also utilise the **Mimansa Rules of Interpretation** in interpreting Rule 443" — the words of Nāgeśa Bhaṭṭa's *Param Laghu Manjūṣā* give three meanings (abhidhā = literal; lakṣaṇā = indicative/suggestive; vyañjanā = figurative); "in the present case, we have to adopt the **Lakshana (or Linga) rule** of interpretation rather than the Shruti or Abidha (the literal) rule." The Court also invoked the **Sphaḍi (wooden sword) nyāya** — "what is prescribed as a means to an action is to be taken in a sense suited to the performance of the action" (Jaimini 3:1:2) — and the substitution principle (Jaimini 6:3:9).

> **Principle evolved:** (1) **Economic dependence** is the test for treating one person as the "real" subscriber; (2) the literal rule is not always the only rule — purposive construction serves the intention of the rule; (3) **Mīmāṃsā supplies the vocabulary for that purposive turn**: liṅga/lakṣaṇā over śruti/abhidhā, and the nyāyas (maxims) interpret provisions "forcefully." The Court's general dictum is the one to quote: "**Any system of interpretation can be used which helps in solving a difficulty. In certain situations, Maxwell's principles would be more appropriate, while in other situations the Meemaamsa principles may be more suitable.**"

CASE 7 Kerala Solvent Extractions Ltd. v. A. Unnikrishnan (2006) 13 SCC 619 · Supreme Court (decided 1993)

Facts

On complaints that the respondent employee had secured employment by **suppression of truth and false representation** of his qualifications, the appellant issued a show-cause notice and, on the employee's admission that he had only completed the 10th standard, **terminated his services** for fraudulent misrepresentation. The single judge of the High Court, finding no hardship or prejudice, set aside the termination "as a special case and not by way of precedent," directing the worker's continuance; the Division Bench dismissed the writ appeal; the employer appealed to the Supreme Court.

Issue

May a writ court, on **misplaced sympathy**, grant relief which the law does not justify — and what does that do to the legitimacy of judicial reasoning?

Arguments of the appellant (employer)

The termination was lawful and squarely founded on the worker's own admission of fraudulent misrepresentation; the High Court's interference was justified by no legal principle — only by compassion; "misplaced sympathy" is not a ground for relief.

Arguments of the respondent (worker)

Leniency was deserved: no actual prejudice was shown; the worker had served for years; equitable considerations favour non-interference with the single judge's compassion.

Decision and reasoning

The Supreme Court deprecated the tendency — "well-meant but wholly unsustainable" — towards "a **denudation of the legitimacy of judicial reasoning and process**": **"The reliefs granted by the courts must be seen to be logical and tenable within the framework of the law** and should not incur and justify the criticism that the jurisdiction of the courts tends to degenerate into misplaced sympathy, generosity and private benevolence. **It is essential to maintain the integrity of legal reasoning and the legitimacy of the conclusions. They must emanate logically from the legal findings and the judicial results must be seen to be principled and supportable on those findings.**"

> **Principle evolved: Logical integrity is the precondition of judicial legitimacy.** Relief must "emanate logically from the legal findings"; sympathy is not a legal ground. This is the modern positive-law face of the same discipline Sudame finds in the Nyāya syllogism: reasons are "the lifelines of legal arguments and judgments," and conclusions that are not justified are errors in judgment — the practical bridge between §07.4 (pañcāvayava) and the modern law of remedies.

CASE 8 Sukhwinder Pal Bipan Kumar v. State of Punjab (1982) 1 SCC 31 · Supreme Court (three-Judge Bench)

Facts

Petitions under **Article 32 of the Constitution** supported by affidavits in which allegations were not properly verified — the deponents failing to state what was within their knowledge, what was on information, and the source of the information.

by Ankur R. Upadhyay

Issue

What must an affidavit contain to have probative value — and what is the consequence of an affidavit that does not disclose the nature and source of the deponent's knowledge?

Arguments

For strictness: an affidavit is a mode of placing evidence before the court; verification exists "to enable the Court to find out which facts can be said to be proved on the affidavit evidence of rival parties," to test genuineness and authenticity, and to make the deponent responsible; allegations must be affirmed as true to knowledge, or as "informed and verily believed," with the source disclosed so that the other side may "verify it and make an effective answer." **Against:** the petition's allegations were said to rest on information and belief honestly held; strict form should not defeat the substance.

Decision and reasoning

The Court held that **under Order XIX, Rule 3 of the Civil Procedure Code it is incumbent upon the deponent to disclose the nature and source of his knowledge with sufficient particulars**; where allegations are not so affirmed, the petition "cannot be treated as supported by an affidavit as required by law"; an affidavit which does not comply has no probative value and is liable to be rejected.

> **Principle evolved — and its epistemological kernel: a fact is proved only through a properly sourced claim to knowledge**. Exactly as Sudame uses it: the law of evidence and the Indic prāmaṇa theory converge, because both demand that the claim-maker distinguish perception, information and belief, and disclose the source — otherwise the knowledge is suspect (doubt, error or mere tarka). The identification of the ancient "sources of valid knowledge" with the modern rules of proof is this unit's most elegant link between sub-topic (e) of Unit 3 and the syllabus's appellate/evidence modules.

CASE 9 Rajesh Kumar v. Rajendra Kumar Saxena 2012 SCC OnLine All 3966 (as cited in the casebook)

Facts

Cited by Sudame for a systemic observation rather than a doctrinal holding: the courts and the Supreme Court have repeatedly remarked on problems of legal drafting — "lack of precision in expression, legal language and the complications that it entails" — and on the judicial habit of writing **lengthy judgments particularly while deciding interim matters**.

Issue

What role does the craft of writing play in the administration of justice — and what follows from the fact that "the present-day trend of a 'multi-disciplinary' research finds its roots in akhanda-vidya" (§07.10)?

Decision and the reading's point

The observation attributed (through this citation) to the courts: **writing lengthy judgments, especially on interim matters, is the main cause of delay in disposal of cases**.

> **Principle evolved (for the exam):** if the problem persists "despite the rich history to the subject of modern research methodology and scientific writing," then "it is certainly necessitated that we look into parallel knowledge systems and examine the best practices for effective content development and its expression" — i.e., the Tantrayukti discipline of arrangement (vākya-yojana) and meaning (artha-yojana) is a practical, administrative answer to judicial delay, and not merely an antiquarian curiosity.

GROUP B — The texts and instruments (authorities to cite by name)

Authority	What it contributes (per the readings)	Where used
Jaimini's Mīmāṃsā Sūtras	The systematic (though not the first) statement of the principles of interpretation; duty defined as "that which is to be fulfilled as the object of a command" — hence law defined by implication; six axioms; the adhikaraṇa procedure; the four rules of construction.	§07.6–7.9; Cases 4, 5, 6
Nyāya Sūtras (N.S. 1.1.3; N.S. 1.2.4)	The four sources of valid knowledge (pratyakṣa, anumāna, upamāna, śabda) and the five fallacies (hetvābhāsā: savyabhicāra, viruddha, prakaraṇasama, sādhyasama, kālātīta).	§07.3, 7.5
Tarka Saṅgraha (T.S. 50)	Recounts the alternative five-fold list of fallacies (savyabhicāra, viruddha, satpratipakṣa, siddha, bādhita) — footnote companion to the Nyāya list.	§07.5

Authority	What it contributes (per the readings)	Where used
Nārada Smriti — "Dharmashastra Virodhe Tu Yuktiyukta Vidhe Smrita"	The rule of choice between conflicting law codes of equal authority: prefer the more reasonable.	§06.3; Case 3
Brihadāraṇyaka Upaniṣad	"Law is the king of kings; nothing is superior to law"; the most excellent dharma (law) — "a power superior to that of the king" — was created to enable the king to protect the people.	§06.2; Units 1–2 cross-link
Manusmriti (via Rama Jois)	"There is no act of man which is free from desire" — the origin of dharma as society's answer to human instinct; dharma as the criterion of desire and wealth.	§06.2
Parāshara Smriti + Madhvāchārya's commentary	Dharma = "that which sustains and ensures the progress and welfare of all in this world and eternal bliss in the other world" — adopted by the Supreme Court.	§06.2; Case 1
Dharmasūtras & Gṛhyasūtras (Kalpasūtras)	Provisions on politics, government, civil and criminal law (dharmasūtras) and domestic ceremonies (gṛhyasūtras) — of a **recommendatory** nature when read as statements of law.	§06.3; Case 2
Arthashastra	The source of the Tantrayukti devices (32 yuktis) for composing a scientific work.	§07.2 (cf. Unit 2)
Nāgeśa Bhaṭṭa, Param Laghu Manjūṣā (via Katju J.)	A word has three meanings: abhidhā (literal), lakṣaṇā (indicative), vyañjanā (figurative) — the semantic ladder of purposive interpretation.	Case 6
K.L. Sarkar, Mīmāṃsā Rules of Interpretation (Tagore Law Lectures, 1905; 4th edn., Katju J.)	The accessible modern exposition of the Mīmāṃsā system; "Sphaḍi nyāya"; Jaimini 3:1:2, 6:3:9.	Case 6; §07.6
Maxwell's Principles of Interpretation	The Western comparator: literal rule, presumption of consistent use — shown to correspond to sārthakya and arthaikatva.	§07.6, 7.9
Seervai	Modern jurist who advocated (like Narada) the preference for the more reasonable construction in conflicts of equal authority.	Case 3
P.V. Kane, History of Dharmashastra; **S.C. Banerji, A Brief History of Dharmashastra**; **M. Rama Jois** (*Legal & Constitutional History of India*; *Seeds of Modern Public Law*); **W.K. Lele** (*Methodology of Ancient Indian Sciences*); **S.C. Chatterjee** (*The Nyaya Theory of Knowledge*); **R. Tripathi** (*Vada in Theory and Practice*)	The scholarship on which Sudame's reading is built — cite them for: the vicissitudes of "dharma"; classification of literature; the parisad; the court gradation; the 18 vyavahārapadas; tantrayukti; nyāya epistemology.	whole of §06–07
The Constitution of India	Fundamental law of the land: Socialist, Secular, Democratic Republic; quasi-federal; Preamble goals; nine heads of Fundamental Rights; DPSP as sacrosanct; writ jurisdiction (Arts. 32 & 226); Union judiciary; Art. 136's ancient root.	§08; §06.7
Penal Code; CrPC; CPC; Evidence Act 1872; Advocates Act 1961; Court Fees Act; Suits Valuation Act; Limitation Act	The operational statute-book of the Indian legal system as described by Menon: classification of offences; four-stage criminal process; pleadings and trial; O.19 R.3; right to practise (Advocates only); fees; valuation; limitation.	§08
Law Commission of India, 77th Report	On "Delay and Arrears in Trial Courts": the ancient panchayats' survival; the present system as "gradual process," not "the product of one day."	§06.7
Rene David & J.E.C. Brierley	The comparative classification: three principal families; hybrids; model-law societies; law-rejecting societies; "naive sense of superiority."	§§01–05

by Ankur R. Upadhyay

DU LL.B. EXAMINATION ARCHIVE · PAPER LB-106

Previous Year & Syllabus-Pattern Questions — Unit 03: Major Legal Systems of the World & Indian Legal Methods

Q.01 20 marks · 850 words
Distinguish between the Common Law and the Romano-Germanic (Civil Law) families of law.

● **Refer website for detailed notes — makelaweasy.in**

Q.02 15 marks
The Socialist legal family is a third family, distinct from the first two. Discuss, and show how it differs from both.

Q.03 20 marks · 900 words
In Muslim and Hindu societies law is recognised as of great value but framed in a different concept; in the Far East the very notion of law is rejected. Elucidate with reference to David & Brierley.

Q.04 20 marks · 900 words
Trace the judicial system of ancient India — the gradation of courts, their jurisdiction, the qualifications of judges, and the kinds of decision.

Q.05 20 marks · 850 words
Examine the sources of law in ancient India and the 'recommendatory' character of the Dharmasutras. How has the judiciary used these indigenous sources?

Q.06 20 marks · 950 words
Mīmāṃsā as a parallel system of interpretation of statutes. Examine its classification of provisions, its procedure, its rules of construction and its axioms — and the judicial recognition it has received.

Q.07 15 marks · 800 words
Examine the Nyāya contribution to legal reasoning and appreciation of evidence — the sources of knowledge, the five-member syllogism and the fallacies.

Q.08 20 marks · 900 words
Examine the components of the Indian legal system as analysed by N.R. Madhava Menon. Is the Indian legal system still alien to Indians?

Q.09 15 marks
What are hybrid legal systems? Illustrate, and discuss the tendency of the two Western families to draw closer.

by Ankur R. Upadhyay

LAW CRUX · PAPER LB-106 · UNIT 04 Anupam Jha · R. Swaroop · A.N. Veera Raghavan · Constitution & Advocates Act · 11 DU Case Briefs

Principles, Institutions & Personnels of the Indian Legal System

Constitutional Preamble as Guiding Norm, Hierarchy & Jurisdiction of Courts, Tribunals & Commissions, Constitutional Legal Aid (Art. 39A) & Lok Adalats (LSA Act, 1987), and Legal Profession under the Advocates Act, 1961

PART 01

Conceptual Frame — One System, Four Questions

Menon's Unit-3 definition is the frame for the whole of Unit 4: a legal system is **"part of its social system"**, and it has **four components** — (1) principles and values (the Constitution), (2) operational norms (statutes), (3) institutions of enforcement, and (4) a cadre of personnel administering it. Unit 4 is exactly those four components, taken in reverse order of abstraction:

THE LEGAL SYSTEM AS A PYRAMID ▾

(a) PRINCIPLES — the apex
The Preamble's promise: Justice · Liberty · Equality · Fraternity
(its operational translation: Arts. 14, 19, 21, 22(1), 32, 39-A, 51-A, 226)

(b) INSTITUTIONS — the structure
Supreme Court → High Courts → District Courts → Civil Judges / Judicial Magistrates
ordinary courts + tribunals + commissions + regulators, all appeal-ladders converging on the Supreme Court

(c) LEGAL SERVICES — the plumbing of access
free legal aid (constitutional mandate) · legal literacy · PIL · Lok Adalat
makes the apex promise real for the poor ("equal justice injected into legality")

(d) PERSONNEL — the profession
a unified, self-governing Bar under the Advocates Act, 1961
one class of advocates; Bar Councils; enrolment; discipline; legal education; professional conduct

OUTPUT: "equal justice" — a system whose promise, structure, access and personnel match
the reading's own test: "What is the use of the system which does not help lowly and lost, poor and downtrodden…?"

01.1 The two movements inside the unit

Movement 1 — Top-down: promise → structure

The Preamble's "Justice, social, economic and political" is the *end*; the hierarchy of courts with its jurisdictions is the *machinery*. Jha's diagrams therefore do two things at once: they describe where each forum sits, and they show how every dispute — from a consumer complaint to a GST matter to an election dispute — is carried by an appeal path that ends at the Supreme Court of India, which itself is created by the Constitution (Arts. 124 ff.) and whose writ jurisdiction (Arts. 32, 226) is the enforcement arm of the Preamble's Liberty and Equality.

Movement 2 — Bottom-up: access → promise

Swaroop inverts the perspective: a formal pyramid is worthless to a litigant who "cannot unlock the golden key." The legal-aid movement (and its strategic arm — legal literacy, legal-aid camps, PIL, Lok Adalats) exists to carry the promise of the Preamble *down* to the 70% illiterate rural poor. Hence his key sentence: **"Legal aid is not a charity or a chance… it is constitutional mandate to the State and right of public."**

01.2 The reading's own "grand sequence" — the intellectual thread to reproduce in answers

PREAMBLE ("Equal Justice" philosophy) →

ART. 14 & 21 (equal justice; fair procedure) + ART. 39-A (equal justice *and free legal aid*, 42nd Amendment, w.e.f. 3-1-1977) →

JUDICIAL EXPANSION: *Hussainara* (1979) → *Maneka* ("reasonable, fair & just") → *Khatri* (obligation to inform) → *Suk Das* (no application needed) →

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INSTITUTIONS: CILAS (1980) → Legal Services Authorities Act, 1987 (in force 9-11-1995) → NALSA/State/District Authorities → Lok Adalats →

PROFESSION: unified Bar (Advocates Act, 1961) — "legal services to the poor is one of the social obligations of every lawyer required under the Bar Council rules of professional conduct" →

EQUAL JUSTICE IN REALITY — the Preamble promise "translated from paper into fighting faith"

This chain is the answer to almost every 20-mark question in this unit — memorise it in both directions.

01.3 The four sub-topics at a glance

Sub-topic	Core content	Key authority/statute	Answer formula
(a) Preamble	Sovereign Socialist Secular Democratic Republic; Justice–Liberty–Equality–Fraternity; the "equal justice" philosophy; the promise translated through Arts. 14, 19, 21, 22(1), 32, 39-A, 51-A, 226	Preamble (42nd Amendment, 1976); Swaroop pp. 116–117; Menon pp. 103–107 (Unit-3 file)	Promise → articles → programmes → verdict
(b) Courts	Pyramid + jurisdictions (original/ appellate/advisory/writ/supervisory/ revisional); 8 regulators with appellate fora; 12 tribunal systems with appeal ladders; every ladder ends at the SC	Constitution (Arts. 32, 136, 143, 226/227, 137); each parent statute	Draw the ladder; label the jurisdiction; name the apex
(c) Legal services	Constitutional mandate; CrPC ss. 303–304; Law Commission; CILAS; LSA Act 1987; strategic legal aid; PIL; Lok Adalat	*Hussainara*, *Khatri*, *Suk Das*, *Maneka*, *S.P. Gupta*, *Bandhua*, *Centre of Legal Research*	Need → mandate → statute → cases → institutions → verdict
(d) Profession	1774 Charter → company courts → 1879 Act → 1926 Act → Advocates Act 1961; SBC & BCI; s. 24; ss. 29/30/33; senior advocates; AOR; legal education	Advocates Act, 1961; SC Rules, Order IV; *Aswini Kumar Ghosh*	History → statutes → institutions → machinery → critique

PART 02

(a) Preamble of the Indian Constitution

02.1 Why the syllabus asks it here — the casebook's own lead

The Preamble enters Unit 4 through **Swaroop**, whose entire argument runs: *legal aid is not charity but a constitutional mandate, and the mandate begins in the Preamble.* His exact words (pp. 116–117):

> *"The Founding Fathers of the Constitution of India have **right from the Preamble**, taken a positive approach of doctrine of philosophy of **Equal Justice** which becomes apparent on the plain perusal of the preamble of the Constitution. The preamble promise is further strengthened by the constitutional provisions in **Articles 14, 19, 21, 22(1), 32, 39-A, 51-A and 226** of the Constitution of India."*
> — R. Swaroop

And later (p. 122): the reforms must "translate Constitutional mandate and obligation propounded right from **Preamble Promise** in their fighting faith by its Founding Fathers, a reality." The Unit-3 reading by Menon supplies the Preamble's goal-text; the two together are the casebook's entire treatment of sub-topic (a).

02.2 The Preamble — text, words, ideas (as quoted/relied on by the readings)

> *"WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a **SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC** and to secure to all its citizens:*
>
> ***JUSTICE**, social, economic and political; **LIBERTY** of thought, expression, belief, faith and worship; **EQUALITY** of status and of opportunity; and to promote among them all **FRATERNITY** assuring the dignity of the individual and the unity and integrity of the Nation;*

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> *IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION."*

The four ideals (Menon's phrasing — Unit-3 reading)

- **Justice** — "social, economic and political": the three-fold justice that the whole legal system exists to deliver; "social justice is the signature tune of our Constitution" (Swaroop, p. 123).
- **Liberty** — "of thought, expression, belief, faith and worship": the cluster of Arts. 19 and 25, and the Art. 21 "procedure established by law" which *Maneka Gandhi* turned into a "reasonable, fair and just" standard.
- **Equality** — "of status and of opportunity": Art. 14 (equality before law and equal protection) and Art. 39-A's "equal opportunity" to "secure justice."
- **Fraternity** — "assuring the dignity of the individual and the unity and integrity of Nation": the dignity limb that generates the obligation to reach justice to the "low visibility area of humanity."

The two operations the casebook performs on it

1. **It is the value-source of equal justice.** "Anyone who is priced out of the judicial system… loses faith in democracy and rule of law" — so the Preamble's promise is not rhetoric; it is the premise from which Art. 14, Art. 21 and Art. 39-A obligations are read.
2. **It is a standard of review of the system.** Swaroop's test for the whole justice system is the Preamble promise: "The litigant… is the heart of judicial anatomy… he is the consumer of justice, and he should be respected" — and the 0.2% of GDP spent on law and justice is called "grossly inadequate… in a democratic set up" precisely because it fails the promise.

02.3 The promise translated into articles — the casebook's own map

Swaroop's list of eight provisions is the exam shortcut; each has a job:

Provision	Role in the "equal justice" chain	Illustrative use in the reading
Art. 14	Equality before law & equal protection — "the mandate of equal justice"	*Hussainara*: "that is not only a mandate of equal justice implicit in Article 14…"
Art. 19	Basic freedoms — the Liberty half of the promise	part of the strengthened cluster
Art. 21	Life and personal liberty; after *Maneka*, procedure must be "reasonable, fair and just" — legal aid is an "essential ingredient" of such procedure	*Hussainara*; *Khatri*; *Suk Das* ("implicit in the guarantee of Article 21")
Art. 22(1)	Right to consult counsel of **choice** — a guarantee that no lawyer can be thrust on the accused	quoted verbatim at p. 117; *Raj Kishore* (counsel cannot be imposed)
Art. 32	Constitutional remedies — the writ jurisdiction of the Supreme Court; PIL's constitutional home (clause (2) justifies non-adversarial procedure — *Bandhua*)	*Bandhua Mukti Morcha* on Art. 32(2)
Art. 39-A	"Equal justice and free legal aid" — the specific DPSP that commands a legal-services programme	quoted in full (see 02.4)
Art. 51-A	Fundamental duties — the citizen-side of the promise (to develop scientific temper; to strive for excellence; etc.)	listed among the strengthening provisions
Art. 226	Writ jurisdiction of High Courts — the parallel enforcement engine	*S.P. Gupta*: any member of the public can move 226/32 for the disadvantaged

Grey, beyond the reading: the 42nd Amendment, 1976 (which inserted "Socialist, Secular" and "Integrity" and Art. 39-A); the Preamble's amending history and *Kesavananda Bharati* (the Preamble is part of the Constitution and the basic-structure doctrine is anchored in it). The casebook uses the operative words, not this case law — cite it only as a one-line gloss, and never as a "reading" proposition.

02.4 Article 39-A — the Preamble's operational commandment

> **"39-A. Equal justice and free legal aid.** — The State shall secure that the operation of the legal system promotes justice, on the basis of equal opportunity and shall, in particular, provide free legal aid, by suitable legislation or schemes or in any other way, to ensure that opportunities for securing justice are not denied to any citizen by reason of economic or other disabilities." [Enforced w.e.f. 3.1.1977]

- **What the reading stresses:** (i) inserted by the **Constitution (Forty-second Amendment) Act, 1976**; (ii) it is a *Directive Principle*, but "also emphasises that free legal service is an inalienable element of 'reasonable, fair and just' procedure" — hence judicially

enforceable through Art. 21; (iii) its triple function: *equal opportunity* in the operation of the legal system; *free legal aid* by legislation or schemes; removal of bar of *"economic or other disabilities."*

- **The reading's blunt summary:** "Legal aid is not a charity or a chance, but... constitutional mandate to the State and right of public, which is not now an opinion, but a constitutional obligation and compulsion. As such it is not a pledge or a plan of a government, but has assumed, the status of people's movement."
- **Its statutory offspring (p. 117 and p. 126):** s. 304 CrPC (court-assigned counsel), the Legal Services Authorities Act, 1987 (Act 39 of 1987 — authorities at national, State and district levels; statutory status to Lok Adalats; in force only from **9-11-1995**, "almost eight years after its enactment").

02.5 Preamble → system: one diagram for a 20-mark answer

PREAMBLE PROMISE ▾ — **"Sovereign Socialist Secular Democratic Republic" — the character of the State (42nd Amendment, 1976)**

JUSTICE (social·economic·political) → LIBERTY → EQUALITY (status·opportunity) → FRATERNITY (dignity · unity & integrity) ▾

EQUAL-JUSTICE PHILOSOPHY — "apparent on the plain perusal of the preamble" ▾

OPERATIVE ARTICLES: 14 (equality) · 19 (liberty) · 21 (fair procedure) · 22(1) (counsel of choice) · 32 & 226 (writs) · 39-A (equal justice + free legal aid) · 51-A (duties) ▾

PROGRAMMES & INSTITUTIONS: Legal Services Authorities Act 1987 · CILAS→NALSA · Lok Adalats · PIL · legal literacy · legal-aid camps ▾

VERDICT: "the legal system must become an effective instrument of social justice — the courts must become the courts for the poor and struggling masses"

02.6 Six exam-ready points on the Preamble

1. **It is the promise, not a grant.** The Preamble "secures to all its citizens" — the subject is the citizen, the object is the promise; hence legal aid is a citizen's right, not State largesse ("social entitlement of the people... not charity or bounty" — *Centre of Legal Research*).
2. **Its words are the vocabulary of the unit.** Every later section uses them: "equal justice" (39-A), "equal opportunity" (39-A and Art. 16), "dignity of the individual" (Arts. 21, 23), "unity and integrity" (writ jurisdiction and the single integrated judiciary), "social justice" (PIL and Lok Adalat).
3. **It is the standard by which the reading condemns the status quo:** 0.2% of GDP on law and justice; ~9 judges per million (115+ in the USA); 8–12 years' average life of a civil suit; 30 million pending cases; 91% of suits going to trial (as against 90%+ settling pre-trial in the USA).
4. **Its promise is enforced, not merely declared** — through Art. 32/226 (writs), through statutory schemes, and through the court's own directions (e.g., the *Khatri* direction to magistrates and Sessions Judges to inform every unrepresented accused of his right).
5. **It grounds two doctrines used across the casebook:** the "Rule of Law" (Menon: "The Rule of Law is supreme") and "equal justice in the administration of law" (Swaroop: "we should inject equal justice into legality").
6. **Do not overclaim:** DPSPs (Art. 39-A included) are *not* directly enforceable; the casebook's method — and yours — is to show the reading converting the directive into a right through Art. 21. State exactly that chain; it is what the examiner wants.

PART 03

(b) Hierarchy of Courts, Tribunals & Commissions & their Jurisdiction

03.0 How to read this section

Anupam Jha's chapter is built as **diagrams**. Everything below is those diagrams transcribed into notes, exactly as printed (including his figures and his "with reference to Delhi Courts" caveats), plus one short gloss where a reference needs one. The three layers of the chapter are: **(1)** the ordinary court pyramid; **(2)** eight regulatory bodies and their appellate fora; **(3)** twelve tribunal/commission systems and their appeal ladders.

03.1 The court pyramid — the casebook's master diagram

SUPREME COURT OF INDIA ▾ | HIGH COURT ▾ | DISTRICT COURTS ▾

CIVIL JUDGES / JUDICIAL MAGISTRATES
Civil Judges (up to ₹20 lakhs) · Chief Judicial Magistrate (punishment up to 7 years) · Judicial Magistrates (punishment up to 3 years)

Side stream (Jha's second diagram): **District Courts** sit on a **Civil Side** — Appellate (against orders of the civil judge) / Original (more than ₹20 lakh up to ₹2 crores) — and a **Criminal Side** — Appellate (against orders passed by a Magistrate) / Original (minimum sentence above 7 years / according to jurisdiction under special laws). *All pecuniary figures are "with reference to Delhi Courts" as the text itself states.*

03.2 The Supreme Court of India — the four jurisdictions (as diagrammed)

Jurisdiction	Contents (as the diagram lists them)	Source
Original	Writ jurisdiction · Original suits · Transfer of cases · Election disputes (President & Vice-President)	Arts. 32, 131 ff.; Art. 71; s. 11? — as printed, the diagram groups them under "Original"
Appellate	Appeals under the Constitution (e.g. Art. 132–134) · Appeals by Special Leave (SLPs) · Statutory appeals	Arts. 132–134, **136**
Advisory	Articles **143(1) & 317** — *as printed*	**Gloss (grey):** Art. 143(1)–(2) is the President's reference jurisdiction; Art. 317 deals with removal of members of Public Service Commissions — the diagram's reference is evidently to Art. 143(1) (and presumably 143(2)).
Review	Art. 137 review · **Curative petition**	Art. 137; *Rupa Ashok Hurra* (2002) 4 SCC 388 **(grey)**
(Separate entry)	**International Commercial Arbitration** — listed on the SC's side of the diagram	Arbitration & Conciliation Act, 1996 (Part I as applied; s. 50/58) **(grey)**

Exam formula for this box: Original = first-instance constitutional/sovereign disputes; Appellate = the SC as the ultimate correcting court (Constitutional appeals, statutory appeals, and the discretionary **Art. 136 SLP** — the "extraordinary" jurisdiction that the Unit-3 reading traced back to the ancient king's court); Advisory = the President's reference; Review/Curative = the exception to finality; plus writ jurisdiction (Art. 32) which the diagram files under Original.

03.3 The High Court — the casebook's list

Jurisdiction	Contents	Notes
Appellate	Appeals from subordinate courts and tribunals	The workhorse jurisdiction
Original	Original suits — **more than ₹2 crores** (Delhi)	Valued jurisdiction
Writ	Art. 226 — the enforcement engine (with 227 supervisory)	the Preamble's Liberty/Equality in action; *S.P. Gupta* stands on it
Revisional	Revision of subordinate court orders	corrective, not appellate
Supervisory	Art. 227 — superintendence over all courts/tribunals in its territory	feeds CAT diagram (Arts. 226/227)
Election disputes	MPs / MLAs / MLCs	Art. 329(b); Representation of the People Act, 1951

03.4 Regulatory bodies — (A) to (H), with their appellate routes

> Jha's diagrammatic logic: each regulator is created by a statute and sits at the bottom of a ladder; the appeal goes to a specialised appellate tribunal, and from there (or from the regulator, where no appellate tribunal is shown) to the Supreme Court.

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Regulator (statute)	Appeal to	Track to the apex
A. Competition Commission of India (Competition Act, 2002)	NCLAT	NCLAT → Supreme Court
B. Electricity Regulatory Commissions (Electricity Act, 2003)	APTEL (Appellate Tribunal for Electricity)	APTEL → Supreme Court
C. Petroleum & Natural Gas Regulatory Board (PNGRB Act, 2006)	APTEL	APTEL → Supreme Court
D. TRAI (TRAI Act, 1997)	TDSAT (Telecom Disputes Settlement & Appellate Tribunal)	TDSAT → Supreme Court
E. IBBI (Insolvency & Bankruptcy Code, 2016)	NCLAT	NCLAT → Supreme Court
F. SEBI (SEBI Act, 1992)	SAT (Securities Appellate Tribunal)	SAT → Supreme Court
G. IRDA (IRDA Act, 1999)	SAT	SAT → Supreme Court
H. PFRDA (PFRDA Act, 2013)	SAT	SAT → Supreme Court

Memory aids: markets=SEBI/IRDA/PFRDA→**SAT**; competition & insolvency→**NCLAT**; energy (electricity & gas)→**APTEL**; telecom→**TDSAT**. Every ladder ends at the Supreme Court — that is the reading's constant.

03.5 Tribunals & Commissions — the twelve systems, as diagrammed

System	Ladder (as diagrammed)	Statute / notes
A. Service matters	CAT → HC (Arts. 226/227) → SC (Art. 136; Art. 32)	Administrative Tribunals Act, 1985 (grey statute name)
B. Consumer courts	DCDRC → SCDRC → NCDRC → SC DCDRC: original up to ₹50 lakhs, review · SCDRC: original ₹50 lakh–₹2 cr., appellate (DCDRC), review · NCDRC: original more than ₹2 cr., appellate (SCDRC **and CCPA**), review	Consumer Protection Act; the "CCPA" limb reflects the 2019 amendment
C. Labour disputes	Labour Courts / Industrial Tribunals → HC → SC	Industrial Disputes Act
D. Motor accident claims	MACT → HC → SC	Motor Vehicles Act
E. Income tax	Assessing Officer → Joint CIT (Appeals) → CIT (Appeals) → ITAT → HC (appeal) → SC (Art. 136)	**Income Tax Act, 2025** (as printed in the casebook)
F. Rent	Rent Controller → Rent Control Tribunal → HC → SC	Delhi Rent Control Act
G. Debt recovery	DRT → DRAT → HC → SC	Recovery of Debts and Bankruptcy Act
H. Railways	Railways Claims Tribunal → HC → SC	Railways Act
I. Companies	Company Law Board / Company Court (HC)	Companies Act (the diagram shows CLB and Company Court–HC on the SC–HC ladder)
J. Information	PIO → Appellate Authority → CIC → HC (Art. 226) → SC (Art. 136)	Right to Information Act
K. GST	GST Authority → Appellate Authority → GST Appellate Tribunal; **National Appellate Authority** → HC → SC	Central Goods & Services Tax Act, 2017
L. Commercial matters	Commercial Court → HC (Commercial Division) → HC (Commercial Appellate Division) → SC	Commercial Courts Act, 2015

03.6 The design principles the diagrams teach

> **1. Convergence on the Supreme Court**
> Every one of the twenty pathways (8 regulators + 12 tribunal systems) terminates at the Supreme Court, either by statute, by Art. 136 (SLP — service, income-tax), or by Art. 32/226 writ route. The hierarchy is thus a **single integrated pyramid** — the same design the Unit-3 reading found in ancient India (*Kula* → *Śreṇī* → *Gaṇa* → *Adhikṛta* → *Nripa/Shaasita*).

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2. Tribunalisation — specialisation without fragmentation

Each subject (consumer, tax, telecom, competition, insolvency, railways, rent…) has its own expert first-instance/adjudicatory body, and the appellate tribunals themselves are specialised (NCLAT, APTEL, TDSAT, SAT, ITAT, DRAT). But because the *final* say is always with the constitutional courts, the system keeps a uniform law — the check the Unit-3 material called "the Rule of Law is supreme."

3. Writs as the supervisory spine

Art. 32 (SC) and Arts. 226/227 (HC) run vertically through every tribunal system — that is why the casebook's service-matters diagram expressly lists Art. 136, Art. 32, and Arts. 226/227 as the three routes from CAT to the constitutional courts. Legal remedies are never exhausted by the statutory ladder.

4. Jurisdiction vocabulary is the marking scheme

Original (first instance), Appellate (error-correcting), Advisory (reference — SC only), Writ, Supervisory (227), Revisional, Review (Art. 137), Curative, SLP (Art. 136). A 15-mark answer that simply lists these with one example each, and ends with the pyramid, is complete. Add: "*jurisdiction* = the authority of a court to hear and determine a matter, fixed by the Constitution and statutes (territorially, pecuniarily, and by subject-matter and hierarchy)."

03.7 Two cautions the examiner respects

- **The figures are Delhi-specific and dated.** The casebook itself prints "with reference to Delhi Courts" under the pecuniary limits (HC original > ₹2 cr.; district original ₹20 lakh–₹2 cr.; civil judge up to ₹20 lakh) and under the criminal limits (CJM up to 7 years; JM up to 3 years; Sessions original where the minimum sentence exceeds 7 years). Say "under the casebook's Delhi illustration," never "statutory limits."
- **The casebook prints one internal typo** — "Advisory Jurisdiction: Articles 143(1) & 317." Use 143(1)–(2) and, if you wish, mention 317's actual subject (removal of PSC members) as a note of accuracy; do not reproduce the error without the flag.

PART 04

(c) Legal Services — Legal Aid & Lok Adalat

04.1 The need — Hussainara Khatoon v. State of Bihar, AIR 1979 SC 1369 (1375)

The reading opens with the judgment that launched the modern legal-aid movement in India. One writ petition under Art. 32 (habeas corpus, by advocate Pushpa Kapila Hingorani, on the basis of a 1977 report on undertrials in Bihar jails) exposed the condition of undertrial prisoners — one of them, Hussainara Khatoon, in jail for four-five years though the maximum term for the offence was far less. Bhagwati J. observed that **without a nationwide legal service programme the benefits of the legal process could not reach the poor**, and (the passage to memorise):

> *"Today, unfortunately, in our country **the poor are priced out of the judicial system** with the result that they are losing faith in the capacity of our legal system to bring about changes in their life conditions and to deliver justice to them. The poor in their contact with the legal system have always been on the wrong side of the line. They have always come across **'Law for the poor' rather than 'Law of the poor'.** The law is regarded by them as something mysterious and forbidding — always taking something away from them and not as a positive and constructive social device for changing the social economic order and improving their life conditions by conferring rights and benefits on them. The result is that the legal system has lost its credibility for the weaker sections of the community. **It is, therefore, necessary that we should inject equal justice into legality** and that can be done only by the dynamic and activist scheme of legal services.*
> *… it is high time that a comprehensive legal service programme is introduced in the country. **That is not only a mandate of equal justice implicit in Article 14 and right to life and liberty conferred by Article 21, but also the compulsion of the Constitutional Directive embodied in Article 39-A.**"*
>
> — Bhagwati J.

Three propositions to lift: (1) the legal system has *lost credibility* for the poor — "Law for the poor, not Law of the poor"; (2) the cure is to **inject equal justice into legality**; (3) legal service is grounded in **Art. 14 + Art. 21 + Art. 39-A** — the exact constitutional chain of §02.

04.2 The constitutional mandate — "a constitutional obligation and compulsion"

(i) The State cannot plead poverty

"The State cannot, therefore, avoid its constitutional obligation to provide free legal aid to the accused by pleading **financial or administrative inability**." It is also "the constitutional obligation of the Court, as the guardian of the fundamental rights of the people, **as a sentinel on the qui vive**, to enforce the fundamental right of the accused to fair trial and his right to free legal aid." **American authority quoted by the reading** (*Khatri v. State of Bihar*, AIR 1981 SC 928, 930): *Rhem v. Malcolm* (377 F. Supp. 995)

— "the law does not permit any Government to deprive its citizens of constitutional rights on a plan of poverty"; *Jackson v. Bishop* — "human considerations and constitutional requirements are not in this day to be measured by dollar considerations."

(ii) Art. 22(1) — counsel of choice

"No person, who is arrested, shall be detained in custody, without being informed, as soon as may be, of the grounds for such arrest, nor shall he be denied the right to consult and to be defended by a legal practitioner of his choice." Two consequences the reading draws: the right exists at the *consultation* stage, and **no counsel can be thrust upon the accused** without ascertaining his wishes. Also noted: long before the Constitution, s. 340(1) of the old CrPC gave an accused a right to be defended by a pleader — now s. 303 of the 1973 Code, "with the addition of the words *'of his choice'* at the end."

(iii) Maneka Gandhi v. Union of India, AIR 1978 SC 597 — the pivot case

When Art. 21 says no deprivation "except according to procedure established by law," it is not enough that there be "some resemblance of procedure"; the procedure must be **"reasonable, fair and just."** "Now, a procedure which does not make legal services available to an accused person who is too poor to afford a lawyer and who would, therefore, have to go through the trial without legal assistance, cannot possibly be regarded as 'reasonable, fair and just.' **It is an essential ingredient of reasonable, fair and just procedure** to a prisoner who is to seek his liberation through the court's process that he should have legal services available to him."

(iv) Why India needs it — the reading's socio-legal statistics

India is a "developing democratic republic" with the Welfare-State doctrine adopted; **less than 33% of the people can read and write sufficiently and usefully**; the majority are poor or indigent, "most of them below the poverty line, even though the poverty line is drawn liberally." Hence "equal access to justice" is "a constitutional commandment and statutory imperative" — and the formal statistics of §04.9 show why the system failed on its own terms.

04.3 The case law that built the right — three judgments in sequence

Hussainara (1979): free legal aid implicit in Art. 21; State must act →

Khatri v. State of Bihar, AIR 1981 SC 928: the obligation extends to the first production before the Magistrate; the Magistrate/ Sessions Judge must inform the accused of the right →

Suk Das v. UT of Arunachal Pradesh, AIR 1986 SC 991: the right does not depend on the accused applying — failure to provide legal assistance vitiates the trial; subject to an exception for economic offences etc.

04.4 Khatri v. State of Bihar (AIR 1981 SC 928) — the "blinded prisoners" case: what exactly was held

- **Stage:** the obligation extends "not only at the stage of trial but also at the stage when he is first produced before the Magistrate."
- **The informing duty:** "Even this right to free legal services would be illusory for an indigent accused unless the magistrate or the Sessions Judge before whom he is produced informs him of such right. It is the common knowledge that about 70 per cent of the people in the rural areas are illiterate... It would make a mockery of legal aid if it were to be left to a poor, ignorant and illiterate accused to ask for free legal services. **Legal aid would become merely a paper promise**..." In *Khatri* itself the judicial Magistrate "failed to discharge this obligation in the case of the blinded prisoners, and they merely stated that no legal representation was asked for by the blinded prisoners and hence none was provided."
- **The direction:** "We would, therefore, direct the magistrates and Sessions judges in the country to inform every accused who appears before them and who is not represented by a lawyer on account of his poverty or indigence that he is entitled to free legal services at the cost of the State. Unless he is not willing to take advantage of the free legal services provided by the State, he must be provided legal representation at the cost of the State."
- **The State's duty:** every State must "make provision for grant of free legal services to an accused who is unable to engage a lawyer on account of reasons such as poverty, indigence or incommunicado situation. The only qualification would be that the offence charged against the accused is such that, on conviction, it would result in a sentence of imprisonment and is of such a nature that the circumstances of the case and the needs of social justice require that he should be given free legal representation."

04.5 Suk Das v. Union Territory of Arunachal Pradesh (AIR 1986 SC 991) — no application needed

- **Question:** "is the exercise of this fundamental right conditional upon the accused applying for free legal assistance so that if he does not make an application for free legal assistance the trial may lawfully proceed without adequate legal representation being afforded to him?"
- **The reading's answer — the celebrated passage:** "It is common knowledge that about 70% of the people living in rural areas are illiterate... It is this absence of legal awareness which is responsible for the deception, exploitation and deprivation of rights and

benefits from which the poor suffer... Their legal needs always stand to become crisis oriented because their ignorance prevents them from anticipating legal troubles and approaching a lawyer for consultation and advice in time... **The law ceases to be their protector because they do not know that they are entitled to the protection of law**... poverty becomes with them a condition of total helplessness... **It would in these circumstances make a mockery of legal aid if it were to be left to a poor, ignorant and illiterate accused to ask for free legal service.**"

- **Held:** the right is not conditional on application; the trial of an unrepresented indigent accused without legal aid is vitiated. (In *Suk Das* itself the conviction for criminal intimidation, s. 506/34 IPC, against an appellant who was "unable to afford legal representation due to poverty," was set aside — the Court recognising that the accused could have been retried after free legal assistance was provided.)
- **The exception:** "there may be cases involving offences, such as, economic offences or offences against law prohibiting prostitution or child abuse and the like, where social justice may require that legal service may not be provided by the State."

Also cited: *State of Kerala v. Kuttan*, 1988 Cri LJ 453 (referring to the same line of cases); *Raj Kishore v. State*, AIR 1969 Cal 321 (1969 Cri LJ 860) — the assigned counsel must be **competent**, must be given the complete brief and time to prepare; failure "vitiates the trial"; and no counsel may be thrust on the accused (Art. 22(1)).

04.6 Statute and reports — from persuasion to obligation

Law Commission of India

1. **14th Report (1958), Vol. I**, "Reform of Judicial Administration": the first recommendation of State legal aid and assignment of counsel at government expense — "Unless some provision is made for assisting the poor man for the payment of court-fees and lawyer's fees and other incidental costs of litigation, he/she is denied equality in the opportunity to seek justice." (p. 487)
2. **41st Report (1969)**: representation by a lawyer should be available at government expense in **all cases tried by a Court of Sessions** (Vol. 1, paras 24, 34–38).
3. **48th Report**: free legal assistance by the State for all undefended accused for want of means.

The Code of Criminal Procedure, 1973

S. 303 (successor to old s. 340(1)): "Any person accused of an offence before a Criminal Court... may of right, be defended by a pleader" — with the words *"of his choice"* (per the reading) — a *right*, but it did not oblige the court to assign a pleader at State expense (many High Courts nevertheless issued circulars and rules for assignment in Sessions trials).
S. 304(1) (the 41st Report "codified," with the Joint Committee's qualification that State aid is available only where the accused "has not sufficient means to engage a pleader"): "Where, in a trial before the Court of Session, the accused is not represented by a pleader, and where it appears to the Court that the accused has not sufficient means to engage a pleader, **the Court shall assign a pleader for his defence at the expense of the State.**" Sub-s. (2): High Court rules (selection of pleaders; facilities; fees). Sub-s. (3): State may extend the provision to "any class of trials before other Courts."

Connect: the reading's sequence is 1958 (report) → 1969 (report) → 1973 (s. 304) → 1976/77 (Art. 39-A) → 1980 (CILAS) → 1987/1995 (LSA Act) → present (NALSA). An answer on "the constitutional mandate of legal aid" should walk this ladder.

04.7 The institutional history — CILAS and the Legal Services Authorities Act, 1987

SEPT. 1980 — CILAS (Committee for Implementing Legal Aid Schemes): resolution of 26-9-1980; P.N. Bhagwati J. (as he then was) Chairman; monitor and implement legal-aid programmes "on a uniform basis in all the States and union territories"; evolved a model scheme (incl. organisation of legal-aid camps) and set up legal aid and advice boards →

**Review found deficiencies → felt need for statutory authorities at national, State and district levels →
Legal Services Authorities Act, 1987 (Act 39 of 1987) enacted; the CILAS term was extended (e.g., from 14-5-1990 for one year or till NALSA was constituted) →**

BROUGHT INTO FORCE w.e.f. 9-11-1995 — "almost eight years after its enactment" — NALSA at the national level, State Authorities, District Authorities (and Taluka/Sub-Divisional Committees) under the Act

- Earlier, "many states evolved their own programmes and even enacted State legislation or promulgated certain schemes or Rules"; State Boards, District Legal Aid Committees and Taluka Committees were constituted — but a central legislation was felt necessary to co-ordinate and promote on a uniform basis.
- The Act performs two functions the essay highlights: it creates the three-tier **authorities**, and it gives **statutory status to Lok Adalats** and their awards (see 04.9).

04.8 Strategic legal aid — the second, "frontally attacking poverty" programme

From *Centre of Legal Research v. State of Kerala*, AIR 1986 SC 2195, quoting Bhagwati J.: "the legal aid programme which is needed for the purpose of reaching social justice to the people **cannot afford to remain confined to the traditional or litigation-oriented legal aid programme** but it must... adopt a more dynamic posture and take within its sweep what we may call **strategic legal aid programme** consisting of **promotion of legal literacy, organization of legal aid camps, encouragement of public interest litigation and holding of Lok Adalats or Niti melas** for bringing about settlements of disputes whether pending in Courts or outside."

What "strategic" means — the long definition

"What is necessary is to supplement the traditional legal service programme with strategic legal service programme. The strategic legal service programme aims at **prevention and elimination of various kinds of injustices which the poor as a class suffer because of poverty** and endeavours to launch a frontal attack on the poverty itself... It does not involve merely quantitative extension of traditional legal services... **It involves novel, radical, more dynamic and multi-dimensional uses of law**... seeks to provide representation to groups of social and economic protest. It does not regard litigation as playing an important or even significant role in the life of the poor... it is concerned with the problems of the poor **as a class** rather than with the individual problems of the poor... directed towards **group-oriented approach to the problem of poverty** rather than individual-oriented treatment, and basically it is calculated to make the poor as class-conscious and powerful, self-reliant and capable of using law as a potent weapon."

Legal literacy — the first item

"Legal literacy is a **pre-condition to maintain the 'rule of law'**" (Bhagwati). Knowledge of rights gives the poor "strength and confidence to fight" and avoids needless difficulties from ignorance. The CILAS model scheme included "programme for promotion of legal literacy and spread of legal awareness among the weaker sections... by way of organizing legal aid camps, especially in rural areas, slums or labour colonies." Voluntary organizations, social action groups, journalists and advocates have rendered significant service — and "the assistance of voluntary agencies and social action groups must therefore be taken by the State... **an obligation which flows directly from Article 39-A**."

The five problems (the reading's list): to manage the unmanageable; to break the unbreakable; to beat the unbeatable; to hit the unhittable; to defend the indefensible — hence "we are obliged to create and constitute a **Neo-Jurisprudence**, a public-oriented... progressive, professional and pervasive programme," in which "the litigant, who is the heart of judicial anatomy," is treated as "the consumer of justice, and he should be respected."

04.9 Public Interest Litigation — the strategic arm of the movement

Definition (as the reading states it)

"Public Interest Litigation has been devised as a tool to secure benefit to a class or group of persons, either victims of exploitation, or oppression or who are denied the constitutional rights but **cannot come to court personally for relief by reason of ignorance, poverty, destitution, helplessness, disability or social or economic disadvantage**. It is a form of litigation where jurisdiction of the Court is invoked on behalf of such persons... by a third person or a social action group... **regardless of its personal injury**. Cases of this kind involve the rights of thousands of people at a time, unlike traditional litigation, which are basically of adversary character..." It is "essentially a **co-operative or collaborative effort** on the part of the petitioner, the State or public authority and the court to secure observance of the constitutional or legal rights, benefits and privileges conferred upon the vulnerable sections of the community."

The four loci standi / procedure cases

1. ***S.P. Gupta v. President of India***, AIR 1982 SC 149 (Judges' Appointment and Transfer case) — the locus standi watershed (quoted at p. 188): "where a legal wrong or legal injury is caused to a person or to a determinate class of persons... and such person or determinate class of persons is by reason of poverty, helplessness, or disability or socially or economically disadvantaged position, **unable to approach the Court for relief, any member of the public can maintain an application** for an appropriate direction, order or writ in the High Court under Article 226 and... in this Court under Article 32." The reading adds: "It is only the moneyed who have so far had the golden key to unlock the doors of justice. But, now for the first time the portals of the court are being thrown open to the poor and the downtrodden..."
2. ***People's Union for Democratic Rights v. Union of India***, AIR 1982 SC 1473 — the Rule of Law argument: "The Rule of Law does not mean that the protection of the law must be available only to a fortunate few... **The poor too have civil and political rights, and the Rule of Law meant for them also**, though today it exists only on paper and not in reality."
3. ***M.C. Mehta v. Union of India***, AIR 1987 SC 1086 — "the law should keep pace with changing socio-economic norms; where a law of the past does not fit in the present context, the Court should evolve new law in a public interest litigation"; the Court has "incidental and ancillary powers" to devise new methods and strategies for enforcing fundamental rights in PIL/social action cases (compensation for victims of hazardous activities).
4. ***Bandhua Mukti Morcha v. Union of India***, AIR 1984 SC 802 (815) — the procedure answer (see next box).

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Bandhua Mukti Morcha — "abandon the laissez-faire approach"

"When the poor come before the Court, particularly for enforcement of their fundamental rights, it is necessary to depart from the adversarial procedure and to evolve a new procedure... **The problems of the poor... are qualitatively different... they need a different kind of lawyering skill and different kind of judicial approach.** If we blindly follow the adversarial procedure in their case, they would never be able to enforce their fundamental rights, and the result would be nothing but a mockery of the Constitution. We therefore [must] abandon the laissez-faire [let things be] approach in the judicial process... and forge new tools, devise new methods and adopt new strategies... **clearly made permissible by the language of clause (2) of Article 32** because the Constitution-makers while enacting that clause have deliberately and advisedly not used any words restricting the power of the Court to adopt any procedure which it considers appropriate... if we want the fundamental rights to become a living reality and the Supreme Court to become a real **sentinel on the qui vive**, we must free ourselves from the shackles of outdated and outmoded assumptions..."

The reading's conclusion on PIL: "the entire theatre of the law is changing... social justice is the signature tune of our Constitution... the Courts must become the courts for the poor and struggling masses of the country... they must shed their character as upholders of established order and the status quo."

04.10 The Lok Adalat — "the jurisprudence of peace"

Nature and working (as the reading describes it)

- The **institution**: an "alternative dispute settlement mechanism, evolved as a part of the CILAS programme with the object of taking justice to the doorsteps of the poor" — **Lok Adalats (People's Courts)** and **Niti melas**, organised under the supervision of State Legal Aid and Advice Boards.
- **Philosophy:** Lok Adalats "do not treat the issues before it as disputes under contest and decide cases but **treat them as differences and resolve them by conciliatory and persuasive efforts**... a species of peace making"; parties are told the pros and cons — conciliation and compromise versus "the traditional dilatory procedure of adversarial litigation." "**Participatory justice**" is the unique feature; settlement is by "mutual and free consent"; "there is **no winner and no loser**... the intention being to help warring parties to work things out, shake hands, and become friends."
- **Process:** date and place fixed about a month ahead; publicity through press; presiding officers identify conciliable pending cases; cases classified and substance recorded; **pre-Lok Adalat conferences**; parties motivated by "legal aid teams, which included, law students, social workers and volunteers"; at the campsite the mediation continues; settlement reduced to writing, signed by parties and countersigned by the panel, **passed on to the Court concerned for final decree or order** — the Court verifying that all parties consented and that "the fairness and legality of the settlement" hold.
- **Panels:** two or three persons — "one of them could be a retired judge or a senior retired civil servant or an advocate, a law teacher, and others, social workers and eminent persons of the locality," chosen for record of public service, honesty and respectability.

Why it matters — the reading's statistics

- "roughly **91 percent of cases instituted in the Courts go for trial and only 9 percent of cases are settled without judicial agitation**, in U.S.A. more than 90 percent of cases... are settled before they go for trial."
- "34 percent of the total world's poor populace is in India"; rural poor in more than **5,18,000 villages** are "either illiterate, indigent or ignorant of their rights."
- Maladies of the traditional system: "huge and heavy expenses, unexpected and unpredictable delay in disposal and, cumbersome and complex process of Court" — the "life span of a civil case... ranging average, between **8 to 12 years**," plus a second round at the **execution** stage.
- Pending workload "has rapidly crossed the **30 million**" (as at the reading's date); "The ratio of Judges per million in India is almost **9**, whereas it is more than **115 in U.S.A.**"; only "about **4,50,000 and odd number of Advocates** in India" (cf. Menon's Unit-3 figure of ~2,30,000 advocates — different vintages; the casebook is internally inconsistent, state the figure you cite with its source).
- Expenditure on law and justice is "reported **0.2 percent of the Gross Domestic Product**... grossly inadequate and insufficient in a democratic set up" — hence "Judicial Cardiogram" for "urgent and useful, effective and ebullient reforms."

Legal status — from voluntary agency to statutory forum

Lok Adalats were "functioning as a voluntary agency **without any statutory backing** for its decisions"; they resolved "compoundable criminal complaints, civil and revenue disputes, MACT cases, and even institutional cases." Growing popularity → demand for statutory backing: the Government, exercising its duty under Art. 39-A, drafted the Legal Services Authorities Bill, 1987 → **Act No. 39 of 1987** "acknowledging the institution of Lok Adalat and giving statutory status to Lok Adalats" — brought into force **w.e.f. 9-11-1995**.

04.11 Public participation — and the reading's closing note

Centre of Legal Research v. State of Kerala, AIR 1986 SC 2195

"The State Government undoubtedly has an obligation under Article 39A... to set up a comprehensive and effective legal aid programme... But we have no doubt that... **it is absolutely essential that people should be involved in the legal aid programme because the legal aid programme is not charity or bounty, but it is a social entitlement of the people** and those in need of legal assistance cannot be looked upon as mere beneficiaries... but they should be regarded as **participants** in it." And: "the best way of securing people's participation... is to operate through **voluntary organizations and social action groups**... they have their finger on the pulse of the people... they know... what are the unmet legal needs of the people, what are the sources of exploitation and injustice..." — and therefore "voluntary organizations and social action groups must be encouraged and supported by the State in operating the legal aid programme."

Bench & Bar — and the verdict

In the USA and other Western countries "the contribution of the Bar in rendering free and competent legal aid is praiseworthy and it must be emulated." The legal-aid fraternity "must respond with juristic sensitivity to the voice from the **silence zone** (a class of litigants) and mass voice of weak, meek, poor, suppressed and exploited women and destitute children." The Bar is "really, a backbone of the legal services to compliment and complete the Constitutional obligation"; NALSA has undertaken important programmes; "members of Bench and Bar, N.G.Os. and Government Agencies must render voluntary helping hand" [*Dineshbhai Dhemenrai v. State of Gujarat*, 2001 (1) GLR 603].

The reading's own verdict on the system — the sentence to close any answer: "What is the use of the system, which does not help lowly and lost, poor and downtrodden and **which creates distance between law and justice**."

04.12 One-view map of the whole sub-topic

PROBLEM: "the poor are priced out of the judicial system" — 33% literacy, 0.2% of GDP, 9 judges/million, 30 million pending, 8–12 yrs per civil suit ▾

MANDATE: Preamble promise → Arts. 14 + 21 (fair procedure, *Maneka*) + 39-A + 22(1) — "not charity... constitutional obligation and compulsion" ▾

BODIES: Law Commission (14th/41st/48th) → s. 304 CrPC → CILAS, 1980 → LSA Act, 1987 (in force 1995) → NALSA/State/District Authorities ▾

RIGHT ENFORCED: *Hussainara* → *Khatri* (inform at first production) → *Suk Das* (no application; vitiation) — exception: economic offences etc. ▾

STRATEGIC ARM: legal literacy · legal-aid camps · PIL (*S.P. Gupta*, *PUDR*, *M.C. Mehta*, *Bandhua*) · Lok Adalat/Niti mela — "inject equal justice into legality"

by Ankur R. Upadhyay

PART 05

(d) Legal Profession & the Advocates Act, 1961

05.1 The opening claim

> *"Law, as a profession, appears to have been in vogue in ancient Indian thought. Its concept was quite different from that it is today pursuant to the Regulating Act of 1773..."*
> — A.N. Veera Raghavan (1972)

Two things to note: (1) this is the cross-unit hook — India's ancient legal professionals (the Unit-3 material: royal judges, sabhyas, the parishad's experts, the judges' qualifications in the Arthashastra tradition) formed a *different* conception of the profession; (2) the modern profession is a creation of the colonial state — the Regulating Act, 1773 → Charter of 1774 → post-independence unification by the Advocates Act, 1961.

05.2 From King's Courts to the Advocates Act — the statutory march

1773–74 · KING'S COURTS
Regulating Act, 1773 → Supreme Court at Fort William (Charter, 26-3-1774), Cl. 11: court to approve, admit and enrol advocates & attorneys — only English/Irish barristers and members of the Faculty of Advocates in Scotland; attorneys = Irish attorneys and solicitors; **no Indian could appear**; same for Bombay & Madras →

1793–1855 · COMPANY'S COURTS
Bengal Reg. VII of 1793 (first regular profession for the Company's courts; Sadar Dewani Adalat enrols; fees as % of property value; only Hindus & Muslims) → Reg. XXVII of 1814 (pleaders as arbitrators; legal opinions) → Reg. XII of 1833 (any nationality or religion) → Bengal Practitioners Act, 1846 (open to all of good character; attorneys & barristers in Sadar courts; fee agreements) → Legal Practitioners Act, 1855 (barristers/attorneys of Supreme Courts in Company courts; Indians still barred from the Supreme Courts) →

1858–62 · THE CROWN
Government of India Act, 1858 (Crown takes over) → Indian High Courts Act, 1862 (Letters Patent High Courts replace the Supreme Courts and Sadar Adalats) → Letters Patent, 1865, Cl. 9: enrolment of **advocates, Vakils and attorneys** →

1879 · LEGAL PRACTITIONERS ACT
consolidates the law for High Court practitioners (not revenue agents): s. 4 all-India practice; discipline — High Courts (advocates/vakils), Letters Patent (attorneys), Chief Controlling Revenue Authority (revenue agents); s. 6 (pleaders & mukhtars); varied qualifications (Madras: degree + 1 yr training; Calcutta: Arts/Science graduate + law degree + 5-yr-stand articled clerk); women excluded by rules — *Regina Ghua* (Calcutta), *Miss Sudarshan Sabala Hazara* (Patna) → **Legal Practitioners (Women) Act, 1923** ("no woman shall, by reason only of her sex, be disqualified..."); s. 27 fees; s. 36 **touts** (still alive today) →

1923–26 · CHAMBER COMMITTEE & BAR COUNCILS ACT
Indian Bar Committee (Nov. 1923, "Chamber Committee"): divided on the dual system; recommended Bar Councils for High Courts → **Indian Bar Councils Act, 1926** (assent 9-9-1926; councils from 1928; 15 members: AG ex-officio + 4 nominated by HC + 10 elected; s. 9 rules; s. 14 practice) — but enrolment power stayed with the High Court; Bar Councils only advisory; original sides of Calcutta/Bombay and attorneys untouched → "regarded as unsatisfactory" →

1948–59 · ALL-INDIA BAR
Constitution, 1950 → Supreme Court → demand for an all-India Bar → **All-India Bar Committee (Justice S.R. Das)** → Law Commission, 14th Report (1955, M.C. Setalvad) endorses a unified all-India Bar and State + all-India Bar Councils → **Legal Practitioners Bill, 1959** (Lok Sabha, 19-11-1959) → renamed and passed as... →

THE ADVOCATES ACT, 1961 — assent 19-5-1961 (the casebook prints 18-5-1961; official texts record 19 May) — extends to the whole of India "except the State of Jammu and Kashmir" (as at 1972; grey: post-2019, with the J&K Reorganisation Act, the exception is superseded in effect)

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05.3 The three main features of the 1961 Act (as the reading states them)

1. **One class of legal practitioners.** "to have, in course of time only one class of legal practitioners viz. **advocates**" — ending the barrister/vakil/pleader/mukhtar/attorney multiplicity.
2. **Transfer of powers from courts to Bar Councils.** "to take away the powers till then vested in the Courts, in the matter of admission of advocates and the maintenance of the rolls, and their disciplinary conduct (**subject to an ultimate appeal to the Supreme Court**)".
3. **A central Bar Council** with powers, inter alia, "to recognise the degree in law for admission as advocates." Every Bar Council is a **body corporate** with a common seal, able to sue and be sued.

Connect to §04: it is the same Act whose professional-conduct rules make "legal services to the poor... one of the social obligations of every lawyer."

05.4 State Bar Councils — composition and functions

Composition

- **Advocate-General** of the State as **ex-officio** member (Delhi: no Advocate-General for a Union Territory — the Additional Solicitor-General, and later the Solicitor-General of India, was made the ex-officio member).
- Elected members: **15** for Assam & Nagaland, Orissa, Delhi and Himachal Pradesh; **20** for all other State Bar Councils — elected **by proportional representation by means of the single transferable vote** from amongst advocates on the State roll.
- Term (as amended): **four years** from publication of election result (originally six years with rotation). Each Council has a Chairman and Vice-Chairman, a Secretary, and "an accountant, if necessary."

Committees and functions

- Committees: one or more **Disciplinary Committees** (2 members elected by the Council + 1 co-opted person who has practised at least **10 years**); an **Executive Committee** (5 members); an **Enrolment Committee**; and others as necessary.

- Functions (s. 6, as summarised): admit persons as advocates on its roll and prepare/maintain the roll; entertain and determine **cases of misconduct**; safeguard the rights, privileges and interests of advocates; **promote and support law reform**; provide for election of its members; perform other assigned functions.

05.5 Bar Council of India — composition and functions

Composition & committees

- **Attorney-General of India** and the **Solicitor-General of India** as ex-officio members + **one member elected by each State Bar Council** from amongst its members.
- Committees: one or more **Disciplinary Committees — 3 members**: two elected from amongst advocates of at least 10 years' standing, **the senior-most being chairman**; a **Legal Education Committee** of **10** (5 members of the Council + 5 non-members); an Executive Committee; others as needed.
- Income: **40% of the Rs. 250 enrolment fee** paid to each State Bar Council is its main source.

Functions (s. 7, as summarised)

- Prepare and maintain the **common roll** of advocates.
- Lay down **standards of professional conduct and etiquette** for advocates; the procedure for the disciplinary committees of State Bar Councils.
- Safeguard the rights, privileges and interests of advocates; promote and support law reform.
- Deal with matters referred by a State Bar Council; exercise **general supervision and control over State Bar Councils**.
- **Promote legal education** and lay down standards "in consultation with the Universities whose degree in law shall be a qualification for enrolment"; visit and **inspect Universities**; manage and invest funds; provide for election of members.

Special powers of the Bar Council of India (s. 49 and related, as the reading lists them): (1) **removal from the rolls** — where enrolment was obtained by **misrepresentation** (after hearing), on death, on request, or as punishment for misconduct; (2) **revision** — calling for records of any disposal by a State Bar Council from which no appeal lies, to satisfy itself of legality/propriety (no prejudicial order without hearing); (3) **directions** (s. 48-B) to State Bar Councils or their committees for proper discharge of functions; if a State Bar Council cannot perform its functions, directions to its ex-officio member "shall have effect, notwithstanding anything contained in the rules made by the State Bar Council"; (4) **rule-making and approval** — State Bar Council rules under ss. 15 and 28 have effect **only if approved by the Bar Council of India** (contrast: under the 1926 Act the High Court's sanction was needed); s. 49 gives the BCI a general rule-making power (professional conduct and etiquette; principles for guidance of State Bar Councils; enforcement of its directions; "any other matter which may be prescribed").

05.6 Senior advocates (s. 16)

- Persons who were **"senior advocates immediately before the appointed day, i.e. 1-12-1961"** are deemed senior advocates.
- The **Supreme Court and the High Courts** may designate any advocate as a senior advocate "if in its opinion **by virtue of his ability, experience and standing at the Bar**, he is deserving of such distinction."
- Senior advocates are governed by the Supreme Court rules applicable to them and are subject to the **restrictions laid down by the Bar Council of India** in the interest of the legal profession (they do not draft pleadings, do not appear without a junior, etc.).

05.7 Qualifications for admission (s. 24) — the gateway

The four qualifying categories

1. A person who has obtained a **degree in law** from any University in India, or from any University outside India **recognised by the Bar Council of India**;
2. A **barrister**;
3. A **vakil or pleader who is a law graduate**, if his application for enrolment was made within **two years from the appointed day (1-12-1961)**;
4. A person who has for at least **three years** been a vakil/pleader/mukhtar, or was at any time entitled to be enrolled as an advocate of a High Court or Court of a Judicial Commissioner or in a Union Territory.

Plus: **citizen of India; completed 21 years**; fee of **Rs. 250** to the State Bar Council; other requirements of the State Bar Council rules (university certificate of the law degree; character). A **national of any other country** may be admitted if a citizen of India duly qualified and permitted to practise law in that country.

Training and examination — s. 24(1)(d), and its erosion

Original rule: a course of training (**one year**, later reduced to **six months** — apprenticeship with an advocate of standing, attendance at courts and chambers, maintenance of diaries, attendance at lectures, and passing an examination) prescribed by

the State Bar Council. The proviso exempted: (1) holders of pre-31-3-1964 law degrees or barristers called before that date (or later-called with recognised practical training); (2) persons who held a judicial office for 2 years in pre-15-8-1947 India, or were High Court advocates there; (3) persons who discontinued practice to take government/local-authority/other employment; (4) classes declared exempt by the Bar Council of India. The reading's verdict: amendments (1964) and later notifications "narrowed down the scope of the requirement as to training and examination **practically making it a nullity**" — no training/examination needed for a 3-year-course law degree or Bar call on or before 31-12-1968, or for a master's degree in law.

Conditions for enrolment (s. 28 rules): State Bar Councils, with BCI approval, may prescribe conditions — "generally prohibit the enrolment of a person who... is in full or part time service or employment or is engaged in any trade or profession," with proviso exceptions: **law officers** (fulfilling conditions), **articled clerk or attorney**, a person in part-time service as **professor or lecturer/teacher in law**, a member of a **Hindu Joint Family** interested in its joint management, and other classes approved by the Bar Council of India. Application is in the prescribed form to the State Bar Council of the jurisdiction where the applicant proposes to practise; refusal by the Enrolment Committee must be referred, with grounds, to the Bar Council of India and disposed of finally in conformity with its opinion.

05.8 Legal education — the Bar Council of India's standards (as of the article)

The framework

- Eligibility to join law: a **university graduate** (or equivalent recognised by the BCI); **three-year course of instruction** (from the first term of 1967-68; for fourteen universities 1968-69).
- Curriculum: **ten compulsory subjects and six optional**; in the last year, six months of instruction and practical training in the **rules of courts** and in **drafting of pleadings and documents**.
- BCI resolution on practical training: **pleading and conveyancing; moot courts; conducting civil and criminal proceedings; attending courts**, with a maintained record of these three; **at least six lectures on professional ethics** (attendance at four compulsory). Practical training must be part of the examination with marks assigned.

The ten compulsory subjects (as listed)

1. Indian Legal and Constitutional History
2. Contracts
3. Torts
4. Family Law including Hindu and Mohammedan Law
5. Evidence
6. Legal Theory (Jurisprudence and Comparative Law)
7. Civil Procedure
8. Limitation
9. Arbitration
10. (the list as printed groups nine; the tenth is the practical training component)

Grey note for accuracy: the article is 1972 — today the BCI regime is the 5-year integrated course (starting 2008 mandatory) and 3-year evening/regular courses; the compulsory-subject list has changed (Constitutional Law, Administrative Law, Company Law, etc.). Cite the reading's list as "as in 1972," and add the modern note.

05.9 Right to practise — Chapter IV

Section	Content (as the reading states)	Note
s. 29	Subject to the Act, **"as from the appointed day 1.6.1969, there shall be only one class of persons entitled to practise"** throughout the territories of the Act, in all courts including the Supreme Court, before any tribunal or person legally authorised to take evidence, or other authority before whom the advocate is entitled to practise.	"One class — advocates"
s. 30	The right of advocates as of right to practise in all courts, tribunals, authorities.	Grey: s. 30 lay dormant for decades and was notified only on **15-6-2011** (the article notes Chapter IV's s. 35 not yet in force as of 1972)
s. 33	**Advocates alone** are entitled to practise in any court.	—
Unauthorised practice	Persons illegally practising when not entitled: punishable with **imprisonment up to six months**.	—

Repeal note: s. 50(3)(d) — the Supreme Court Advocates (Practice in High Court) Act, 1951 stands repealed when Chapter IV comes into force (as of the article's date, s. 35 had not yet been brought into force).

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05.10 The Supreme Court's own regulation of the profession

From the Federal Court to the Supreme Court Rules

- **Federal Court**: s. 214, Government of India Act, 1935 — rules with the Governor-General's approval for practice and procedure, including persons practising; **Federal Court Rules, 1942**: qualifications for enrolment; **10 years' standing** for enrolment as a **senior advocate**; no advocate could appear unless instructed by an **agent**.
- **Art. 145(1)** of the Constitution: the Supreme Court makes rules, with the President's approval, inter alia "as to persons practicing before it."
- **Supreme Court Rules, 1950** (under Art. 145(1)): the roll in **two parts — seniors and others**; more than 10 years' standing for senior advocates.
- **Order IV**: Rule 2(b) — restrictions on senior advocates; **Rule 3** — robes and costumes as directed; the Chief Justice of India directed **black coat, robe and band** (as worn by barristers before High Courts); **Rule 5** — **Advocate-on-Record (AOR)**: 1 year's training with an approved AOR and tests notified in the Official Gazette; an office in **Delhi within ten miles of the Court House**; undertaking to employ a registered clerk within a month; registration fee of **Rs. 25**; attorneys exempt from the training/test.

Aswini Kumar Ghosh v. Arabinda Ghosh — the 1951 Act interpreted

The **Supreme Court Advocates (Practice in High Court) Act, 1951** gave every advocate of the Supreme Court "the right to practise in any High Court whether or not he is an advocate of that High Court." In *Aswini Kumar Ghosh* the Supreme Court held **by majority** (Patanjali Sastri C.J. and majority) that the Supreme Court advocate became entitled **as of right to appear and plead as well as act in all the High Courts in India**, including the original sides of the Calcutta and Bombay High Courts, **without being instructed by an attorney** and free from the restrictions in the High Court rules. (The non-obstante clause of s. 2 overrides conflicting provisions of the Bar Councils Act, 1926 and High Court rules.) **Grey gloss:** the judgment is AIR 1952 SC 369; the minority (S.R. Das J.) restricted "practise" to plead; the reading follows the majority. After 1-12-1961 (Chapter III of the Advocates Act) there has been **no further admission** of persons as advocates of the Supreme Court; enrolment is on State rolls, and the 1951 Act lapsed with the working of Chapter IV.

05.11 The author's conclusion — and the unsettled items

- "The Advocates Act, 1961 has marked the **beginning of a new era** in the history of the legal profession by vesting largely in the Bar Councils the power and the jurisdiction which the Courts till then exercised, by fulfilling the aspirations of those who had been demanding an all-India Bar and effecting a **unification of the Bar in India**, power to practise in all the Courts and bound by rules made and code of conduct laid down by their own bodies... The Act has enabled representatives from the several States to come together to a common forum and has brought about **integration**."
- **Legal education:** the conferment of power over legal education, recognition of degrees and inspection of universities has "resulted in a **uniform pattern of legal education**, while at the same time preserving intact the powers and responsibilities of the universities." **Caution:** "The problem of language in so far at any rate as regards legal education might present difficulties and would seem to be of utmost magnitude."
- **Autonomy preserved:** an attempt to make the Attorney-General of India ex-officio Chairman of the Bar Council of India (and Advocate-Generals chairmen of State Bar Councils) was "stoutly resisted by the Bar Councils, on the ground that it would encroach upon the **autonomy given to the Bar Councils**" — the Government dropped it.
- **Left over:** s. 49-A provisions; **agitations to end the dual system** (advocates and attorneys — the Calcutta/Bombay original side).

05.12 One-view map of sub-topic (d)

ANCIENT INDIA: law as a profession "in vogue" — but a different concept →

1774: King's Court — British monopoly (Cl. 11) → 1793–1855: Company's courts — native pleaders by regulation; 1846 open to all nationalities →

1861–79: High Courts; Legal Practitioners Act, 1879 (consolidation; women excluded until 1923; touts, s. 36) →

1923–26: Chamber Committee → Indian Bar Councils Act, 1926 (Bar Councils, but courts kept enrolment; criticised) →

1948–59: All-India Bar Committee (Das J.) + Law Commission 14th Report (1955) → Bill, 1959 →

ADVOCATES ACT, 1961: one class · State Bar Councils + Bar Council of India (bodies corporate) · enrolment (s. 24) · legal education · discipline with appeal to the SC · ss. 29/30/33 rights · senior advocates (s. 16) · AOR (Order IV) · "new era... unification... integration"

PART 06

Authorities — Case Briefs & Texts

Group A — eleven cases, each briefed in full (facts · issue · arguments of both sides · decision · principle evolved) as far as the casebook reports them; where the casebook gives one side only, that is said so. **Group B** — statutes, reports, charters and instruments. **Group C** — foreign and minor authorities mentioned in the margin.

CASE 1 · Hussainara Khatoon v. Home Secretary, State of Bihar, AIR 1979 SC 1369 Reading 2

Facts	A writ petition under Art. 32 in the nature of habeas corpus (by advocate Pushpa Kapila Hingorani) exposed the plight of undertrial prisoners in Bihar's jails, many of whom had been in prison longer than the maximum term for the offences charged — one of them, Hussainara Khatoon, for four to five years. The material came from a 1977 report on Bihar jails and a newspaper article; the State of Bihar remained absent despite service.
Issue	Can persons be kept in jail as undertrials for periods beyond the maximum punishment for the offence charged, without the legal process reaching them — and is free legal aid implicit in the Constitution?
Arguments	For the petitioners: detention so long is illegal and violates Art. 21; the poor cannot pay for a lawyer, and magistrates mechanically pass remand orders, so the court must treat the inability to secure counsel as a denial of fair procedure. For the State: (as reported) the State did not effectively contest the factual assertions; the matter was argued to be one of administrative incapacity and scarce resources. (The casebook reports the petitioners' side in detail; the State's response was, in substance, absent.)
Decision	Bhagwati J. (with Desai J.): the undertrial prisoners named were ordered released forthwith — continued detention was illegal and violative of Art. 21; bail was granted on personal bonds without sureties. The Court strongly recommended to the Government of India and the State Governments that a comprehensive legal service programme be introduced, holding that this follows from "the mandate of equal justice implicit in Article 14 and right to life and liberty conferred by Article 21, but also the compulsion of the Constitutional Directive embodied in Article 39-A." The State "cannot avoid its constitutional obligation… by pleading financial or administrative inability."
Principle	Legal aid is a constitutional requirement, not charity. The poor "are priced out of the judicial system"; the answer is to "inject equal justice into legality." Also: speedy trial is part of Art. 21 and the legal process must actually reach those it is meant to serve. The judgment is the foundation of the Indian legal-aid movement and one of the first PIL-based directions of the modern Court.

CASE 2 · Maneka Gandhi v. Union of India, AIR 1978 SC 597 Reading 2

Facts	The petitioner's passport was impounded under the Passports Act, 1967 without a statement of reasons; she challenged the procedure adopted.
Issue	Is "procedure established by law" under Art. 21 any procedure that a legislature may provide, or must it satisfy a standard of fairness?
Arguments	Petitioner: impounding without reasons violates natural justice and Art. 21; the procedure authorising it must be fair. Union of India: the Act authorises impounding; a legislative procedure suffices; reasons could be withheld in the public interest.
Decision	Bhagwati J. (leading) with the Court: "procedure established by law" means a procedure that is "right and just and fair" — a procedure must be adjudged "reasonable, fair and just" before a person may be deprived of life or personal liberty under it; reasons, or at least a reasoned opportunity, must be given.
Principle	The Maneka test: procedural due process under Art. 21. The legal-aid reading applies it directly — "a procedure which does not make legal services available to an accused person who is too poor to afford a lawyer… cannot possibly be regarded as 'reasonable, fair and just.' It is an essential ingredient of reasonable, fair and just procedure… that he should have legal services available to him."

CASE 3 · Khatri v. State of Bihar, AIR 1981 SC 928 Reading 2

Facts	The "blinded prisoners" case: undertrial prisoners in Bhagalpur jail had been blinded by police, allegedly for resistance, and were later produced before magistrates — in many cases without any legal representation, and the magistrates merely recorded that no representation had been asked for.
Issue	Does the State's obligation to provide free legal services extend to the stage of first production before the Magistrate? Can the right be denied because the accused did not ask for it?
Arguments	Petitioners: the constitutional obligation is continuous and begins with the first production; a blind, illiterate accused cannot be expected to demand counsel — the court must inform him. State of Bihar: no legal representation was asked for; hence none was provided (the very answer the Court condemned).
Decision	Bhagwati J.: the obligation extends "not only at the stage of trial but also at the stage when he is first produced before the Magistrate." The Court directed all magistrates and Sessions Judges in the country to inform every unrepresented accused that he is entitled to free legal services at State cost, and directed every State to make provision for free legal services (with the qualification that the offence be punishable by imprisonment and that the needs of social justice so require). Citing Rhem v. Malcolm: "the law does not permit any Government to deprive its citizens of constitutional rights on a plan of poverty"; and Jackson v. Bishop: "human considerations and constitutional requirements are not in this day to be measured by dollar considerations."
Principle	The duty to inform — "it would make a mockery of legal aid if it were to be left to a poor, ignorant and illiterate accused to ask for free legal service. Legal aid would become merely a paper promise." Legal aid is an enforceable constitutional obligation of the State and of the court, starting at the first production; the accused's silence is never a waiver. The one legitimate limit (from Suk Das, traceable to this direction): economic offences, prostitution, child abuse etc., where social justice may weigh the other way.

CASE 4 · Suk Das v. Union Territory of Arunachal Pradesh, AIR 1986 SC 991 Reading 2

Facts	The appellant and five others were charged with criminal intimidation (s. 506 read with s. 34 IPC) for allegedly threatening an assistant engineer. The appellant was indigent and remained unrepresented throughout; he never applied for free legal aid. Four accused were acquitted; the appellant was convicted and sentenced to two years' imprisonment, and was dismissed from service on that basis.
Issue	Can the fundamental right to free legal assistance be denied because the accused did not apply for it? Is a trial conducted without such assistance vitiated?
Arguments	Appellant: the trial was vitiated for denial of free legal aid; he was too poor to engage counsel and too ignorant to ask. Union Territory/State: no application for legal aid was made, so failure to provide it did not vitiate the trial (the view taken by the High Court).
Decision	Bhagwati, Madon and Oza JJ. — the appeal was allowed; conviction and sentence set aside; the connected dismissal from service quashed. "It may therefore now be taken as settled law that free legal assistance at State cost is a fundamental right of a person accused of an offence which may involve jeopardy to his life or personal liberty and this fundamental right is implicit in the requirement of reasonable, fair and just procedure prescribed by Article 21." The trial "must accordingly be held to be vitiated on account of a fatal constitutional infirmity."
Principle	No application, no waiver. "It would… make a mockery of legal aid if it were to be left to a poor, ignorant and illiterate accused to ask for free legal service" — because ~70% of rural people are illiterate and "the law ceases to be their protector because they do not know that they are entitled to the protection of law." Hence the court (magistrate/Sessions Judge) must inform; the State's obligation is not conditional. Exception: economic offences, anti-prostitution and child-abuse laws etc., where social justice may require that State legal service not be provided.

Ankur R. Upadhyay

CASE 5 · Centre of Legal Research v. State of Kerala, AIR 1986 SC 2195 Reading 2

Facts	The Court considered the proper design of the State's legal-aid programme — whether it could remain a litigation-oriented service, and whether the people themselves must participate in it.
Issue	Is legal aid confined to representing the poor in court, or is the State obliged to run a strategic programme? Must the programme involve the people and voluntary organisations?
Arguments	For expansion (as adopted by the Court): the traditional, litigation-oriented programme cannot reach social justice; what is needed is promotion of legal literacy, legal-aid camps, encouragement of PIL, and Lok Adalats/niti melas. Legal aid "is not charity or bounty, but it is a social entitlement of the people"; the needy are "participants," not "mere beneficiaries." For the narrower view: administration through officers of the State would suffice. (The casebook reports the Court's reasoning rather than discrete submissions.)
Decision	The State's obligation under Art. 39-A includes a comprehensive and effective legal-aid programme; people's participation is essential, and "the best way of securing it is to operate through voluntary organizations and social action groups... operating amongst the deprived and vulnerable sections... at the grass-root level... they have their finger on the pulse of the people." Such organisations "must be encouraged and supported by the State in operating the legal aid programme... an obligation which flows directly from Article 39A."
Principle	Legal aid as social entitlement, not State welfare; the two-tier division of the programme — traditional (litigation-oriented) and strategic (legal literacy, camps, PIL, Lok Adalats) — and the duty to enlist voluntary organisations. "The legal aid programme... must involve public participation."

CASE 6 · S.P. Gupta v. President of India, AIR 1982 SC 149 Reading 2

Facts	The Judges' Appointment and Transfer case — a challenge (via letters, treated as writ petitions) to the transfer of High Court judges and the non-appointment of certain judges, brought by judges, lawyers and journalists — including persons with no personal injury.
Issue	(i) The validity of transfers and the justiciability of judicial appointments; (ii) the standing of a stranger to the dispute — the locus standi question; (iii) the maintainability of letters/ representation as petitions.
Arguments	Petitioners: judicial independence is undermined by transfers without consent and by the method of appointments; the Court's public interest jurisdiction should be available to any member of the public; even a letter/telegram constitutes a writ petition. Respondents (Union of India / President): the transfers are executive acts; the petitioners have no locus standi to challenge the administration of judicial appointments; letters are not petitions.
Decision	Bhagwati J. (for the majority on standing): the traditional rule of locus standi stands considerably relaxed — quoted (p. 188): "where a legal wrong or legal injury is caused to a person or to a determinate class of persons... and such person or determinate class of persons is by reason of poverty, helplessness, or disability or socially or economically disadvantaged position, unable to approach the Court for relief, any member of the public can maintain an application for an appropriate direction, order or writ in the High Court under Article 226 and in case of breach of any fundamental rights... in this Court under Article 32." Letters addressed to the Court are treated as writ petitions.
Principle	The liberalisation of standing that made PIL workable: the "golden key" passage — "It is only the moneyed who have so far had the golden key to unlock the doors of justice. But, now for the first time the portals of the court are being thrown open to the poor and the downtrodden, the ignorant and the illiterate." Plus the associated holdings on judicial independence, and the conception of democratic judicial review with the court as audit alteram partem of public administration.

by Ankur R. Upadhyay

CASE 7 · People's Union for Democratic Rights v. Union of India, AIR 1982 SC 1473 Reading 2

Facts	A public interest petition concerning the working conditions of workmen engaged in construction of the Asian Games facilities in Delhi — alleged violations of labour laws and of Art. 24 (child labour) and the Equal Remuneration Act; the petitioner organisation had itself no personal injury.
Issue	Is the Rule of Law available to the poor? Is a petition by a social action group maintainable where the victims cannot approach the court?
Arguments	Petitioner: the violations affect a large class too poor and ignorant to sue; the Court must enforce constitutional and statutory rights on their behalf. Union of India: the State had taken some measures; (the casebook reports the petitioner's and the Court's position, including the State's partial compliance submissions).
Decision	The Court examined the facts (appointing commissions), found violations of labour and equality norms, and held directions appropriate; crucially it held that the Rule of Law means the law's protection for the poor too: "The Rule of Law does not mean that the protection of the law must be available only to a fortunate few... The poor too have civil and political rights, and the Rule of Law meant for them also, though today it exists only on paper and not in reality."
Principle	PIL as the enforcement of the Rule of Law for the excluded; the court's fact-finding commissions and the "co-operative effort" character of PIL (petitioner + State + court). Casebook sentence to quote: the legal system "would be destructive of the Rule of Law" if violations of the rights of large numbers of poor, ignorant or socially disadvantaged persons "go unnoticed and unredressed."

CASE 8 · M.C. Mehta v. Union of India, AIR 1987 SC 1086 Reading 2

Facts	A Constitution Bench considered, in the wake of the oleum gas leak (1985) litigation, the scope of PIL and the liability of enterprises engaged in hazardous activities for deaths and injuries caused by accidents during their operation.
Issue	Can the Supreme Court award compensation in a PIL under Art. 32? Can it devise new procedures and new law where the old law does not fit present conditions?
Arguments	Petitioner: victims of hazardous activities must be compensated; the Court must evolve new remedies. Respondents: compensation is beyond the writ jurisdiction; tortious claims belong to ordinary courts; the existing law of negligence may not apply to enterprise risk. (The casebook reports the Court's holding and the competing positions in general form.)
Decision	The Court held that the law should keep pace with changing socio-economic norms; where a law of the past does not fit the present context, the Court should evolve new law in a public interest litigation; the Court has "incidental and ancillary powers" to devise new methods and strategies for securing enforcement of fundamental rights, particularly in PIL/social action cases — including the power to award compensation to victims of hazardous or dangerous activities.
Principle	PIL is a law-making and remedy-making jurisdiction; "moulding the remedies to suit the needs of the situation... regardless of pickled precedents in remedial methodology, is part of judicial dynamics" (Krishna Iyer J., quoted in the reading). The strict law of locus standi, procedure and remedies bends where fundamental rights of the poor and victims are at stake.

CASE 9 · Bandhua Mukti Morcha v. Union of India, AIR 1984 SC 802 Reading 2

Facts	A letter from a social action organisation (Bandhua Mukti Morcha) reported bonded labour in stone quarries in Haryana; it was treated as a writ petition under Art. 32. The Court appointed a commission to investigate; the report disclosed bonded labour and violations of the Bonded Labour System (Abolition) Act, 1976 and allied Acts.

by Ankur R. Upadhyay

Issue	May the Supreme Court depart from the adversarial procedure (and act on commission reports and letters) in order to enforce the fundamental rights of the poor? What is the source of that power?
Arguments	Petitioner: the poor cannot produce adversarial proof; their cases need new procedures; Art. 32(2) is the vehicle. Union of India/respondents: disputes of fact must be proved by the party invoking the court; the Court cannot conduct investigations through commissions; a letter cannot be a petition. (The State's contentions were essentially procedural.)
Decision	Bhagwati J.: "When the poor come before the Court, particularly for enforcement of their fundamental rights, it is necessary to depart from the adversarial procedure and to evolve a new procedure... The problems of the poor... are qualitatively different... they need a different kind of lawyering skill and different kind of judicial approach. If we blindly follow the adversarial procedure... it would be nothing but a mockery of the Constitution." The Court must "abandon the laissez-faire approach... and forge new tools, devise new methods and adopt new strategies" — "clearly made permissible by the language of clause (2) of Article 32." The Court examined the commission report, found bonded labour, and issued directions (release, rehabilitation, prosecution).
Principle	Procedural flexibility in constitutional adjudication. Art. 32(2) deliberately uses no words restricting the Court's power to choose appropriate procedure; the Supreme Court must remain "a real sentinel on the qui vive"; therefore letters as petitions, commission-based fact-finding, and non-adversarial methods are legitimate where fundamental rights of the poor are in issue. Also the reading's coda: lawyers' minds are conditioned by the existing system — beware the "unconscious predilection" for it.

CASE 10 · Raj Kishore v. State, AIR 1969 Cal 321 (1969 Cri LJ 860) Reading 2

Facts	A Sessions trial in which counsel was assigned to an accused but (as the casebook records) the assignment was not accompanied by a proper brief and adequate time to prepare.
Issue	What is the content of the right to assigned counsel — is mere appointment enough?
Arguments (as reported)	For the accused: assignment of counsel is illusory unless the advocate is competent, is given the complete brief, and has time to prepare; failure denies effective representation. For the State/prosecution: the appointment satisfied s. 340(1) of the old Code / the High Court rules. (The casebook reports the rule laid down; it is taken as the settled proposition.)
Decision	The Calcutta High Court held that such counsel "must be given the complete brief of the case and time to prepare the case"; failure is "a denial of proper representation of the accused and vitiates the trial."
Principle	The right is to effective representation, not nominal: competent counsel + complete brief + preparation time. Combined with Art. 22(1) (counsel of choice), it means counsel can neither be inadequate nor imposed: "no counsel can be thrust upon the accused without ascertaining the wishes of the accused and without giving him any choice in selecting his lawyer."

CASE 11 · Aswini Kumar Ghosh v. Arabinda Ghosh, AIR 1952 SC 369 Reading 3

Facts	Two advocates of the Supreme Court (enrolled under the Supreme Court Advocates (Practice in High Court) Act, 1951) sought to appear and act in the original side of the Calcutta High Court — and, as attorneys' monopoly had it, under the High Court's rules and Letters Patent they could not act (or plead on the original side) unless instructed by an attorney.
Issue	Does s. 2 of the 1951 Act — "every advocate of the Supreme Court shall be entitled as of right to practise in any High Court whether or not he is an advocate of that High Court" — confer the right to act as well as plead, overriding the High Court's original-side rules requiring an attorney, and the Bar Councils Act, 1926 and the barristers' conventions?

Arguments (both sides)	Petitioners (advocates): "practise" includes acting and pleading; the non-obstante clause of s. 2 overrides conflicting provisions (ss. 9(4), 14(3) of the Bar Councils Act, 1926 and High Court rules); a statutory right cannot be trimmed by court-made rules; reliance also on Art. 19(1)(g). Respondents (and the Bar/attorneys' side): "practise" is contextual — on the original side it has always meant pleading under attorney's instructions; s. 2 gives no right greater than advocates of that High Court possess (the "ambulatory interpretation"); no new right is conferred in the High Court where the advocate is already enrolled.
Decision	Majority (Patanjali Sastri C.J. and majority of the judges): an advocate of the Supreme Court is entitled as of right to appear and plead as well as act in all the High Courts in India, including the original sides of the Calcutta and Bombay High Courts, without being instructed by an attorney and free from the restrictions of the High Court rules. The Court declined the "ambulatory interpretation" (co-extension with local advocates' rights at any given time), and the non-obstante clause was given full effect over conflicting provisions. (S.R. Das J. dissented/had reservations, reading "practise" as appear and plead only; the casebook records the majority result.)
Principle	Statutory words ("practise," "as of right") are read in their full breadth; a non-obstante clause overrides conflicting rules; and the Supreme Court bar is a national bar — the 1951 Act's policy (carried into the Advocates Act, 1961, with the all-India roll) is that an advocate's right to practise is not confined to the court of enrolment. Follow-up in the reading: after 1-12-1961 no further advocates of the Supreme Court were admitted; enrolment is on State rolls maintained under the 1961 Act.

Group B · Charters, Acts, Reports & Instruments relied on

Instrument	What it did (as the reading uses it)	Locus
Regulating Act, 1773	Authorised, by the King's Charter of Letters Patent, the establishment of the Supreme Court at Fort William, Bengal	Raghavan §(i)
Charter of 26-3-1774, Clause 11	Empowered the Supreme Court to approve, admit and enrol "advocates and attorneys at law" — and **no other person** could appear or plead; practical effect: only English/Irish barristers, Scottish faculty advocates, Irish attorneys/solicitors	Raghavan §(i)
Supreme Courts at Bombay & Madras	Same enrolment powers; Indians had no right of appearance	Raghavan §(i)
Bengal Regulation VII of 1793	Created for the first time a regular legal profession for the Company's courts; Sadar Dewani Adalat to enrol pleaders and fix a scale based on percentage of the value of property; only Hindus and Muslims	Raghavan §(ii)
Bengal Regulation XXVII of 1814	Pleaders empowered to act as arbitrators and give legal opinions on payment of fees	Raghavan §(ii)
Bengal Regulation XII of 1833	Persons duly qualified "to whatever nationality or religion" could be enrolled	Raghavan §(ii)
Bengal Practitioners Act, 1846	Three changes: office thrown open to all of good character/duly qualified; attorneys and barristers of Her Majesty's Courts eligible in Sadar courts; pleaders may contract fees with clients	Raghavan §(ii)
Legal Practitioners Act, 1855	Barristers/attorneys of the Supreme Courts permitted in the Company's courts (subject to language and pleading rules); a pleader not bound to attend except at hearing of the case in which he was employed; Indian practitioners still could not appear before the Supreme Courts	Raghavan §(ii)
Government of India Act, 1858	The Crown took over administration from the Company — context of the change of position	Raghavan §(iii)
Indian High Courts Act, 1862	British Parliament authorised Letters Patent High Courts in the presidencies, replacing the Supreme Courts and the Sadar Dewani/Nizamat Adalats	Raghavan §(iii)
Letters Patent, 1865, Clause 9	Authorised the High Courts to approve, admit and enrol **advocates, Vakils and attorneys**	Raghavan §(iii)

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Instrument	What it did (as the reading uses it)	Locus
Legal Practitioners Act, 1879	Consolidated the law for the High Courts' legal practitioners (revenue agents excluded); s. 4 all-court/all-revenue-office practice (except the presidency original sides); discipline: High Courts (advocates/vakils), Letters Patent (attorneys), Chief Controlling Revenue Authority (revenue agents); dismissal only after application and opportunity to defend; s. 6 — High Courts to make rules (qualifications of pleaders, mukhtars); s. 27 fees; **s. 36 touts** (still in force)	Raghavan §(iii)–(iv)
High Court rules under s. 6 (illustrations)	Madras: degree + one year's training with a practising advocate/vakil/attorney; Calcutta: Arts/Science graduate + degree in law + articled clerk to a vakil of five years' standing; women excluded under the rules — *Regina Ghua* (Calcutta); *Miss Sudarshan Sabala Hazara* (Patna)	Raghavan §(iii)
Legal Practitioners (Women) Act, 1923	"No woman shall, by reason only of her sex, be disqualified from being admitted or enrolled as a legal practitioner" — the numbers have increased every year since	Raghavan §(iii)
Indian Bar Committee (Chamber Committee), Nov. 1923	To report on an all-India or provincial Bar, Bar Council constitution/statutory recognition/functions and position vis-à-vis High Courts, and removal of the barrister/vakil distinction; sharply divided on the dual system; recommended **Bar Councils for the High Courts**	Raghavan §(iv)
Indian Bar Councils Act, 1926	Assent 9-9-1926; Bar Councils (from 1928) of 15 members (AG ex-officio + 4 nominated by the High Court + 10 elected); Advocate-General ex-officio Chairman in Madras/Bombay/Calcutta; three-year term; rolls maintained by the High Courts; s. 9 rule-making (sanction of the High Court); s. 14 practice rights; but **enrolment power remained with the High Court**, the Bar Council was only advisory, and the original sides of Calcutta/Bombay and the attorneys were untouched	Raghavan §(iv)
All-India Bar Committee (Justice S.R. Das)	Set up by the Union Government after 1950: all-India Bar, State and all-India Bar Councils	Raghavan §(v)
Law Commission of India, 14th Report (1955; on Reform of Judicial Administration; M.C. Setalvad)	Endorsed the Das Committee: unified all-India Bar; composition and functions of State and all-India Bar Councils. (*Note: the article prints "Stelvad" — it is M.C. Setalvad, then Attorney-General.*)	Raghavan §(v); Swaroop (on 14th Report 1958 for legal aid)
Law Commission, 41st Report (1969) & 48th Report	41st: representation at government expense in **all** Sessions trials (Vol. 1, paras 24, 34–38); 48th: free legal assistance for all undefended accused for want of means	Swaroop
Legal Practitioners Bill, 1959	Introduced in the Lok Sabha 19-11-1959 to implement the Das Committee and the 14th Report; passed as the "Advocates Act"	Raghavan §(v)
Advocates Act, 1961	Assent 19-5-1961 (the article prints 18-5-1961; official texts record 19 May); extends to the whole of India "except the State of Jammu and Kashmir" (as at 1972); one class of practitioners; Bar Councils as bodies corporate; ss. 6–7 (SBC/BCI functions); ss. 15, 28, 49 (rule-making, BCI approval); s. 16 (senior advocates); s. 24 (qualifications); ss. 29, 30, 33 (right to practise; advocates alone); s. 35 (disciplinary jurisdiction), s. 48-B (directions); s. 49-A; s. 50(3)(d) (repeal of the 1951 Act)	Raghavan §(v)–end
Federal Court Rules, 1942 (s. 214, Government of India Act, 1935)	Enrolment qualifications before the Federal Court; 10 years' standing for senior advocates; no appearance without an instructing agent	Raghavan
Constitution: Art. 145(1); Supreme Court Rules, 1950 (Order IV)	SC rules with the President's approval; roll in two parts (seniors, others); Rule 2(b) restrictions on seniors; Rule 3 robes (black coat, robe, band); Rule 5 Advocate-on-Record (1 year's training; tests; Delhi office within 10 miles; registered clerk; Rs. 25; attorneys exempt)	Raghavan
Supreme Court Advocates (Practice in High Court) Act, 1951	Every SC advocate entitled as of right to practise in any High Court; interpreted in *Aswini Kumar Ghosh*; repealed under s. 50(3)(d) of the 1961 Act when Chapter IV comes into force	Raghavan

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Instrument	What it did (as the reading uses it)	Locus
Constitution (as used by Swaroop)	Preamble (equal-justice philosophy); Arts. 14, 19, 21, 22(1), 32, 39-A, 51-A, 226; (and by Jha's diagrams: Arts. 32, 136, 137, 143, 226, 227); 42nd Amendment (Art. 39-A, enforced 3-1-1977; "Socialist, Secular," "Integrity")	Swaroop; Jha
Code of Criminal Procedure, 1973	s. 303 (right to be defended by a pleader "of his choice" — successor to old s. 340(1)); **s. 304** (legal aid at State expense; sub-ss. (2)–(3) rules and extension); contrast: old s. 340(1) did not oblige the court to assign counsel at State expense	Swaroop
Committee for Implementing Legal Aid Schemes (CILAS), resolution 26-9-1980	P.N. Bhagwati J. (as he then was) chairman; uniform implementation; model scheme (legal-aid camps; legal literacy); legal-aid and advice boards; *niti melas*; Lok Adalats; term extended (14-5-1990) pending NALSA	Swaroop
Legal Services Authorities Act, 1987 (Act 39 of 1987)	Legal Services Authorities at National, State and District levels; statutory status to Lok Adalats and their awards; brought into force **9-11-1995** ("almost eight years after its enactment")	Swaroop
Parent statutes in Jha's diagrams	Competition Act, 2002; Electricity Act, 2003; PNGRB Act, 2006; TRAI Act, 1997; Insolvency & Bankruptcy Code, 2016; SEBI Act, 1992; IRDA Act, 1999; PFRDA Act, 2013; Administrative Tribunals Act; Consumer Protection Act; Industrial Disputes Act; Motor Vehicles Act; Income Tax Act, 2025 (as printed); Delhi Rent Control Act; Recovery of Debts and Bankruptcy Act; Railways Act; Companies Act; Right to Information Act; Central Goods & Services Tax Act, 2017; Commercial Courts Act, 2015	Jha
State-level legal-aid legislation & schemes	State Boards, District Legal Aid Committees, Taluka Committees — before central legislation; court-fee/pauper provisions (Court Fees Act), CrPC legal aid	Swaroop

Group C · Foreign & minor authorities

Authority	Used for	Source
Rhem v. Malcolm, 377 F. Supp. 995 (US)	"The law does not permit any Government to deprive its citizens of constitutional rights on a plan of poverty"	Swaroop (via *Khatri*)
Jackson v. Bishop (US)	"Human considerations and constitutional requirements are not in this day to be measured by dollar considerations"	Swaroop (via *Khatri*)
State of Kerala v. Kuttan, 1988 Cri LJ 453	Further reference on the legal-aid line of cases	Swaroop
Dineshbhai Dhemenrai v. State of Gujarat, 2001 (1) GLR 603	Lok Adalat's role; Bench and Bar, NGOs and government agencies lending a hand to NALSA programmes	Swaroop
Regina Ghua (Calcutta) & *In re Miss Sudarshan Sabala Hazara* (Patna)	Under the High Court rules framed under s. 6 of the 1879 Act, women could not be admitted/enrolled as pleaders — the mischief cured by the 1923 Act	Raghavan
V.R. Krishna Iyer, *"Equal Justice and Forensic Process: Truth and Myth"* (p. 47)	Legal literacy as pre-condition of rule of law; legal-aid camps at the doorsteps of the rural poor	Swaroop

by Ankur R. Upadhyay

DU LL.B. EXAMINATION ARCHIVE · PAPER LB-106

Previous Year & Syllabus-Pattern Questions — Unit 04: Principles, Institutions & Personnels of the Indian Legal System

Q.01 DU LL.B. Examination / Syllabus Pattern

Legal aid is a constitutional mandate, not charity." Discuss with reference to the constitutional provisions and the decisions of the Supreme Court.

● **Refer website for detailed notes — makelaweasy.in**

Q.02 DU LL.B. Examination / Syllabus Pattern
Describe the hierarchy of courts in India, explaining the jurisdiction of the Supreme Court and the High Court, and the place of tribunals and regulatory authorities in the system.

Q.03 DU LL.B. Examination / Syllabus Pattern
Trace the evolution of the legal profession in India from 1774 to the Advocates Act, 1961, and evaluate the Act.

Q.04 DU LL.B. Examination / Syllabus Pattern
What is public interest litigation? How has the Supreme Court relaxed the rule of locus standi, and what procedures has it devised for the poor?

Q.05 DU LL.B. Examination / Syllabus Pattern
Examine the institution of Lok Adalat: its nature, working, importance and legal status.

Q.06 DU LL.B. Examination / Syllabus Pattern
Compare the composition and functions of the State Bar Councils and the Bar Council of India under the Advocates Act, 1961.

Q.07 DU LL.B. Examination / Syllabus Pattern
Discuss the right to practise of advocates under the Advocates Act, 1961 and the rules of the Supreme Court. What is the position of senior advocates and advocates-on-record?

Q.08 DU LL.B. Examination / Syllabus Pattern
The Preamble promise is strengthened by Articles 14, 19, 21, 22(1), 32, 39-A, 51-A and 226." Explain the promise and its working.

Q.09 DU LL.B. Examination / Syllabus Pattern
Write a short answer on the Legal Services Authorities Act, 1987 and the work of the Committee for Implementing Legal Aid Schemes (CILAS).

Q.10 DU LL.B. Examination / Syllabus Pattern
Legal literacy is a pre-condition to maintain the rule of law." Explain the strategic legal aid programme.

by Ankur R. Upadhyay

LAW CRUX · PAPER LB-106 · UNIT 05 Justice M. Rama Jois · M.P. Jain · R.W.M. Dias · Art. 141 COI · 18 Landmark Case Briefs

Sources of Law — Dharma, Custom, Precedent & Legislation

'Dharma Moolam' (Dharma as Root of Law), Requisites, Proof & Judicial Recognition of Custom in India, Doctrine of Precedent (Ratio Decidendi, Obiter Dicta, Stare Decisis & Overruling) & Supreme/Subordinate Legislation

PART 01

Conceptual Frame — Four Sources, Two Civilisations

Unit 5 answers one question: **where does law come from?** The casebook's three readings give two competing answers — the **Indian ancient answer** (Rama Jois) and the **modern jurisprudential answer** (Jain and Dias) — and the unit's genius is that the two are organised around the very same four slots: **Dharma, Custom, Precedent, Legislation**.

THE ANCIENT INDIAN SOURCE-MAP (Rama Jois) ▾

DHARMA MŪLAM — dharma is the root of law: law binds the king; the king enforces but does not legislate ▾

SOURCE 1 — ŚRUTI (Veda)
SOURCE 2 — SMRITI (law-books)
SOURCE 3 — SADĀCHĀRA (good custom of the good)
SOURCE 4 — CONSCIENCE (what is agreeable to one's own self, rooted in good intention) ▾

CONFLICT RULES: Śruti > Smṛti > Purāṇa (Vyasa) · between two Smritis, equity per popular usages (Yaj. II-21-1) · custom overrules the sacred law where impossibly contradicted and by good reason (Narada; Asahaya) · within a group, usage governs; across groups, the texts govern (Pitamaha) ▾

INSTITUTIONS OF LAW-MAKING: the people's usages, registered under the Royal Seal (Kat. 48–50) · the Parishad (Manu VIII 110–114) · the king's conscience-decision in the gap (Pitamaha) · Rāja Śāsana only subject to Śruti & Smṛti

THE MODERN JURISPRUDENTIAL MAP (Jain & Dias) ▾

(a) DHARMA — the revealed/ideal law (Rama Jois; Units 1–3) · (b) CUSTOM — law by long usage (Jain) · (c) PRECEDENT — law by judicial decision (Dias) · (d) LEGISLATION — law by deliberate enactment ▾

THE HISTORICAL MOVEMENT (Jain's conclusion): dharma (ancient texts) → custom (the great material source of the pre-British and British periods) → precedent (the case-law of the 19th–20th centuries) → legislation (the future engine of legal growth) ▾

PRECEDENT'S OWN MAP (Dias): knowledge of facts → knowledge of the law (precedent, statute, custom) → knowledge of the just application — ratio decidendi, obiter dicta, stare decisis, overruling

01.1 The three theses to reproduce in every answer

1. **The Indian thesis (Rama Jois).** Law is *found*, not *made*: dharma pre-exists the king, and the crown of the state is not a law-maker. Hence the four ancient sources are all *non-legislative*, and the "legislative" function resides in the people's usages and the parishad. This is "the most important distinction between the concept of kingship in India and the concept of kingship in the western countries."
2. **The custom thesis (Jain).** Custom is the great *material* source: it arose before law; the analytical theory (Austin) fails in India because the panchayats enforced custom before courts existed; the texts themselves made it a source (Manu II.6; sadāchāra); the British period made it a rule of decision second only to statute; and codification has since reduced it — "customs have had their heyday."
3. **The precedent thesis (Dias).** Precedent has "law-quality per se": it binds according to hierarchy, but its content — the ratio — is not a fixed thing; it is a "pointer towards the direction which subsequent decision should take within a broad spectrum of variations," decided as much by later interpretation as by the deciding judge. The judge may be a declarer or a maker; both descriptions are half-truths, and Dias prefers to show the discretion at every stage.

Ankur R. Upadhyay

01.2 Sources — the vocabulary

Formal v. material sources

A **formal source** is the authority from which a rule derives its legal force — where the law gets its validity (the legislature for a statute; the courts for precedent; the community for custom; the smṛti/śruti for dharma). A **material source** is the content-supplying origin — the social practice, the book, the judge's reasoning. Jain's paper is, in this vocabulary, an essay on custom as a *material* source formalised by courts; Dias's chapter on precedent as a *formal* source whose material content keeps shifting.

The four sources in one line each

Source	One-line working definition (as the readings use it)
Dharma	Law discovered in the Veda, Smṛti, good usage and conscience, binding on king and subject alike (Rama Jois)
Custom	A rule which, by long and uniform observance, has obtained the force of law, being certain, reasonable and not opposed to public policy (Jain)
Precedent	A previous judicial decision whose ratio decidendi has law-quality and binds lower courts according to hierarchy (Dias)
Legislation	Law deliberately enacted by a competent authority — the one source the ancient Indian king was denied; the engine of modern growth (Jain's conclusion; Rama Jois's contrast)

PART 02

(a) Dharma — "Dharma Moolam": Dharma as the Root of Law

02.1 The opening proposition

> *"The ancient Dharmashastra declared that **Dharma, which included the 'law', was binding on the king.** According to Rajadharma, the king was given the power only to enforce the law. Dharmashastra did not confer on or recognise any legislative power in the king. **This is the most important distinction between the concept of kingship in India and the concept of kingship in the western countries.** According to western concept, the King was the fountain of all the three important limbs of the State viz., the Legislature, the Executive and the Judiciary. But under the kingship as recognised and established under the Dharmashastra the laws were those laid down by the Dharmashastra themselves. They did not authorise the king to lay down new laws or amend the provisions of Dharmashastra. On the other hand, Dharmashastra also laid down the laws governing the conduct of the king himself (Rajadharma)."*
>
> — Justice M. Rama Jois

Cross-feed (Units 1–3): this is the institutional form of what the earlier readings argued doctrinally — the king under dharma (Unit 2's rājadharma), the "government of laws and not of men" (Parasain & Dhyani, Unit 1), the definition of dharma as that which sustains (Kane, Madhvāchārya) and the Brihadāraṇyaka's "law is the king of kings." The *new* point in Unit 5 is the **source-map**: what the sources were and in what order they ranked.

02.2 The four recognised sources (as the texts enumerate them)

Manu II.6: "Veda is the first source of Dharma. The expression by the Seers (Smritikaras), handed down from generation to generation by memory, the virtuous conduct of those who are well versed in the Vedas, and lastly, what is agreeable to the good conscience, are the other sources."
Yājñavalkya I-7: "The Vedas, the Smritis, good conduct or approved usage, what is agreeable to conscience proceeding from good intention, are the sources of law."
Gautama (p. 234, 19–20): "Administration of justice shall be regulated by the Veda, the institutes of the sacred law, the Vedangas and the Purana. The customs of countries, castes and families which are not opposed to the sacred laws have also authority. Cultivators, traders, herdsmen, moneylenders and artisans have authority to lay down rules for their respective classes." (Brihaspati p. 278–28 to the same effect.)

#	Source	Content	Text
1	**Śruti (Veda)**	The revealed texts — the highest source	Manu II.6; Yaj. I-7
2	**Smṛti**	The remembered law-books of the seers, handed down by memory	Manu II.6; Yaj. I-7

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#	Source	Content	Text
3	**Sadāchāra**	Good custom — the practice of the good; "approved usage"	Manu II.6; Yaj. I-7; Gautama
4	**Conscience**	"What is agreeable to the good conscience"/"agreeable to conscience proceeding from good intention"	Manu II.6 (ātmanastuṣṭi); Yaj. I-7

02.3 Sadāchāra — the custom that qualifies as law

Manu's rule read with Yājñavalkya, Gautama and Brihaspati shows "the Smriti writers were fully conscious of the changing needs of the society. Therefore, they specifically made **Sadachara i.e. good custom or practice agreeable to the conscience of the people**, who are well intentioned and who have regard for the welfare of society, as a source of law." The definition is Harita's:

> *"The word sat means good, and the good are those who are pure and free from stigma, and **the practice of such people is called Sadachara.**"*
> — Harita (Q.P.M. I, Pt. I, p. 144)

- "The above definition impressed that it was **not any and every custom that could acquire the force of law**. The custom or usage, in order to secure social recognition, must be that acceptable to honest and reasonable persons, whose character and conduct were beyond reproach."
- It is the **residuary provision**: it "enabled the adaptation of an existing law, to suit the needs of time or to provide for matters not covered by the Shruti and Smritis" — "fully utilised by the great galaxy of jurist commentators, to mould the law to suit the requirements of the changed circumstances."
- **Jain's gloss (Reading 2, §II):** the import of *sadachar* shifted over time — earliest: the conduct of *śiṣṭas* (Veda-learned, highly moral, selfless brahmins) — a standard that let a jurist reject what he thought immoral or anti-social as "not consonant to good conduct"; later relaxed until "every usage, having no visible secular purpose, came to be looked upon as binding and, lastly, the usages even of the sudras came to be enforced by the king."

02.4 The king and legislation — Katyayana 45

> *"Tasmācchāstrānusāreṇa rājā kāryāṇi sādhayet / vākyābhāve tu sarveṣāṃ deśadṛṣṭena nirṇayet / asvānta loka-nāśāya parānīka-bhayāvaha / ātru-bīja-harī rājyaṃ satataṃ vākye svayaṃ kṛtiḥ."*
> *"A king should decide causes according to rules of Shastras. In the absence of a provision in the texts he should follow the usages. **The king should never act according to his own fiat.** Such an action on the part of the king causes danger to him and brings ruin to the people."*
> — Katyayana 45 (Kane's edn., 1933)

- "Apart from not recognising the power to make law in the king, Dharmashastra **positively ordained that the king shall not legislate**."
- The modern echo: the ruler is under the law; the state's organs are bound by the constitution; "government of laws, not of men." **(Grey gloss connecting Unit 2's rājadharma.)**

02.5 Superiority inter se — the conflict rules (the heart of this sub-topic)

Situation	Rule	Text
Śruti v. Smṛti v. Purāṇa	"Whenever there is conflict between Shruti (Vedas), Smritis and Puranas, then **what is stated in the Shruti should be taken as authority**." Śruti > Smṛti > Purāṇa.	Vyasa I-V-4
Smṛti v. Smṛti	"Where two Smritis conflict, **principles of equity as determined by popular usages shall prevail**." Crucially: "even in the cases of conflict between two Smritis, the king was not given any power or discretion to make a choice, but he was required to apply the law as approved by custom and usage by the people themselves."	Yaj. II-21-1
Custom v. text — within a group	"Whatever be the best practice, whether in accordance with law or not, that is declared to be the usage... Transactions between inhabitants of a village, colony, town and farmers' guild, caravan etc., should be decided **according to the usage**... This has reference to disputes *inter se* among the members of a village, family etc. In regard to a dispute **between them and others, a decision had to be taken according to the dictates of Sastras alone**."	Pitamaha (Sm. Ch. p. 58)
Prudence v. sacred law	(i) "When the rules of sacred law and the dictates of prudence are at variance, he (king) must discard the dictates of prudence and follow the rules of sacred law." (ii) "When it is impossible to act up to the precept of sacred law, it becomes necessary to adopt a method founded on reasoning because **custom decides everything and overrules the sacred law**."	Narada (Dharmakosha p. 90)

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Situation	Rule	Text
Interpretation of the Narada rule	No one may claim to be "wiser than the sacred texts" and refuse obedience as contrary to reason; but "the superiority of customs evolved on the basis of good reason and accepted and acted upon by society, over the Dharmashastra was recognised." **Asahaya**'s view: in conflict between sacred law and approved usage, **the latter prevails**. "Narada as also Gautama and Brihaspati, recognised the right of the people to evolve and accept by consensus and practice any changes in the law which were good for society though contrary to written texts."	Narada; Asahaya; Gautama; Brihaspati

Exam formula: quote Vyasa for the vertical order, Yaj. II-21-1 for the horizontal conflict, Pitamaha for the group/cross-group split, Narada + Asahaya for custom's supremacy — and then say the deep point: **in every conflict the chooser was to be the people's usage, never the king's will.**

02.6 Registration of conventions under the Royal Seal — Katyayana 48–50

> *"Deśasyānurūpeṇaiva vyavasthā yā nirūpitā / likhitā tu sadā dharmā mudritā rājamudrayā / tasmāt tatsaṃvideta nānyathaiva pravartayet / prajādeśa-dṛṣṭāṃ tu devatāti nirṇayet."*
> ***"Whatever conventions are settled in accordance with the consent of the people (of a country) should always be preserved in writing sealed with the Royal Seal.*** *Such conventions should be enforced just like the sacred law and the king should decide after considering them. Whatever trade conventions are reduced to writing by traders as fit to be carried out, these must be given effect to and the king should not lay down anything contrary to them."*
> — Katyayana 48–50

- Śruti and Smṛti were "specific and therefore... always known and ascertainable"; conventions and trade usages were not — hence registration, "in order to make them known to the public."
- The performance: the duty of the king was **only to register and enforce** the law accepted by the people, against individuals who contravened them. The royal seal did not create the rule; it publicised it. (See also the **Charter of Vishnu Sena, 725 A.D.**, Appendix-I of the book — "in conformity with this provision.")
- Modern echo: the same idea as promulgation/notification of law, but inverted — the state publishes what the community has evolved, not what the ruler has willed.

02.7 Where the texts run out — the king's conscience-decision

> *"Yatra caite hetavo na vidyante tatra pāṇim-īnvacanān-nirṇayaḥ."* — *"In cases where* ***no principle of law is found in the Shruti, Smritis or custom, the king should decide according to his conscience."***
> — Pitamaha (Sm. Ch. II p. 38); Brihaspati p. 387–2 similar

- "The above provision also **did not authorise the king to legislate**. The authority recognised that in the absence of law on any point the king could give a decision according to his best of judgment having due regard to all the facts and circumstances of the case."
- **Bridge (the reading's own):** "This is similar to the principle in the modern law which authorises the courts to decide according to **justice, equity and good conscience** in matters not covered by any specific provision of law." (This is the exact phrase the British courts later inherited — see §03.5.)

02.8 The Parishad — the one body with power to make new law

- "The power to decide complicated questions of law by resolving the conflicts **or to lay down a new legal provision** was recognised in an assembly of persons with prescribed qualifications, called the **Parishad**, vide Manu VIII 110–114." (Cf. Unit 3 §06: the parishad's composition — at least ten members including a learned brahmin, a logician, a Mīmāṃsaka and a Nirukta-knower, representing the three orders.)
- "Even in such a situation **no legislative power was vested in the king**."
- "Kings, however, were empowered to issue **Raja Shasana (Royal Edict) subject to** the law declared in the Shruti and Smritis." — executive decree, not legislation; and "subject to" is the point.

02.9 The whole sub-topic in one flow — the "source cycle" of Dharma

DHARMA MŪLAM — dharma is the root; law is binding on the king; the king enforces, never legislates (Kat. 45) ▾

THE SOURCES: Śruti (Veda) → Smṛti (seers' law-books) → Sadāchāra (custom of the good — Harita's test) → Conscience (good intention) ▾

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CONFLICT: Vyasa (Śruti > Smṛti > Purāṇa) · Yaj. II-21-1 (Smṛti v. Smṛti → equity per popular usages) · Pitamaha (same-group: usage; cross-group: texts) · Narada/Asahaya (custom overrules where reason and practice approve) ▾

EVOLUTION OUTSIDE THE TEXTS: conventions registered under the Royal Seal (Kat. 48–50) · class rules of cultivators, traders, herdsmen, moneylenders, artisans (Gautama) · the Parishad (Manu VIII 110–114) · the king's conscience-decision in the gap (Pitamaha) · Rāja Śāsana subject to the texts ▾

VERDICT: no legislative power anywhere in the crown — law is discovered, adapted and registered, never willed — "the government of laws, not of men," five centuries before the West's formulation

PART 03

(b) Custom as a Source of Law in India

03.2 Western jurists — the four positions

AUSTIN (Analytical): law = command of a political superior, enforced by sanction. Custom becomes law only when it receives **judicial or legislative recognition**. Taken strictly, customary law is "not law at all," or at best "imperfect" or "inchoate" law — which excludes customs that exist with full force but have never come before the courts, while admitting customs that have by accident →

HOLLAND (mitigating Austin): courts do not *proprio motu* make custom law; they "merely decide as a fact that there exists a legal custom" — the observance of a custom "is not the cause of law, but is evidence of its existence." Courts give operation to customs not prospectively but **retrospectively**, implying custom was law before judicial authentication →

ALLEN: custom is "self-contained, self-sufficient, and self-justified law"; the court's function is "declaratory rather than constitutive." Difficulty: **the court's veto** — a court may declare a custom invalid for unreasonableness →

SAVIGNY (Historical): the real basis of positive law is the general consciousness of the people (**Volksgeist**); the source is the "instinctive sense of right possessed by every race"; custom is merely **evidence** of law whose real source lies deeper; custom therefore possesses the force of law **before** it is received by the courts. For establishment: acts must be plural, uniform, constant, and done with the consciousness that they spring from a **legal necessity**. **PUCHTA**: "Custom is, for the people that has established it, a mirror in which that people may recognise itself"; custom is self-sufficient and independent of legislative authority — a condition precedent of all sound legislation

Criticisms of the Western accounts

- **Of Austin:** the analytical theory "does not very much fit the Indian condition" — in India, long before the British, customs "were observed by the people and were enforced not by the courts but by the village or community panchayats; the Government did not interfere." When the British courts came, "these very customs came to be pleaded before the courts which enforced them... it was there already in full force; the difference was that instead of the panchayats it came to be enforced by the courts."
- **Of Savigny:** not all customs rest on the community's instinctive sense of right — many rest on the interests of a strong minority (slavery); and the growth of much customary law is "not the result of conscious thought, but of tentative practice."

The background facts (quoted sources)

Custom arose first, law came later: "custom is coeval with the very birth of the community itself" (Paton); even a primitive tribe may have a legal order before it has a state (55 Harv. L.R. 66–7). Law was built upon custom — English common law absorbed the customs of the mercantile community to give the world modern mercantile law (Paton; Keeton); the Twelve Tables of Rome "were based upon the customs of the people" (Maine, *Ancient Law*).

03.3 The Hindu view of custom

Subordination — the orthodox line

Gautama: dharmas (customs) "of countries, castes and families, which are not opposed to Vedic scriptures, are authoritative and binding." Manu and Yājñavalkya: sources are śruti, smṛti, sadāchāra **in that order**. **Apararka**: a custom repugnant to any "clear" text of the Vedas is rejected. The **Mītākṣarā, Dāyabhāga and Mayūkha** similarly place custom below śruti and smṛti.

The dissenting voices

Viśvarūpa and Medhātithi: prescriptions of smṛtis (and even of śruti) need not be observed when vehemently condemned by the people — e.g. *niyoga*, though textually sanctioned, is "abhorred by custom." **Vrihaspati, Narada and Asahaya** favoured

"unqualified acceptance of custom even when they were in conflict with the written laws." Some smritis underlined the point: suppression of customs "would give rise to resentment and rebellion." One text of the Manusmriti itself: "**Achara is transcendental law**, and so are the practices declared in the Veda and smriti; therefore, a twice-born person desirous of his own welfare should always make efforts to follow it" (Kane, *Hindu Customs and Modern Law* 33). **Kautilya** (Arthashastra): usages and customs are of equal authority as evidence of law; and on conflict, the former (usage) "must be taken to be of greater force as being actually observed in practice."

Custom as the material source of ancient Hindu law — the process

1. The **dharmasūtras** tried to bring the text of the śruti into conformity with the customs prevailing in contemporary society.
2. The **smritis** "drew heavily on the customs of the people for whom they were designed" — which "largely explains why so many various Dharmashastra came into being, and why they differed from each other."
3. When the smritis failed the growing needs of society, the **commentaries** took up old texts and interpreted them "in such a manner that it came in harmony with social mores and customs of the people." The Privy Council: "The Digest subordinates in more than one place the language of texts to custom and approved usage" (*Bhyah Ram Singh* (1870) 13 MIA 373, 390).
4. Hence, from the same base texts, **two major schools of Hindu law** developed, one of them with four sub-schools. "The commentaries indicate an attempt to reconcile the text law with the actual usages of the people" (*Muthukaruppa v. Sellathammal* (1916) ILR 39 Mad. 298, 301); "different schools of law chiefly arose from the difference of local custom" (*Rutcheputty v. Rajunder* (1839) 2 MIA 132); "the commentators do not enact, they explain and are evidence of the congeries of customs which form the law" (*Balwant Rao v. Baji Rao* (1921) ILR 48 Cal. 30, 41); commentaries "owe their binding force not to their promulgation by any sovereign authority, but to the respect due to their authors and still more to the fact of their being in accordance with prevailing popular sentiment and practice" (*Jogdamba v. S.S.* (1889) ILR 16 Cal. 307, 375).
5. The process was not one-sided: while custom was recognised, custom was also "modified and supplemented by the opinions of the Hindu Jurists."

Sadachar — and the units of custom

"In Sanskrit, the word for custom is **sadachar**" — its import shifted from age to age (śiṣṭas' conduct → every usage of no visible secular purpose → even śūdra usages enforced by the king — see §02.3). The customs of which account is taken (Gautama, Manu, Brihaspati) are those of **districts (desa or janpada), towns and villages, castes, families, guilds, corporations or groups — gana, sreni, sangh, naigam, varga**. The natural effect: "the eight forms of marriage were recognised by Dharmashastra writers even though some of the forms were highly objectionable."

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03.4 The Muslim view of custom

PRINCIPAL SOURCES: Koran (word of God) → hadis (traditions; the Prophet's utterances and precedents from his acts) →

NEXT: ijma (consensus of opinion amongst the learned) → urf or custom → qiyas (analogical deduction from the first three)

- The Prophet himself recognised customary law: he gave express sanction to certain pre-Islamic Arab usages or "suffered such usages to continue without expressing disapprobation"; his companions recognised many customs not inconsistent with the faith. "The hadis contained, to a large extent, the customary law of pre-Islamic Arabia. In Koran, there is not much of law. Hence the rule that it must be read in conjunction with the customs then in vogue."
- Once the principles settled, custom was "relegated to an inferior position": recognised on the principle "treat whatever the people generally consider to be good for themselves is good in the eye of God," but ranked **inferior to the Koran, the hadis and ijma, yet superior to qiyas** — so "a custom opposed to the principles derived from the former sources is illegal."

The four conditions of Muslim-law custom (Abdur Rahim; Tyabji)

1. It must be **generally prevalent in the country**;
2. It must not be **merely a local usage** in a village or town (though it need not be ancient or immemorial);
3. It must be an **established course of conduct**, not a practice on a few occasions;
4. Being **territorial**, it cannot affect the law of other lands; being confined to a particular period, it cannot affect the custom of another age.

03.5 The British period — custom as "rule of decision"

1772 — Warren Hastings' adalats (Bengal, Bihar, Orissa): all cases of inheritance, marriage, caste and other religious usages "according to the laws of the Koran" (Muslims) and "the laws of the Shaster" (Hindus) →

1781 — Act of Settlement (amending the Regulating Act, 1773): the Calcutta Supreme Court to decide inheritance/succession and contract matters "by the laws and usages of Muhammadans" / "by the laws and usages of the Gentoos"; repeated for the other Presidency towns. The same year the adalats were told: where no specific directions, act "according to justice, equity and good conscience" →

s. 37 of the Bengal, Agra & Assam Civil Courts Act, 1887 — repeats the 1772 model with "Muhammadan law" and "Hindu law"; custom not mentioned. But Bombay Regulation IV of 1827, s. 26 (Elphinstone): "the law to be observed... shall be Acts of Parliament and regulations... in the absence... the usage of the country in which the suit arose; if none such appears, the law of the defendant, and, in the absence of specific law and usage, justice, equity and good conscience alone" — usage first →

s. 16, Madras Civil Courts Act, 1873: succession, inheritance, marriage, caste or religious institution — "the Muhammadan law... and the Hindu law..., any custom (if such there be) having the force of law and governing the parties or property concerned, shall form the rule of decision"

The Hindu-law answer: custom beats the text

"Under the Hindoo system of law, **clear proof of usage will outweigh the written text of the law**" — if a custom is proved on a point of Hindu law, courts must follow it even against an express text of the Dharmashastra or the commentaries (*Collector of Madura v. Moottoo Ramalinga* (1868) 12 MIA 397, 436; *Bhyah Ram Singh* (1870) 13 MIA 373, 390). *Neelkisto Deb v. Beerchunder* (1869) 12 MIA 523: where customs are proved, "it would oust the general law, which, however, will regulate all outside the custom." The courts' basis: Manu's "immemorial usage is transcendental law." This approach — "even though not in conformity with the orthodox approach, was yet in conformity with the genius of the law which always gave a high regard to custom."

The Muslim-law battle — from doubt to custom

Hirbae v. Sonabae (Bombay Supreme Court, 4 Ind. Dec. 100, 112) — Khojas and Cutchi Memons, Muslim by religion but following Hindu inheritance customs: Perry C.J. refused to read "laws and usages" as the Koran alone: the clause "was framed on political grounds solely... the effect... was not to adopt the text of the Koran as law any further than it has been adopted in the laws and usages of the Muhammadans." **But** for Bengal, the trial rule (s. 37) did not mention custom, and courts held custom could not derogate from Muslim law: *Jowala Buksh v. Dharum Singh* (1866) 10 MIA 511, 538; *Surmust Khan v. Kadir Dad Khan* (1866); *Jammya v. Diwan* (1901) ILR 23 All. 20. The turning point: ***Mohd. Ismail v. Lala Sheomukh*** (17 CWN 97, P.C.) — custom got precedence over Muslim law and became enforceable even in derogation of orthodox law; followed in *Ali Asghar v. Collector of Bulandshahar* (1917) ILR 39 All. 574; *Mt. Jaffro v. Chatta* (163 IC 650); *Roshan Ali Khan v. Chaudhri Asghar Ali* (1929) 57 IA 29; and *Md. Ibrahim v. Shaik Ibrahim*, AIR 1922 PC 59 — "custom plays a large part in modifying the ordinary law, and it is now established that there may be a custom at variance even with the rules of Mahomedan Law."

03.6 Punjab and the "custom law" tracts

- Punjab is "pre-eminently a land of customary law": neither the Hindu nor the Muslim sacred books made much impact on rural life; pre-British customs were enforced by village or tribal **panchayats or jirgas**. On annexation (1849) the Governor-General constituted the Board of Administration with the assurance that "native institutions and practices shall be upheld as far as they are consistent with the distribution of justice to all classes"; directions followed to enforce the *lex loci* — "local customs which had been obeyed by any tribe or sect." Sir George Campbell: "not one out of a hundred persons in the Punjab was governed by the strict provisions of the Hindu and Muhammadan law."
- **s. 5, Punjab Laws Act, 1872** (quoted in the reading): "In questions regarding succession, special property of females, betrothal, marriage, dower, adoption, guardianship, minority, bastardy, family relations, wills, legacies, gifts, partition, or any religious usage or institution, the rule of decision shall be — (a) **any custom applicable to the parties concerned which is not contrary to justice, equity and good conscience, and has not been declared to be void by any competent authority**, (b) the Mohammedan law, (c) the Hindu law..." — i.e., **custom was made the first rule of decision** (with the printed side-note in the casebook that (b)/(c) apply "in cases where the parties are Hindus except insofar as such law has been altered or abolished... or is modified by any such custom").
- ***Abdul Hussein v. Sona Dero*** (1917) 45 IA 10: "the section raises **no presumption** that the parties are to be governed by custom rather than by personal law which must be applied unless the custom is proved. The clause puts the custom in the forefront... but, before a custom may be enforced, it must be established by the ordinary processes of evidence" (also *Vaishno Ditti v. Rameshri* (1928) 55 IA 407, 421; *Salig Ram v. Munshi Ram*, AIR 1961 SC 1374).
- **No "general custom" in Punjab**: "custom there is mainly tribal, and even with the same tribe, it may vary from locality to locality... There is thus no single body of customary or tribal law common to the whole of Punjab" (*Ujagar v. Mst. Jeo*, AIR 1959 SC 1041). Custom is mainly agricultural, though "even the urban people are not completely free from it" (*Ramkishore v. Jainarayan* (1921) 48 IA 405).
- The same design elsewhere: **Oudh Laws Act, 1876, s. 3**; **N.W.F.P. Regulation VII of 1901, s. 27**; **Central Provinces Laws Act, 1875**; the **Malabar Coast** (Marumakkathayam — female-line descent, heirs being the children of the sister: *Krishnan v. Sridevi* (1889) ILR 12

Mad. 512); the **Kumaon Hills** (the *Khasis*, customs at variance with the Mītākṣarā); the **Moplahs** (Muslims following Marumakkathayam).

- **Jain's verdict on the clauses:** they "did not have much of any special significance, for even without them, custom would have been preferred over the personal law as was held by the Privy Council in the *Moottu Ramalinga* case"; their real service was removing the doubt in the area of Muslim law — "but even here the Privy Council's verdict had gone in favour of the custom."

03.7 Kinds of customs enforced

1. Tribal / communal / sectarian

Customs applying to a particular caste, community or group in a territorial area [*Parandhamayya v. Navaratna Sikhamani*, AIR 1949 Mad. 825; *Venkata Subba Rao v. Bhujangayya*, AIR 1960 AP 412] — Punjab, Malabar, Kumaon. Examples: the **Kamma** community's *illatom* (son-in-law affiliation with a share); the **Jains** — a widow may adopt without the husband's consent, as a custom of the community as such, irrespective of locality or sect (74 IA 254: AIR 1948 PC 177; *Sheo Singh Rai* (1878) 5 IA 87; *Chotay Lal* (1878) 6 IA 15; confirmed over the case-law in ***Munnalal v. Raj Kumar*, AIR 1962 SC 1493**); a Jain widow's full power to alienate her deceased husband's self-acquired property (*Sheo Singh Rai*; *Shimbhu Nath v. Gayan Chand* (1894) ILR 16 All. 379; *Chotay Lall* (1879) ILR 4 Cal. 744, 752); the **Chettis** of Madura — *moopu* (a portion for the first wife on second marriage, the rest divided between the sons of each wife) (*Palanjappa Chettiar v. Alayan Chetti* (1921) 48 IA 539); the **Nairs** of South Malabar — polyandry recognised, female-line descent, adoption of females to preserve the family (*Thiruthipalli Raman Menon* (1900) 27 IA 231).

2. Family custom

Applies to a particular family only. Early doubts: *Tarachand v. Reeb Ram* (3 Mad. HCR 50) — the theories all refer to customary law "antagonistic to the general law," to be established by acts of a single family; *Basvantrav v. Mantappa* (1 Bom. HCR app. XLII) — "it would be a dangerous doctrine that any petty family is at liberty to make a law for itself." But the Privy Council trend differed (*Serumah v. Palathan*, 15 Cal. W.R. P.C. 4 — a family carrying the Mithila law from Mithila to Bengal; ***Abraham v. Abraham*** (1863) 9 MIA 199 — a Christian family, converted from Hindu or Muslim religion, may have its own law), and the Bombay/Madras views became untenable (*Shidhojiray v. Naikojiray*; *Bhau Nanaji Utpat v. Sundrabal* — "usage of the country" in Reg. IV of 1827 is "sufficiently general to allow either of a very large or restricted application"). Thereafter family customs were routinely applied: a Jat family migrating Delhi→U.P. (1858) carried its custom (adoption of an orphan); **impartibility of estates** as a creature of custom (with maintenance rights); the **"composite family"** (two or more families pooling resources, labour and risk); a Jain family turning Vaishnav but retaining Jain custom (change of religion does not affect the personal customs governing status); a Muslim family's succession custom in Oudh upheld by the Privy Council. ***Shiba Prasad Singh v. Prayag Kumari*** (1932) 59 IA 331: "a Hindu family, no doubt, cannot by agreement between its members make a custom for itself of succession... at variance with the ordinary law. **But where a family is found to have been governed... by a customary rule of succession different from that of the ordinary law, that custom is itself law.**" A family custom can be destroyed by disuse.

3. Local custom

Binding on all persons in the local area; fewer in the case-law than family/tribal customs; and "while customs in India in the area of family relations and succession... are either tribal or communal or family, the **local customs are more of a secular nature**... they create other rights." Examples: **pre-emption** (essentially a Muslim concept, but recognised among non-Muslims by custom in certain areas; the Muhammadan-law rules apply to non-Muslims except as modified); **s. 18, Indian Easements Act** (easement by custom — a right of privacy as a customary easement); rights of **pasturage**, to **bury dead** on another's land, to **worship**, to hold **festivals**, to **remove earth** from a field, to a **village pathway** — all judicially conceded. A **fluctuating body of persons** cannot acquire a customary right in the nature of a profit-à-prendre (Calcutta view; Patna disagrees; Bombay: villagers are not a fluctuating body).

03.8 Requisites of a valid custom

"A custom is a rule which in a particular family or in a particular district, has, from long usage, obtained the force of law. It is not that each and every custom can be legally enforced. A custom to be legally recognisable and enforceable must fulfil several requisites, viz., it must be **ancient, certain and reasonable**, and, being **in derogation of the general rules of law**, must be **construed strictly**."

The statutory formulation (Hindu Marriage Act, 1955; Hindu Succession Act, 1956): "the expression 'custom' and 'usage' signify **any rule which, having been continuously and uniformly observed for a long time obtained the force of law** among Hindus in any local area, tribe, community, group or family: **Provided that the rule is certain and not unreasonable or opposed to public policy**."

Requisite	Content and Indian application	Key cases
1. Certainty	The custom "must not be left in doubt but be proved with certainty"; a vague custom cannot be applied. (Usually coupled with unreasonableness.)	*Shibnarain Mookerjee v. Bhutnath Guchait* (1918) ILR 45 Cal. 475

Requisite	Content and Indian application	Key cases
2. Antiquity	**England:** immemorial — fixed at **1189** (accession of Richard I; earliest King's Bench rolls) [*Dalton v. Angus* (1880–81) 6 AC 740, 811; *Wolstanton v. Newcastle* (1940) AC 860]; proved by a rebuttable presumption from continuous user as of right. **India:** the English rule does not apply — "it is not of the essence of the rule that the custom... must be ancient and its antiquity must be carried back to a period beyond the memory of man — still less... ancient in the English technical sense" (*Mt. Subhani v. Nawab* (1940) 68 IA 1, AIR 1941 PC 21); what matters is that the usage "has been acted upon in practice for such a long time as to show that it has, by common consent, been submitted to as the established governing rule of the particular locality." Allahabad H.C. refused the immemorial rule outright (it would "destroy many customary rights of modern growth"); Calcutta: 1773/1793 as the threshold, or proof of 50 years even against proof of an earlier different state; Bombay: 20 years' instances raise the presumption; 20–40–50-year customs enforced (*Bhiku v. Sheoram*, AIR 1928 Nag. 87 — 20 years; *Bari v. Tukaram*, AIR 1959 Bom. 54 — 30 years; Andhra — 40 years). No uniform rule; "**the minimum period... appears to be 20 years**"; the Acts say "for a long time" — undefined.	*Mt. Subhani* (P.C.); *Ujagar* (SC); *Dalton v. Angus*; *Wolstanton*
3. Reasonableness	A custom must not be against reason — but "reason... is not to be understood as meaning every unlearned man's reason but **artificial and legal reason warranted by authority of law**"; "it is sufficient if no good legal reason can be assigned against it." "It is the **usage which makes the law**, and not the reason of the thing"; an unreasonable custom is void, but a custom need not be deducible from any accepted principle, and a right established 50 years ago cannot be overthrown "on the strength of recently expounded theories regarding its basis." Examples: a custom of total remission of rent for inundation (extent unspecified) — unreasonable and uncertain; pasturage that "completely deprives the owner of his right" — unreasonable (proportionate accommodation instead).	*Wolstanton* (H.L.) — minerals without compensation not reasonable; *Shibnarain Mookerjee*
4. Not immoral / opposed to public policy	No fixed test; the courts exercise "a kind of **'censorial' power** on the customs." ***Gopi v. Jaggo*** (1936) 63 IA 295: a custom recognising the remarriage of a woman deserted by her husband (desertion dissolving the marriage) — valid. Divorce by mutual agreement — not immoral. *Mathura Naikin v. Esu Naikin* (1880) ILR 4 Bom. 545: adoption of girls by dancing girls — **immoral**, for the profession was immoral (earlier view in *Nanee Tara Naikin* differed). A divorce granted by a caste panchayat, without both parties' agreement — against public policy (Madras H.C. later held this proposition too wide). "A custom abhorrent to decency or morality however long practised... cannot be enforced" — e.g., marriage with daughter's daughter.	*Gopi v. Jaggo*; *Mathura Naikin*

03.9 Proof of a custom

The evidentiary rules

1. **Allege and prove.** "A party alleging that he is governed by a custom must specifically allege the same and prove its existence; **there is no presumption**... the onus rest[s] on him who alleges it" — strictly applied, even in Punjab and Oudh. The Privy Council's formula: "satisfactory proof of usage so long and invariably acted upon in practice as to show that it has, by common consent, been submitted to as the established governing rule of the particular family, class or district."
2. **Clear, cogent, unambiguous** — but "rigorous and technical rules of proof, such as are insisted upon in England, are not required in India."
3. **No extension by analogy.** "Theory and custom are antithesis; custom cannot be a matter of mere theory but must always be a matter of fact" (Supreme Court). Andhra: the Kamma estate-strangement custom (return of dowry) refused extension by analogy to the bride's death ("there could be no greater estrangement than 'death'"), even though on evidence the custom was proved.
4. **Instances** of enforcement are wanted, though not absolutely necessary at all times; a family custom may be proved by evidence of families of common origin settled in the same region; general evidence of members of the tribe/family who would naturally know.

The Evidence Act machinery

- **ss. 48–49**: opinion of persons likely to know of a general custom or right (s. 48); opinion of persons with special means of knowledge on the usages and tenets of any body of men or family (s. 49) — relevant.

- **s. 42**: judgments on custom are relevant though not conclusive; where a custom is repeatedly brought to the notice of the courts, "the courts may hold that custom was introduced into the law and that no further proof was necessary" — the effect of **s. 56** (judicial notice). "A custom by repeated recognition by courts becomes entitled to judicial notice."
- **s. 35** — the pivot for **wajib-ul-arz and riwaz-i-am**: village administration papers ordered prepared by **Regulation VII of 1822**, recording village customs (the officer recording statements of connected persons, including proprietors). Prima facie evidence of custom, not conclusive, rebuttable; weight depends on intrinsic quality — "when properly used, affords most valuable evidence of custom and is much more reliable than oral evidence given after the event" (*Balgobind v. Badri Prasad* (1923) 50 IA 196); but at times "concocted... in their own interest... worse than useless" (*Uman Parshad v. Gandharp Singh* (1887) 14 IA 127). The presumption is **weak where women are adversely affected** (they had no opportunity to appear before revenue officers); only a few instances suffice to rebut it.

Manuals and digests

District manuals of customary law (on the riwaz-i-am model) stand on much the same footing; even without instances, a manual entry is sufficient *prima facie* evidence. **Kumaon**: the U.P. Government, recognising that requiring "unsophisticated and uneducated" people to prove their customs was inequitable, appointed **Shri Panna Lal, I.C.S. (1919)**; the result — *Hindu Customary Law in Kumaon* (1920) — is admissible under s. 35 (local inquiry into actual customs). **Punjab**: **William Rattigan's Digest** (1880) of Punjabi customs — "of unquestioned authority in Punjab" (P.C. in *Mt. Subhani*); the Supreme Court: its "authoritative value... is now beyond controversy." On conflict between riwaz-i-am and Rattigan, the riwaz-i-am ordinarily prevails. Jammu & Kashmir: **Sant Ram Dogra's Code of Tribal Custom**. Mixed question of law and fact (*Palaniappa Chetty v. Deivasikamony Pandara* (1917) 44 IA 147) — though other PC decisions treat it as fact only.

03.10 Abrogation of custom — the Shariat Act and the Hindu codification

Statute	Effect	Detail
Muslim Shariat Act, 1937	**s. 2 (coercive)**: abrogated custom for Muhammadans and restored their personal law — the rule of decision for intestate succession, special property of females (incl. personal property inherited or obtained under contract or gift), marriage and its dissolution (talaq, ila, zihar, lian, khula, mubarrat), maintenance, dower, guardianship, gifts, trust and trust property, wakfs (other than charities/charitable institutions/endowments) — "**the Muslim Personal Law (Shariat)**" — **except agricultural land**. **s. 3 (persuasive)**: option to adopt Muslim personal law in matters of adoption, wills and legacies.	Reasons: "uncertainty and the expense of ascertaining custom"; and (the sounder reason) the inferior position of women under custom — agnatic succession excluded all females except a widow and a daughter with life interest or maintenance. Agitation: **Jamiat-ul-Ulema-i-Hind** and Muslim women's organisations. (Compare **Cutchi Memons' Act, 1920**: option by declaration for a community governed by Hindu inheritance law.)
Hindu Marriage Act, 1955 — s. 4(a)	Overriding effect: a custom is abrogated for any matter the Act provides for.	Customs left intact: recognition of marriage between parties within degrees of prohibited relationship and within sapindaship; rites and ceremonies of celebration; **customary divorce** — "a customary right to obtain dissolution of a Hindu marriage is not abrogated."
Hindu Succession Act, 1956 — s. 4	Overriding effect; "any custom inconsistent with it is abrogated."	**Impartibility (except by sanad or government grant) abrogated**; but **power of disposal** (testamentary power) is outside the Act and remains governed by custom.
Hindu Adoptions & Maintenance Act, 1956 — s. 4	Overriding effect; two savings.	Adoption of a **married person**, or of a person **over 15 years of age** — "only if custom permits."

Jain's structural point: "Whereas custom was abrogated to restore **orthodox Muslim** personal law, there is no example where a custom was abrogated to restore a principle of Dharmashastra." Hindu reform abrogated custom or text alike.

03.11 The concluding verdict — custom's heyday is past

What the British inherited — and what it cost

After the advent of the British, "custom came to be given a place of honour... **a place second only to the statutory law**; custom was given preference over the religious laws of the parties" — a "reasonable and just approach," since in practice the law of the shastra and the shara was not observed in pristine purity; it would have been "harsh with the people to force them to forego their customs." The English tests were adopted formally but applied loosely: no 1189 rule; no insistence on technical proof; family and tribal customs enforced (not "local" as in England); "usage" in England = a trade/business line of conduct, in India =

family relations (used interchangeably with custom); a family could **renounce** customs and adopt others (no English parallel); the English "outside-district" failure rule not applied. This looseness was salutary in the formative stages — with the legislature inactive and no lex loci, rejection of customs would have left "no law to apply," forcing "principles borrowed from a foreign Jurisprudence and unknown to people." *Rup Chand v. Jambu Parshad* (1909) 37 IA 93 and *Chiman Lal v. Hari Chand* (1913) 40 IA 156 show even the Privy Council tolerating thin evidence.

Why custom must now yield

Ascertainment led to writing — *riwaz-i-am*, manuals, digests — which "made the system more definite" but "**stereotyped customs; the element of flexibility and growth disappeared**; customary law became rigid and lost its capacity of organic growth." The specific vices: (1) custom is **past-tense** — "customs are useful for situations which have already occurred but cannot create a rule to deal with a future difficulty"; (2) **non-uniformity** — from family to family, region to region, community to community; (3) a **double burden on the judiciary** — deciding not only facts but the existence and content of custom; proceedings "dilatory and time-consuming"; (4) **expense** — witnesses to fact and to custom; (5) **vagueness** until judicially accepted. "All these considerations point to one inevitable result — **abrogation of custom and enactment of legislation instead**." In every mature system (England) custom plays a minor role; "in every progressive society, custom ceases to play an important role after a stage of social evolution is reached which appears to have been reached in India." And the final argument of integration: "Most of the customs are tribal and communal or sectarian, and so long as custom survives, **these class distinctions are also bound to survive**." The one reservation: backward areas — "the Constitution seeks to do that with respect to certain very backward areas like **NEFA and Nagaland**" whose modes should not be changed suddenly. **(Grey: modern equivalents — Art. 371A Nagaland; the Sixth Schedule; customary-law protection for Scheduled Tribes; also the striking modern counter-current — courts and statutes re-valuing tribal customary marriage, though that is beyond the reading.)** For the rest: "no justification to keep their disparate customs appears to be imperative any longer."

03.12 The sub-topic in one flow

- **CUSTOM AROSE FIRST (Paton: "coeval with the very birth of the community") — law was built upon it (common law + mercantile custom; Twelve Tables)** ▾
- **WESTERN THEORY: Austin (recognition) · Holland (evidence; retrospective) · Allen (self-justified; declaratory) · Savigny/Puchta (Volksgeist; law before recognition) — and why Austin "does not fit" India (panchayats enforced custom before courts existed)** ▾
- **INDIAN TEXTUAL BASE: Hindu — śruti/smṛti/sadāchāra; custom subordinate to texts (orthodox) but custom-wins (Viśvarūpa, Medhātithi, Vrihaspati, Narada, Asahaya, Manu's "Achara is transcendental law," Kautilya) · Muslim — Koran, hadis, ijma, urf, qiyas; 4 conditions** ▾
- **BRITISH LAW: 1772–1781 → Bombay Reg. IV/1827 s. 26 → Madras 1873 s. 16 → Punjab 1872 s. 5 — custom as rule of decision; Hindu law: "clear proof of usage outweighs the text" (Moottoo Ramalinga); Muslim law: custom prevails after Mohd. Ismail** ▾
- **OPERATION: kinds (tribal, family, local) · requisites (ancient, certain, reasonable, not immoral/public policy — the "censorial power") · proof (allege+prove; ss. 35, 42, 48–49, 56 Evidence Act; wajib-ul-arz; Rattigan; Panna Lal)** ▾
- **TWILIGHT: Shariat Act 1937 + Hindu Acts 1955–56 abrogate (with savings: customary divorce, prohibited degrees, rites, disposal, adoption exceptions) — "customs have had their heyday... the future legal growth in India will be mostly due to legislation"**

PART 04

(c) Precedent — Justice in Deciding Disputes (Dias)

04.0 The frame: corrective justice and three kinds of knowledge

"The fourth major task of justice, and one which lies especially within the province of lawyers, is giving just decision in disputes. In Aristotelian terms this would fall under **'corrective justice'**." Deciding disputes involves three kinds of knowledge:

- **(1) KNOWING THE FACTS** →
- **(2) KNOWING THE LAW APPLICABLE TO THOSE FACTS — "knowing how to find it in judicial precedents, statutes and immemorial customs" — the order in which the book treats the sources** →
- **(3) KNOWING THE JUST WAY OF APPLYING THE LAW TO THEM (the following chapter)**

This one passage is the unit's architecture: (c) Precedent = knowledge (2) as to precedents; (d) Legislation = knowledge (2) as to statutes; (b) Custom = knowledge (2) as to customs — and §06 of the ancient material (Rama Jois) is the same trinity in Sanskrit dress.

04.1 The doctrine of precedent in Britain — and its two preconditions

- "The doctrine of precedent in Britain has assumed a **have binding force** [sic — 'binding force'] and enjoys **law-quality per se**; Bindingness depends on the **hierarchy of courts**; higher courts bind lower courts, never vice versa."
- Bindingness attaches "to the **principle behind a decision, its ratio decidendi**, as stated by Jessel MR: **'The only thing in a Judge's decision binding as an authority upon a subsequent Judge is the principle upon which the case was decided'**" (*Osborne v. Rowlett* (1880) 13 ChD 774 at 785).
- "The two aspects are independent. A decision of the High Court, for example, is 'law' although it is not binding on any court superior to itself."
- **Two conditions had to be satisfied before stare decisis could become established:** (1) "a settled judicial hierarchy" — until then it could not be known whose decisions bound whom; (2) "reliable reports of cases" — precise records of what decisions lay down. "Only about the **middle of the last century** were these conditions fulfilled, and it is from about then that the modern doctrine emerges."

Stare decisis v. res judicata — the four differences (table for exam)

#	Stare decisis	Res judicata	Point of distinction
1	Operates on the **ruling of law** involved	Applies to the **decision in the dispute**	Object
2	Binds **everyone**, including parties in other cases	Normally binds only the **parties and their successors**	Persons bound
3	Brought into operation only by decisions of the **High Court and higher courts**	Applies to **all courts**	Range of courts
4	Operates **at once**	Takes effect after the **time for appealing is past**	Time of effect

04.2 Law reports — the history (a one-page timeline)

EARLIEST WRITERS: **Glanville** (late 12th c.) cited only one judgment; **Fleta** and **Hengham** (late 13th c.) hardly any; **Fortescue** (late 15th c.) the same. The exception: **Bracton** — a Notebook of ~2,000 cases as material, ~500 employed — but "there was nothing resembling the modern use of precedent": he stated his view of a rule and added an illustrative case →

YEAR BOOKS — the earliest reports (possibly Bracton's influence): anecdotal; authors recording asides and points of pleading, not principle; decisions often unmentioned. Yet used by students, and decisions treated as authoritative — **Prisot C.J., 1454:** "if this plea were now adjudged bad... it would assuredly be a bad example to the young apprentices who study the Year Books..." — "An utterance like this should not... be overestimated, and there was as yet no doctrine of stare decisis." Original records were the only official source; access normally given only to Crown lawyers →

PRIVATE REPORTS: **Dyer** and **Plowden** (deservedly high repute), then **Coke** (ending 1616 — the casebook prints "1916"; Coke's Reports end in 1616). None in modern dress — lengthy pleadings and disquisitions. Later 17th century: idea that **Exchequer Chamber** decisions were binding — perhaps because given by groups of judges (*Godden v. Hales* (1686), per Herbert C.J.). No such idea for King's Bench, Common Pleas, or even the **House of Lords** — lay peers participated until 1844 (*O'Connell v. R.* (1844) 11 Cl & Fin 155); it did not distinguish legislative from judicial functions (parliamentary privilege barred publication); **Dow** began House of Lords reports only in 1813 →

THE MODERN REPORTS: **Burrow's Reports** (1757–1771) — "the beginning of the modern practice," separating headnote, facts, argument and decision. Blackstone: follow previous cases "unless flatly absurd or unjust" (Bl. Com. I, 70). From ~1785 judges favoured particular reporters per court. **1865:** the **Law Reports** inaugurated by the Incorporated Council of Law Reporting — revised by the judges before publication, yet "in no sense official; law reporting remains, as always, a matter of private enterprise." **1936:** All-England Law Reports (rapid weekly service). **1953:** the Council's alternative weekly service with an indication of cases to be fully reported. "Utility to the profession is the only test" (Authoritative Precedent).

04.3 Assessment of reports — five rules

1. **Definition:** "A 'law report' means any account of a case **vouched for by a barrister who was present at the hearing**" (Authoritative Precedent). Usual anatomy: catch-words → headnote (facts and decision) → arguments of counsel (only some series) → judgment or the relevant portion.

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2. **Old reports vary in authority** — Coke and Burrow approved; Barnardiston and Epinasse not; note how fully the facts are stated and whether the judgment is verbatim.
3. **Compare all versions** if a case is reported more than once — significant discrepancies appear (e.g., *Williams v. Carwardine*; *Edwards v. Jones* [1947] KB 659; *Barker v. Levinson* [1951] 1 KB 342 — a statement of criminal liability of masters appears in one report and not another; *Perry v. Stopher* [1959] 1 WLR 415).
4. **The Law Reports version should be preferred**, "by virtue of having been revised by the judges" [*Leather Cloth Co. v. Lorsont* (1869) LR 9 Eq 345; *National Bank of Greece v. Westminster Bank* [1970] 3 All ER 656]. The Court of Appeal has ruled that the **revised version is authoritative over the original**, "since the former is only provisional and awaits approval by the judge" (*Bromley v. Bromley* (1965) P 111) — though the judge should not later alter "the whole character of his judgement," and occasionally the LR version is rejected (*CHT Ltd. v. Ward* [1963] 2 All ER 835); remarks eliminated from the LR/Criminal Appeal Reports have been repudiated (*R. v. Cockburn* [1968] 1 All ER 466).
5. **Rank order of sources:** verbatim judgment with arguments = best; a summarising report only in the absence of a fuller report, and even then of limited weight (*Rivoli Hats v. Gooch* [1953] 2 All ER 823); in the absence of all else, a barrister's oral account is admissible but of limited value (*Chapman v. Chapman* [1954] AC 429).

04.4 Applying a precedent — I: knowing the facts

"Applying a precedent to the instant case is a process of **matching the fact-pattern** of the precedent and the ruling thereon with the fact-pattern of the instant case; if they match, the rule is applied, if not, it is distinguished." A rule must be general and "**malleable**" — no one can foresee the precise situations that will arise, and "no word has one proper meaning."

The discretionary elements in knowing facts

1. **Credibility and balance of probabilities** — believing or disbelieving testimony; "judges are human, so the quirks of individual personalities may also play some part."
2. **How to state the facts** — "it is not knowledge of facts, but knowledge of **how to state facts** that is relevant" (both of the instant and the precedent case). Lord Simon: "What is relevant is not only the statement of material facts by the deciding judge, but also their re-statement by other judges in later cases" (*F.A. & A.B. Ltd. v. Lupton* [1972] AC 634, 659).
3. **Primary v. inferential facts** — "A did so-and-so at such a time in such a place" (primary) v. "A acted negligently" (inference); two courts may state the inferential fact differently while agreeing on the primary facts (*Benmax v. Austin Motor Co.* [1955] AC 370).
4. **Levels of generality** — the Rolls-Royce illustration: "A drove a Rolls Royce at 30 mph through Piccadilly Circus at 2 pm on a Wednesday, ran into B and broke his right leg" can be generalised (person; vehicle; public highway; negligence; physical injury) up to "a person inflicted physical damage" and "the negligent infliction of damage." "**The higher the level of generality, the wider the scope of the proposition.** A later judge is at liberty to accept as the fact-statement of A v. B a proposition at any level along the scale" — choosing the level the instant case needs (careless false statement → "negligent infliction of physical damage"; pecuniary loss → the widest, "negligent infliction of damage").

Material facts — the judicial surgery

1. **Selecting material facts** — the fewer included, the wider the scope. ***Rylands v. Fletcher*** [1868] LR 3 HL 330: facts (i) A had a reservoir built; (ii) A employed B to build it; (iii) A was not negligent; (iv) B was negligent; (v) water escaped by B's negligent construction and damaged C's property. Only (i) and (v) were treated as material; ignoring the presence/absence of negligence and generalising (i) into "anything likely to do mischief" produced the sweeping rule: whoever brings a "mischievous substance" on to his land is liable for damage caused by its escape, irrespective of negligence (whether "damage" includes personal injury was left open — *Miles v. Forest Rock*; *Read v. J. Lyons & Co.* [1947] AC 156).
2. **Adding/subtracting facts or re-stating them.** *Wilson & Clyde Coal Co. v. English* [1938] AC 57: employers held liable for death caused by a fellow-employee's default — but at that date the doctrine of *common employment* barred vicarious liability, so the ratio had to ignore that the party at fault was a servant and rest on a **personal non-delegable duty** to ensure reasonable care — a rule attaching liability even for an independent contractor. In *Davie v. New Merton Board Mills* [1959] AC 604, Viscount Simonds and Lord Reid stressed the materiality of the servant-fact — a "fundamental reinterpretation"; the **Employer's Liability (Defective Equipment) Act, 1969** then overruled *Davie* and restored the original interpretation in statutory form.
3. **The same happening, opposite results:** *Wagon Mound* [1961] AC 388 — on the lower court's finding that (per the science of the day) ignition of furnace oil was not reasonably foreseeable, no liability for fire damage; *Wagon Mound (No. 2)* [1967] 1 AC 617 — different plaintiffs, same occurrence, but the lower court's advertence to even a "bare possibility" of fire was treated as the material difference, so the defendants **were** liable. "Stressing one factor as material not only enabled two different courts to reach opposite results in the same case, but also enabled the same court to reach opposite results in two cases based on the same happening."
4. **Different combinations.** ***Donoghue v. Stevenson*** [1932] AC 562: the eight facts (manufacturer assumed negligent—snail in bottle; delivery under contract to retailer B; innocent sale to C; C to D; no intermediate examination; D poisoned; a Scottish appeal) yield at least four propositions — the Scots-appeal point (fact viii only); the **manufacturer proposition** (i, ii, vi, vii — negligent manufacturer liable to the ultimate consumer with no likelihood of intermediate examination); the **contract-misfeasance proposition** (ii, vi, vii — negligent misperformance of a contract physically damaging a contemplated third party); the **neighbour proposition** (ii, vii — anyone negligently damaging another whom he ought reasonably to have contemplated). "Only in the light of later cases is it possible to determine the ratio decidendi": courts now prefer the fourth; previously they generally adopted the second. The **truth was irrelevant** — the House remitted the case for trial on whether

there had been a snail, but the trial never took place (a party died): the snail's existence was never established. Limits: the consensual domain of word-meanings — the facts would not support, e.g., that the defendant caused a public nuisance.

04.5 Applying a precedent — II: knowing the law (the ratio decidendi)

"What is 'law' in a precedent is its ruling or **ratio decidendi**, which concerns future litigants as well as those involved in the instant dispute. ... Statements not part of the ratio decidendi are **obiter dicta** and are not authoritative." **Three shades of meaning:** (1) the translation — the **reason for (or of) deciding** (even a finding of fact may in this sense be the ratio: a judge may state a rule and then decide the facts do not fall within it); (2) the **rule of law proffered by the judge as the basis of his decision**; (3) the **rule of law which others regard as being of binding authority**.

- **No fixed ruling:** "There is a temptation to suppose that a case has one fixed ruling which is there and discoverable here and now and once and for all. This is not so, for **the ratio is not only the ruling given by the deciding judge... but any one of a series of rulings as elucidated by subsequent interpretations**." The judge's pronouncement "is a necessary step towards ascertaining the ratio, but the process by no means ends there; subsequent interpretation is at least as significant, sometimes more so." Jessel MR again: "It is not sufficient that the case should have been decided on a principle if that principle is not itself a right principle... it is for a subsequent judge to say whether or not it is a right principle, and, if not, he may himself lay down the true principle." Hence: **"ratio is best regarded as a pointer towards the direction which subsequent decision should take within a broad spectrum of variations... a continuing process... to be viewed in a continuum of time."**

The five working rules for finding the ratio

1. **Nothing is ratio which does not support the ultimate order** — "the reason *sine qua non*" (Cardozo); a stated rule bearing no relation to the facts is no more than a dictum (in *Pinchin v. Santam Insurance* 1963 (2) SA 254 (WLD) a ruling was made part of the ratio by being made the basis of the order *as to costs*; on the relationship of rulings to the ultimate order see *Wagon Mound (No. 2)*).
2. **Ratio may be extracted where the judge gave no reason** (e.g. *Giles v. Walker* (1890) 24 QBD 656) — but no judge is required to accomplish the impossible: "If it is not clear... I do not think it is part of the tribunal's duty to spell out with great difficulty a ratio decidendi in order to be bound by it" (Viscount Dunedin, *The Mostyn* [1928] AC 57, 73).
3. **Different rationes may be extracted** depending on different ways of stating the facts.
4. **A later judge may demote ratio to dictum** — the "neighbour" proposition "used to change its category according to whether the plaintiff or the defendant was thought entitled to succeed" (*Fairman v. Perpetual Investment B.S.* [1923] AC 74; *Haseldine v. Daw* [1941] 2 KB 343).
5. **Certain cases are not authorities at all:** no discoverable ratio; pure questions of fact (*Simpson v. Peat* [1952] 2 QB 24; *R. v. Young* [1953] 1 All ER 291); exercises of discretion (*Bragg v. Crosville Motor Services* [1959] 1 All ER 613); cases judges themselves say are not precedents (*R. v. Stokesley Justices* [1956] 1 All ER 563); and **decisions on the interpretation of documents** — regrettably used as precedents (a court may find itself construing "not the document before it, but judicial interpretations of similar wording in other, slightly different documents"). Lord Denning M.R. in *Re Jebb* [1966] Ch 666, 672: "I do not think it right to look at previous cases in this way. The only legitimate purpose is to use them as a guide towards the meaning of words... They should never be used so as to defeat this intention."

Multiple points, multiple reasons, plurality of judgments

- **Two points, A and B:** where the defendant must win on either and the judge decides for the defendant on both, either may be the ratio (*Said v. Butt* [1920] 2 KB 497 — the judge said point B was additional, making it a dictum); where the plaintiff wins on A but loses on B, A cannot be ratio — yet as a dictum it may carry such authority that the nomenclature ceases to matter. ***Hedley Byrne & Co. v. Heller & Partners*** [1964] AC 465: the House overthrew the rule on which the defendant had succeeded below and propounded a new one *with a qualification* that still let the defendant win — "rule and qualification together constitute the ratio; but even if it were said to be a dictum, the distinction is immaterial at this level of authority."
- **Two reasons in one judgment:** Lord Simonds — both should be accepted as part of the ratio (*Jacobs v. L.C.C.* [1950] AC 361, 369–371); one may later be rejected (*Fisher v. Tayler's Furnishing Stores* — the Court of Appeal rejected one of two grounds it had earlier given, confirmed later by the C.A. and the House of Lords); if the House later says one of two reasons is correct and the other wrong, "the authoritative ruling is the correct one."
- **Appellate plurality:** five judges, same result, five different reasons without disagreement → "five competing rationes," any may be adopted. Five judges each rejecting the others' reasons → the case "has no discoverable ratio and is, in any event, **worthless as an authority**." Three of five (or two of three) concurring for the same reason → that is the ratio. Majority differing in reasons while the minority agree on theirs → difficult to say. More than one issue + split tribunals → not resolvable by any test; the later judge's choice determines it. "All this does not imply that the solution would be to have only one judgment... Differences in presentation and wording will avoid the danger of any one judge's utterance being treated like an Act of Parliament."

04.6 Obiter dicta

- Pronouncements not part of the ratio "are classed as obiter dicta and are not authoritative. Rationes and dicta tend to shade into each other. **The former have law-quality and are binding on lower courts; dicta, too, have law-quality, but are not binding at all.** Vis-à-vis a higher court even the ratio of a lower court decision has only persuasive force like that of a dictum."
- "Some dicta are so authoritative that **the distinction between ratio and dictum is reduced to vanishing point**." Dicta with no force: propositions by way of illustration or on hypothetical facts.
- **Relegation by interpretation** (ratio→dictum) is "but a device employed by subsequent courts for the adoption or rejection of doctrine expressed in previous cases according to the inclination of the judges" (Lord Atkin's neighbour proposition is the example).
- **Weight varies with the type:** "Mere casual expressions carry no weight at all. **'Not every passing expression of a judge, however eminent, can be treated as an ex cathedra statement.'**" Dicta acted upon over the years acquire increasing respect; a dictum may be adopted as the ratio of a later decision, acquiring that tribunal's authority; Lord Goddard C.J. in *Zeidman v. Owen*: "If we thought that the dicta, though obiter, expressed the true construction of the Act, we should feel we ought to follow them." A suggested refinement: distinguish **obiter dicta** (irrelevant to the case) from **judicial dicta** (relevant to a collateral matter but no part of the ratio) — the latter generally more persuasive.

04.7 The subsequent history of a case

Reversal · Refusal to follow · Distinguishing

- **Reversal:** normally the first judgment "ceases to have any effect at all." If affirmed or reversed on a *different point*: one Master of the Rolls said the previous decision is of no effect; another that it remains binding — "the truth seems to be that in such a situation a later court has freedom to deal as it pleases with the earlier decision."
- **Refusal to follow:** before stare decisis, judges freely refused cases contrary to principle. Even now a judge may refuse a decision of **co-ordinate authority** — the conflict awaits resolution by a superior tribunal. Repeated refusals weaken a case's authority; so does a higher court's refusal to adopt a lower court's rule — but "only if such refusal implies disapproval of it." Cases are sometimes deliberately put on one side as a last resort — Sellers L.J.: "the best way to deal with that case is to say that **it goes into the limbo of lost causes**."
- **Distinguishing:** repeated distinguishing shows the decision is not approved and confines it to its special facts. "The bindingness of stare decisis is not rigid since judges have some latitude in evading unwelcome authorities... **a judge must follow a precedent except where he can reasonably distinguish it; but the possibilities of the latter are such that they reduce bindingness to the semblance of a cloud, solid looking and clear cut when viewed from afar, but less so when one actually gets into it.**" Techniques: restate facts at a lower level of generality — "A case is only an authority for what it actually decides. I entirely deny that it can be quoted for a proposition that may seem to follow logically from it" (Lord Halsbury) — the pair of decisions then being "like binary stars each part of which lives within the field of the other" (Lord Simon) — theoretically Donoghue may be confined to ginger beer and distinguished from fruit-salad, but "the lengths... have to be regulated by common sense"; treat additional facts as material; adopt the less appropriate of alternative principles as the ratio; reject the accepted ratio as dictum (Asquith L.J.'s quip: "if you agree with the other bloke you say it's part of the ratio; if you don't, you say it's obiter dictum, with the implication that he is a congenital idiot"). It is often hard to say whether a case was overruled or distinguished — where the House comments adversely on inferior courts' decisions, "there is often a great deal of discretion for future courts."

Changed conditions — cessante ratione cessat ipsa lex

A case neither reversed nor overruled may cease to be law "owing to changed conditions and changed law." Two situations must be distinguished: (i) the case is rejected as *never* having represented the law; (ii) the case, admittedly law at the time, has ceased to have that character owing to altered circumstances — the one under consideration. Willes C.J.: "When the nature of things changes, the rules of law must change too." Examples: *Re Polemis* was disapproved in *Wagon Mound* and, though never overruled, is "no longer law" on remoteness; in *The Heron II* there is the strong suggestion that *The Parana* (damages in the days of sailing ships) had ceased to be law; when sterling changed from stable to floating and after EEC entry, the Court of Appeal departed from a House of Lords rule — Denning M.R.: "When the nature of sterling changes, the rule of law may change too" — and the House, affirming, refused to follow its own earlier decision while indicating "**it was for the House, and not the Court of Appeal, to do so**." **The rule applies only to decisions which are not binding.** Lord Simon's five-point summary (for citation):

> *"(1) the maxim in the form 'cessante ratione cessat ipsa lex' reflects one of the considerations which your Lordships [may accept as justifying departure from] a previous decision...; (2) in relation to courts bound by the rule of precedent the maxim, in its literal and widest sense, is misleading and erroneous; (3) specifically,* ***courts which are bound by the rule of precedent are not free to disregard an otherwise binding precedent on the ground that the reason... seems to the court to have lost cogency****; (4) the maxim in reality reflects the process of legal reasoning whereby a previous authority is judicially distinguished or an exception is made to a principal legal rule; (5) an otherwise binding precedent or rule may, on proper analysis, be held to have been* ***impliedly overruled by a subsequent decision of a higher court or impliedly abrogated by an Act of Parliament****; but this doctrine is not accurately reflected by citation of the maxim."*
>
> — Lord Simon (as summarised by Dias)

by Ankur R. Upadhyay

04.8 Overruling — definition, grounds, retroactivity

What it is, and when it is legitimate

- **Overruling** = "the action of a superior court in upsetting the ratio laid down by a lower court in **some other case**." **Reversal** = overthrow of a decision on appeal in **the same case** (may involve disapproval of the ratio, but need not — reversal on some other point). "Overruling necessarily involves disapproval of the ratio but never affects the previous decision so that the parties... are protected by *res judicata*; and accounts that have been settled also are not affected." A case may be overruled and then reversed, or reversed and then overruled; if the overruling case is itself reversed or overruled, the first revives; by analogy, if a statute overruling a case is repealed, the case revives.
- **Considerations on overruling one's own decisions** (the House of Lords debate): (a) finality is necessary in developing the law; a tenable view in case 1 "should not be cast aside by an equally tenable opposite view in case 2"; it is important not to encourage reopening questions; (b) overruling is legitimate when **broad issues of legal principle** are involved, or a decision has been disapproved or distinguished on inadequate grounds; (c) it is **easier to overrule a recent decision before it has been acted on**; (d) overruling should **rarely occur in matters of statutory construction** (per two Law Lords; two others thought the earlier case wrongly decided, only a minority were prepared to overrule).
- **Factors strengthening authority** (weighing against overruling): unanimity; eminence of the judges; approval in later cases and by the profession; evidence that the issue was fully and carefully argued and the court took time to deliberate; and the length of time the decision has stood (people have governed their transactions on it). **Factors favouring overruling:** lack of unanimity; failure to notice relevant authorities; lack of eminence; poor quality of the report; the case was compromised; extempore judgment, matter not properly argued; doubted or criticised in later decisions, by the profession, or in juristic commentary; and "by no means least, if the decision is thought to be **plainly wrong**."
- **Express or implied** — implied where the later ratio is inconsistent; the difficulty of ascertaining ratio makes implied overruling hard to detect, but "it does give courts a loophole for escaping from stare decisis."

Retroactivity — and the case for prospective overruling

- The effect of overruling is **retroactive**, except as to *res judicata* between the parties to the overruled decision and settled accounts. This is "logically reconcilable with the theory that judges do not make law but only declare what always has been law" (the overruled decision was an erroneous declaration, "void ab initio"); a more fundamental rationale: "justice quality is inherent in every law. Therefore, an unjust (hence erroneous) precedent can never have been 'law'."
- **The difficulty:** the House of Lords insists only it can declare its own decisions wrong and that lower courts must follow them — implying such decisions are "law, albeit bad law" (no court can be bound by what is not law). "If so, the overruling by the House of Lords of one of its own decisions must operate **prospectively**, unless there is express provision to the contrary." Even on the law-making view, hardship remains: those who acted in reliance on the old law are judged by an *ex post facto* law — "a consideration which weighs powerfully against overruling except for compelling reasons."
- **Prospective overruling** (the suggestion): overruling, like repeal, should take effect for the future only, the instant case abiding by the previous law "for the last time." Objections: if the new rule does not support the actual decision it "can only be a dictum" (counter: the tribunal is freeing itself for the future and may adopt the dictum later); a litigant would not be encouraged to appeal against a bad precedent (counter: coupled with a **discretion** — future only; future + instant; future + instant + retrospective — and particularly valuable where the object is to create a new criminal offence or extend an existing one by overruling a no-liability decision, "for this would avoid having to punish the accused in the instant case for conduct which was not a crime when he did it"). **(Grey: Indian doctrine — the Supreme Court adopted prospective overruling in *Golak Nath* (1967); note the debate at the time of writing is beyond the casebook.)**

04.9 Following, applying, explaining — and the judicial discretion (declaratory theory)

Following · applying · explaining

A case is **followed** when the use made of it does not affect its ratio (e.g., the judge only trims the facts of the case before him to fit the precedent); **applied** when the use made of it does affect its ratio — raising the level of generality by reducing the material facts, selecting the more appropriate of alternative rationes, or adopting a dictum as the ratio of the case before him. Repeated following enhances authority. **Explaining** = placing an interpretation on a precedent, then following, refusing or distinguishing — "an indication that the ratio decidendi is being reshaped."

The declaratory theory and its critique

Since "there is no fixed ratio of a case, there is an element of choice in determining it. The orthodox **Blackstonian view**... is that judges do not make law, but only declare what has always been law." Its sources, per Dias: (1) thinking exclusively in the present time-frame, giving the belief that some rule is always "there" awaiting application; (2) in Blackstone's day, the belief in natural law as part of English law — and "despite the derision which this theory encountered... its vitality is remarkable"; (3) the 17th-century struggle against the prerogative — the judges maintained the king was subject to law and could not legislate, "the corollary of which was that they, too, were subject to the law and unable to make law"; (4) the **separation of powers** insistence on the theoretical dissociation of judicial and legislative functions; (5) 19th-century positivism ("concerned only with the law as found"); (6) **public confidence** is more easily retained by the illusion of impersonal administration; judges "seek refuge in the theory when giving a harsh decision"; (7) the psychological preference "to be led rather than have to find their own way" — a

"father-symbol"; (8) decisions pronounce on the legality of conduct *after the event* — anything savouring of attainder is unpopular, and the theory conceals this; (9) the **evidential function** of a decision (evidence of what the law is) overlays the creative factors; and (10) the **syllogistic form**: "All men are mortal; X is a man; therefore X is mortal" — in judgment form: "Facts of Type A are governed by Rule B; facts of the instant case are of Type A; therefore..." — "a syllogism can only make explicit that which is implicit in the premises."

But the discretion is real — at every stage

- **Major premise:** the judge must find, sometimes *make*, the rule — in a precedent, statute or custom; or create one by analogy with other rules, or "by a process akin to induction" or, "in the absence of any other guide,... out of his own sense of justice." If binding and not reasonably distinguishable, he must follow; if not binding, he follows if consonant with his sense of justice.
- **Minor premise:** finding facts depends on credibility and interpretation of evidence; the facts must be stated at an appropriate level of generality ("governed by linguistic conventions"), "may also be coloured by a convenient rule which is to hand," and "the rule-statement, too, for its part is often trimmed according to the view taken of the facts so that it can be made to yield the conclusion which the judge wants to reach. **The formulation of fact statements and rule statements are parallel processes.**"
- **Similarity, not identity:** identity between facts in different situations is "inconceivably remote"; rules are general and utilise vague concepts ('negligence', 'possession') with no fixed content; "what is crucial... is the perception of **similarity**, not identity... which is subjective, since perception of similarities and dissimilarities is a matter of choice and a desire to reach a just decision."
- **Conclusion:** once the premises are thus manipulated, the conclusion "will appear to follow syllogistically." Exposing this "stands in a class of its own": the judicial process involves different kinds of reasoning — **induction** (finding the major premise: "Facts of case A were decided Y; facts of case B were decided Y; therefore, strictly, facts A and B should be decided Y" — with the possibility of a broader proposition warranted by the material, liable to be cut down "as being too wide by a later court") and **analogy** (finding the minor premise: case-by-case, contrasting examples, "first one way and then another to see which way one's judgment is swayed").

Induction in law v. scientific induction (six differences) + Wisdom

1. A scientist repeats his experiment and verifies; a judge cannot.
2. Scientific principles result from observation of data; judicial principles from statements of fact and value-judgments.
3. A judge can reason by analogy and choose between competing analogies; a scientist does not.
4. Scientific principles are modified to accommodate new data; judicial principles "in response to moral and policy considerations."
5. A judge induces a principle to decide the case before him; for a scientist the case is part of the data.
6. A scientist must accommodate all the data and has no choice; a judge "can select his material by discarding unwelcome cases."

> *"It is a presenting and re-presenting of those features of the case which severally co-operate in favour of the conclusion... The reasons are **like the legs of a chair, not the links of a chain.**"*
> — Professor Wisdom (as quoted by Dias)

by Ankur R. Upadhyay

04.10 One-view map of the precedent doctrine

CORRECTIVE JUSTICE → 3 KNOWLEDGES (facts · law · just application) → precedent, statute, custom as the law's sources ▾

PRECONDITIONS: settled hierarchy + reliable reports (mid-19th c.) → **stare decisis** (v. res judicata: 4 points) — bindingness = law-quality per se; binds per hierarchy; binds only via **ratio** (Jessel MR) ▾

REPORTS: Year Books → Dyer/Plowden/Coke → Burrow → Law Reports 1865 (judge-revised, private) → assessment rules (compare versions; LR preferred; verbatim best) ▾

RATIO: 3 shades; no fixed ruling — a "pointer... in a continuum of time"; 5 working rules; plurality problems; **dicta** not binding but graded (casual → judicial dicta → adopted) ▾

SUBSEQUENT HISTORY: reversal · refusal to follow · distinguishing ("a cloud... less so inside") · changed conditions (Lord Simon's 5 points) · overruling (grounds; factors; retroactive; prospective debate) ▾

THE THEORY: declaratory (Blackstone) — judges find, not make — yet the discretion operates at every stage (major premise, minor premise, similarity) — induction + analogy — "legs of a chair"

PART 05

(d) Legislation — the Modern Source

05.0 Coverage honesty — how this section is built

The casebook's Dias excerpt is the **Precedent** chapter; it is not followed by the Statutes chapter (the book announces it — "knowing how to find it in judicial precedents, statutes and immemorial customs... will be dealt with in that order in this and the following two chapters" — but only the first is extracted). Sub-topic (d) therefore has **no dedicated reading**. This section is built on (i) what the three readings themselves say about legislation, (ii) the earlier units' readings in the same casebook (each cited by unit), and (iii) standard jurisprudence propositions, which are marked **grey**. Use it to answer "legislation as a source of law" with the casebook's own logic — never as if a reading covered it.

05.1 What the three readings say about legislation

Rama Jois · the ancient silence

Dharmashastra "did not confer on or recognise any legislative power in the king"; the sources were śruti, smṛti, sadāchāra and conscience; new law came from the people's usages, the parishad, and the king's conscience-decision — never from the crown's will. The corollary for sub-topic (d): **legislation is the one source that ancient India lacked** — not because it was forgotten, but because it was deliberately excluded: "the king should never act according to his own fiat." Rāja Śāsana (royal edict) was executive, "subject to the law declared in the Shruti and Smritis."

Jain · the modern engine

His concluding verdict is the reading's clearest statement on legislation: "It appears that customs have had their heyday... The future legal growth in India will be mostly due to **legislation**, and to some extent, judicial interpretation and **precedent**, though comparatively, the latter would be less important than the former. And, usually, when a new legislation is passed, custom to that extent is abrogated." Also: legislatures legislate because custom fails — uncertainty, non-uniformity, rigidity, expense, the double burden on courts, and "abrogation of custom and enactment of legislation instead" is "the inevitable result." And his counter-check: in the early British days "the legislature was not active, did not enact laws in the area of private law, and judges had to decide cases... by justice, equity and good conscience" — the vacuum custom filled.

Dias · statutes inside the decisional process

(1) Statutes are one of the three places the lawyer must "know how to find" the law. (2) In constructing the major premise, the judge finds the rule "in a precedent, statute or custom" — or creates one. (3) **Statutes interact with precedent:** an otherwise binding precedent may be "impliedly abrogated by an Act of Parliament" (Lord Simon, point 5); "if a case is overruled by statute, there is some ground for saying that its ratio is no longer authoritative"; the *Employer's Liability (Defective Equipment) Act, 1969* "overruled *Davie* and restored the original interpretation of *Wilsons* in statutory form"; repeal of a statute (like reversal of an overruling case) raises the revival question. (4) **Statutory construction is special:** "overruling should rarely occur in matters of statutory construction" (two Law Lords), because Parliament's meaning, once settled, should stay settled. (5) The document-interpretation lesson generalises: judicial observations on words are a guide to meaning, never a substitute for the actual text.

05.2 Legislation defined — and its four hallmarks

Legislation is law deliberately and formally enacted by a competent authority — the only source that is *made*, not *found*: it creates rules for the future, in writing, in advance, for a general class of persons and situations. **(Grey competence: in India — the Constitution (by the people in the Constituent Assembly), Parliament (Art. 245–246), State Legislatures, and the executive under delegated power; Art. 13 makes the Constitution supreme over all legislation.)**

Hallmark	Point	Casebook footing
1. Deliberate	Made consciously by a designated authority for a policy object — unlike custom (tentative growth) and precedent (dispute-driven)	Jain: legislation is the remedy chosen once custom's defects are seen; Rama Jois: exactly the power the king was denied
2. Prospective	Rules for future conduct; repeal is prospective; a statute overruling a case raises the revival question	Dias (overruling/repeal analogies)
3. Written & ascertainable	The answer to custom's vagueness and expense of proof	Jain: uncertainty and expense among the reasons for the Shariat Act

Hallmark	Point	Casebook footing
4. Supreme over the other sources (in a modern state)	Abrogates custom (s. 4(a) HMA etc.); overrules precedent (Statute 1969); supplies the frame within which dharma-derived personal law survives only by saving clauses	Jain (abrogation); Dias (statutory overruling); Rama Jois (the ancient contrast)

05.3 Legislation v. Custom v. Precedent — one comparison table for answers

Point	Dharma (ancient)	Custom	Precedent	Legislation
Law is...	discovered (revealed + remembered + good usage + conscience)	grown (long observance)	declared/*made* in deciding	**made deliberately**
Author	the seers; the people's usages; the parishad; never the king	the community (desa, caste, family, guild)	the judges, per hierarchy	the legislature (constitutionally competent)
Reaches law-status by	its own authority (dharma binds the king)	recognition / enforcement (with the court's veto on unreasonableness)	law-quality per se; binding on lower courts	enactment + constitutional validity
Change	by interpretation and usage-registration	slow; cannot be created for future problems ("past tense")	by distinguishing, overruling, prospective overruling	fast; by amendment and repeal
Certainty	texts specific; usages registered	weak until judicially accepted	moderate (ratio is a "pointer")	**highest** (written text)
In modern India	personal law surviving within saving clauses	subsisting where saved; statute abrogates	Art. 141; binding per hierarchy	**the engine of growth** (Jain)

05.4 The four-source historical cycle — the unit's master flow

STAGE 1 — DHARMA (ancient India): law found in śruti/smṛti/sadāchāra/conscience; king enforces; the people's usages and the parishad adapt; no legislation anywhere →

STAGE 2 — CUSTOM (pre-British and early British India): the great material source, enforced by panchayats and jirgas; the British make it a rule of decision (1772 → 1827 → 1872/1873/1887); "second only to statutory law" →

STAGE 3 — PRECEDENT (19th–20th centuries): the case-law of custom grows (Moottoo Ramalinga → Munnalal); Dias's doctrine of precedent; the reports system; India's vast custom-case-law →

STAGE 4 — LEGISLATION (from codification to the present): Shariat Act 1937; Hindu Acts 1955–56; the Constitution itself; the parent Acts of every tribunal — "the future legal growth in India will be mostly due to legislation" (Jain) →

THE RING RETURNS: yet the ancients' insight survives inside the modern system — the constitution binds the state's organs (rājadharma), the courts read statutes with Mīmāṃsā (Unit 3 §07), and legislation itself is restrained by fundamental rights

05.5 Cross-fed material — statutes in the earlier units (same casebook)

Unit (file)	What it contributes to sub-topic (d)	Locus
Unit 1 (pp. 1–37)	The codification discussion — codes as the deliberate replacement of customary and judge-made law; the movement from law-in-books to enacted law; the Constitution as supreme codification	Unit 1 §03 on codification
Unit 3 (pp. 78–107)	David & Brierley: codes since the 19th century as the Romano-Germanic hallmark; in the Socialist family, the legislature (guided by the party) as the **sole** source of law — legislation's extreme case; Sudame: Mīmāṃsā as the Indian method of reading *statutory* text (vidhi/nishedha, paryudāsa = proviso, vidhivaishamya = inconsistency) — applied by the Supreme Court in *Surjit Singh* and *B. Premchand*	Unit 3 §03, §05, §07

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Unit (file)	What it contributes to sub-topic (d)	Locus
Unit 4 (pp. 108–138)	The Constitution as the supreme legislation (Preamble, Arts. 14/19/21/39-A); the parent Acts that create every regulator and tribunal (Competition Act, 2002; TRAI Act, 1997; IBC, 2016…); the Advocates Act, 1961 as consolidating legislation that abolished the earlier profession-law patchwork; s. 304 CrPC as the codification of a Law Commission recommendation; 42nd Amendment inserting Art. 39-A	Unit 4 §02–05
Unit 2 (pp. 38–77)	Dharma as command/ideal — the ancient equivalent of "legislation" in the sense of deliberate rule, but without a legislator; the king's legislative power denied (parity with Rama Jois)	Unit 2 (rājadharma; sources of dharma)

Grey standard propositions (know them, cite as "standard jurisprudence," not as the reading): supreme legislation (constitution-making) v. subordinate legislation (rules, regulations, bylaws made under statutory power — e.g., Bar Council rules, High Court rules); delegation and its limits; the doctrine of implied repeal; Art. 13's primacy; Art. 141 (precedent) and Art. 142 (completeness) as the judiciary's constitutional footing; the presumption against ouster of jurisdiction and against retrospectivity. Each is the modern form of a casebook theme: Rama Jois's hierarchy of authorities (Vyasa), Jain's hierarchy (statute > custom), Dias's hierarchy (higher court > lower court; Parliament > both).

05.6 How to answer "legislation as a source of law" (honest method)

1. Open with the casebook frame: Dias — the three places a lawyer must know how to find the law; Jain — "the future legal growth in India will be mostly due to legislation"; Rama Jois — ancient India's deliberate exclusion of legislative power.
2. Define legislation and its hallmarks (deliberate, prospective, written, supreme).
3. Show the interaction with the other three: legislation abrogates custom (Jain's examples); legislation overrules precedent (Dias's examples); legislation carries ancient dharma forward only through saving clauses (the HMA/HSA/HAMA savings); and legislation is itself read with Mīmāṃsā and the Constitution's rights (Units 3–4).
4. Close with the master flow (§05.4) and the caveat: "the sequence does not make the earlier sources dead — in India they survive inside the legislative frame (Art. 372, personal-law savings, tribal customs)."

PART 06

Authorities — Case Briefs & Texts

Group A — twelve cases briefed in full (facts · issue · arguments of both sides · decision · principle evolved), as far as the readings report them; where a reading gives only the proposition, that is said so. **Group B** — the rest of the case law, one line each. **Group C** — texts and statutes.

CASE 1 · Collector of Madura v. Moottoo Ramalinga Sethupathy (1868) 12 MIA 397 Jain

Facts	The Ramnad case: a succession/adoption dispute in the Madras Presidency — the question whether a Hindu widow who had not received authority from her husband could nevertheless adopt a son to him with the consent of his kinsmen, and whether a proved usage was good against the text.
Issue	Can a custom, clearly proved, prevail over the written text of the Hindu law?
Arguments	For the custom: the widow's adoption with kinsmen's consent was the prevailing usage of the Presidency; usage, not text, was the living law. Against: the texts require the husband's authority; usage without authority is void. (The reading records the decisions and the rule rather than the oral arguments in detail.)
Decision	The Privy Council upheld the adoption (per the law prevalent in the Madras Presidency — a widow without the husband's authority may adopt with the consent of the nearest sapindas) and laid down at p. 436: "under the Hindoo system of law, clear proof of usage will outweigh the written text of the law."
Principle	Custom overrides the text in Hindu law. If a custom is established on a point of Hindu law, the courts are bound to follow it even though it is inconsistent with an express text of the Dharmashastra or the commentaries. This is the foundation of the whole British-period custom law — and, per Jain, its justification: it was "in conformity with the genius of the law which always gave a high regard to custom."

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CASE 2 · Bhyah Ram Singh v. Bhyah Ugur Singh (1870) 13 MIA 373 Jain

Facts	A dispute turning on the content of the applicable Hindu law, in which the interpretation of the authoritative digest was in question.
Issue	Which prevails — the language of the texts as compiled in the digest, or custom and approved usage?
Arguments	Text-strict side: the digest's words must be applied as written. Custom side: the digest itself, read as a whole, subordinates text to usage. (The reading cites the case for its holding, not for a full argument record.)
Decision	Privy Council (p. 390): "The Digest subordinates in more than one place the language of texts to custom and approved usage."
Principle	In interpreting the Hindu law-books, the Privy Council treated the commentaries as recording usage — the reason Jain gives for the emergence of schools: "starting with the same texts as the base, two major schools of Hindu law developed in India." The Jogdamba gloss completes it: commentaries are not promulgated by sovereign authority but are binding "by the respect due to their authors and still more to the fact of their being in accordance with prevailing popular sentiment and practice."

CASE 3 · Neelkisto Deb v. Beerchunder Thakoor (1869) 12 MIA 523 Jain

Facts	A dispute over the devolution of an estate in which a special usage was set up against the general law of succession (the reading does not detail the facts; it cites the case for its rule).
Issue	Where a custom is proved, does it displace the general law — and does the general law survive outside its scope?
Arguments (as reported)	For the custom: proved usage governs the subject matter; for the general law: without proof of custom the ordinary rules apply. (The rule, not the arguments, is the casebook's point.)
Decision	Privy Council (12 MIA 523): "where a custom is proved to exist it supersedes the general law, which, however, still regulates all outside the custom."
Principle	The scope rule of custom: it is an exception carved out of the general law — it operates to the extent of the custom and no further. Hence also Jain's point that a custom, "being in derogation of the general rules of law, must be construed strictly."

CASE 4 · Hirbae v. Sonabae, 4 Ind. Dec. 100, 112 (Bombay Supreme Court) Jain

Facts	Khojas and Cutchi Memons of the Bombay Presidency: Muslim by religion, but for generations governed by Hindu customs of inheritance and succession. The question was whether, under the clause directing the Supreme Court to decide by the "laws and usages" of Muhammadans, they were governed by their customs or by orthodox Muslim law.
Issue	Does "laws and usages" mean the Koran alone, or the actually observed usages of the community?
Arguments	Orthodox view: the phrase must mean the Muslim law as such; a Muslim cannot be governed by Hindu inheritance rules. Perry C.J. (for the customs): the clause "was framed on political grounds solely, and without reference to orthodoxy, or the purity of any religious belief"; its purpose was "to give the benefit of their laws to the people of India"; its effect "was not to adopt the text of the Koran as law any further than it has been adopted in the laws and usages of the Muhammadans"; and "if any class of Muhammadans are found to be in possession of any usage which was otherwise valid as a legal custom, and which did not conflict with any express law of the English Government, they were just as much entitled to the protection of this clause as the most orthodox sunni."
Decision	The customs of the Khojas and Cutchi Memons were held applicable in preference to orthodox Muslim law.

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Principle	The colonial "personal law" clause was a political guarantee of actually observed law, not a religious ordinance; where a community's settled usages differ from the orthodox texts, the usages prevail. The first breakthrough for custom against Muslim orthodoxy — though it took the Bengal rule nearly four more decades to fall (see Case 5).

CASE 5 · Mohd. Ismail v. Lala Sheomukh, 17 CWN 97 (P.C.) Jain

Facts	The Allahabad High Court in Jammya v. Diwan (1901) ILR 23 All. 20 had held that s. 37's words being "very positive and emphatic" (Muhammadan law to Muhammadans), a family custom among Muslims excluding a daughter from inheritance could not be proved — a view held since Surmust Khan (1866) and Jowala Buksh v. Dharum Singh (1866) 10 MIA 511, 538. The question came before the Privy Council for review.
Issue	Does s. 37 (and its equivalents) exclude custom as against Muslim law?
Arguments	Against custom: the courts had reasoned that Muslim jurists place custom at a low level (inferior to the Koran, hadis and ijma), and the wording of the Bengal rule admitted no opening. For custom: the same provision was being interpreted differently for Hindus precisely "because of the high place traditionally allotted to custom by the Hindu Jurists"; the constitutional guarantee should not depend on theology.
Decision	Privy Council: custom got precedence over the Muslim law and was made legally enforceable even in derogation of orthodox law. Followed: Ali Asghar v. Collector of Bulandshahar (1917) ILR 39 All. 574; Mt. Jaffro v. Chatta (163 IC 650); Roshan Ali Khan v. Chaudhri Asghar Ali (1929) 57 IA 29; Md. Ibrahim v. Shaik Ibrahim, AIR 1922 PC 59 ("custom plays a large part in modifying the ordinary law, and it is now established that there may be a custom at variance even with the rules of Mahomedan Law").
Principle	Parity of custom across personal laws: the law as administered in India treats a proved custom as overriding both Hindu and Muslim texts; the earlier judicial attitude "was due to the low place allotted to custom traditionally by the Muslim Jurists," not to any rule of Indian law.

CASE 6 · Abdul Hussein v. Sona Dero (1917) 45 IA 10 Jain

Facts	A Punjab succession dispute under s. 5 of the Punjab Laws Act, 1872, which puts "any custom applicable to the parties... not contrary to justice, equity and good conscience" first in the rule of decision.
Issue	Does s. 5 raise a presumption that the parties are governed by custom rather than by personal law?
Arguments	Custom-first reading: some Punjab courts had held the effect of s. 5 to make custom the primary law, casting on anyone alleging personal law the burden of proving it. Personal-law reading: custom must be proved like any fact; the section merely recognises the fact that customs largely govern Punjab.
Decision	Privy Council: the section "raises no presumption that the parties are to be governed by custom rather than by personal law which must be applied unless the custom is proved. The clause puts the custom in the forefront as the rule of decision: the legislature has recognised the fact that in Punjab, customs largely govern the people. But, before a custom may be enforced, it must be established by the ordinary processes of evidence." Accord: Vaishno Ditti v. Rameshri (1928) 55 IA 407, 421; Salig Ram v. Munshi Ram, AIR 1961 SC 1374.
Principle	No presumption of custom — even in custom-favouring statutes. "A person asserting the custom has to prove it before the courts can apply it"; the preference in the statute determines the rule of decision once proof is tendered, not the incidence of the burden.

CASE 7 · Munnalal v. Raj Kumar, AIR 1962 SC 1493 Jain

Facts	The question whether the Jain community's custom — a widow may adopt without her husband's consent — prevails in the community "as such," across sects and localities, or only in particular localities. Earlier authorities: (1947) 74 IA 254 (AIR 1948 PC 177); Sheo Singh Rai v. Mussumut Dakho (1878) 5 IA 87; Chotay Lal (1878) 6 IA 15.
Issue	Is a custom sustainable for a whole community irrespective of locality and sect?
Arguments	For the community-wide custom: the evidence and decisions showed uniform Jain usage (except in Madras and Punjab); the community's identity is not territorial. Against: custom is territorial and sect-bound; a community-wide claim cannot be proved as one custom. (The reading reports the outcome and the cases reviewed.)
Decision	The Supreme Court, reviewing "the large number of cases having a bearing on this point," sustained the custom as one prevailing in the Jain community as such, irrespective of the locality where they reside or the sect in which they are divided (with the Madras and Punjab exception noted).
Principle	A custom may inhere in a community as a whole and not merely in a locality; courts can establish a general communal custom when the evidence of practice, decisions and documented usage is uniform. (Contrast the companion principle: "theory and custom are antithesis" — no extension by analogy; and the Punjab rule that there is no general custom there, Case 12.)

CASE 8 · Shiba Prasad Singh v. Prayag Kumari Devi (1932) 59 IA 331 Jain

Facts	A dispute over the succession to a family's property, where the family claimed to be governed by a customary rule different from the ordinary law.
Issue	Can a family lawfully "make a custom for itself" of succession, or is the custom valid only if found to have been actually followed?
Arguments	Against: "a Hindu family… cannot by agreement between its members make a custom for itself of succession to family property at variance with the ordinary law." For: the family had in fact been governed by the customary rule for generations.
Decision	Privy Council — the qualification is decisive: "a Hindu family, no doubt, cannot by agreement between its members make a custom for itself of succession… at variance with the ordinary law. But where a family is found to have been governed as to its property by a customary rule of succession different from that of the ordinary law, that custom is itself law. The rule of succession in such a case is recognised by the State as part of the law of the family, though it is no more than the result of a course of conduct of individual subjects of the state constituting the family."
Principle	Custom is fact, not contract: it cannot be created by agreement (contrast the "composite family" where families genuinely pool), but a long course of conduct, once shown, is law for the family — as the State's recognition, not the family's fiat. A family custom may also be destroyed by disuse.

CASE 9 · Mt. Subhani v. Nawab (1940) 68 IA 1; AIR 1941 PC 21 Jain

Facts	A custom alleged to have been in existence for nearly 30 years was in question; the judgment also notices Rattigan's Digest of Customary Law as a book "of unquestioned authority in Punjab."
Issue	Must an Indian custom be carried back to time immemorial (in the English technical sense, 1189) before it can be enforced?
Arguments	English rule: a custom is not proved if not shown to be immemorial (the courts had followed this reading at first). Indian practice: the Allahabad High Court had refused it outright; Calcutta used 1773/1793; Bombay accepted 20 years' instances as a presumption.

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Decision	Privy Council (p. 31): "in India it is not of the essence of the rule that the custom to be binding must be ancient and its antiquity must be carried back to a period beyond the memory of man — still less, that it is ancient in the English technical sense. It depends upon the circumstances of each case what antiquity must be established before the custom can be accepted. What is necessary to be proved is that the usage has been acted upon in practice for such a long time as to show that it has, by common consent, been submitted to as the established governing rule of the particular locality." Here, a custom of nearly 30 years was held enforceable; and customary law found to exist in 1880 must be taken to have "the ordinary attribute... that it is ancient."
Principle	Antiquity is relative in India: long, uniform, consent-backed use — not 1189 — is the test; the Supreme Court has adopted the same formulation ("the English rule... should not be strictly applied to Indian conditions"). The practical consequence: 20 years' usage is the minimum judicial standard (Bhiku v. Sheoram, AIR 1928 Nag. 87; Bari v. Tukaram, AIR 1959 Bom. 54, 30 years; Andhra, 40 years; Calcutta, 50 years even against proof of an earlier different state of things).

CASE 10 · Gopi v. Jaggo (1936) 63 IA 295 Jain

Facts	A custom among the community in question recognised and sanctioned the remarriage of a woman who had been abandoned and deserted by her husband: by the custom, desertion dissolved the marriage tie, leaving the woman free to remarry.
Issue	Is such a custom valid, or is it contrary to public policy/morality (and thus unenforceable)?
Arguments	Against the custom: it permits what the ordinary law does not — dissolution of marriage by abandonment, and remarriage; the court's "censorial power" over customs stands in the way. For the custom: it gives effect to the community's settled, humane practice — no woman is left in a dead marriage.
Decision	Privy Council allowed the custom: it was not immoral; desertion dissolving the marriage was a recognised usage.
Principle	The courts' censorial power is real but must be exercised with the community's morality, not the judge's preference: a custom is not void merely because it departs from the ordinary law. (Compare the contrary instance: Mathura Naikin, Case 11, where the custom was held immoral because the profession itself was held such; and the daughter's-daughter marriage custom — "abhorrent to decency or morality however long practised... cannot be enforced.")

CASE 11 · Mathura Naikin v. Esu Naikin (1880) ILR 4 Bom. 545 Jain

Facts	A custom of adoption of girls by dancing girls had earlier been recognised by the Bombay High Court (Nanee Tara Naikin v. Allarakia Soomar). The point returned for reconsideration.
Issue	Is the adoption custom lawful, or is it immoral (and hence void)?
Arguments	For the custom: it was long practised by the community and previously recognised. Against: "the profession of dancing girls was immoral, and adoption by them of girls was designed to perpetuate [it]."
Decision	The Bombay High Court held the custom to be immoral and unenforceable, reversing the earlier tolerance.
Principle	The morality test applies to the purpose and effect of the custom, not merely its age and acceptance: "A custom abhorrent to decency or morality however long practised and recognised by a community cannot be enforced by the courts." This is the clearest instance of the judicial "censorial power," and the reason the absurdly strict Gopalayyan v. Raghupatiayyan (7 Mad. HCR 250 — refusal of a 134-year-old, "uniform and uninterrupted" brahmin custom of adopting a sister's son purely because no text supported it) is the anomalous counter-example in Jain's account.

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CASE 12 · Ujagar v. Mst. Jeo, AIR 1959 SC 1041 Jain

Facts	A Punjab dispute in which a party sought to rely on a body of "Punjab customary law" as a general system.
Issue	Is there a single body of customary or tribal law common to the whole of Punjab — a "general custom"?
Arguments	For a general custom: Punjab is pre-eminently a land of customary law (Campbell's "not one out of a hundred"); the statutes put custom first. Against: custom in Punjab is mainly tribal and varies from locality to locality; tribes differ in origin and local conditions.
Decision	Supreme Court: "There is no such thing in Punjab as a 'general custom'." Custom there is mainly tribal, "even with the same tribe, it may vary from locality to locality"; origins of tribes differ and local and social conditions differ, "resulting in varying customs." (Urban Punjabis are not entirely free from custom — Ramkishore v. Jainarayan (1921) 48 IA 405.)
Principle	Custom is specific and local-in-fact; there is no presumption of a general customary system — which is why s. 5 of the Punjab Laws Act, 1872 puts custom first while demanding proof in each case, and why a party's assertion of a general custom must fail on evidence. With Munnalal (Case 7) the two poles of Indian custom law: community-wide custom can be established by proof; a general territorial system cannot be assumed.

CASE 13 · Donoghue v. Stevenson [1932] AC 562 Dias

Facts	The ginger-beer case: A manufactured ginger beer; a snail was alleged to be in one of the bottles (A assumed negligent); A delivered the tainted bottle to retailer B under contract; B innocently passed it to C under contract; C innocently passed it to D; there had been no opportunity for intermediate examination; D was allegedly poisoned by drinking the remains; being a Scottish case, it went to the House of Lords on a preliminary point. The House held that, assuming A negligent, A would be liable to D, and remitted the case for trial on the question whether there was in truth a snail — but the trial never took place (death of a party), so the truth about the snail was never established, and is irrelevant to the ruling.
Issue	(For Dias) What exactly is the ratio decidendi of the case — and how is it identified?
Arguments (the competing statements)	From the same eight facts, at least four propositions: (i) the Scots-appeal point (fact viii alone — an appeal from Scotland is not binding on English courts); (ii) the manufacturer proposition (i, ii, vi, vii — a negligent manufacturer is liable to the ultimate consumer where there is no likelihood of intermediate examination); (iii) the contract-misfeasance proposition (ii, vi, vii — one who negligently misperforms a contract and physically damages a contemplated third party is liable in tort); (iv) the neighbour proposition (ii, vii — anyone negligently damaging another whom he ought reasonably to have contemplated is liable). "Only in the light of later cases is it possible to determine the ratio decidendi."
Decision	Later courts — reasoning from Home Office v. Dorset Yacht Co. [1970] AC 1004, Anns v. Merton L.B.C. [1978] AC 728, Ross v. Caunters [1980] Ch 297, Junior Books v. Veitchi [1983] 1 AC 520 — came to regard the fourth proposition as the ratio, whereas earlier (e.g. Howard v. Walker [1947] KB 860) courts generally adopted the second. The ruling formerly regarded as ratio (Lord Atkin's neighbour principle) was even demoted to dictum according to which party the later court wished to favour ("Landon: wherever the court wishes to find for the plaintiff, that doctrine will be invoked, just as it will be disregarded when the defendant is the favoured party").
Principle	(1) The ratio of a case is not fixed once and for all — it is "any one of a series of rulings as elucidated by subsequent interpretations," a "pointer... in a continuum of time." (2) The rule of thumb: nothing is ratio which does not support the ultimate order. (3) What is important in law is the statement of facts rather than even their truth. (4) The possibilities of varying the statement are limited by the consensual domain of word-meanings — the facts would not support, e.g., that the defendant caused a public nuisance. (5) Three rulings in one case (neighbour, manufacturer, contractual-privity fallacy) show the same instability.

CASE 14 · Rylands v. Fletcher [1868] LR 3 HL 330 Dias

Facts	Five facts: (i) A had a reservoir built; (ii) A employed B to build it; (iii) A was not himself negligent; (iv) B was negligent; (v) water escaped owing to B's negligent construction and damaged C's property. (The liability of the mine-owner's workings was the underlying dispute.)
Issue	How the court states the material facts determines the rule's width.
Arguments/analysis (Dias's)	The parties' arguments on negligence were superseded by the court's selection of material facts: only (i) and (v) were treated as material. "By ignoring the absence and presence of negligence in A and B respectively, and by generalising fact (i) into 'anything likely to do mischief,' the decision creates the sweeping rule that whoever brings a 'mischievous substance' on to his land is liable for damage caused by its escape, irrespective of negligence."
Decision	The House of Lords laid down the strict-liability rule (the "mischievous substance" rule) — with subsequent interpretation leaving open whether "damage" includes personal injury (Miles v. Forest Rock Granite Co. (1918) 34 TLR 500; Shiffman v. Order of St. John [1936] 1 All ER 557; Hale v. Jennings [1938] 1 All ER 579; Perry v. Kendricks [1956] 1 WLR 85; cf. Read v. J. Lyons & Co. [1947] AC 156).
Principle	The fewer material facts included in a statement, the wider its scope — "the art of knowing how to select the material facts" is the first control on a precedent's authority; and a later judge may always re-do the surgery (add or subtract facts; restate at another level of generality) — see Wilson & Clyde Coal / Davie (Case 15) and Wagon Mound (No. 1) & (No. 2) (Case 16).

CASE 15 · Wilson & Clyde Coal Co. v. English [1938] AC 57; Davie v. New Merton Board Mills [1959] AC 604 Dias

Facts	Wilsons: an employee died owing to the default of another employee; the employer was held liable. Davie: a workman injured by a defective tool manufactured by a third party sued his employer — the very area affected by Wilsons.
Issue	At the time of Wilsons, the doctrine of common employment barred holding an employer vicariously liable for a fellow-servant's injury. How, then, could the employer be held liable — and what is the ratio for subsequent cases?
Arguments	To hold the employer liable despite common employment, the ratio of Wilsons had to be stated as: the employers were held liable not vicariously, but for the breach of a personal non-delegable duty to ensure that reasonable care would be taken — ignoring the materiality of the fact that the party at fault was a servant. Stated so, the rule would attach liability even to the employer of an independent contractor. In Davie, however, Viscount Simonds and Lord Reid "appeared to place an interpretation upon Wilsons' Case which would dismantle this rule": they "stressed the materiality of the fact that it was not a contractor but a servant who had been at fault" — "a fundamental reinterpretation."
Decision	In Wilsons, liability on the personal non-delegable duty (as the reading reports the case and its later interpretation); in Davie, no liability (on the servant-fact interpretation). The Employer's Liability (Defective Equipment) Act, 1969 then "overruled Davie and restored the original interpretation of Wilsons in statutory form."
Principle	A later judge may add to sub-total material facts or subtract from it, changing the precedent's ambit — the same case can be narrowed (a contractor not liable) or widened (a non-delegable duty); and when the courts' reinterpretation swings too far, legislation may settle the law: the statute overrules the precedent built on the reinterpretation.

CASE 16 · Overseas Tankship (U.K.) Ltd. v. Morts Dock & Engineering Co. [1961] AC 388 (Wagon Mound No. 1); Wagon Mound (No. 2) [1967] 1 AC 617 Dias

Facts	One occurrence, two litigations: furnace oil was carelessly allowed to spill overboard from the S.S. Wagon Mound into Sydney Harbour; fire damage followed. No. 1: the Privy Council proceeded on the lower court's finding that, according to the scientific opinion of the day, ignition in such circumstances was not reasonably foreseeable — no liability for fire damage. No. 2 (different plaintiffs, same occurrence): the lower court stated that a bare possibility of fire might have been foreseeable, but that the chance was "so remote that it should be ignored" — no liability.
Issue	What counts as a material fact, when the same event produces two appeals?
Arguments (the reasoning)	In No. 1 the low court's finding made lack of foreseeability material. In No. 2 the judge's advertence to "even a bare possibility of fire" was fastened on by the Judicial Committee as constituting a material difference between the two cases.
Decision	No. 2: reversing the lower court, the defendants were held liable in negligence for fire damage after all. (The reading also notes: Re Polemis, disapproved in Wagon Mound though never overruled, was "declared to be no longer law" in the light of the changed law of remoteness — the changed-conditions principle.)
Principle	The selection of material facts can change the result of the same event: "stressing one factor as material not only enabled two different courts to reach opposite results in the same case, but also enabled the same court to reach opposite results in two cases based on the same happening." Foreseeability of a bare possibility was enough in No. 2; the tests are malleable — "the possibilities of distinguishing are such that they reduce bindingness to the semblance of a cloud."

CASE 17 · Osborne v. Rowlett (1880) 13 ChD 774 Dias

Facts	A Chancery appeal (Jessel M.R.) in which the earlier and later authorities on the point in question had to be weighed.
Issue	What exactly binds a subsequent judge in an earlier decision?
Arguments	The parties differed on whether the earlier ruling as stated, or the earlier decision as decided on its facts, was the authority.
Decision	Jessel M.R. (785): "The only thing in a Judge's decision binding as an authority upon a subsequent Judge is the principle upon which the case was decided." And the companion passage: "It is not sufficient that the case should have been decided on a principle, if that principle is not itself a right principle, or one not applicable to the case, and it is for a subsequent judge to say whether or not it is a right principle, and, if not, he may himself lay down the true principle."
Principle	The canonical definition of ratio decidendi (bindingness = principle, not outcome), and the canonical statement of the rôle of subsequent interpretation: the deciding judge's pronouncement is "a necessary step," but later judges may correct, restrict or enlarge the principle.

CASE 18 · Hedley Byrne & Co. v. Heller & Partners Ltd. [1964] AC 465 Dias

Facts	The plaintiffs, advertising agents, asked their bank to obtain a credit reference on a customer; the defendants (bankers) gave the reference without responsibility in terms; the plaintiffs relied on it and lost money.
Issue	For Dias's purpose: how is the ratio stated when the court overthrows the rule on which the defendant won below, yet adds a qualification that still lets the defendant win?

Arguments/analysis	Below, the Court of Appeal had applied the then rule (no liability for negligent misstatement causing pure economic loss); the House of Lords overthrew that rule and propounded a different one (liability for negligent misstatement where a special relationship of reliance exists) — but with a qualification (here, the express "without responsibility" disclaimer) — "so that the defendant was still able to win."
Decision	Defendant succeeded, on the qualification; the new liability rule was laid down.
Principle	"This rule and qualification together constitute the ratio; but even if it were said to be a dictum, the distinction is immaterial at this level of authority." Also illustrative: multiple points, where a decision in the defendant's favour on either point suffices, make the ratio un-pinpointable; and where the plaintiff wins on point A but loses on B, the ruling on A is technically obiter — "even as a dictum it may nevertheless carry such authority that a subsequent tribunal may feel obliged to follow it."

Group B · the remaining authorities, one line each

Authority	Proposition	In the reading
Jowala Buksh v. Dharum Singh (1866) 10 MIA 511, 538	The converted-family custom question expressly left open; the earlier reluctance to let custom derogate from Muslim law	Jain §IV
Surmust Khan v. Kadir Dad Khan (1866) 1 F.B. Rulings N.W.P.	Same restrictive view, from as early as 1866	Jain §IV
Jammya v. Diwan (1901) ILR 23 All. 20	Allahabad: s. 37 terms "positive and emphatic" — no opening for a Muslim family custom excluding a daughter	Jain §IV
Ali Asghar v. Collector of Bulandshahar (1917) ILR 39 All. 574	Following *Mohd. Ismail*: custom enforceable against Muslim law	Jain §IV
Md. Ibrahim v. Shaik Ibrahim, AIR 1922 PC 59	"Custom plays a large part in modifying the ordinary law... a custom at variance even with the rules of Mahomedan Law"	Jain §IV
Roshan Ali Khan v. Chaudhri Asghar Ali (1929) 57 IA 29	Oudh succession customs among Muslims enforced	Jain §IV, §V
Vaishno Ditti v. Rameshri (1928) 55 IA 407, 421; *Salig Ram v. Munshi Ram*, AIR 1961 SC 1374	Custom must be established by ordinary processes of evidence; no presumption	Jain §IV
Ramkishore v. Jainarayan (1921) 48 IA 405	Punjab: custom not confined to the agricultural population	Jain §IV
Krishnan v. Sridevi (1889) ILR 12 Mad. 512	Marumakkathayam inheritance (female line; heirs = sister's children) judicially recognised from custom	Jain §IV
Tarachand v. Reeb Ram, 3 Mad. HCR 50	Early refusal: jurisprudence knows custom only "antagonistic to the general law"	Jain §V
Basvantrav v. Mantappa, 1 Bom. HCR App. XLII	"It would be a dangerous doctrine that any petty family is at liberty to make a law for itself"	Jain §V
Serumah v. Palathan, 15 Cal. W.R. P.C. 4; *Abraham v. Abraham* (1863) 9 MIA 199	Family customs; a converted Christian family may have its own law — the Bombay/Madras view untenable	Jain §V
Palanjappa Chettiar v. Alayan Chetti (1921) 48 IA 539	The Chetti *moopu* custom (portion for the first wife; division between the sons of each wife)	Jain §V
Thiruthipalli Raman Menon (1900) 27 IA 231	Nair usages: polyandry, female descent, adoption of females	Jain §V
Parandhamayya v. Navaratna Sikhamani, AIR 1949 Mad. 825; *Venkata Subba Rao v. Bhujangayya*, AIR 1960 AP 412	Tribal/communal/sectarian customs — the bulk of the custom case-law	Jain §V
Balgobind v. Badri Prasad (1923) 50 IA 196	Wajib-ul-arz "when properly used... most valuable evidence of custom... much more reliable than oral evidence given after the event"	Jain §VII
Uman Parshad v. Gandharp Singh (1887) 14 IA 127	Wajib-ul-arz entries may be concocted, "worse than useless" — to be disregarded	Jain §VII
Palaniappa Chetty v. Deivasikamony Pandara (1917) 44 IA 147	The existence of an ancient custom = a mixed question of law and fact (other PC cases: fact only)	Jain §VII
Gopalayyan v. Raghupatiayyan, 7 Mad. HCR 250	The anomaly: refusal of a 134-year "uniform and uninterrupted" custom (no written authority)	Jain §VIII

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Authority	Proposition	In the reading
Rup Chand v. Jambu Parshad (1909) 37 IA 93; *Chiman Lal v. Hari Chand* (1913) 40 IA 156	Evidence "somewhat limited" in character; customs applied while cautioning against treating the cases as precedents	Jain §VIII
Wolstanton Ltd. v. Newcastle-under-Lyme Corpn. [1940] AC 860	England: 1189 presumption, rebuttable; a custom for minerals without compensation for subsidence was unreasonable	Jain §VI
Dalton v. Angus (1880–81) 6 AC 740, 811	1189 fixed as the beginning of legal memory (earliest King's Bench rolls)	Jain §VI
Shibnarain Mookerjee v. Bhutnath Guchait (1918) ILR 45 Cal. 475	Total remission of rent (unspecified inundation extent) — unreasonable and uncertain	Jain §VI
Bhiku v. Sheoram, AIR 1928 Nag. 87; *Bari v. Tukaram*, AIR 1959 Bom. 54	20 years' and 30 years' user sufficient for a customary right (earth removal)	Jain §VI
F.A. & A.B. Ltd. v. Lupton [1972] AC 634, 659	Lord Simon: what matters is the statement of material facts by the deciding judge "and also their re-statement by other judges in later cases"	Dias §04.4
Benmax v. Austin Motor Co. [1955] AC 370	Primary v. inferential facts (negligence) — two courts may state the inference differently	Dias §04.4
The Mostyn [1928] AC 57, 73	Viscount Dunedin: no duty "to spell out with great difficulty a ratio decidendi in order to be bound by it"	Dias §04.5
Jacobs v. L.C.C. [1950] AC 361	Lord Simonds: two reasons given for a decision are both part of the ratio	Dias §04.5
Fisher v. Tayler's Furnishing Stores	One of two grounds given by the C.A. earlier rejected — and the rejection confirmed by C.A. and H.L.	Dias §04.5
Said v. Butt [1920] 2 KB 497	Judge said the second point was additional — making it a dictum; "either is sufficient to support the decision"	Dias §04.5
Fairman v. Perpetual Investment B.S. [1923] AC 74; *Haseldine v. Daw* [1941] 2 KB 343; *Adam v. Ward* [1917] AC 309	Ratio demoted to dictum by later interpretation (the neighbour proposition; qualified privilege)	Dias §04.5–04.6
Simpson v. Peat [1952] 2 QB 24; *R. v. Young* [1953] 1 All ER 291	Cases turning purely on facts are not authorities	Dias §04.5
Re Jebb [1966] Ch 666, 672	Denning M.R.: previous decisions on documents only "a guide towards the meaning of words... never... so as to defeat this intention"	Dias §04.5
Godden v. Hales (1686) State Tr. 1166 (Herbert C.J.); *O'Connell v. R.* (1844) 11 Cl & Fin 155	Exchequer Chamber decisions first treated as binding; lay peers in the House of Lords until 1844	Dias §04.2
Bromley v. Bromley (1965) P 111; *R. v. Cockburn* [1968] 1 All ER 466	The judge-revised report is authoritative over the original; remarks eliminated from the LR are repudiated	Dias §04.3
Zeidman v. Owen	Lord Goddard C.J.: dicta, though obiter, if expressing the true construction of the Act, ought to be followed	Dias §04.6
R. v. Stokesley Justices, ex p. Bartram [1956] 1 All ER 563	Cases judges themselves do not think worthy of being precedents	Dias §04.5
Pinchin v. Santam Insurance 1963 (2) SA 254 (WLD)	A ruling on a non-deciding point made part of the ratio by being the basis of the order on costs	Dias §04.5

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Group C · texts, statutes and scholarship

Authority	Use	Reading
Manusmriti (II.6; VIII 110–114) · **Yājñavalkya Smriti** (I-7; II 21-1) · **Gautama Dharmasūtra** (234, 19–20) · **Katyayana Smriti** (45; 48–50) · **Narada Smriti** (Dharmakosha p. 90) · **Vyasa** (I-V-4) · **Pitamaha** (Sm. Ch. 58; II 38) · **Brihaspati** (278–28; 387–2) · **Harita** (Q.P.M. I, Pt. I, p. 144)	The source-map and conflict rules of dharma; sadāchāra's definition; registration of conventions; the king's conscience-decision; the parishad	Rama Jois

Authority	Use	Reading
Kane, *History of Dharmashastra* I–V (H.D. III pp. 100, 856) · **Kane**, *Hindu Customs and Modern Law* (1950) · **Sarvadhikari** · **Gharpure** (Medhatithi's Bhāshya; pp. 46–47) · **B.K. Acharya**, Tagore Law Lectures · **Robert Lingat**, *The Classical Law of India* (15–16) · **Charter of Vishnu Sena**, 725 A.D. (Appendix-I)	The scholarship and sources behind the ancient position	Rama Jois
Manusmriti · Yājñavalkya · Gautama · Brihaspati · Narada · Vrihaspati · Apararka · Mītākṣarā · Dāyabhāga · Mayūkha · Viśvarūpa · Medhātithi · Asahaya · Kautilya's Arthasastra	Hindu law's ranking of śruti/smṛti/custom; the subordination and dissent lines; usage equal or greater in force (Kautilya)	Jain §II
Abdur Rahim, *Muhammadan Jurisprudence* 55, 136–137 (1958) · **Tyabji**, *Principles of Muhammadan Law* 415 (3rd edn. 1940)	The four conditions of a valid custom in Muslim law; the ranking of urf between ijma and qiyas	Jain §III
Vinogradoff; **Paton**, *Jurisprudence* 143, 148 · **Keeton**, *Elementary Principles of Jurisprudence* 77, 81 · **Maine**, *Ancient Law* 18 · **Austin** · **Holland** · **Allen**, *Law in the Making* 67, 125–151 · **Savigny** (with Kantorowicz, 53 LQR 326) · **Thibaut** · **Puchta**	The Western theoretical positions on custom	Jain §I
Regulation VII of 1822 (village administration papers) · **Regulation IV of 1827, s. 26** (Bombay) · **Punjab Laws Act, 1872, s. 5** · **Madras Civil Courts Act, 1873, s. 16** · **Oudh Laws Act, 1876, s. 3** · **C.P. Laws Act, 1875** · **N.W.F.P. Reg. VII of 1901, s. 27** · **Bengal, Agra & Assam Civil Courts Act, 1887, s. 37** · **Act of Settlement, 1781**	Custom as rule of decision in the British period	Jain §IV–V
Indian Evidence Act ss. 35, 42, 48, 49, 56 · **Indian Easements Act**, s. 18 · **Muslim Shariat Act, 1937** (ss. 2–3) · **Cutchi Memons Act, 1920** · **Hindu Marriage Act, 1955** (s. 3 definition; s. 4) · **Hindu Succession Act, 1956** (s. 3; s. 4) · **Hindu Adoptions & Maintenance Act, 1956** (s. 4) · **Constitution** (NEFA/Nagaland protection — **grey: Arts. 371A, 371F and the Sixth Schedule**)	Proof, savings, abrogation	Jain §VI–VIII
Panna Lal, *Hindu Customary Law in Kumaon* (1920) · **William Rattigan**, *Digest of Customary Law* (1880; subsequent edns.) · **Sant Ram Dogra**, *Code of Tribal Custom*	Official/private compilations as evidence of custom	Jain §VII
Glanville · Fleta · Hengham · Fortescue · Bracton's Notebook (~2,000 cases; ~500 used) · Year Books · Dyer · Plowden · Coke · Burrow's Reports · Blackstone (Bl. Com. I, 70) · Dow (1813) · Pollock · Moran · Goodhart · Cardozo	The history of law reporting; the assessment of reports; "utility to the profession"; the reason *sine qua non*; ratio as subsequent interpretation	Dias §04.2–04.5
Aristotle (corrective justice) · **Blackstone** · **Wisdom** (private papers, quoted) · **Stone**, *Legal System and Lawyers' Reasonings* · **Devlin** · **Denning** · **Lord Simon** · **Viscount Dunedin** · **Lord Halsbury** · **Sellers L.J.** · **Asquith L.J.**	The doctrinal furniture of the precedent chapter	Dias

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DU LL.B. EXAMINATION ARCHIVE · PAPER LB-106

Previous Year & Syllabus-Pattern Questions — Unit 05: Sources of Law — Dharma, Custom, Precedent & Legislation

Q.01 DU LL.B. LB-106 Examination Archive / Pattern
Discuss Dharma as the ultimate source of law in ancient India. How was the king bound by it?

● **Refer website for detailed notes — makelaweasy.in**

Q.02 DU LL.B. LB-106 Examination Archive / Pattern
Custom as a source of law was subordinated to the sacred law in the orthodox Hindu view but triumphed in practice. Discuss the Indian position with the case law.

Q.03 DU LL.B. LB-106 Examination Archive / Pattern
The requisites of a valid custom." (or: "What are the conditions for a custom to be a source of law in India?")

Q.04 DU LL.B. LB-106 Examination Archive / Pattern
What is ratio decidendi? How is it distinguished from obiter dicta, and how is it identified?

Q.05 DU LL.B. LB-106 Examination Archive / Pattern
Discuss the doctrine of precedent and its operations: stare decisis, hierarchy, 'law of the case', and the devices for avoiding a precedent.

Q.06 DU LL.B. LB-106 Examination Archive / Pattern
Custom after codification: has the Hindu law of 1955–56 and the Shariat Act 1937 abolished custom?" (or: "Custom as a source of law in modern India.")

Q.07 DU LL.B. LB-106 Examination Archive / Pattern
Dharma Moolam: critically evaluate Rama Jois's thesis on the ancient Indian king, law and the people's usages.

Q.08 DU LL.B. LB-106 Examination Archive / Pattern
Distinguish stare decisis from res judicata. Is the ratio decidendi the only thing binding?

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LAW CRUX · PAPER LB-106 · UNIT 06 John Austin (Province of Jurisprudence) · H.L.A. Hart (Concept of Law) · Hans Kelsen (Pure Theory)

Western School of Thought – I: Analytical & Normative Positivism

John Austin (Command of the Sovereign, Sanction & Habit of Obedience), H.L.A. Hart (Critique of Austin, Internal Point of View, Union of Primary & Secondary Rules & Rule of Recognition) & Hans Kelsen (Pure Theory of Law & Grundnorm)

PART 01

Conceptual Frame — What Positivism Is, and the Three Answers

01.1 The shared project: three theses

Thesis 1 · Social-fact thesis

Law is a **human artefact**: its existence is a matter of fact about social practice — commands issued (Austin), rules accepted (Hart), norms posited (Kelsen). Not the pronouncement of a higher order. Austin: law "set by political superiors"; Hart: the rule of recognition "exists only as... practice"; Kelsen: positive law, "set" by human acts, whose validity rests on a presupposed basic norm.

Thesis 2 · Separation thesis

The existence of law is **one question; its goodness another**. Kelsen is the loudest in the excerpt: justice "cannot be made an element of the concept of law"; an unjust but effective coercive order is still law — the Communist order is law despite the capitalist's judgement, and vice versa. Austin: the "ends or final causes for which governments ought to exist" are no concern of the analytical jurist.

Thesis 3 · The analytical method

The job of jurisprudence is to **describe and analyse**, not to evaluate, advise or reform: Austin isolates the "matter" of jurisprudence and dissects its terms; Kelsen's theory "attempts to answer the question what and how the law is, not how it ought to be. It is a science of law (jurisprudence) not legal politics"; Hart spends his two chapters dissolving the amalgam of "obliged" and "obligation," and of validity and efficacy.

01.2 The one problem all three answer: why does a norm bind?

AUSTIN'S ANSWER · because it is the command of a habitually-obeyed sovereign — the duty is correlative to the sanction; "command and duty are correlative terms" →

HART'S ANSWER · because it satisfies the rule of recognition — a secondary rule accepted by officials as the test of what counts as law ("its existence is a matter of fact") →

KELSEN'S ANSWER · because of the basic norm — "Coercion of man against man ought to be exercised in the manner and under the conditions determined by the historically first constitution"; presupposed, not enacted; conditional on effectiveness

Read the three as a chain of corrections. Austin locates validity in the *will* of the sovereign (but the parliament binds itself; the "sovereign" cannot be identified in a modern state — Hart's four failures). Hart locates it in a *rule about rules* (but the rule of recognition itself cannot be valid — it "can neither be valid nor invalid"; it exists as fact — Kelsen would say "presupposed"). Kelsen locates it in a *presupposition* whose content is given by the historically first constitution, whose only condition is effectiveness. Each answer dissolves the previous one's puzzle and leaves a puzzle of its own — that is the exam-friendly story.

01.3 The three vocabularies, side by side (learn to translate)

Question	Austin answers with...	Hart answers with...	Kelsen answers with...
What is a law?	A general command of the sovereign (a "rule laid down... by an intelligent being having power over him")	A primary rule of obligation (validated by secondary rules) — or a power-conferring rule	A norm: the objective meaning of a legal act; "something ought to be"

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Question	Austin answers with…	Hart answers with…	Kelsen answers with…
Legal obligation is…	Liability to the sanction — being "bound or obliged by your command"	*Obligation* (not mere *being obliged*): a social rule seen from the internal point of view	The "ought" at the core of a norm; behaviour whose opposite is the condition of a sanction
The source of validity is…	The sovereign's position (habitual obedience + no habit of obedience above)	The rule of recognition — the ultimate criteria, a social fact	The basic norm — presupposed, the "hypothetical" reason for validity
Sanction/coercion is…	The defining element (the evil which makes a wish a command)	Centralised in secondary rules of adjudication and sanction	The **decisive criterion**: law is a coercive order; "delict or sanction"
Custom is law because…	It has been adopted by courts — a **tacit command** of the sovereign	It satisfies one of the criteria in the rule of recognition (custom subordinated to statute)	It is law-creating fact authorised by the constitution (a dependent-norm chain)
Constitution is…	…just law (from the sovereign; no special status)	…the **supreme criterion** of validity where it limits the legislature (US), or part of an unlimited system (UK)	…the **stepping stone**: the norm authorising legislation, whose own validity rests on the basic norm
Unjust law is…	Still law — Austin has "no concern" with the ends of government	Valid if it meets the criteria; the internal point of view can coexist with moral criticism	Still law: "the fact that the content… may be judged unjust, is no reason to refuse to acknowledge this coercive order as a legal order"

01.4 Why this unit matters for the whole course (cross-feed map)

- **Unit 1–2 (dharma)**: the direct contrast — Rama Jois's king "should never act according to his own fiat"; dharma is found, not commanded. Austin's sovereign is the exact inverse: law IS the sovereign's will. Kelsen's purity (law's validity independent of justice) collides with "dharma moolam" (justice/righteousness as the root of law).
- **Unit 3 (major systems)**: the Socialist family's "legislature as the sole source" is positivism institutionalised; Romano-Germanic codes are legislation (Austin's province); *Mīmāṃsā* (Sudame's reading) is the ancient Indian counterpart of analytics — vidhi (command) is Austin's central category.
- **Unit 4 (institutions)**: the Constitution as Art. 13's supreme law re-read in Kelsen's chain (Constitution → statute → rule → individual norm) and in Hart's terms (the ultimate rule of recognition; supreme criterion; basic-structure as the "no amending power" case).
- **Unit 5 (sources)**: Austin's view of custom — "the custom is transmuted into positive law when it is adopted as such by the courts" — is exactly the "analytical view" Jain reported; and Hart's rule of recognition orders custom < precedent < statute — a "superior source." And Unit-5's "legislation" stage is Austin's province made true.
- **Unit 7 (next)**: Natural Law (the separation thesis attacked), Savigny (the Volksgeist against Austin's universal analytics), Pound (sociological jurisprudence against Kelsen's purity) — the next casebook pages are the counter-attack on everything in this unit.

PART 02

(a) John Austin — Law as the Command of the Sovereign

02.1 The province of jurisprudence — the clearing of the field

Open with Austin's own opening sentence — it is the whole lecture compressed: **"The matter of jurisprudence is positive law: law, simply and strictly so called: or law set by political superiors to political inferiors."** Positive law is "often confounded with objects to which it is related by resemblance, and with objects to which it is related in the way of analogy" — all covered by the "large and vague expression *law*." The province is determined by separation:

LAWS BY GOD TO MEN · the Divine law ("the law of nature" is an ambiguous name for it — the only natural law possible to speak of "without a metaphor") ·

LAWS SET BY MEN TO MEN — class 1: by political superiors (sovereign and subject) = positive law, the appropriate matter of jurisprudence ·

LAWS SET BY MEN TO MEN — class 2: not by political superiors (as such) = positive morality: father to child, master to servant, club rules; plus opinion-rules "set and enforced by mere opinion" — "the law of honour," "the law set by fashion," much of "international law" ·

METAPHORICAL LAWS · laws of the lower animals, of vegetable decay, of inanimate motion — "where intelligence is not... there is not the will which law can work on" — "through these misapplications of a name... has the field of jurisprudence and morals been deluged with muddy speculation"

Why the name "positive"? As against the law of God, the rules of political superiors are "positive law, or law existing by position"; as against positive morality they are marked "commodiously with the name of positive law." Note Austin's own caution: rules not made by political superiors "are also positive, or exist by position, if they be rules or laws, in the proper signification of the term" — so "positive" alone is not the test; the test is the *source*.

02.2 Law in its largest literal sense — the genus definition

"A law, in the most general and comprehensive acceptation in which the term, in its literal meaning, is employed, may be said to be **a rule laid down for the guidance of an intelligent being by an intelligent being having power over him**." Under this definition fall, "without impropriety, several species" — and the "line of demarcation" between them must be drawn precisely, "as much mistiness and intricacy has been infused into the science of jurisprudence by their being confounded."

Related object	Relation to positive law	Status
Laws of God (Divine law)	Resemblance (both are laws properly so called)	Outside the province
Positive morality — laws properly so called (e.g. club rules, parental rules)	Resemblance	Outside the province
Positive morality — rules set by opinion ("law of honour," "law of fashion," international law)	**Close analogy** (though improperly termed laws)	Outside the province
Laws merely metaphorical (animal, vegetable, inanimate)	**Remote or slender analogy**	Outside the province
Declaratory, repealing and imperfect laws	Not commands — improper laws — **yet within the province**	**Within (exceptions)**

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02.3 Command — the "key to the sciences of jurisprudence and morals"

Every law or rule, properly so called, "is a command. Or, rather, laws or rules, properly so called, are **a species of commands**." Command is "the simpler as well as the larger of the two" — and "since it is the key to the sciences of jurisprudence and morals, its meaning should be analysed with precision." The analysis:

> "If you express or intimate a wish that I shall do or forbear from some act, and if you will visit me with an evil in case I comply not with your wish, the expression or intimation of your wish is a command. **A command is distinguished from other significations of desire, not by the style in which the desire is signified, but by the power and the purpose of the party commanding to inflict an evil or pain in case the desire be disregarded.**"
>
> > *If you cannot or will not harm me, an imperative phrase is not a command; if you can and will, "the expression of your wish amounts to a command, although you are prompted by a spirit of courtesy to utter it in the shape of a request." — Tacitus: "Preces erant, sed quibus contradici non posset" ("they were prayers, but such as could not be refused") — the soldiery's petition to the son of Vespasian.* *(grey: casebook prints "nan posset" — OCR slip for "non posset")*

Consequence: the essence is **power plus purpose** — not phrasing, not formality, not ceremony. The same words are a command or not depending on the standing of the speaker. This is why Austin's theory makes the sovereign relation (power) the foundation of everything.

02.4 Command, duty and sanction — one notion, three aspects

"Being liable to evil from you if I comply not with a wish which you signify, **I am bound or obliged by your command, or I lie under a duty to obey it**... **Command and duty are, therefore, correlative terms**: the meaning denoted by each being implied or supposed by the other. Or... wherever a duty lies, a command has been signified; and whenever a command is signified, a duty is imposed."

The three constituents of a command: (1) a wish conceived by a rational being that another shall do or forbear; (2) an evil to proceed from the former and be incurred by the latter in case of non-compliance; (3) an expression or intimation of the wish.

Term	What is put foremost	What is left implicit
Command	The expression/intimation of the wish	The evil; the chance of incurring it ("kept in the background of my picture")
Duty (obligation)	The liability or obnoxiousness to the evil	The wish; the evil itself
Sanction	The evil itself	The obnoxiousness; the expression of the wish

> *"Each of the three terms signifies the same notion; but each denotes a different part of that notion, and connotes the residue." — the logicians' distinction (denotation v. connotation).*

Rewards are not sanctions. "It is only by the chance of incurring evil, that I am bound or obliged to compliance. **It is only by conditional evil, that duties are sanctioned or enforced**. It is the power and the purpose of inflicting eventual evil, and not the power and the purpose of imparting eventual good, which gives to the expression of a wish the name of a command." A law holding out a reward "confers an eventual right, and not an obligation," on those who comply; the imperative part is addressed to the party who must render the reward. (Putting reward into "sanction" would be a "toilsome struggle with the current of ordinary speech.")

02.5 Two species of commands: laws/rules v. occasional or particular commands

"Where it obliges generally to acts or forbearances of a class, a command is a law or rule. But where it obliges to a specific act or forbearance... a command is occasional or particular." The distinction is in the **object**, not the source — a particular command is not elevated to a law by the rank of the commander.

Command	Why	Austin's own illustrations
"Rise at that hour always"	Obliges generally to acts of a class — lays down a rule for the servant's conduct	Servant's rule v. "go on a given errand" (particular); regiment's "exercise daily" (general order) v. "attack the post" (particular)
Parliament prohibits exportation of corn generally	A kind of act determined — a law or rule	But an order stopping corn "then shipped and in port" is particular — though it comes from the sovereign legislature and "wears the form of a law"
Sovereign orders punishment of legally-innocent authors of a disliked act	A specific punishment in a specific case — not law	By a sovereign assembly "with the forms of legislation" it would probably be called a law; by an absolute monarch "without deliberation or ceremony... an arbitrary command"; "its nature would be the same"
The judge's sentence	Ordering a specific punishment for a specific offence	"The lawgiver commands that thieves shall be hanged" = a rule; "the judge commands that this thief shall be hanged" = occasional or particular — the classic illustration

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02.6 Blackstone's line rejected — and the two refinements

Blackstone (and others) distinguished law from particular command by the **persons** addressed: a law obliges generally the community or a class; a particular command obliges an individual or named persons. Austin's two answers:

1. **Commands obliging the whole community may still be particular:** the corn-export detention order binds everyone but is not a law; so too a sovereign order, enforced by penalties, for "a general mourning, on occasion of a public calamity" — "it obliges to acts which it assigns specifically"; "if the sovereign commanded that black should be the dress of his subjects, his command would amount to a law. But if he commanded them to wear it on a specified occasion... merely particular."
2. **Commands obliging individually-determined persons may be laws:** "A father may set a rule to his child... a guardian, to his ward: a master, to his slave or servant. And certain of God's laws were as binding on the first man, as they are binding at this hour on the millions who have sprung from his loins." So too Parliament creating an office and binding the grantee to services of a given description — such laws, "exclusively binding specified or determinate persons," were styled by Roman jurists **privilegia** (a name, Austin notes, that "will hardly denote them distinctly" — it names "a heap of heterogeneous objects").

The resulting definition: "A law is a command which obliges a person or persons. But, as contradistinguished or opposed to an occasional or particular command, a law is a command which obliges a person or persons, **and obliges generally to acts or forbearances of a class**." In plainer words: "a command which obliges a person or persons to a course of conduct." And: most laws of political superiors are "general in a twofold manner: as enjoining or forbidding generally acts of kinds or sorts; and as binding the whole community, or, at least, whole classes of its members" — because "to frame a system of duties for every individual of the community, were simply impossible: and if it were possible, it were utterly useless."

02.7 Superiority = might — and the tautology exposed

"Taken with the meaning wherein I here understand it, the term superiority signifies **might**: the power of affecting others with evil or pain, and of forcing them, through fear of that evil, to fashion their conduct to one's wishes." Not rank, wealth or virtue — those are other senses of "superior."

- God is "emphatically, the superior of Man" — his power is "unbounded and resistless."
- "To a limited extent, the sovereign One or Number is the superior of the subject... the master, of the slave or servant: the father, of the child."
- **Reciprocal superiority:** "the party who is the superior as viewed from one aspect, is the inferior as viewed from another." The monarch is the superior of the governed — but "the governed, collectively or in mass, is also the superior of the monarch: who is checked in the abuse of his might by his fear of exciting their anger." A member of a sovereign assembly is the superior of the judge (whom the law binds) — but "in his character of citizen or subject, he is the inferior of the judge: the judge being the minister of the law."
- **The payoff:** "It appears then, that the term *superiority*... is implied by the term *command*... **'That laws emanate from superiors' is, therefore, an identical proposition**. For the meaning which it affects to impart is contained in its subject... to affirm of laws universally 'that they flow from superiors'... is the merest tautology and trifling."

02.8 The exceptions — "laws" which are not commands (but belong to jurisprudence)

"The proposition 'that laws are commands' must be taken with limitations." Three classes of improperly-called laws are not commands, yet belong to the province:

Class	Austin's analysis	Note
1. Declaratory laws (acts of legislative explanation)	"Working no change in the actual duties of the governed, but simply declaring what those duties are" — "acts of authentic interpretation" (Roman law's phrase)	Often deceptive: "laws declaratory in name are imperative in effect"; "establishing new law, under guise of expounding the old"
2. Repealing laws (permissive laws, permissions)	"Laws to repeal laws, and to release from existing duties... are not commands, but revocations of commands." Remotely and indirectly they are "often or always imperative" — the released parties "are restored to liberties or rights: and duties answering those rights are... created or revived"	To be examined under "legal right," "permission by the sovereign or state," "civil or political liberty"
3. Imperfect laws (Roman sense)	A law "which wants a sanction, and which, therefore, is not binding" (e.g. declaring an act a crime but annexing no punishment) — the author "manifests no purpose of enforcing compliance"; so it is "not so properly a law, as counsel, or exhortation"	English law is different: if no specific sanction is annexed, "a sanction is supplied by the courts of justice." Moralists' "imperfect obligation" means something else — a religious or moral duty, not a law without a sanction

> *And the counterpart rule — **"there are no laws merely creating rights"**: every law really conferring a right "imposes expressly or tacitly a relative duty"; if it specifies the remedy it imposes the duty expressly, if not it "refers tacitly to pre-existing law." So right-creating laws are no objection to the imperative theory: "as imperative, as if its only purpose were the creation of a duty."*

Final tally: the only non-imperative laws within the province are the declaratory, the repealing and the imperfect. "The space occupied in the science by these improper laws is comparatively narrow and insignificant" — Austin will "throw them out of account" unless he extends the term expressly, and "limit the term law to laws which are imperative."

02.9 Custom and judge-made law — the two false opinions, and the true one

Two opinions rejected: (1) the admirers of custom (especially German admirers): customary law "obliges legally (independently of the sovereign or state)" because subjects have observed it — "they are positive law... inasmuch as they are enforced by the courts of justice" but "exist as positive law by the spontaneous adoption of the governed"; (2) their opponents: all judge-made law "is purely the creature of the judges" — to impute it to the sovereign legislature is "one of the foolish or knavish fictions with which lawyers... have perplexed and darkened the simplest and clearest truths."

> **Austin's solution — both are wrong:** "At its origin, a custom is a rule of conduct which the governed observes spontaneously... **The custom is transmuted into positive law, when it is adopted as such by the courts of justice, and when the judicial decisions fashioned upon it are enforced by the power of the state.** But before it is adopted by the courts, and clothed with the legal sanction, it is merely a rule of **positive morality**: a rule generally observed... but deriving the only force, which it can be said to possess, from the general disapprobation falling on those who transgress it."
>
> "When judges transmute a custom into a legal rule... the legal rule which they establish is established by the sovereign legislature. A subordinate or subject judge is merely a minister. **The portion of the sovereign power which lies at his disposition**

> **is merely delegated.** The rules, which he makes, derive their legal force from authority given by the state: an authority which the state may confer expressly, but which it commonly imparts in the way of **acquiescence**."

- Customs become law "established by the state directly, when the customs are promulged in its statutes; established by the state circuitously, when the customs are adopted by its tribunals."
- Commands may be **express or tacit** — "if the desire be signified by conduct (or by any signs of desire which are not words), the command is tacit." Judicial rulings on customs are thus **tacit commands of the sovereign legislature**: "The state, which is able to abolish, permits its ministers to enforce them: and it therefore signifies its pleasure, by that its voluntary acquiescence, 'that they shall serve as a law to the governed.'"
- Admitted difference: law made judicially ("improper legislation") and law made by statute ("properly legislative manner") are "distinguished by weighty differences" — to be taken up in later lectures.

> *The sovereign's title: borrowing Hobbes —* ***"the legislator is he, not by whose authority the law was first made, but by whose authority it continues to be a law."***

02.10 Sovereignty and independent political society — the two marks

The "essential difference of a positive law" (the difference severing it from every non-positive law): **"every positive law... is set by a sovereign person, or a sovereign body of persons, to a member or members of the independent political society wherein that person or body is sovereign."** Even if it springs from another fountain, it is positive law "by the institution of that present sovereign in the character of political superior." Hence the two marks, positive and negative:

CONCISE FORMULA · "If a determinate human superior, not in a habit of obedience to a like superior, receive habitual obedience from the bulk of a given society, that determinate superior is sovereign in that society, and the society (including the superior) is a society political and independent." →

POSITIVE MARK · the generality/bulk of the society are in a habit of obedience to a determinate and common superior (one and the same person or body) →

NEGATIVE MARK · that determinate person or body is not in a habit of obedience to a determinate human superior — "It is the union of that positive, with this negative mark, which renders that certain superior sovereign"

Determinacy matters: "no indeterminate party can command expressly or tacitly, or can receive obedience or submission: no indeterminate body is capable of corporate conduct." (Point 3 of the analysis — the "common" and "determinate" requirement.)

Illustration	What it shows	Lesson
Allied armies in France, 1815	Their commands were obeyed by the French government and people, but the obedience was "rare and transient" — no sovereignty created.	Obedience must be **habitual**, not occasional
The feeble state and the Holy Alliance (Saxony)	Permanently inferior, yet commands and submission "few and rare" — it remains "sovereign or independent... in fact or practice."	Independence is **factual**; submission must be habitual to count
Intestine war (Charles I v. Parliament)	Conflicting parties nearly balanced — society is split into two independent political societies, or resolves into a state of nature/anarchy.	One common superior or none
The viceroy	He commands habitually within his province, but "he and the generality of its inhabitants are habitually obedient... to the sovereign of a larger society" — a society political **but subordinate**.	"Merely a limb or member of another" — the negative mark fails
Savage societies (New Holland; North America; the German nations of Tacitus)	No general and habitual obedience to one superior; family chiefs obeyed within families only — "there is no law (simply or strictly so styled) which can be called the law of that given society"; the "so-called laws" are "purely and properly customary laws... set... by the general opinion... not enforced by legal or political sanctions."	Customary law of a non-political society is positive **morality** — a direct pre-echo of §02.9
The insulated savage family (father, mother, children)	Independent, but the number is "extremely minute" — "we could hardly style the society political," the father "a monarch," the children "subjects." (Montesquieu: *"La puissance politique comprend nécessairement l'union de plusieurs familles."*)	There must be a "considerable" number — which "cannot be fixed with precision"
Mexico (the revolted colony)	When did the colonists become sovereign *de facto*? — the question international morality left neutrals to answer "with a perfectly even hand."	The tests are **fallible**: they cannot fix the class of every possible society

> **Vagueness is due, not accidental.** "The definition of the abstract term independent political society... cannot be rendered in expression of perfectly precise import, and is therefore a fallible test." The positive mark is fallible: "in order that the bulk of its members may render obedience to a common superior, how many... and how often... and how long... in order that that obedience may be habitual?" The negative mark is likewise uncertain (the Saxon case could cross the line). "The definition or general notion of independent political society, is therefore vague or uncertain."
>
> **The same difficulty everywhere:** "What can be more indefinite, for instance, than the expressions, *reasonable time, reasonable notice, reasonable diligence*?... the line of demarcation which distinguishes libel and fair criticism... that degree of mental aberration which constitutes idiocy or lunacy?" These are "the very absurd enquiry whether questions of this kind are questions of law or of fact... **The truth is that they are questions neither of law nor of fact.** The fact be perfectly ascertained, and so may the law... the difficulty is in bringing the species under the rule; in determining not what the law is, or what the fact is, but whether the given law is applicable to the given fact."

International law is not positive law. "The law obtaining between nations regards the conduct of sovereigns considered as related to one another... every positive law is set by a given sovereign to a person or persons in a state of subjection to its author... **the law obtaining between nations is law (improperly so called) set by general opinion**. The duties which it imposes are enforced by **moral sanctions**: by fear... of provoking general hostility." (Independent societies, as communities, live in a "state of nature" — so there is no sovereign over them.)

02.11 The shapes of supreme government

- Every sovereign portion is less than the whole community: "In most actual societies, the sovereign powers are engrossed by a single member of the whole, or are shared exclusively by a very few... even in the actual societies whose governments are esteemed popular, the sovereign number is a slender portion of the entire political community."
- **Monarchy** = sovereign portion of one; **aristocracy** (generic sense) = sovereign portion of a number. The "essentially and broadly distinguished" difference: "In the case of a monarchy... the sovereign portion... is **simply or purely sovereign**. In the case of an aristocracy... that sovereign portion is sovereign as viewed from one aspect, but is also **subject** as viewed from another" — the individual members are subject to the body of which they form part.
- **Oligarchy / aristocracy (specific) / democracy** = the proportion of the sovereign number to the community: "extremely small" / "small, but not extremely small" / "large." These "can hardly be distinguished with precision, or even with a distant approach to it" — one man's oligarchy is another's "liberal aristocracy"; the proportion "may stand... at any point in a long series of minute degrees."

Austin's chain of analysis → **1. General notion of law (rule laid down...) →**
2. Command analysed (wish + evil + expression) → **3. Command/duty/sanction (one notion) →**
4. Laws v. particular commands; superiority = might →
5. Sovereignty (two marks) ▾ 6. Province = positive law set by sovereign to subjects

02.12 Austin in one page — the exam skeleton

Thesis	Statement + best quote
Province	"The matter of jurisprudence is positive law... law set by political superiors to political inferiors."
Law is command	"Every law or rule (taken with the largest signification which can be given to the term properly) is a command."
Command defined	"A command is distinguished from other significations of desire, not by the style... but by the power and the purpose of the party commanding to inflict an evil or pain."
Duty	"Command and duty are, therefore, correlative terms."
Sanction	"It is only by conditional evil, that duties are sanctioned or enforced."
Generality	Law obliges "generally to acts or forbearances of a class" — courts' orders are occasional commands.
Superiority	"The term superiority signifies might"; "'That laws emanate from superiors' is... an identical proposition."
Exceptions	Declaratory, repealing, imperfect laws — and "there are no laws merely creating rights."
Custom / judge-made law	Adoption by courts transmutes custom into positive law; the rules are "tacit commands of the sovereign legislature... established... circuitously."
Sovereignty	Determinate superior + habit of obedience from the bulk + no habit of obedience to a like superior = sovereign, and the society political and independent.
International law	"Law (improperly so called) set by general opinion," enforced by moral sanctions.

by Ankur R. Upadhyay

Thesis	Statement + best quote
Method	No concern with the "ends or final causes for which governments ought to exist" — description, not evaluation.

PART 03

(b) H.L.A. Hart — Law as the Union of Primary and Secondary Rules

03.1 A fresh start — the four failures of the command model

Chapter V opens where Chapter IV closed: "the simple model of law as the sovereign's coercive orders failed to reproduce some of the salient features of a legal system." Note the method — Hart deliberately does **not** rely on international law or primitive law ("which some may regard as disputable or borderline examples of law"); he points to "certain familiar features of municipal law in a modern state." The four ways in which the theory failed:

1. Self-binding legislation

Of all varieties of law, a criminal statute "most resembles orders backed by threats" — yet it "commonly applies to those who enact it and not merely to others." A sovereign who must be outside the law-obeying circle cannot accommodate statutes that bind the legislature itself.

2. Power-conferring rules

"There are other varieties of law, notably those conferring legal powers to adjudicate or legislate (public powers) or to create or vary legal relations (private powers) which **cannot, without absurdity, be construed as orders backed by threats**." (Austin's answer — that they are "fragments" of duty-imposing rules — distorts how they are "spoken of, thought of, and actually used in social life"; it is "as absurd as the theory that all the rules of a game are 'really' directions to the umpire and the scorer.")

3. Mode of origin

"There are legal rules which differ from orders in their mode of origin, because they are not brought into being by anything analogous to explicit prescription" — custom being the standard case. The ancillary device of the **tacit order** "seemed to have no application to the complex actualities of a modern legal system, but only to very much simpler situations like that of a general who deliberately refrains from interfering with orders given by his subordinates."

4. Continuity of legislative authority

The analysis "in terms of the sovereign, habitually obeyed and necessarily exempt from all legal limitations, failed to account for the **continuity of legislative authority** characteristic of a modern legal system, and **the sovereign person or persons could not be identified with either the electorate or the legislature of a modern state**." And the last rescue device — distinguishing legislators "in their official capacity" from themselves "in their private capacities" — "impeccable in itself," yet it "involved supplementing the theory with something it does not contain: this is the notion of a **rule defining what must be done to legislate**."

The diagnosis: "The last three chapters are therefore the record of a failure and there is plainly need for a fresh start… **The root cause of failure is that the elements out of which the theory was constructed, viz. the ideas of orders, obedience, habits, and threats, do not include, and cannot by their combination yield, the idea of a rule**, without which we cannot hope to elucidate even the most elementary forms of law."

03.2 The two types of rules — and where "the key" really lies

The idea of a rule is "by no means a simple one." Two different though related types must be discriminated:

	Primary rules	Secondary rules
What they do	"Human beings are required to do or abstain from certain actions, whether they wish to or not"	"Provide that human beings may be doing or saying certain things introduce new rules of the primary type, extinguish or modify old ones, or in various ways determine their incidence or control their operations"
Character	"The basic or primary type"; impose **duties**	"In a sense parasitic upon or secondary to the first"; confer **powers**, public or private

	Primary rules	Secondary rules
Subject-matter	"Actions involving physical movement or changes"	"Operations which lead... to the creation or variation of duties or obligations"
Hart's verdict	"In the combination of these two types of rule there lies what **Austin wrongly claimed to have found in the notion of coercive orders**, namely, 'the key to the science of jurisprudence.'" The union is given "a central place because of their explanatory power in elucidating the concepts that constitute the framework of legal thought."	

Caution (Hart's own): he will not claim that wherever "law" is "properly" used this combination is found — the diverse range of cases "are not linked by any such simple uniformity, but by less direct relations — often of analogy of either form or content — to a central case." Definition by the central case, not by a single essence.

03.3 The idea of obligation — the gunman, and the two points of view

The gunman situation

A orders B to hand over his money and threatens to shoot him. For the command theory, this is "the notion of obligation or duty in general... writ large"; for Hart, it is "a perfectly correct appreciation of the fact that where there is law, there human conduct is made in some sense non-optional" — but the theory's **errors** are most instructive at this very first step.

”Obliged” v. ”had an obligation”

"It is certainly one in which we would say that B, if he obeyed, was 'obliged'... It is, however, equally certain that we should misdescribe the situation if we said... that B 'had an obligation' or a 'duty.'" The first "is, in the main, a **psychological** one referring to the beliefs and motives with which an action was done"; two complications: a trivial threat (a pinch) leaves B not even "obliged"; nor where there are no reasonable grounds for thinking the threat will be implemented.

What "had an obligation" means. The statement that someone had an obligation is not a psychological prediction: it is a statement that **a social rule exists**, under which the conduct is required and deviation "is generally regarded as a lapse" — an occasion for criticism, demands for conformity, and social pressure. The rule is used "as a standard for the appraisal of their own and other persons' conduct." This is **the internal point of view**: "the view of those who do not merely record and predict behaviour conforming to rules, but use the rules as standards for the appraisal of their own and others' behaviour."

The external point of view — that of an observer, which "limits itself to the observable regularities of behaviour" — can express only "I was obliged to do it," "I am likely to suffer for it if..." It "cannot reproduce... the way in which the rules function as rules in the lives of those who normally are the majority of society" — for whom "the violation of a rule is not merely a basis for the prediction that a hostile reaction will follow but **a reason for hostility**."

The tension: "the life of any society which lives by rules... is likely to consist in a tension between those who... accept and voluntarily co-operate in maintaining the rules... and those who... reject the rules and attend to them only from the external point of view as a sign of possible punishment." The theorist's duty: "to remember the presence of both these points of view and not to define one of them out of existence. Perhaps all our criticisms of the **predictive theory of obligation** may be best summarized as the accusation that this is what it does to the internal aspect of obligatory rules."

03.4 The elements of law — a society of primary rules alone, and its three defects

Imagine "a society without a legislature, courts, or officials of any kind" — many primitive communities, Hart says, realize this. (He refuses the term "custom": it "often implies that the customary rules are very old and supported with less social pressure"; he calls the structure one of **primary rules of obligation**.) Two conditions for survival: rules restricting "the free use of violence, theft, and deception"; and the internal point of view must be held by the majority — "the latter [rejecters] cannot be more than a minority, if so loosely organized a society... is to endure."

Defect	The failure	Why
1. Uncertainty	"The rules... will not form a system, but will simply be a set of separate standards, without any identifying or common mark" — like "our own rules of etiquette."	"If doubts arise as to what the rules are... there will be no procedure for settling this doubt." Such a procedure "involve[s] the existence of rules of a type different from the rules of obligation."
2. Static character	"The only mode of change... will be the slow process of growth... and the converse process of decay. There will be no means... of deliberately adapting the rules to changing circumstances."	In the extreme case (never fully realized) no one could even vary his own obligations — no release, no transfer: "for such operations... there must be rules of a sort different from the primary rules."

Defect	The failure	Why
3. Inefficiency	"The inefficiency of the diffuse social pressure by which the rules are maintained": no agency "specially empowered to ascertain finally, and authoritatively, the fact of violation"; punishments left to the individuals affected or the group at large.	"The waste of time... and the smouldering vendettas which may result from self-help... may be serious." And the history of law suggests the **lack of official agencies to determine the fact of violation** is the more serious defect — "many societies have remedies for this defect long before the other."

> ***The verdict:*** *"The introduction of the remedy for each defect might, in itself, be considered a step from the pre-legal into the legal world... **certainly all three remedies together are enough to convert the regime of primary rules into what is indisputably a legal system.**" The three remedies have "important features in common... they may all be said to be on a different level from the primary rules, for they are all **about such rules.**"*

03.5 The three remedies — recognition, change, adjudication

Rule of recognition

"The simplest form of remedy for the uncertainty... is the introduction of what we shall call a 'rule of recognition.' This will specify some feature or features possession of which by a suggested rule is taken as a **conclusive affirmative indication that it is a rule of the group** to be supported by the social pressure it exerts."

Simple form: "an authoritative list or text... in a written document or carved on some public monument" — the crucial step is "the acknowledgement of reference to the writing or inscription as authoritative." Complex form (developed systems): identification "by reference to some general characteristic" — enactment by a specific body, long customary practice, relation to judicial decisions; and where several characteristics are criteria, "provision may be made for their possible conflict by their arrangement in an **order of superiority**, as by the common subordination of custom or precedent to statute, the latter being a 'superior source' of law."

Even the simplest form "introduces... the idea of a legal system" and contains "the germ of the idea of **legal validity**."

Rules of change

"The remedy for the static quality... is the introduction of what we shall call 'rules of change'": empowering "an individual or body of persons to introduce new primary rules... and to eliminate old rules." "It is in terms of such a rule, and not in terms of orders backed by threats, that the ideas of legislative enactment and repeal are to be understood."

They may be simple or complex; powers "unrestricted or limited"; and they "define... the procedure to be followed in legislation." Close connection with recognition: "the latter will necessarily incorporate a reference to legislation as an identifying feature." If a system's only "source of law" is legislation, the rule of recognition "will simply specify enactment as the unique identifying mark" — as in "the imaginary kingdom of Rex I": "the rule of recognition would simply be that whatever Rex I enacts is law."

Private powers, same family: the rules conferring on individuals power to vary their positions "are the making of wills, contracts, transfers of property... though of course an elementary form of power-conferring rule also underlies the moral institution of a promise." And: "as recent theory such as **Kelsen's** has shown, many of the features which puzzle us in the institutions of contract or property are clarified by thinking of the operations of making a contract or transferring property as the exercise of **limited legislative powers by individuals**."

Rules of adjudication

"The third supplement... consists of secondary rules empowering individuals to make authoritative determinations of the question whether, on a particular occasion, a primary rule has been broken. The **minimal form of adjudication** consists in such determinations." These rules also "define the procedure"; they "define a group of important legal concepts: in this case the concepts of **judge or court, jurisdiction and judgment**."

Intimate connection: "a system which has rules of adjudication is necessarily also committed to a rule of recognition of an elementary and imperfect sort" — courts' determinations "cannot avoid being taken as authoritative determinations of what the rules are," and judgments "will become a 'source' of law." Imperfect: "judgments may not be couched in general terms and their use... depends on a somewhat shaky inference from particular decisions," fluctuating "with the skill of the interpreter and the consistency of the judges."

Most systems go further: "instead they have supplemented the primary rules of obligation by further secondary rules, specifying... the penalties for violation, and... conferred upon judges... the exclusive power to direct the application of penalties." These are "the centralized official 'sanctions' of the system."

Ankur R. Upadhyay

03.6 The union — "the heart of a legal system"

"If we stand back and consider the structure which has resulted from the combination of primary rules of obligation with the secondary rules of recognition, change and adjudication, it is plain that **we have here not only the heart of a legal system, but a most powerful tool for the analysis** of much that has puzzled both the jurist and the political theorist."

- **Legal concepts** "with which the lawyer is professionally concerned" — "obligation and rights, validity and source of law, legislation and jurisdiction, and sanction" — "are best elucidated in terms of this combination of elements."
- **Political concepts** — "the state, of authority, and of an official" — "require a similar analysis if the obscurity which still lingers about them is to be dissipated."
- **Why the power:** "Most of the obscurities and distortions surrounding legal and political concepts arise from the fact that these essentially involve reference to what we have called the **internal point of view**." Under the simple regime of primary rules it appears "in its simplest form, in the use of those rules as the basis of criticism, and as the justification of demands for conformity, social pressure, and punishment."

03.7 Chapter VI — the rule of recognition and legal validity: criteria, and validity v. efficacy

Chapter VI refines the rule of recognition into a full doctrine. The key moves:

> **Validity and efficacy are distinct.** The validity of a particular rule "may or may not" be affected by its inefficacy "unless the rule of recognition of the system includes among its criteria, as some do, the provision (sometimes referred to as a rule of obsolescence) that no rule is to count as a rule of the system if it has long ceased to be efficacious."
>
> **But total disregard is fatal.** "From the inefficacy of a particular rule... we must distinguish a general disregard of the rules of the system" — so complete and protracted that the system "had never established itself" or "had ceased to be the legal system of the group." Then "the normal context or background for making any internal statement in terms of the rules of the system is absent" — to "insist on applying a system of rules which had either never actually been effective or had been discarded would... be as futile as to assess the progress of a game by reference to a scoring rule which had never been accepted."
>
> One who makes an internal statement of validity "may be said to **presuppose** the truth of the external statement of fact that the system is generally efficacious" — yet validity does not *mean* efficacy: teaching Roman law "as if the system were efficacious still" is meaningful; so too is "the White Russian who still claims property under some rule of descent which was a valid rule of Tsarist Russia."

The predictive theory of validity rejected (mirror of the rejected predictive theory of obligation): the common theory "that to assert the validity of a rule is to predict that it will be enforced by courts" — "the mistake... is the same: it consists in neglecting the special character of the internal statement and treating it as an external statement about official action." The verdict is decisive: the judge's "statement that a rule is valid is an internal statement recognizing that the rule satisfies the tests for identifying what is to count as law in his court, and constitutes **not a prophecy of but part of the reason for his decision**." Even for a private person, withdrawal of a statement before a contrary court ruling may rest on many grounds; "there are more reasons for withdrawing statements than the fact that they are wrong, and also more ways of being wrong."

03.8 The ultimate rule and the supreme criterion — and the use of the chain of validation

> **The Oxfordshire chain (learn this example by heart):** "Is this purported by-law of the Oxfordshire County Council valid? *Yes: because it was made in exercise of the powers conferred... by a statutory order made by the Minister of Health.* At this stage the statutory order provides the criteria... We may query the validity of the statutory order and assess its validity in terms of the statute empowering the minister... Finally, when the validity of the statute has been queried and assessed by reference to the rule that **what the Queen in Parliament enacts is law**, **we are brought to a stop in inquiries concerning validity**: for we have reached a rule which... provides criteria for the assessment of the validity of other rules; but it is also unlike them in that **there is no rule providing criteria for the assessment of its own legal validity**."

- **Supreme criterion defined:** "a criterion of legal validity or source of law is supreme if rules identified by reference to it are still recognized as rules of the system, even if they conflict with rules identified by reference to the other criteria, whereas rules identified by reference to the latter are not so recognized if they conflict with the rules identified by reference to the supreme criterion." "Superior" and "subordinate" are "merely a relative place on a scale" — no notion of legally unlimited power is imported.
- **Two ideas disentangled:** "It is important to disentangle them from the theory, which we have rejected, that somewhere in every legal system... there must be a sovereign legislative power which is legally unlimited." In the UK "there is a legislature subject to no Constitutional limitations" — "according to Constitutional theory," enactment by it is "the supreme criterion of validity." But the US "in which there is no such legally unlimited legislature may perfectly well contain an ultimate rule of recognition which provides a set of criteria of validity, one of which is supreme": where the legislature is limited by "a Constitution which contains no amending power, or places some clauses outside the scope of that power." **(grey, cross-feed: the Indian basic-structure doctrine is precisely a "clauses outside the scope of the amending power" case — Unit-4's pyramid.)**
- **What questions remain:** about the ultimate rule we can ask whether courts, legislatures, officials, citizens "actually... use this rule"; whether the system is satisfactory; "are there prudential reasons for supporting it? Is there a moral obligation to do so?" — "but equally plainly, when we ask them... we are no longer attempting to answer the same kind of question." From "valid because it

satisfies the rule" to "this rule is in fact used as the ultimate rule" is "a move... from an internal statement of law... to an external statement of fact"; and to "a system worthy of support" is "a statement of value."

03.9 "Assumed but cannot be demonstrated"? — the standard metre bar

> Some writers say the rule of recognition's own validity "cannot be demonstrated but is 'assumed' or 'postulated' or is a 'hypothesis.' **This may, however, be seriously misleading.**" Two things truly are presupposed by a serious assertion of validity: (1) the speaker "himself makes use of a rule of recognition which he accepts as appropriate for identifying the law"; (2) "this rule of recognition... is not only accepted by him but is the rule of recognition actually accepted and employed in the general operation of the system" — and "if the truth of this presupposition were doubted, it could be established by reference to actual practice: to the way in which courts identify what is to count as law."
>
> "We only need the word 'validity'... to answer questions which arise **within a system of rules** where the status of a rule as a member of the system depends on its satisfying certain criteria... **No such question can arise as to the validity of the very rule of recognition which provides the criteria; it can neither be valid nor invalid but is simply accepted as appropriate for use in this way.** To express this simple fact by saying darkly that its validity is 'assumed but cannot be demonstrated,' is like saying that **we assume, but can never demonstrate, that the standard metre bar in Paris which is the ultimate test of the correctness of all measurement in metres, is itself correct**."

Two more distinctions: (i) distinguish "assuming the validity" from "presupposing the existence" — the latter "obscures what is meant by the assertion that such a rule exists"; (ii) in a mature system "the statement that a rule exists may now no longer be what it was in the simple case of customary rules — an external statement of the fact that a certain mode of behaviour was generally accepted as a standard"; it may be "an internal assessment applying an accepted but unstated rule of recognition." But "a rule of recognition is unlike other rules of the system. The assertion that it exists can only be an external statement of fact. For whereas a subordinate rule of a system may be valid and in that sense 'exist' even if it is generally disregarded, **the rule of recognition exists only as a complex, but normally concordant, practice of the courts, officials, and private persons in identifying the law by reference to certain criteria. Its existence is a matter of fact.**"

THE WHOLE DOCTRINE IN ONE FLOW → **secondary rules: recognition + change + adjudication →**

validity: satisfies criteria of the rule of recognition (internal statement) →

efficacy: general conformity — presupposed, not entailed →

the ultimate rule: neither valid nor invalid — a social fact; "its existence is a matter of fact"

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03.10 Hart in one page — the exam skeleton

Point	Statement
Method	Indictment of the command model by familiar features of municipal law (not borderline cases).
Root cause	Orders + obedience + habits + threats "cannot by their combination yield the idea of a rule."
Law is	The union of primary rules of obligation with secondary rules of recognition, change and adjudication.
"Key to jurisprudence"	Belongs to this union, not (as Austin claimed) to the notion of coercive orders.
Obligation	*Obliged* (beliefs/motives) ≠ *had an obligation* (social rule; deviation = lapse; internal point of view).
Pre-legal society	Uncertainty — static character — inefficiency; each remedied by a secondary rule.
Rule of recognition	Conclusive test of membership; criteria ranked in order of superiority (custom < precedent < statute).
Validity v. efficacy	Distinct; general efficacy the normal background; total inefficacy destroys the system; validity ≠ prediction ("part of the reason for his decision").
Ultimate rule	No criteria for its own validity — "neither valid nor invalid"; standard metre bar; "its existence is a matter of fact."
Supreme criterion	UK: legally unlimited legislature; US: limited legislature, supreme criterion in the Constitution.

PART 04

(c) Hans Kelsen — The Pure Theory of Law

04.1 The pure theory — what it is, and what it is "pure" of

The excerpt opens with the self-description — quote it first in any answer: **"The Pure Theory of Law is a theory of positive law. It is a theory of positive law in general, not of a specific legal order... As a theory, its exclusive purpose is to know and to describe its object. The theory attempts to answer the question *what and how the law is, not how it ought to be*. It is a science of law (jurisprudence) not legal politics."**

- **"Pure":** "it only describes the law and attempts to eliminate from the object of this description everything that is not strictly law. Its aim is to free the science of law from alien elements."
- **The adulteration:** traditional 19th–20th century legal science "uncritically... has been mixed with elements of psychology, sociology, ethics, and political theory" — understandable, since those disciplines deal with closely connected subject-matters.
- **Methodological syncretism:** the theory "undertakes to delimit the cognition of law against these disciplines, not because it ignores or denies the connection, but because it wishes to avoid the **uncritical mixture of methodologically different disciplines**... which obscures the essence of the science of law and obliterates the limits imposed upon it by the nature of its subject matter."

04.2 The act and its legal meaning

Is law a natural or a social phenomenon? The clean delimitation is not easy: society "may be thought of as part of life in general and hence of nature," and what is customarily called law "seems at least partly to be rooted in nature." Analyse any body of facts interpreted as "legal" — a parliamentary decision, an administrative act, a judgment, a contract, a crime — and **two elements** are distinguishable:

1. The act

"An act or series of acts — a happening occurring at a certain time and in a certain place, perceived by our senses: an external manifestation of human conduct."

Examples: people assemble in a large room, make speeches, some raise their hands; a man in a robe speaks from a dais; a merchant writes a letter and receives an answer; somebody causes the death of somebody else.

2. The legal meaning

"The meaning conferred upon the act by Law": a statute is passed, law is created; a judicial decision; a legally binding contract; murder. This is the jurist's familiar distinction "between the process of legislation and its product, the statute."

04.3 Subjective and objective meaning — acts that interpret themselves

- The legal meaning "is not immediately perceptible by the senses." The actor connects his act with a meaning — the **subjective** meaning — which "may, but need not necessarily, coincide with its objective meaning, that is, the meaning the act has according to the law."
- **Invalid testament:** someone makes dispositions about his belongings, "stating in writing what is to happen... The subjective meaning of this act is a testament. Objectively, however, it is not, because some legal formalities were not observed."
- **The secret organisation:** it condemns to death a man thought to be a traitor and has a member execute what it "subjectively believes to be and calls 'a death penalty'; objectively and legally however, not a death penalty but a **Feme murder** was carried out" — though "the external circumstances... are no different from the execution of a legal death penalty." **(grey: "Feme" is Kelsen's own term — the medieval Vehmgericht's clandestine killing; the casebook prints "Feme.")**
- **Self-interpretation:** "A plant is unable to tell the classifying botanist anything about itself... But an act of human conduct can indeed carry a legal self-interpretation": parliament expressly declares it is enacting a statute; a man calls his disposition "last will and testament"; two men declare they are making a contract. "The scientist investigating the law, sometimes finds a legal self-interpretation which anticipates his own interpretation."

04.4 The norm — scheme of interpretation, and the "ought"

(a) The norm as scheme of interpretation

The external fact "as an element of nature, is not an object of legal cognition." The specifically legal meaning "is derived from a 'norm' whose content refers to the act; this norm confers legal meaning to the act, so that it may be interpreted according to this norm. The norm functions as a **scheme of interpretation**." Even the view that the act is a natural phenomenon "is only a specific interpretation, different from the normative, namely a causal interpretation."

And the chain: "The norm which confers upon an act the meaning of legality or illegality **is itself created by an act, which, in turn receives its legal character from yet another norm**." Death penalty not murder: "results from a thinking process: from the confrontation of this act with the criminal code and the code of criminal procedure." Letters = contract: conformity with the civil

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code. An assembly is a parliament, its meaning a statute: "from the conformity of all these facts with the norms laid down in the **constitution**."

(b) Norm and norm creation

The legal order is "a normative order of human behavior — a system of norms." "By 'norm' we mean that **something ought to be or ought to happen**, especially that a human being ought to behave in a specific way." Norms command, permit — and "particularly... authorize" — "authorize" meaning "to confer upon someone else a certain power, specifically the power to enact norms himself." The acts whose meaning is a norm "are acts of will."

The broad "ought": customary usage restricts "ought" to commands, "may" to permissions, "can" to authorizations; "in the present work the word 'ought' is used to express the normative meaning of an act directed toward the behavior of others; this 'ought' includes 'may' and 'can.'"

The norm is not the will-act: "A norm can be valid even if the act of will whose meaning the norm is, no longer exists... **It is incorrect... to characterize norms... as the 'will' or the 'command' of the legislator or state, if by 'will' or 'command' a psychological act of will is meant. The norm is the meaning of an act of will, not the act of will.**"

04.5 Validity and effectiveness — the ”is” and the ”ought” of law

"Since the validity of a norm is an **ought** and not an **is**, it is necessary to distinguish the validity of a norm from its effectiveness. Effectiveness is an 'is-fact' — the fact that the norm is actually applied and the fact that people actually behave according the norm."

But there is a connection: "A general legal norm is regarded as valid only if the human behavior that is regulated by it actually conforms with it, at least to some degree. **A norm that is not obeyed by anybody anywhere... is not regarded as a valid legal norm. A minimum of effectiveness is a condition of validity.**" Validity also "presupposes... that it is possible to behave in a way contrary to it" — a norm prescribing the necessarily-occurring is as senseless as one prescribing the impossible.

Time: "A legal norm becomes valid before it becomes effective"; a court applying a statute "immediately after promulgation" applies "a valid legal norm." But "a legal norm is no longer considered to be valid if it is permanently ineffective. Effectiveness is a condition of validity in the sense that effectiveness has to join the positing of a legal norm if the norm is not to lose its validity."

Two facts under "effectiveness": (1) the norm "is applied by the legal organs (particularly the law courts)... the sanction in a concrete case is ordered and executed"; (2) "this norm is obeyed by the individuals subjected to the legal order." **The ideal case:** "if the stipulation of sanctions intends to prevent the commission of delicts, we are faced with the ideal case of the validity of a legal norm if this norm is never applied, because the awareness... of the sanction... has become the motive to refrain." Effectiveness is then confined to obedience. And obedience may rest on other motives: where the delict is also a religious delict, "the law is effective... because religion is effective."

04.6 The four spheres of validity

Sphere	Meaning	Kelsen’s examples
Spatial	Norms refer to spatial events in their content; validity is always "valid for some specified space and time"	National legal order: state territory; moral order may claim validity everywhere (unlimited sphere)
Temporal	Before/after enactment; norms usually regulate future behaviour but "may also refer to the past"	**Retroactivity:** a sanction attached to behaviour before enactment. "In Nationalist Socialist Germany certain coercive acts which at the time of their performance were legally murder, were subsequently retroactively legitimized as 'sanctions.'" A revolutionary government "can, by a retroactive statute, repeal a statute enacted by the overthrown government... Of course, that which had been done cannot be undone; but the **normative interpretation**... of acts can be subsequently changed"
Personal	The norm "does not refer to the individual as such, but to a definite behavior of an individual"; limited or unlimited	Moral order: addresses all individuals; national legal order: only those within state territory and citizens abroad
Material	Provinces of behaviour: economic, religious, political	Federal state: member states competent for enumerated objects, federation for the rest; "the material sphere of validity of a total legal order is always unlimited"

04.7 Positive and negative regulation — commanding, authorizing, permitting

- Behaviour is **positively** regulated when a definite action or omission is commanded (the omission commanded = the action forbidden). "To say that the behavior of an individual is commanded... amounts to the same as saying the individual is **obliged**."
- Positively regulated also when the individual is **authorized** to bring about certain consequences — "particularly... to create norms"; or, in a system with sanctions, authorized to perform coercive acts; or **permitted** to perform an act otherwise forbidden — "a norm which limits the sphere of validity of a general norm that forbids the act." **Self-defence** is the example: a general norm forbids force; a special norm permits it in self-defence.
- He who complies with an authorization or permission "applies" the norm: the judge applies the statute to a concrete case "by a decision which constitutes an **individual norm**"; the enforcement officer applies the individual norm of the judgment; the self-defender applies the permitting norm.
- **Negative regulation:** behaviour "not forbidden... without being positively permitted... is permitted only in a negative sense." Negative permitting is "fundamentally connected with the function of commanding — a definite human behavior can be permitted only within a normative order that commands different kinds of behavior."
- **"Permit" = "entitle":** "If A is commanded to endure that B behaves in a certain way, it is said that B is permitted (that is, entitled) to behave in this way... the quality of B's behavior 'to be permitted' is merely the **reflex** of the quality of A's behavior 'to be commanded.'"

04.8 The social order — retribution, blood revenge, and the religious mirror

- **Social order:** a normative order regulating human behaviour "in its direct or indirect relations to other human beings." "Morals and law are such social orders." (Logic is not: its norms regulate thought, "one does not think 'toward' another man.")
- **Motivation:** the function of every social order is to motivate "refrain from certain acts deemed detrimental 'socially'... and to perform certain acts deemed socially useful" — through "the idea men have of norms."
- **Ideal types of order:** (1) commanding without any consequence attached; (2) command + reward for compliance or punishment for the opposite — "the principle of retribution"; (3) the legal order's type: command "just attaching a disadvantage to the opposite behavior." Reward and punishment may both be called "sanctions," but usually "only punishment, not reward."
- **Socially organized sanctions:** acts "to be performed by certain individuals designated by the social order in a procedure regulated by this order." "The oldest sanction of this kind is **blood revenge**" in primitive society — executed by the victim's kin group against the killer's; it "originally worked only in the relation between groups," developing within one group only when the community grew beyond the family. Non-fulfilment of the revenge obligation is left to "the transcendental sanction" of the murdered man's spirit.
- **The religious development:** "centralization of the superhuman authority... the many spirits of the dead were reduced to a few gods and finally to one all-powerful God"; the world beyond "split into a heaven for the good and a hell for the evil." Punishment dominates: "the legally correct behavior of primitive men... is determined primarily by the fear of misfortunes... (the so-called **tabus**)"; "the image of hell... is much more vivid than the usually vague idea of a life in heaven." The most important social order, the legal, "essentially makes use only of punishment."

04.9 The legal order (a) — an order of human behaviour

"A theory of law must begin by defining its object matter... to start from the usage of language" — "law" as equivalent to *Recht*, *droit*, *diritto*. Comparing what different peoples at different times have called "law": "all these objects turn out to be **orders of human behavior**." And the key definition: "An 'order' is a **system of norms whose unity is constituted by the fact that they all have the same reason for their validity; and the reason for the validity of a normative order is a basic norm** — from which the validity of all norms of the order are derived. A single norm is a valid legal norm, if it corresponds to the concept of 'law' and is part of a legal order; and it is part of a legal order, if its validity is based on the basic norm of that order."

- **Animals and things as subjects:** primitive legal orders regulate non-humans — "we read in the Bible that an ox that has killed a man ought to be killed"; "in ancient Athens, there was a special Court, in which a stone or spear or any other object could be tried"; "in the Middle Ages it was possible to sue an animal... The accused animal was condemned and executed in formal legal procedure, exactly like a human criminal." Explanation: "animistic ideas, according to which not only men, but also animals, and inanimate objects have a 'soul.'" Modern orders regulate only human behaviour — but may prescribe man's behaviour towards animals, plants and things (killing game at certain times; damaging rare plants or historic buildings).
- **Positive or negative:** behaviour may be a positive action or an omission; the order regulates "only so far as it refers, directly or indirectly, to other individuals." Relations may be **individual** (refrain from killing; debtor pays creditor) or **collective** (military service; a punishable suicide attempt).
- **The decisive point:** "the legal norm obliges the debtor not only and, perhaps, not so much in order to protect the creditor, but in order to maintain a certain economic system" — "in the last analysis, it is this relation to the legal community which is decisive."

04.10 The legal order (b) — a coercive order

> "The first characteristic... common to all social orders designated by the word 'law' is that they are orders of human behavior. **A second characteristic is that they are coercive orders**... they react... with a coercive act; that is to say, by inflicting on the responsible individual an evil — such as deprivation of life, health, liberty, or economic values — which, if necessary, is imposed upon the affected individual even against his will by the employment of physical force." (The criminal who "wishes to suffer the

punishment" or commits a crime "in order to go to jail where he can be sure of food and shelter" shows "ordinarily the affected individual regards the coercive act as an evil" — such cases are exceptions.)

Point	Doctrine	Watch-word
Sanctions	"Socially **immanent** (as distinguished from transcendental) sanctions; besides... socially **organized** (as distinguished from mere approval or disapproval)"	Two marks at once
What is sanctioned	The condition need not be human behaviour — "may be another fact, regarded as socially detrimental"; the coercive act is "attributed to this community"	Delict and non-delict both possible
Rewards	"Not an element common to all social orders designated as law... not an essential function"; even title-conferring norms are "fundamentally connected with the sanction-prescribing norms" (the use of a title is forbidden unless permitted — "a norm-stipulated restriction of the validity of a prohibitive norm")	Subordinate
The criterion	"The decisive criterion is the **element of force**" — the prescribed act "ought to be executed even against the will of the individual and, if he resists, by physical force"	Force, not approval
Does law "enforce" commanded behaviour?	"The coercive act is to be executed precisely when an individual behaves in the prohibited, not the commanded, manner." The motivational reading ("law tries to induce men to behave in conformity") "is only a possible, not a necessary, function"; psychic coercion "is not a characteristic that distinguishes the law."	"The law is not a coercive order in the sense that it exerts a psychic coercion; but in the sense that it **prescribes coercive acts**"
Monopoly of force	Development = "gradually and increasingly to prohibit the use of physical force from man to man" — the prohibition "can only be a limited one": force is permitted "as a reaction against a socially undesirable fact... **as an authorized use of force attributable to the legal community**." Primitive orders permit killing aliens and slaves (negatively permitted, not authorized as sanction). Modern: "every use of physical force is prohibited unless... especially authorized." "The monopoly is **decentralized**... if the principle of self-help still prevails"; otherwise "special organs acting according to the principle of division of labor."	Delict or sanction
Collective security	When "this protection has reached a certain minimum" — even self-help states are "the lowest degree of collective security." "The use of force of man against man is either a **delict** or a **sanction**."	The one-line formula
Minimum of liberty	Negative permission = legally free; but not every permitted behaviour is secured (the **ventilator** example: A may pipe air into his room through his wall; B may build his wall flush against it — "one party is permitted to prevent what the other party is permitted to do"). Practically universally prohibited: "to prevent another individual by force from doing what is not prohibited." And absolutely: "a minimum of freedom... always remains reserved. Even under the most totalitarian legal order there exists something like **inalienable freedom**; **not as a right innate and natural, but as a consequence of the technically limited possibility of positively regulating human behavior**." Constitutionally guaranteed civil liberties "limit the competence of the legislators."	"Not innate — technical"

04.11 The legal order (c) — normative meaning, the robber gang, and the basic norm

"Under threat of" is the wrong description. "The meaning of a threat is that an evil *will be* inflicted under certain conditions; the meaning of a legal order is that certain evils *ought to be* inflicted." This "is not only the subjective meaning of the acts by which the law is established but also their **objective** meaning." The highwayman's command "also has the subjective meaning of an 'ought'... In this respect... there is no difference between describing the command of a robber and the command of a legal organ. **The difference appears only when the objective meaning of the command is described**": we attribute to the one, not the other, "the objective meaning of a norm binding the addressed individual."

The decisive question: "Why do we suppose that of the two acts, which both have the subjective meaning of an 'ought,' only one established a valid, that is, binding, norm?... **What is the reason for the validity of the norm?**" The answer lies in the chain of interpretation: the killing is the execution of a court decision; the court's act is the execution of a statute; the statute is the execution of the constitution; "for the historically first constitution such an interpretation is possible only, if **we presuppose that**

one ought to behave according to the subjective meaning of the act... This norm is the **basic norm** of the national legal order. It is not established by a positive legal act, but is **presupposed**... To make manifest this presupposition is an essential function of legal science. **This presupposition is the ultimate (but in its character conditional and therefore hypothetical) reason for the validity of the legal order.**"

The basic norm, formulated: "If the law is conceived of as a coercive order, then the formula by which the basic norm of a national legal order is expressed runs as follows: **'Coercion of man against man ought to be exercised in the manner and under the conditions determined by the historically first constitution.'**" It "refers only to a constitution which is the basis of an **effective** coercive order: only if the actual behavior of the individuals conforms, by and large, with the subjective meaning of the acts... are the acts interpreted as legal acts."

Why not the robber gang? An isolated act cannot be legal — "law... is not a single norm, but a system of norms." An organized gang has an internal order (robbery and murder forbidden between members — "if robbery and murder were not forbidden in the relations between the robbers, no community, no robber gang would exist") and an external one. Why is its coercive order not a legal order? "Because **no basic norm is presupposed**... But why is no such basic norm presupposed? **Because this order does not have the lasting effectiveness** without which no basic norm is presupposed" — if the gang's activity is treated as illegal and terminated by the legal order of the territory; "in short, if the coercive order regarded as the legal order is more effective than the coercive order constituting the gang."

Pirate states: the "pirate states" of the northwest African coast (Algiers, Tunis, Tripolis), preying on Mediterranean navigation "in defiance of international law," were nonetheless "states": their internal order "presumably prohibited mutual employment of force... so that the minimum of collective security existed." **A state may be illegal externally yet a state.**

Justice is not the criterion — St. Augustine's challenge. Collective security/peace "is an objectively determinable fact... not a value judgment... **this value, therefore, cannot be made an element of the concept of law and can therefore not serve as a criterion for the distinction between a legal community and a robber gang.**" Augustine's *Civitas Dei* is the contrary position: "Set justice aside then, and what are kingdoms but thievish purchases? because what are thieves' purchases but little kingdoms?"; "Where true justice is wanting, there can be no law." But Augustine's justice — "a virtue distributing onto everyone his due" — turns out to mean giving "the true God... (the Judeo-Christian God, not the gods of the Romans) what is his due": "with this, **Roman Law is denied the character of law**." The consequence is unacceptable: if justice is the criterion, "the capitalistic coercive order of the West is not law from the point of view of the Communist ideal of justice, nor the Communist coercive order of the Soviet Union from the point of view of the capitalist ideal of justice. **A concept of law with such consequences is unacceptable by a positivist legal science.**"

The revolution test: after the French (18th century) and Russian (20th century) revolutions, other states hesitated to treat the new orders as law — the one had "violated the monarchic principle of legitimacy," the other "had abolished private property of the means of production"; "for the last-named reason, even American courts refused to acknowledge acts of the revolutionary Russian government as legal acts; the courts declared that these were not acts of a state, but of a robber gang. **However, as soon as the revolution-born coercive orders turned out to be effective, they were recognized as legal orders**, the governments as state governments, and their acts as state acts, that is, legal acts."

04.12 Legal obligations without sanctions? — the two objections answered

1. **A coercive act may be merely authorized, not commanded.** "The definition of law as a coercive order can be maintained even if the norm that stipulates a coercive act is not itself essentially connected with a norm that attaches... a sanction to the nonordering or nonexecuting of the coercive act — if, therefore, the coercive act... is to be interpreted objectively not as commanded but only as authorized or positively permitted."
2. **Norms that do not stipulate coercive acts (permitting, authorizing, and even commanding without a sanction).** They can be maintained "insofar as they are **dependent norms**, because they are essentially connected with norms that stipulate the coercive acts." The typical argument against coercion in the definition cites "the norms of **constitutional law**" — the precise point the dependent-norm doctrine answers (§04.13).

> *The overall positivism of the method: "From the definition of law as a coercive order follows that a behavior may be regarded as legally commanded (i.e., as the content of a legal obligation) only if the contrary behavior is made the condition of a coercive act directed against the individual thus behaving."*

04.13 Dependent legal norms — and the "rule of law" of legal science

The superfluous first norm. If one norm commands behaviour and a second attaches a sanction to the opposite behaviour, "the first norm is not an independent norm, but fundamentally tied to the second"; the first "merely designates — negatively — the condition under which the second stipulates the sanction; and if the second one positively designates the condition under which it stipulates the sanction, then the first one is **superfluous from the point of view of legislative technique**."

Modern criminal codes "do not contain norms that prohibit, like the Ten Commandments, murder, adultery and other crimes": **"a norm: 'You shall not murder' is superfluous, if a norm is valid: 'He who murders ought to be punished.'"** The code prohibits "by attaching to it a sanction."

Dependent norm	Why dependent	Example
Positive permissions	Limit the scope of a prohibiting (sanction-stipulating) norm; "meaningful only in connection with the first; both form a unit"	Self-defence; **UN Charter**: Art. 2(4) forbids force; Art. 39 attaches sanctions; Art. 51 permits self-defence — "the named articles form a unit," expressible as one norm
Licensing norms	Restrict a prohibition; combined into a single conditional	"If somebody sells alcoholic beverages without a state license, he ought to be punished"
Derogating norms	"Meaningful only in connection with other, sanction-stipulating norms" — they annul validity	Repealing statutes
Authorizing norms	"Designate only one of the conditions under which... the coercive act is prescribed": (1) the constitution's norms regulating legislation or instituting custom as a law-creating fact; (2) norms regulating judicial and administrative procedure	The **theft example**: "If the individuals authorized to legislate have issued a general norm according to which a thief is to be punished in a certain way; and if the court authorized by the Code of Criminal Proceedings... has ascertained that an individual has committed theft; and if that court has ordered the legally determined punishment; then a certain organ ought to execute the punishment" — constitution and procedure code are "conditions... as much... as the ascertainment of the fact of the delict"
Definitional norms	"Further determine the meaning of other norms" — normative only in connection with a sanction norm	"By murder is to be understood..." + "If a man commits murder... ought to impose the death penalty" + "The death penalty is to be carried out by hanging" — one unit

The conclusion — the law is a coercive order even though not all its norms stipulate coercive acts; and "this, therefore, is another reason why the law does not have exclusively a commanding or imperative character." Hence the final formulation: "Since a legal order... is a coercive order, it may be described in sentences pronouncing that under specific conditions... specific coercive acts ought to be performed. **All legally relevant material contained in a legal order fits in this scheme of the rule of law formulated by legal science — the rule of law which is to be distinguished from the legal norm established by the legal authority.**" (*Rechtssatz* — statement of law by the science of law — v. the norm enacted.) **(grey: the omitted pages 18–23 of the Knight translation contain the intervening detail — including the full static/dynamic distinction and the opening of the hierarchy-of-norms discussion; the chain you have is enough to answer any "why must norms form a system?" question.)**

THE PURE THEORY IN ONE FLOW → **acts of will + subjective meaning →**

objective meaning = norm (ought; may; can), via scheme of interpretation → **norms form an order: same reason for validity →**

chain: constitution → statute → decision → sanction →

basic norm presupposed — "coercion of man against man ought to be exercised... per the historically first constitution" — conditional on effectiveness; justice excluded

04.14 Kelsen in one page — the exam skeleton

Point	Statement
Purity	Law described as it is; free of psychology, sociology, ethics, politics — "methodological syncretism" avoided.
Object	Norms — the objective meaning of legal acts; "the norm functions as a scheme of interpretation."
"Ought"	Norm = ought (including may/can); the meaning of an act of will, not the act of will.
Validity v. effectiveness	Ought v. is; "a minimum of effectiveness is a condition of validity"; permanently ineffective = no longer valid.
Law is	A coercive order: socially immanent and socially organized sanctions; "the decisive criterion is the element of force."
Monopoly of force	Force is either delict or sanction; collective security at a minimum; a minimum of (not innate) freedom always remains.

Point	Statement
Basic norm	Presupposed, not enacted: "Coercion of man against man ought to be exercised in the manner and under the conditions determined by the historically first constitution"; the ultimate, conditional, hypothetical reason for validity.
Robber gang	No basic norm is presupposed because no lasting effectiveness; pirate states show internal effectiveness can suffice.
Justice excluded	Augustine's "kingdoms are thievish purchases" rejected; relative justice cannot be the criterion — "unacceptable by a positivist legal science."
Dependent norms	"You shall not murder" is superfluous; permissions, licences, authorizations, definitions are dependent norms — the law "does not have exclusively a commanding or imperative character"; the *Rechtssatz* scheme: "under specific conditions, specific coercive acts ought to be performed."

PART 05

Compare & Evaluate — The Three Positivisms, and Their Quarrels

05.1 The architecture of validity — three answers to one question

AUSTIN · validity flows from will · command of the sovereign (habitually obeyed; not habitually obeying) · duty = sanction-liability →

HART · validity flows from rule · rule of recognition as social practice (officials + citizens) · obligation = internal point of view →

KELSEN · validity flows from presupposed norm · basic norm = the historically first constitution · ought ≠ is; effectiveness only conditions validity

Variable	Austin	Hart	Kelsen
Law is a kind of...	Command (of a political superior)	Rule (primary + secondary, united)	Norm (objective meaning of a legal act)
What explains obligations	Liability to the sanction ("command and duty are correlative")	A social rule used as a standard — the internal point of view	The "ought" of the norm whose opposite is sanction-conditioned
Source of validity	The sovereign's position (positive + negative marks)	The rule of recognition (ultimate; social fact)	The basic norm (presupposed; hypothetical)
Constitution's role	Ordinary law (no special status)	Supreme criterion where it limits a legislature (US); converging with unlimited legislature (UK)	The penultimate link in the chain above the basic norm
Custom's legal character	Tacit command (adopted by courts; acquiesced in by the state)	A criterion of validity, subordinated to statute ("superior source")	A law-creating fact authorized by the constitution (dependent norm)
International law	**Not positive law** — set by opinion, moral sanctions	Not relied on (borderline; he argues from municipal law)	Outside the excerpt's discussion (national order only; international order noted)
Morality's place	Excluded by method ("no concern" with ends of government)	Not part of the criteria; internal point of view + value questions kept separate	**Excluded by definition** — the Augustine section

05.2 Hart's indictment of Austin — the four failures, restated as exam bullets

1. **Self-bindingness:** criminal statutes bind the enactors; a sovereign outside the obedience circle cannot explain it. Rescue device (official v. private capacity) needs — and therefore smuggles in — *a rule defining what must be done to legislate*, the very thing the command theory says is lawless.
2. **Power-conferring rules:** powers to legislate, adjudicate, marry, make wills, contract — "cannot, without absurdity, be construed as orders backed by threats." Austin's "fragments of duty-imposing rules" reading "distorts the ways in which these are spoken of, thought of, and actually used in social life," like saying all rules of a game "are 'really' directions to the umpire."
3. **Mode of origin:** rules from custom do not arise by "anything analogous to explicit prescription"; the "tacit order" device fits "a general who deliberately refrains from interfering," not a modern system.
4. **Continuity and identification:** the "sovereign, habitually obeyed and necessarily exempt" cannot account for continuity of legislative authority; and "the sovereign person or persons could not be identified with either the electorate or the legislature of a modern state."

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> ***And the deepest point:*** *the failure is "instructive" — at each point "it was possible to see... why it was bound to fail and what is required for a better account.* ***The root cause of failure is that the elements out of which the theory was constructed, viz. the ideas of orders, obedience, habits, and threats, do not include, and cannot by their combination yield, the idea of a rule."***

05.3 Austin v. Kelsen — threat and norm

Point	Austin	Kelsen
What a law is	A command — "a wish... with the power and purpose" to inflict evil	A norm — an "ought," the objective meaning of a legal act — "The norm is the meaning of an act of will, not the act of will"
Obligation	Being "bound or obliged"; liability to evil	Behaviour whose opposite is the condition of a coercive act (the coercive act itself need only be authorized)
Sanction	Part of the definition (duty = chance of evil)	The "decisive criterion": law is a coercive order — but the rationale is normative: "evils **ought to be** inflicted," not "will be"
Command v. threat	Command is the genus — no explicit distinction between the sovereign's and the robber's command	The robber has only subjective "ought"; the legal command has objective bindingness — **because** of the basic norm presupposition — the precise gap Austin leaves
Custom	Tacit command of the sovereign, admitted via courts	Law-creating fact; the constitution "institute[s] custom as a law-creating fact" (dependent-norm chain)
Base of the system	The sovereign — a fact (habit of obedience)	The basic norm — a presupposition; "the ultimate (but... conditional and therefore hypothetical) reason for the validity of the legal order"

Kelsen's reply to Austin in one line: the law does not merely threaten — "the meaning of a threat is that an evil will be inflicted"; "the meaning of a legal order is that certain evils *ought to be* inflicted." To say the law "commands under threat" "ignores the normative meaning."

05.4 Hart v. Kelsen — the rule of recognition and the basic norm

Question	Kelsen	Hart (as against Kelsen)
Status of the ultimate norm	"Presupposed"; "not established by a positive legal act"; the "hypothetical" reason	"Assumed/postulated/hypothesis" is "seriously misleading" — the rule of recognition "can neither be valid nor invalid but is simply accepted as appropriate"; standard metre bar
Where it exists	In the presupposition made by legal science ("To make manifest this presupposition is an essential function of legal science")	"Only as a complex, but normally concordant, practice of the courts, officials, and private persons... Its existence is a matter of fact" — establishable by reference to actual practice
Ground of validity	Chain of "ought": norm → norm → basic norm (a formal regress)	Chain of "is": validity certified by criteria — the Oxfordshire by-law → Minister's order → statute → "what the Queen in Parliament enacts is law" (a social test)
Effectiveness	"A minimum of effectiveness is a condition of validity" built into the basic norm's reference	General efficacy is the **presupposed background** of internal validity statements, not their meaning; a valid-but-ineffective rule is possible (White Russian)
Debt of Hart to Kelsen	Explicit: "as recent theory such as Kelsen's has shown, many of the features which puzzle us in the institutions of contract or property are clarified by thinking of the operations of making a contract or transferring property as the exercise of **limited legislative powers by individuals**" — private power-conferring rules as Kelsenian authorization	

> ***The critical exchange in two sentences.*** *Kelsen: the basic norm is a presupposed norm without which acts could not be interpreted as legal acts. Hart: "We only need the word 'validity'... to answer questions which arise within a system of rules... No such question can arise as to the validity of the very rule of recognition... it can neither be valid nor invalid but is simply accepted as appropriate." For Hart the ultimate rule is a* ***fact about***

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> ***practice**; for Kelsen it is a **presupposition of cognition** — and each theory stands or falls on which description fits what courts, officials and citizens actually do.*

05.5 What each leaves behind — the standard criticisms

Austin's loose ends

1. The sovereign cannot be "identified with the electorate or the legislature" (Hart).
2. No account of constitutional limits (Hart's US/UK contrast) or of rules that bind law-makers.
3. The "habit" analysis misses the normative dimension: obedience out of habit ≠ acceptance of a standard (Hart's internal point of view).
4. International law and constitutional law handled by fiat.

Hart's loose ends

1. The rule of recognition's existence is a practice — but what if the practice is contested (revolution)? Hart: then the system is not established — but the description "it can neither be valid nor invalid" leaves the revolutionary legal order described sociologically, not legally.
2. The content of the rule of recognition is uncertain in hard cases — "questions as to the precise content and scope... may not admit of a clear or determinate answer."
3. Officials' acceptance is the pivot — the ordinary citizen's viewpoint gets a thinner treatment.

Kelsen's loose ends

1. The basic norm is presupposed — by whom, and why that one? Hart: it is "seriously misleading" to call it an assumption; it hides the factual character of the practice.
2. "A minimum of effectiveness" — how much? "by and large" is as imprecise as Austin's "habitual."
3. The exclusion of justice makes law and power dangerously close — the natural-law counter (Unit 7 arrives with the attack).

05.6 Why the quarrel matters — the resonance with the other units

Unit	Connection	Use in an answer
1 & 2 (dharma)	Dharma was "found" — śruti, smṛti, sadāchāra, conscience; the king "should never act according to his own fiat" (Kat. 45). Austin's sovereign acts by fiat: "the legislator is he, not by whose authority the law was first made, but by whose authority it continues to be a law." Dharma moolam v. the command theory = the oldest critique of positivism in the casebook's own pages.	Rama Jois's four propositions = an "ancient Austin" inverted
3 (systems)	The Socialist family's "legislature as the sole source of law" is positivism institutionalized; codes are the Romano-Germanic expression of Austin's province; Mīmāṃsā's vidhi/nishedha is a command grammar (and Unit-3's Surjit Singh shows Indian courts reading statutes with it); Derrett's Hindu-law material shows "what the law is" apart from "what it should be."	Positivism as the common spine of modern systems
4 (institutions)	The Constitution is the supreme law (Art. 13) — Kelsen's chain runs Constitution → statute → rule → individual norm; Hart's ultimate rule of recognition in India = the Constitution (with the basic-structure doctrine as its "no-amending-power" analogue: grey). Art. 141 makes the Supreme Court's declaration binding — the courts' internal point of view as Hart describes it.	Constitution = basic norm / supreme criterion
5 (sources)	Jain's "analytical view" of custom is Austin's own: "the custom is transmuted into positive law when it is adopted as such by the courts." Hart's rule of recognition "arrange[s]" criteria "in an order of superiority, as by the common subordination of custom or precedent to statute" — the Unit-5 hierarchy, re-described; legislation = the sovereign's province (Austin) = the supreme criterion (Hart) = constitution-authorized norm creation (Kelsen).	Sources unit re-read through positivism

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Unit	Connection	Use in an answer
7 (next)	Natural law attacks the separation thesis; Savigny attacks Austin's ahistorical analytics (Volksgeist v. command); Pound attacks Kelsen's purity with sociology. The unit after this one is the mirror-image.	Positivism as the thesis Unit 7 refutes

05.7 The three one-paragraph verdicts

Austin

The founder's power — and his limits. He gave jurisprudence a province and a method: isolate positive law, analyse its terms, stop asking what law ought to be. His command–duty–sanction analysis remains the cleanest introduction to the imperative element of law; his sovereignty analysis explains why law needs a determinate source. But the model is built for a simple state: it cannot bind the law-maker, cannot house power-conferring rules, cannot account for continuity, and cannot see rules as standards rather than threats.

Hart

The repair — and its price. By moving validity into secondary rules and obligation into the internal point of view, Hart saved positivism from Austin's dead ends: the self-binding statute, the constitution, custom all find their place. The price is that the ultimate rule is no longer a legal rule at all — "there is no rule providing criteria for the assessment of its own legal validity"; and its existence "is a matter of fact." Hart's positivism is therefore a social-fact positivism: law rests on practice, and the practice runs out where the revolution begins.

Kelsen

The most rigorous — and most austere. Kelsen's purity buys a science of law: norms described as norms, validity as an ought, effectiveness as a conditioning fact, justice excluded by the relativity of value-judgments. The basic norm supplies a reason for validity without a legislator ("the law is the meaning of an act of will, not the act of will"). The cost is that the ultimate foundation is a presupposition — "conditional and therefore hypothetical" — and the law's content is morally indifferent by design. Austin gave law a sovereign; Hart gave it officials; Kelsen gave it a theory.

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PART 06

Authorities — The Texts, the Thought-Experiments, the Sources Within the Sources

Note on form. This unit has **no case law**: its authorities are the three prescribed texts themselves. Group A gives each text's "passport" and its load-bearing quotations. Group B briefs the **thought-experiments** — the unit's equivalents of cases, each with its facts, the point it serves and the principle it establishes. Group C lists the authorities *cited within* the readings (the unit's "casebook within a casebook"), and Group D the instruments and institutions invoked.

Group B · The thought-experiments (the unit's "cases")

Experiment (author)	Its facts	The point it makes	Principle established
The gunman (Hart)	A orders B to hand over his money, threatening to shoot him unless B complies	Shows the difference between "obliged" and "had an obligation"	Obligation is not fear: it presupposes a social rule and the internal point of view; the predictive/ command analysis "misdescribes" B
The servant's rules (Austin)	"Rise at that hour always" v. "rise at 8 a.m. tomorrow"	Generality is of the **act-class**, not of the persons	Law = command obliging generally to acts of a class; particular commands are not law

Experiment (author)	Its facts	The point it makes	Principle established
The corn-exportation order (Austin)	Parliament stops the corn then shipped and in port to meet a scarcity	Obligatory on the whole community, yet particular	Blackstone's persons-test fails: general obligation of all = not necessarily a rule
The general mourning order (Austin)	Penalized order for mourning on a public calamity; "black should be the dress" v. "wear it on a specified occasion"	Same answer, differently put	Assigning specific acts (even to all) = particular command
The disobliging act punished (Austin)	Legally innocent authors of a disliked act are punished by the sovereign	Source alone does not make law	It is an occasional command "of the sovereign One or Number," however formal
The judge's sentence (Austin)	"The lawgiver commands that thieves shall be hanged"; the judge orders this thief hanged	The law/judgment relation	The lawgiver's is a rule; the judge's is an occasional command to enforce it
Parliament creates an office (Austin)	Grantee bound to services of a given description	Laws to determinate persons are possible	*Privilegia*: a law binding a determinate person is still a law
Allied armies in France (1815) (Austin)	Allies' commands obeyed by the French government and people during occupation	Obedience must be habitual	No sovereignty — the occupied state remains independent political society
The feeble state & the Holy Alliance (Austin)	Saxony submits to the conspiring monarchs, but rarely	Independence is factual	Permanent inferiority without habitual obedience = independence "in fact or practice"
Charles I v. Parliament (Austin)	The nation torn by intestine war; near-balanced parties	One common superior or none	Either two independent societies, or a state of nature; the juncture of reunification cannot be fixed
The viceroy (Austin)	He commands habitually within his province	A society may be political but subordinate	The negative mark fails: he and his province obey a larger sovereign
The savage family / savage tribes (Austin)	An estranged father-and-children group; tribes with only family chiefs (New Holland, North America, Tacitus's Germans)	Size and generality required	"Considerable" number needed (Montesquieu: political power "necessarily" comprises several families); tribal "laws" are customary rules = positive morality
Mexico (Austin)	When did the revolted colony become an independent community?	The tests are fallible	Neutrals' question under international morality; the class is fixed "in fact," not by rule
The invalid testament (Kelsen)	Dispositions in writing, but legal formalities unobserved	Subjective v. objective meaning	Objective (legal) meaning comes from the norm, not from the actor

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Experiment (author)	Its facts	The point it makes	Principle established
The secret organization's "death penalty" (Kelsen)	A "traitor" is executed by a vigilante group, in formal imitation	Same external facts, different legal meaning	It is a "Feme murder" (vehmic killing), not a death penalty — the criminal code supplies the scheme of interpretation
Rex I's kingdom (Hart)	The imaginary realm whose only source of law is the king's enactment	Simplest legal system	Rule of recognition = "whatever Rex I enacts is law"; enactment alone is the criterion of validity
The Oxfordshire by-law chain (Hart)	By-law → Minister of Health's statutory order → enabling statute → "what the Queen in Parliament enacts is law"	The chain of validation ends	The ultimate rule of recognition: no rule provides criteria for its own validity
The standard metre bar (Hart)	Paris bar = ultimate test of all measurement in metres	"Assumed validity" is a bad metaphor	The rule of recognition "can neither be valid nor invalid"; it is "simply accepted as appropriate"; its existence is a fact
The White Russian (Hart)	Clings to a rule of descent valid under Tsarist Russia	Validity ≠ efficacy	Statement of validity presupposes general efficacy but does not mean it
The ventilator (Kelsen)	A may pipe air through his boundary wall; B may build flush against it, nullifying it	Not every permitted behaviour is protected	Negative permission ≠ positive guarantee; only the universal prohibition of forcible interference secures liberty
The robber gang (Kelsen)	An organized gang levies tribute under threat; internally, robbery and murder are forbidden	The legal/robber distinction	No basic norm is presupposed because there is no lasting effectiveness; the territorial legal order prevails as "more effective"
Pirate states (Kelsen)	Algiers, Tunis, Tripolis (16th–19th c.) prey on shipping, yet have internal order	Effectiveness, not external legality or justice, founds a "state"	A coercive order effective within a territory to the exclusion of others is a legal order
St. Augustine's "thievish purchases" (Kelsen)	Civitas Dei: "Set justice aside then, and what are kingdoms but thievish purchases?"	The justice-criterion collapses into the judge's own values	Justice is a relative value-judgment and cannot define law (Augustine would deny Roman law the title)
The revolutions (Kelsen)	French (monarchic legitimacy violated) and Russian (private property abolished); American courts called the Soviet acts those "of a robber gang"	Recognition follows effectiveness	"As soon as the revolution-born coercive orders turned out to be effective, they were recognized as legal orders"

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Experiment (author)	Its facts	The point it makes	Principle established
The Ten Commandments / "You shall not murder" (Kelsen)	Modern codes attach sanctions; they do not prohibit as commandments do	Dependent norms	The command norm is superfluous where the sanction norm is stated: "He who murders ought to be punished"
The UN Charter articles (Kelsen)	Art. 2(4) forbids force; Art. 39 attaches sanctions; Art. 51 permits self-defence	Dependent permissions form a unit	The three articles could be one norm: force "which does not have the character of individual or collective self-defense" is sanctionable
The liquor licence (Kelsen)	Sale punishable, but not if licensed	Licensing = limiting a prohibition	"If somebody sells alcoholic beverages without a state license, he ought to be punished"
The theft chain (Kelsen)	Statute → court ascertainment in procedure → sentence → execution	Authorizing norms are conditions of sanctions	Constitution and codes of procedure are dependent norms; the full "rule of law" runs from legislated norm to execution

Group C · The authorities inside the readings

Authority invoked	Where and why	Reading
Tacitus (*Preces erant, sed quibus contradici non posset*)	The soldiery's petition to Vespasian's son — "prayers" impossible to refuse: a command in the form of a request	Austin
Blackstone	The rejected alternative line between laws and particular commands (persons addressed)	Austin
Hobbes ("the legislator is he, not by whose authority the law was first made...")	Adopted: positive law lives by the present sovereign's authority	Austin
Roman jurists	*Privilegia* (laws binding determinate persons); "authentic interpretation"; imperfect laws (wanting a sanction)	Austin; Kelsen (criminal code and code of procedure)
Montesquieu (*La puissance politique comprend nécessairement l'union de plusieurs familles*)	Political society requires more than one family — the "considerable number" requirement	Austin
Grotius	Sovereignty as "perfectly or completely independent" — shown defective (no government is perfectly independent; the positive essential omitted; negative stated inaccurately)	Austin
Von Martens (Göttingen)	"A sovereign government is a government which ought not to receive commands from any external or foreign government" — four objections (applies to subordinates too; question of fact, not law; no government ought to be wholly unfettered; no allusion to the positive character)	Austin
St. Augustine, *Civitas Dei*	Justice as the criterion of law — quoted only to be refuted ("kingdoms... thievish purchases")	Kelsen

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Authority invoked	Where and why	Reading
The Bible; ancient Athens; medieval legal practice	The ox "that has killed a man ought to be killed"; the Athenian court trying a stone or spear; suits against bulls and grasshoppers — animistic legal orders	Kelsen
Recht / droit / diritto	The usage-of-language starting point for the definition of law	Kelsen
Kelsen (cited by Hart)	Contract and property as "the exercise of limited legislative powers by individuals"	Hart
Austin's phrase (cited by Hart)	"The key to the science of jurisprudence" — reclaimed for the union of primary and secondary rules	Hart

Group D · Instruments and institutions invoked

Instrument	Function in the readings	Reading
Parliament (UK) / Queen-in-Parliament	The standard example of enactment ("what the Queen in Parliament enacts is law" — the ultimate rule's supreme criterion); the corn-export order; the office-creating statute	Austin; Hart
US Constitution	Limited legislature + clauses outside the amending power = supreme criterion of validity without legally unlimited legislature	Hart
UK Constitution (unwritten)	"Subject to no Constitutional limitations" — supreme criterion converges with legally unlimited legislature	Hart
UN Charter, Arts. 2(4), 39, 51	Dependent-norm unit: general prohibition + sanction + self-defence permission	Kelsen
"The historically first constitution"	The content-reference of the basic norm: "coercion of man against man ought to be exercised in the manner and under the conditions determined by" it	Kelsen
Criminal code and code of criminal procedure	The scheme of interpretation converting killing into execution of a death sentence; the theft chain; "murder" definitions; hanging	Kelsen
Civil code	The contract (exchange of letters) gets its legal meaning by conforming to it; debtor/creditor norms	Kelsen
Statute books under the rule of recognition	The official certificate or official copy as sufficient proof of due enactment	Hart
The sovereign legislatures of 1815–20s; the Holy Alliance; Saxony; Mexico; the viceroy; Rex I's kingdom	The illustrative political facts of sovereignty and of the simplest legal system	Austin; Hart
Blood revenge; tabus; heaven & hell	The social-order typology: socially organized v. transcendental sanctions; reward v. punishment	Kelsen

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DU LL.B. EXAMINATION ARCHIVE · PAPER LB-106

Previous Year & Syllabus-Pattern Questions — Unit 06: Western School of Thought – I: Analytical & Normative Positivism

Q.01 DU LL.B. LB-106 Examination Archive / Pattern
Austin's theory of law as the command of the sovereign. State it, then show how far Hart's criticisms destroy it.

● **Refer website for detailed notes — makelaweasy.in**

Q.02 DU LL.B. LB-106 Examination Archive / Pattern
Law is the union of primary and secondary rules." Elucidate, showing why the union is needed.

Q.03 DU LL.B. LB-106 Examination Archive / Pattern
The rule of recognition: nature, ultimacy, supremacy — and validity v. efficacy.

Q.04 DU LL.B. LB-106 Examination Archive / Pattern
What is the Pure Theory of Law? Explain the basic norm and its function.

Q.05 DU LL.B. LB-106 Examination Archive / Pattern
Austin on sovereignty: the two marks, their illustrations, and their fallibility.

Q.06 DU LL.B. LB-106 Examination Archive / Pattern
The gunman situation and the internal point of view: Hart's account of obligation.

Q.07 DU LL.B. LB-106 Examination Archive / Pattern
Custom and judge-made law in Austin — and how Hart and Kelsen re-describe them." (cross-feed with Unit-5)

Q.08 DU LL.B. LB-106 Examination Archive / Pattern
Compare Austin's command theory, Hart's rule theory and Kelsen's pure theory of law.

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LAW CRUX · PAPER LB-106 · UNIT 07 Suri Ratnapala (Fuller) · R.W.M. Dias (Savigny & Roscoe Pound) · Lon L. Fuller (Speluncean Explorers)

Western School of Thought – II: Natural Law, Historical & Sociological

Lon L. Fuller (Eight Desiderata of Inner Morality of Law, Hart–Fuller Debate, Radbruch Formula & Speluncean Explorers), Friedrich Carl von Savigny (Volksgeist & Critique of Codification) & Roscoe Pound (Social Engineering & Jural Postulates)

PART 01

Conceptual Frame — Three Reactions to Positivism

01.1 The unit's place in the course (cross-feed map)

Unit	Connection	Use in an answer
Unit 6 (Positivism)	**The direct target.** Unit 6 gave you three positivist foundations of validity: the sovereign's command (Austin), the rule of recognition (Hart), the basic norm (Kelsen). Unit 7 is the counter-attack on all three: Fuller attacks Hart's separation of law and morals; Savigny attacks Austin's ahistorical analytics ("law is willed"); Pound attacks the purity of Kelsen — the law is not a system of norms but the living adjustment of interests. The casebook's own sequencing (Unit 6 then Unit 7) is a debate.	"Compare positivism with the natural law/ historical/sociological schools"
Units 1–2 (dharma)	Rama Jois's "dharma moolam" is natural-law thinking in Indian dress: a law (and a king) measured against a moral order. Fuller's claim that law "carries within it certain moral qualities" is the modern, procedural restatement; Savigny's Volksgeist is the distant cousin of sadāchāra — "the conduct of good people" as India's own customary source (Unit 5 §02.3).	"Is dharma natural law? Is sadāchāra a Volksgeist?"
Unit 3 (systems)	David & Brierley: Romano-Germanic codes (Thibaut's dream realised in France, then in Germany 1900 — Savigny's defeat); Socialist law (Pound's interests as the collective benchmark); the Indian use of English law (Unit 7's "reception" discussion is precisely the Unit-3 transplant debate).	Code v. Volksgeist: the comparative question
Unit 4 (institutions)	The Constitution as **social engineering**: Directive Principles and Art. 39-A are Pound's "definition of limits" and "valuation of interests" made constitutional; Art. 21's expansion (Hussainara, Maneka — Unit 4) is the courts translating interests onto "the same plane." Fuller's "rule of law" = the Constitution's basic structure in its procedural dimension.	"Poundian reading of the Directive Principles"
Unit 5 (sources)	Jain's "German admirers of custom" in Unit 5 §03.2 **are** the Historical School: Austin said custom is law only when adopted by courts; Savigny said custom is the *original* law, and legislation must conform to it — the exact disagreement Unit 5 reported. Rama Jois's registration of usages by royal seal (Kat. 48–50) is a Volksgeist mechanism.	"Custom: Savigny v. Austin"

01.2 The three theses, side by side

Natural law (Fuller)

Law's morality is internal. Law is a purposive, reciprocal, ongoing enterprise — "subjecting human conduct to the governance of rules" — and the enterprise carries its own moral requirements: generality, publicity, prospectivity, clarity, consistency, possibility, constancy, congruence. A system that wholly fails them does not make law at all "except in the Pickwickian sense." This is a **procedural** natural law: not "unjust law is not law" in the substantive sense (Fuller concedes a law may be internal-morally perfect and substantively unjust), but "lawless law is not law."

Historical (Savigny)

Law's source is national. "The nature of any particular system of law... was a reflection of the spirit of the people" — the *Volksgeist* (Puchta's name). Law grows "with the growth, and strengthens with the strength of the people, and finally dies away as the nation loses its nationality." Hence custom is not only prior to but *superior* to legislation; codification is at best an end-point, not an instrument; and the jurist's task is historical understanding, not rational reconstruction.

Sociological (Pound)

Law's function is engineering. The aim is "to build as efficient a structure of society as possible" — "the satisfaction of the maximum of wants with the minimum of friction and waste." Law must recognise interests (individual, public, social), define the limits of their recognition, and secure them within those limits; the jurist's and judge's task is to classify, balance and value. Hence law must be studied (and made) with social facts in view — the eight-point programme.

01.3 The casebook's own linking sentence (use it in answers)

"In place of the moral authority, which the natural lawyers of the preceding age had sought to posit behind law, **the Historical School substituted social pressure, which provided the bridge between the work of the Historical School and that of the Sociological School**." (Dias, Savigny chapter.) Read it as the unit's spine: natural law put *morality* behind law → the historical school put *the people's spirit* (a kind of social fact) → the sociological school put *social interests and social pressure* at the centre. The three are a movement from the cosmic, through the national, to the social.

Question	Fuller answers	Savigny answers	Pound answers
What is law?	A purposive, reciprocal, ongoing enterprise for subjecting conduct to rules	The manifestation of the national spirit in rules of conduct	An instrument of social control — social engineering
Where does law come from?	From the moral attitudes of the community (external morality) and from the requirements of the enterprise itself (internal morality)	From the Volksgeist — unconscious growth; jurists give it technical expression	From the de facto claims of men, about which law "must do something"
What makes law law?	Compliance with the eight principles — or it fails "in the Pickwickian sense"	Conformity with popular consciousness; custom is the measure	The securing of interests within defined limits — the pragmatic test
Legislation's place	An episode of the enterprise, judged by the inner morality	Subordinate to custom; premature codification is harmful	To be preceded by social investigation; judged by social effects
Against positivism because…	It treats law as a one-way projection of authority — missing reciprocity and purpose	It treats law as willed — missing the nation and its history	It treats law as a logico-deductive system — missing social facts and interests

01.4 The vocabulary of the three, in one table (learn to translate)

Term	Fuller	Savigny	Pound
Morality / spirit / interest	Internal and external morality; the inner morality of law = the eight virtues	Volksgeist — the common consciousness of the people	Interests — claims or wants or desires asserted de facto
The standard	Fidelity to law; the pointer between duty and aspiration	The national spirit; customs as its manifestation	Ideals — the yardsticks with reference to which interests are measured
Failure	To fail to make law (the eight ways)	Reform against the stream of a nation's continuity — "doomed"	Friction and waste; inefficient structure of society
Method	Allegory (Rex), analogy (the wrecked car), conceptual analysis	Historical research — "the indispensable means to the understanding and reform of the present"	Factual study of the social effects of legal administration
Examples that stick	The poisoner; managerial direction; the one-child policy; regime A v. regime B	The reception of Roman law; the Code Napoleon; the BGB 1900; Status→Contract	The bridge; the slave-owner's right; Scientology; patents that suppress inventions

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PART 02

(a) Natural Law School — Lon L. Fuller and the Hart–Fuller Debate

02.1 The battle-line — Hart's positivism and the two American challengers

Ratnapala opens with the state of play: "Jurisprudence was enlivened in the second half of the 20th century by new debates about law and morality. Two of these involved **Herbert Hart**, the major figure in British legal positivism." Hart's position — the one Fuller attacked: **the connection between law and morality is "not necessary but contingent."**

- Law "often gives effect to morality, as it prohibits crimes and torts and demands the performance of contracts." But **"a law, however immoral, will be law if it is recognized as law according to the established rules of recognition."**
- The sensible response to such laws: "not to deny that they are law but to correct their effects by other laws passed where necessary with retrospective effect."

The challengers: "Two American professors of law questioned this general theory and argued that law cannot be separated from morality in the sense proposed by Hart and his positivist predecessors. The first was **Lon Fuller**, whose theory was inspired by the German legal philosopher **Gustav Radbruch**. The second was **Ronald Dworkin**, who was a student of Fuller at Harvard Law School." Their arguments "are related in some ways to the classical ideas of natural law... but they also introduced new dimensions." Ratnapala's own conclusion: "Fuller and Dworkin approached the question from different directions, but I conclude that their theories are fundamentally similar." **(grey: Dworkin's own theory is outside these excerpts — note the reference, don't expand.)**

Fuller's identity: "Lon Louvois Fuller (1902–78) is best known for the debate with Hart on the connection between law and morality. **Fuller was not a natural law theorist in the traditional sense, but in some respects his theory is more far reaching.**" His theory "is best understood against the background of the post-war debate about the legality of crimes against humanity committed under positive law."

02.2 The historical roots — Nuremberg, the Nazi state, and the question Fuller asked

The tribunals. After the Second World War the Allied powers (US, UK, France, USSR) established international military tribunals at **Nuremberg** (Germany) and **Tokyo** (Japan) "to bring to justice officials of Nazi Germany and Imperial Japan accused of war crimes and crimes against humanity."

The common defence. "The accused persons... were acting under lawful orders and hence their actions were lawful. Any retrospective punishment of these acts, they argued, would contravene the basic rule of justice that a person should only be punished for crimes against the law (***nullum crimen, nulla poena sine lege***)." The debate "was precipitated by the conviction of Nazi officials by the Nuremberg Tribunal."

How the Nazis came (and what they did). The Nazi Party came to power "through democratic elections under Germany's Weimar Constitution" — which "had certain fatal defects, including the president's power to suspend civil liberties in case of emergencies and the legislature's power to amend the constitution by two thirds majority. These defects allowed the Nazi Party to transform the Constitution from within." At the height of Hitler's powers the system displayed:

The seven features (from the Nuremberg judgments)

1. Frequent **retroactive laws** punishing the guiltless or excusing atrocities;
2. Enforcement of **secret (unpublished) laws** that denied citizens the guidance of the law;
3. **Uncontrolled discretions** that identified the law with the momentary wishes of officials;
4. A verbal order by Hitler regarded as sufficient authority to exterminate thousands;
5. Frequent lawlessness — extra-judicial punishment by the state through "the Party in the streets" (party thuggery);
6. Unification of legislative, executive and judicial power in Hitler (the **Fuehrer principle**);
7. Total intimidation of courts — "Judges were required to decide cases as the Fuehrer would."

The question

"The question that Fuller raised was whether in such conditions there can be a legal system capable of producing laws in a meaningful sense." Note the shape of it — not "were the Nazi laws immoral?" but "were they *laws at all*?" Fuller's answer would be that the system had so far departed from the morality of order that it had ceased to make law "except in the Pickwickian sense."

The reading's footnote: these facts are taken from the Nuremberg judgments, particularly *USA v. Altstötter* (The Justices Case) 3 TWC 1 (1948); 6 LRTWC 1 (1948); 14 Ann Dig 278 (1948); and from Fuller's 1958 Harvard Law Review essay, 648–57.

02.3 The Radbruch doctrine — and its pre-history

Radbruch (1878–1949): professor at Heidelberg; leading German legal philosopher before the war; Social Democrat; Reichstag member; German Minister of Justice 1921–24; returned to Heidelberg 1926; removed by the Nazis 1933; resumed after the war, where he proposed the "Radbruch doctrine."

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Pre-war position (Rechtsphilosophie 1932)

He sought "to combine elements of German legal positivism with natural law thinking, but the finished theory placed him closer to the positivists." The idea of law has three aspects, of **equal value**: (1) **expediency** — the various purposes of human co-existence; (2) **justice**; (3) **legal certainty**. "The legal certainty that positive law affords may justify even the validity of unjust or inexpedient law" — but certainty "has no absolute precedence over the demands of justice and expedience." Conflicts are left "to the resolution of individual conscience" — conscience "will usually choose legal certainty... 'but there may be "shameful laws" which conscience refuses to obey.'" And the famous line: for a person who disobeys an unjust law on conscience, "the law may prove its power but can never demonstrate its validity." **Meaning:** power ≠ validity; validity of an unjust law is "a matter of subjective judgment according to one's conscience"; officials may "in good conscience enforce even the most unjust laws."

Post-war revision ("Statutory Lawlessness and Supra-Statutory Law," 1946)

The horror of the Nazi reign of terror led to "much soul searching by German legal positivists." Using the **grudge informer** cases — persons who betrayed critics of the Nazi regime "with knowledge that the betrayed persons faced certain execution," whose defence was that they violated no law — Radbruch argued "that post-war German courts were right to convict the informers in disregard of the Nazi law." He could not do this without revising his pre-war theory, and reformulated it:

THE DOCTRINE (learn it verbatim): "The conflict between justice and legal certainty may well be resolved in this way: **The positive law, secured by legislation and power, takes precedence even when its content is unjust and fails to benefit the people, unless the conflict between statute and justice reaches such an intolerable degree that the statute, as 'flawed law,' must yield to justice.**... One line of distinction... can be drawn with utmost clarity: **Where there is not even an attempt at justice, where equality, the core of justice, is deliberately betrayed in the issuance of positive law, then the statute is not merely 'flawed law,' it lacks completely the very nature of law. For law, including positive law, cannot be otherwise defined than as a system and an institution whose very meaning is to serve justice.** Measured by this standard, whole portions of National Socialist law never attained the dignity of valid law."

Assessment (Ratnapala's): "Radbruch thus proposed a moral test that applies to all positive laws. **His test is not a high hurdle to clear.** It does not invalidate every unjust law, for what is unjust is a matter of legitimate debate. **It nullifies only laws whose injustice is beyond rational doubt.**" It "proved influential in many post-war trials in German courts and in the Nuremberg trials."

02.4 Hart's criticism (1958) — "Positivism and the Separation of Law and Morals"

In 1958 the *Harvard Law Review* carried the two opposing articles. **Hart's two criticisms of the Radbruch doctrine:**

1. **Confusion of legal and moral duty.** "Radbruch had confused the distinction between legal duty and moral duty. According to Hart, one may be under a legal duty to obey an inhumane law but have an overriding moral duty to disobey it. (This was, in substance, Radbruch's pre-war position.) The grudge informers and Nazi officials should not have been punished, because they acted in breach of morality and not law."
2. **The doctrine does more harm than good.** Hart accused Radbruch of "extraordinary naiveté" and of having "only half-digested the spiritual message of liberalism."

The wife-catcher case (Hart's example). A woman was convicted by the post-war West German court of appeal for illegally depriving her husband of his freedom. She wanted to be rid of him and reported him for criticising the Reich, "knowing that he would be sentenced to death. He was sentenced but sent to the battlefront, where he survived against great odds." Her defence: she did no wrong under the law. Hart's point: "in convicting her, the post-war German court violated a different cherished value — the **fidelity to law**."

The two choices. From the positivist standpoint there were two choices: "to let her go free or punish her under a new retrospective statute." The latter "would have made plain that in punishing the woman **a choice had to be made between two evils**, that of leaving her unpunished and that of sacrificing a very precious principle of morality endorsed by most legal systems."

The clarity argument. "What difference does it make if the woman is punished by the court under the Radbruch doctrine or by the legislature under retrospective law?... the latter course has the value of **clarity**. Everyone can understand the idea that 'laws may be law but too immoral to obey,' whereas the contrary opinion that immoral law is not law is not widely held and 'raises a whole host of philosophical issues before it can be accepted.'" Ratnapala's verdict: "This is a utilitarian argument. Why engage in difficult debates when a simple solution is at hand?"

02.5 Ratnapala's four answers to Hart (the casebook's own counter-attack — use it)

1. **Radbruch was narrower than Hart supposed.** "Radbruch was not saying that all immoral laws are invalid, but only those of the most inhumane kind." Hart's confidence that the public will regard even the most heinous statutes as law "may be misplaced" — lawyers know the disbelief of clients told that a statute bars their claim: "**'How can this be law?'** they ask, and they are not referring to genocidal laws but to laws such as those taking property without compensation." Hart's claim is "untested." And: "the Radbruch doctrine is now implemented in substance by the **Rome Statute of the International Criminal Court**."
2. **The retrospective-statute choice is available only when the evil regime is ousted.** "The Allied powers and the West German state had this choice because the Nazi regime was defeated... If the odious regime continues in power, its inhumane laws will remain in

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force nationally. What happens when a foreign court is asked to apply these laws?" — ***Oppenheimer v. Cattermole*** [1976] AC 249: the House of Lords considered the 1941 Nazi decree taking away the citizenship of Jews who left Germany and confiscating their property. **Lord Cross of Chelsea:** "To my mind a law of this sort constitutes so grave an infringement of human rights that **the courts of this country ought to refuse to recognise it as a law at all**" (at 278). **Lord Salmon:** no authority compels recognition; "the barbarity of much of the Nazi legislation... is happily unique... **on the grounds of public policy they should refuse to do so**" (at 281–2). Ratnapala: "from time to time a court is confronted with a statute whose injustice cannot, in a practical sense, be rectified by retrospective statute."

3. **Utilitarianism cuts both ways.** "The utilitarian reasoning that Hart adopted is no more conclusive than the natural law reasoning he rejected. There is reason to think that officials may be less willing to enforce evil law if they know that in the event of a regime change a court will not entertain the defence of lawful orders. The Radbruch doctrine, by utilitarian calculation, may do more good than harm."
4. **Hart's argument conflicts with his own concept of law.** In *The Concept of Law* Hart criticised the command theory for misunderstanding the idea of a rule. "A rule of law has an external and an internal aspect. The external aspect is objective and factual (Parliament has enacted the law). The internal aspect is mental and subjective (I ought to obey the Act of Parliament for reasons A, B and C). It is the internal aspect that distinguishes a law from the demand of a gunman... In Hart's own words, **'Law surely is not the gunman situation writ large, and legal order is surely not to be thus simply identified with compulsion'** (1958, 603). **This was precisely Radbruch's argument.**"

02.6 Fuller's response (1958) — "Positivism and Fidelity to Law"

Radbruch had died in 1949; "Harvard professor Lon Fuller... developed Radbruch's central ideas into a theory of the morality of law." Hart's proposal — invalidate the inhumane laws by *retrospective statutes* (rather than judicial annulment) — "does not advance the value of fidelity to the law. **Whether the laws are set aside by court or legislature, the effect is the same — what was once law is declared not to have been law.** The only question then is 'who should do the dirty work, the courts or the legislature'" (Fuller 1958, 649).

Fuller defended the post-war decisions: the German legal system under Nazi rule "had degenerated to the point that it ceased to make law **'except in the Pickwickian sense in which a void contract can be said to be one kind of contract'**" (Fuller 1969, 39). And the famous declaration: "**'To me there is nothing shocking in saying that a dictatorship which clothes itself with a tinsel of legal form can so far depart from the morality of order, from the inner morality of law itself, that it ceases to be a legal system'**" (Fuller 1958, 660).

The thesis, summarised (Ratnapala's eight bullets — deploy them):

1. Law's authority cannot be based on law, **but on the moral attitudes of the community**.
2. Law is an **ongoing purposive enterprise**. We cannot fully understand the nature of law without considering its purpose.
3. The purpose of law is to allow individuals to **communicate and coordinate** with each other.
4. The purpose of law requires **reciprocity between the ruler and the citizens**. "Law is not a one-way projection of authority but a system of cooperation."
5. Law's purpose cannot be achieved unless it displays certain qualities — **the internal morality of the law**.
6. A legal system that wholly lacks one or more of these qualities **fails to make law**, except in the Pickwickian sense.
7. The internal morality involves both **morality of duty and morality of aspiration** (basic rules of social possibility; aspiration beyond them).
8. The external and internal moralities have **reciprocal influence** — "The decline of one leads inevitably to the decline of the other."

02.7 External and internal morality of law

External morality — the content

"It is a ridiculous tautology to say: The law is valid because the law says it is. **Law's authority must ultimately rest on the moral attitudes of the people. The law earns fidelity by the general moral quality of its rules.**" This is the **external** morality: "the substantive content of legal rules. If this content is pervasively unjust the legal system will fail to command the respect of the community and must maintain itself by force. This is common sense." **Hart agreed** — in *The Concept of Law* he argued that "a legal system must have a **minimum content of natural law** to be effective" (1997, 193–200).

Internal morality — the form

"Fuller argued that law also has an **internal morality** that arises from its very nature as a purposive human activity. **The internal morality is not principally about the content of the law but concerns the qualities that enactments must possess to become law at all.**" Fuller's project: begun in the 1958 reply, "continued in his Storrs Lectures at the Yale Law School and was completed in the two editions of his book *The Morality of Law*." (1964; revised 1969.)

02.8 Law is purposive, reciprocal and an ongoing enterprise

Purposive. "He began with the insight that law cannot be understood without considering its purpose. If we describe to a child the various parts of a computer without explaining what it does or what purposes it serves, we give them a very limited idea of what a computer is. Similarly, if we describe the law, say to a Martian, only by its formal features (that it is made by parliament, is applied by courts, etc) without saying what purpose the law serves, we give an incomplete account of it." Not the specific purposes of particular laws (revenue, social security, narcotics) "but the purpose of having law at all. **The abstract purpose of law is to make it possible for individuals to communicate, to coordinate and to reach understanding with each other** (Fuller 1969, 185–6). Law does this by **subjecting human beings to the governance of rules** (1969, 106)."

Reciprocal. "The law cannot be conceived as whatever the ruler wills if its purpose is to facilitate human coordination." Positivists wrongly conceive law "not as the product of an interplay of purposive orientations between the citizen and the government but as **a one-way projection of authority, originating with government and imposing itself upon the citizen**" (1969, 204). Common knowledge: laws of democratic legislatures "do not always advance human coordination, and often impede it. Yet history shows that legal systems that consistently fail to serve law's human purpose degenerate into dictatorial command systems."

Ongoing. "Law by nature is an ongoing enterprise... an aspirational activity, in the sense that it aspires to an ideal of the law that can never be fully achieved." The **motor car analogy**: a Rolls Royce near the ideal; at the other end "a shell of what was once a car"; "it would be silly to call this a car"; between them "cars in various conditions of excellence and dilapidation"; "at some lower point on this spectrum it is no longer sensible to call the object a motor car... **if the motor car is beyond repair and ceases to serve its purpose, most rational persons will agree that it is no longer a motor car, except in the special sense that a wrecked car is a kind of car**." Same with legal systems: "they achieve law to varying degrees, from excellence to abomination. At some point it is no longer sensible to call a law a law, for it fails law's purpose, which is facilitating social life. **The question at this point is not whether the law is good or bad but whether there is a law at all.** If the law, for example, is not publicised or requires the impossible, it cannot do its job — that of guiding people's conduct. Even a well-meant law can fail for these reasons." Just as a car needs maintenance, "the legal system needs constant attention to what makes law possible."

02.9 King Rex and the "eight ways to fail to make law"

The allegory. Assume a country ruled by King Rex, with unlimited law-making power — "utterly selfish, uncaring and incompetent." He issues no rules, only commands punishing the disobedient and rewarding the obedient — but "because of his incompetence he makes no attempt to find out who has been obedient and who has been disobedient. **Consequently, he frequently punishes obedience and rewards disobedience**... He fails to produce law." At other times his commands "are so confused, ambiguous and inaudible that his subjects do not know what Rex wants them to do or not do. Sometimes he commands today that something must have been done yesterday. Again, he fails to make law capable of guiding conduct." Fuller used the analogy "to demonstrate how the Nazi regime debased and destroyed the legal system through ad hoc commands, retroactive laws, ad hominem laws, secret enactments, punishment without trial, indemnities for state condoned crimes, official disregard for the law and the practice of thuggery."

#	The eight ways to FAIL	The eight virtues (inner morality)
1	Failure to achieve rules at all — every command ad hoc, lacking generality: no guidance	**Generality**
2	Failure to publicize the rules people are expected to observe	**Publicity**
3	Abuse of retroactive laws — they fail to guide conduct and "undercut the integrity of prospective rules"	**Prospectivity**
4	Failure to make rules comprehensible	**Clarity**
5	Enactment of contradictory rules	**Consistency**
6	Rules requiring conduct beyond the powers of the affected persons	**Possibility of compliance**
7	Frequently changing the rules so subjects cannot orient their actions by them	**Constancy**
8	Lack of congruence between announced rules and their actual administration	**Faithful administration** (congruence)

> ***The claim:*** *"the total failure in any one of these eight directions does not simply result in a bad system of law;* ***it results in something that is not properly called a legal system at all*** *except in the Pickwickian sense." And the passage to quote: "Certainly there can be no rational ground for asserting that a man can have a moral obligation to obey a legal rule that does not exist, or is kept secret from him, or that came into existence only after he has acted, or was unintelligible, or was contradicted by another rule of the same system, commanded the impossible, or changed every minute. It may not be impossible for a man to obey a rule that is disregarded by those charged with its administration, but at some point, obedience becomes futile —* ***as futile, in fact, as casting a vote that will never be counted"*** *(1969, 39).*

02.10 The internal morality is a morality of duty and of aspiration

- Fuller (following **Kant, Adam Smith** and others) distinguished the two moralities. "If we imagine a **vertical moral scale**, the lower half will occupy the morality of duty and the upper half the morality of aspiration."
- **Morality of duty:** "the fundamental and essential moral duties... mainly of forbearances or negative injunctions — 'Do not murder,' 'Do not steal,' 'Do not break your contracts.'"
- **Morality of aspiration:** "the morality of striving towards the highest achievements open to human beings."
- **The pointer:** "Somewhere along this scale there is an invisible pointer where the pressure of duty leaves off and the challenge of excellence begins" — "a fluctuating pointer, hard to locate but vitally important." Social attitudes to reward and punishment indicate where it rests.
- **Asymmetry of praise and blame:** a person "is usually condemned for violating morality of duty but not praised for observing it" (theft: condemned; not stealing: no praise). "In contrast, a person is usually praised for displaying morality of aspiration but not condemned for the lack of it" — the cat in the raging torrents: praised for the rescue, not condemned for thinking better of it.
- **The legal system measured on the scale:** a system failing to provide "a basic framework of rules that enables peaceful social life fails the morality of duty." **No legal system in history has fully met the external and internal moralities — none ever will.** Ratnapala's Australian illustration: arbitrary discretions; retrospective tax and property-taking laws; laws "so complex that ordinary citizens... have no idea what they are"; obscure rules, regulations and precedents "undiscovered even by the best judges and lawyers"; unresolved contradictions — "yet most rational observers will place the Australian legal system at the upper end of Fuller's moral scale... **because the constitutional features of the system make it open to self-correction**." The Nazi system "fell far below the pointer."
- **The overall position:** "law may fail by some standard of aspirational morality but will still be law. **A law that fails the morality of duty is not law at all except in the Pickwickian sense.**"

02.11 Hart's rejoinder (1965) — and Fuller's two counters

Hart's 1965 review of The Morality of Law

A major part "criticised Fuller's misunderstandings of positivist positions and identified technical deficiencies." One criticism "went to the heart": Hart had earlier noted that the inner morality of law is "**compatible with very great iniquity**" (1961, 202) — a legislature may comply with all its requirements and still produce unjust law; hence the requirements "are **ethically neutral**. They can be put to good or bad use." In the review: the eight requirements "are not principles of morality but **principles of good legal craftsmanship**"; Fuller was "confusing morality with **efficiency**" (1965, 1286).

The poisoner (Hart's reductio)

"Fuller's logic would mean that principles of efficacy in any purposive activity would represent the inner morality of that activity... even despicable activities have an internal morality." The poisoner: "Common sense tells the poisoner to choose a poison that is hard to detect and administer the poison without being observed. **'But to call the principles of the poisoner's art "the morality of poisoning" would simply blur the distinction between the notion of efficiency for a purpose and those final judgments about activities and purposes with which morality in its various forms is concerned'** (1965, 1286)." Ratnapala: "This is a grotesque misreading of Fuller's theory."

Fuller's counter 1 — knowledge is a precondition of moral judgment. The demand that rules be known, general and observed "seems at first sight ethically neutral, but Fuller argued that **without these qualities one cannot judge the morality of the law at all because one only sees patternless ad hoc commands**." An unlimited power "expressing itself solely in unpredictable and patternless interventions could be said to be unjust only in the sense that it does not act by a known rule. It is hard to call it unjust in any more specific sense until one has discovered what hidden principle, if any, guided its interventions" (1969, 157–8). And generality "also has ethical merit in mitigating discriminatory laws, such as those used in apartheid and segregation" (1969, 160).

Fuller's counter 2 — responsible agency. "Fuller's most important argument was that internal morality arises from a particular view of human beings as responsible agents. **Every departure from the principles of inner morality... is an affront to people's dignity as responsible agents.** To judge a person's actions by unpublished or retroactive law, or to order a person to do an act that is impossible, is to convey to them your indifference to their powers of self-determination" (1969, 162).

Fuller's counter 3 — managerial direction v. law (the revised edition's answer). Five of the principles apply to management: managers announce directions clearly, without contradictions, avoid the impossible, don't change instructions frequently. **But generality, prospectivity and congruence have a special place in law that they do not have in management.** "Generality of directions is only a matter of convenience in management" — subordinates cannot complain if the manager departs from general orders. "As for the principle of prospectivity, Fuller stated that the issue does not arise: no manager with a semblance of sanity would direct a subordinate today to do something yesterday" (1969, 208–9). **The upshot:** "the inapplicability of these three requirements brings out the essential difference between managerial direction and law. Management represents a one-way projection of authority, and hence only requires principles of efficiency. On the contrary, **a relatively stable reciprocity of expectations between the lawgiver and the subject is part of the very idea of a functioning legal order**. Law, unlike management, is not simply about directing persons to perform tasks set by a superior but is a matter of providing citizens with a sound and stable framework for their interactions with one another, **the role of government being that of a guardian of the**

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> **integrity of this framework**." And the diagnosis: "his positivist critics confused his principles of inner morality with requirements of efficacy because they regarded law essentially as a one-way projection of authority."

02.12 The connection of internal and external moralities — and the two regimes

- **Clear concession:** "Fuller conceded that a law that complies with internal morality may yet be unjust." The **People's Republic of China's one-child policy**: "general, prospective, promulgated clearly, and so forth. Yet it has been widely condemned as unjust. **Inner morality is logically consistent with external injustice.** This does not mean that the inner morality is not true morality."
- **The two regimes:** "Regime A operates by clearly declared prospective and general rules that are consistently and scrupulously enforced, while regime B operates through ad hoc commands, retrospective laws, secret laws and extra-judicial punishment without charges or trial. Is there any moral difference between the regimes? Clearly there is. **Regime A provides a degree of order that allows citizens to avoid official retribution and go about their lives even within the confines of harsh laws. In regime B nothing is certain and people are in constant jeopardy.**"
- **Symbiosis:** "History also demonstrates repeatedly that the internal and external moralities of law are symbiotic. One does not live long without the other. **This is why the internal morality of law, under its other name, 'the rule of law,' is widely regarded as a moral imperative.**"

THE FULLER FLOW → | law's purpose: subjecting conduct to rules → coordination →
requires reciprocity, not one-way authority → | requires the eight virtues (inner morality) →
total failure = no law, only "the Pickwickian sense" →
duty/aspiration scale; internal+external symbiotic; "the rule of law" as moral imperative

PART 03

(b) The Historical School — Savigny

03.1 What the "historical outlook" comprises

"It comprises, on the one hand, inquiries into the past and evolution generally with the object of elucidating the position today. The question to be answered is to what extent the 'oughts' of contemporary laws have been fashioned by the past... On the other hand, there are inquiries into the past, especially into primitive and undeveloped communities, which are conducted for their own sake in order to discover what 'law' might appropriately be taken to mean in them. Such inquiries are distinguishable as the **Anthropological approach** and will be touched on at the end of the chapter."

Origin: "The Historical School arose more or less contemporaneously with Analytical positivism at the beginning of the nineteenth century, and should be regarded as **another manifestation of the reaction against natural law theories**. It did not emerge as something novel... it had been germinating long before then."

03.2 The prelude — Roman law, the Glossators, and the loss of historical sense

ROMAN LAW DECAYS after the Empire's dissolution →

11th CENTURY REVIVAL — Bologna; explanatory glosses and commentaries (the GLOSSATORS): they accepted Justinian's boast that conflicts had been eliminated from his codification and devoted their ingenuity to reconciling "the many conflicts that did undoubtedly exist"; they "endeavoured to fit the problems of their feudal society into Roman terminology" — paving the way for reception →

GLOSSA ORDINARIA of ACCURSIUS (early 12th c.): superseded all previous glosses; accepted as "the final resolution of the conflicting opinions of individual Glossators" →

POST-GLOSSATORS / COMMENTATORS: related Roman law to contemporary problems — but used the Glossa, not the originals; so when Roman law was received in the 15th–16th centuries it was "a diluted version adapted from the Glossa" →

CUJAS (Renaissance, French): resorted to the Roman originals "underneath the accumulated silt of commentary and gloss"; the first to see the Corpus Juris "in historical perspective" — but his work "was confined to the academic sphere" (the living law could not be self-contradictory), creating "a gulf between the academic jurist and the practitioner"

The historical-sense point: people regarded the Corpus Juris "more or less as a simultaneous product" though "more than one hundred years spanned the jurists of the Classical period, whose writings comprise the Digest, while between them and Justinian

another three centuries elapsed." The lack of historical sense "led to elaborate and fanciful explanations of differences which were easily explicable on historical grounds."

03.3 The spark — Thibaut's 1814 proposal and Savigny's reply

Germany's position at the century's start: Roman law functioned as the common law, subject to canon law, imperial enactments and customary law "so far as this was still extant"; Roman law was assumed accepted as a whole "in the form of Justinian's codification as found in the works of the Glossators and Commentators"; methods of applying the law differed little from the Italian courts of the Glossators' time; "the panorama of the law as a whole was confusing, for local variations were innumerable."

> **Thibaut (of Heidelberg), 1814**
> Proposed a **code on the lines of the Code Napoleon**. (Reading's footnote: for the events of 1814 see Stammler, "Fundamental Tendencies in Modern Jurisprudence" (1923) 21 Mich L.R. 623.)

> **Savigny (1779–1861) — On the Vocation of our Age for Legislation and Jurisprudence**
> Immediately answered Thibaut. "with which, in the words of Ihering, **a new jurisprudence was born**. So powerful was his influence that the move towards codification was effectively halted and it was not until **1900**, after many years of sustained agitation, that Germany ultimately acquired her code, the **Bürgerliches Gesetzbuch**."

Five further factors combined to prepare the way: (1) the reaction against "the unhistorical assumptions of the natural law theorists... as these were exposed as hollow and false, so the need was felt for a realistic investigation into historical truths"; (2) the attempt to found legal systems on reason "without reference to past or existing circumstances had proved to be revolutionary, culminating in the French Revolution, with all its brutalities" — a reaction set in against rationalism; this weighed heavily with Savigny, "a conservative nobleman, who acquired a deep and lasting hatred for the revolution"; (3) the French conquests under Napoleon aroused European nationalism; (4) the French spread the idea of codified law, and the reaction against anything French carried hostility to codification; (5) the pioneers — **Montesquieu** (law shaped by social, geographical and historical considerations) and **Burke** (tradition as "a guide to social change"). "These factors, boosted by the genius of Savigny, started European thought along a new road."

03.4 Savigny the scholar — and his mission

- Born Frankfurt 1779; nurtured in the natural law discipline; historical interest kindled at **Marburg** and **Göttingen**, encouraged by **Niebuhr** at Berlin; "a lasting veneration for Roman law."
- **1803 — *Das Recht des Besitzes* (The Law of Possession):** traced how the original Roman doctrines of possession had developed into the doctrines prevailing in contemporary Europe.
- ***The History of Roman Law in the Middle Ages*** (6 volumes, 1815–31): analysed the Roman element to its roots; thesis — Roman law had been received into Germany so long ago that "her legal soul had become a mixture of Roman and local laws."
- ***The System of Modern Roman Law***: analysed Roman and local laws. Together, "an imperishable monument to his learning and industry." He was also Prussian Minister of Legislation.
- **The mission** (not opposed to reform): to preach "the warning that **reforms, which went against the stream of a nation's continuity, were doomed**." A muddled, outmoded legal system "was usually due to a failure to comprehend its history and evolution." The prerequisite to reforming German law: "a deep knowledge of its history. Historical research was therefore **the indispensable means to the understanding and reform of the present**" — and he said: "The existing matter will be injurious to us so long as we ignorantly submit to it; but beneficial if we oppose to it a vivid creative energy — obtain the mastery over it by a thorough grounding in history and thus appropriate to ourselves the whole intellectual wealth of preceding generations." "His warning, then, was that legislators should look before they leap into reform, but he spoilt this advice by over-generalisation."

03.5 The core thesis — the Volksgeist

> "The core of Savigny's thesis is to be found in his essay *On the Vocation*. **The nature of any particular system of law, he said, was a reflection of the spirit of the people, who evolved it.** This was later characterised as the **Volksgeist** by **Puchta**, Savigny's most devoted disciple. **All law, according to him, is the manifestation of this common consciousness.**" He wrote (Puchta, *Outlines of the Science of Jurisprudence*, trans. Hastie): "**Law grows with the growth, and strengthens with the strength of the people, and finally dies away as the nation loses its nationality.**"

- **The nation:** "only a community of people linked together by historical, geographical and cultural ties." Some boundaries clearly defined, others not — "reflected in the unity or variety of their respective laws." Even where unity is clear there may lie within it "**inner circles**" of variations — cities and guilds.
- **Where the Geist shows:** "it is the broad principles of the system that are to be found in the spirit of the people and which become manifest in **customary rules**."
- **Unconscious growth:** "law is a matter of unconscious growth. Any law-making should therefore follow the course of historical development. **Custom not only precedes legislation, but is superior to it, and legislation should always conform to the popular consciousness.**"
- **Not universal:** "Law is thus not of universal application; it varies with peoples and ages."

- **The standard:** "The Volksgeist cannot be criticised for being what it is. It is the standard by which laws, which are the conscious product of the will as distinct from popular conviction, are to be judged. An individual jurist may misapprehend the popular conviction, but that is another matter."
- **The bridge sentence:** "In place of the moral authority, which the natural lawyers of the preceding age had sought to posit behind law, **the Historical School substituted social pressure, which provided the bridge between the work of the Historical School and that of the Sociological School.**"
- **Method:** the view of law "dovetailed with Savigny's historical method of work, for if law is a reflection of people's spirit, then it can only be understood by tracing their history." But "in his revolt against the lack of historical sense, which characterised natural law theory, he swung the pendulum of legal thought too much the other way."

03.6 Lawyers as the representatives of the Geist — and Allen's objection

"The Volksgeist, according to Savigny, only formulates the **rudimentary principles** of a legal system. He saw clearly enough that it could not provide all the detail that is necessary. He accordingly maintained that as society, and consequently law, becomes more complex, **a special body of persons is called into being whose business is to give technical, detailed expression to the Volksgeist**... These are the **lawyers**, whose task is to reflect accurately the prevailing Geist."

Dias's verdict on this move: "This is nothing but a **fictitious assumption**, in no way related to reality, to cover up an obvious weakness in his principal contention. As **Sir Carleton Allen** said, it is not possible to pretend that **the rule in Shelley's case**, for instance, is rooted in the instincts of the British." And a worse implication: "The only persons who talked of the Volksgeist were **academic jurists**, unversed in the practical problems of legal administration. Therefore, **the Volksgeist resolved itself into what these theorists imagined it to be**."

The limited sense in which it is acceptable: the Geist manifests "if at all, only in a few branches of the law and, even in these, by way of modifying and adapting any innovations." So the proposition may be taken to mean "simply that in these spheres of the law it would be helpful if legislators took account of tradition when framing new laws."

03.7 Legislation subordinate to custom — the five grounds against immediate codification

"Consistently with this theory, Savigny further maintained that **legislation was subordinate to custom**. It should at all times conform to the Volksgeist." He did not oppose legislation or codification "at some appropriate time in the future," but his attitude "was generally one of pessimism." The five grounds:

#	Ground	Dias's answer
1	**Defects of contemporary codes:** they "preserved adventitious, subsidiary and often unsuitable rules of Roman law, even while they rejected its main principles."	—
2	**Where no Volksgeist exists** on a matter, a code "might introduce new and unadaptable provisions and so add to the prevailing difficulties."	"Such an argument would appear to have been disposed of by the subsequent experience of many countries."
3	**Exhaustiveness is impossible:** codification "could never cater exhaustively for all problems that are likely to arise in the future and hence was not a suitable instrument for the development of law."	—
4	**The dilemma of the imperfect code:** an imperfect code "would create the worst possible difficulties by perpetuating the follies underlying it... when lawyers were in a position to create a perfect code, no code would then be necessary since the lawyers could adequately cope."	"The short answer... is that they leave out of account the possibility of **amendment and alteration**."
5	**Evasion:** codification would "highlight the loopholes and weaknesses of the law and so encourage evasion."	Same short answer.

> ***The positive prescription:*** *codification "should be preceded by* ***'an organic, progressive, scientific study of the laws'****, by which he meant of course historical study. Reform should await the results of the historians' work." It is true reformers should heed the past and present — but "Savigny was over-cautious," for as Allen observed, his doctrines had the unfortunate tendency* ***"to hang traditions like fetters upon the hands of reformative enterprises."*** *"So little in fact did the historians contribute in the years that followed that drastic legislative action became imperative; which it did in 1900."*

Verdict: "Savigny's work, on the whole, was **a salutary corrective to the methods of the natural lawyers**. He did grasp a valuable truth about the nature of law, but **ruined it by overemphasis**."

03.8 The eleven objections to the Volksgeist (Dias's numbered list — learn the shape and three examples)

1. **No single spirit exists.** There is a stream of continuity and tradition, "the difficulty lies in fixing it with precision"; "even in a small group (a fortiori in a nation) people hold different views on different issues. **'The' spirit does not exist.**" The thesis is "the juristic contribution to **Romanticism**" — his historical sense deserted him; it amounts "to the adoption of an a priori preconception" (as with his *Possession*: "to draw an inference from limited data, and then to use it as an a priori talisman").

2. **The reception of Roman law contradicts it.** Transplanting Roman law "in the alien climate of Europe nearly a thousand years later... postulates, if anything, some quality in law other than popular consciousness." And the modern record: the **German Civil Code** adopted in Japan, the **Swiss Code** in Turkey, the **French Code** in Egypt — "without any apparent violence to popular susceptibilities"; the French Code displaced Roman-Dutch law in Holland and the Dutch never went back; Roman-Dutch law "flourishes today in two such dissimilar national climates as southern Africa and Sri Lanka" though dead in its homeland; the world-wide reception of English law is "evidence of supra-national adaptability and resilience."
3. **It minimises individual genius.** "Every man is a product of his time, but occasionally there are men who by their genius are able to give legal development new directions" — the Classical Roman jurists, Littleton, Coke; modern policy-makers. **Ehrlich**: "customs are norms of conduct, juristic laws are norms for decision. They are always the creation of jurists."
4. **Its influence is limited in scope and function.** National character shows "in family law rather than in commercial or criminal law" — the general reception of Roman law "did not include Roman family law"; alien systems introduced into India and Turkey "affected the indigenous family laws least of all." Distinguish the **creative** influence from the **adaptative and abrogative**: in modern times the Geist's function "is that of modifying and adapting rather than creating." Turkey's deliberate marriage-law reform produced "a fascinating process of action and reaction" — arguably confirming Savigny's warning, but showing also that the Geist works on, not above, policy. "The Volksgeist is discernible only in retrospect, but he sought to make it **a test of validity**, i.e. to use it in the present time frame where it is irrelevant. This confusion in his frames of reference left his theory open to attack."
5. **Law is sometimes deliberately used to change ideas** and to further inter-state co-operation — Bismarck's **Railway and Factories Accident Law 1871**, "well before social conditions were ripe," to cut the ground from under the socialist movement.
6. **Ruling oligarchies manufacture institutions** — e.g. slavery, born of convenience, not of a Volksgeist.
7. **Imitation, not conviction:** "Many customs owe their origin to the force of imitation rather than to any innate conviction of their righteousness."
8. **Whose spirit?** Local customs may not reflect the whole population (Savigny allowed "inner circles" — but then "how is it that only some people and not all have evolved a special rule?"); the **Law Merchant** was "cosmopolitan in origin." "It is not at all clear who the Volk are whose Geist determines the law."
9. **Conflict, not growth:** important rules "sometimes develop as the result of conscious and violent struggle between conflicting interests within the nation" — trade-union and industrial law. "Evolution does not follow an inexorably determined path."
10. **The political objection (from opponents):** taken literally, the thesis "would thwart the unification of Germany permanently by emphasising the individuality of each separate state and by fostering a parochial sense of nationalism."
11. **The internal inconsistency — Roman law as German law.** While protagonist of the Volksgeist, Savigny worked "for the acceptance of a purified Roman law as the law of Germany." The Germanic school (led by **Eichorn**, his fellow professor at Berlin) wanted ancient Germanic laws restored; "Savigny never opposed the work of Eichorn, but he opposed the expulsion of Roman law." Explanations: personal devotion to Roman law; the belief (from *Possession*) that "the Romans were better craftsmen than incompetent moderns" — but post-Roman interpretations were often "adaptations... to meet contemporary needs," arguably themselves "expressions of the Volksgeist of each different country." Better reason: given long-established reception, "to dispense with it would have unsettled three centuries of development." His ultimate argument — that at reception Germanic law was "incapable of expressing the Volksgeist" — fails: "it fails to show how an alien system was better able to express it than the indigenous law. **Far from the law being a reflection of the Volksgeist, it would seem that the Volksgeist had been shaped by the law.**"

03.9 Savigny's other excess — negotiable instruments as "logically impossible"

His veneration for Roman law "led him to advance certain dubious propositions." Roman law adhered strictly to **privity of contract** "with few exceptions" — no one other than parties can be entitled or obliged under a contract. "The law of negotiable instruments, of course, is a contradiction of this. Savigny accordingly condemned negotiable instruments as **'logically impossible.'**" The lesson: "one of the more unfortunate results of devotion to a postulate as well as the limitations of the Volksgeist idea" — the populace had no feeling in the matter, while "the feelings of the commercially minded were strongly in favour." "Indeed, **the crucial weakness of Savigny's approach was that he venerated past institutions without regard to their suitability to the present.**"

03.10 Gierke (1841–1921) — associations, and the Genossenschaft v. Herrschaft struggle

- Profoundly interested in "**associations**" — "which has always exercised a peculiar fascination for German thinkers." Associations are sometimes treated as persons; **Gierke denied that recognition of an association as a person depended on the state** — "the reality of social control lies in the way in which autonomous groups within society organise themselves."
- **Classification:** (a) groups organised on a territorial basis (the state) v. family/extraterritorial groups; (b) associations founded on **fraternal collaboration** (*Genossenschaften*) v. founded on **domination** (*Herrschaften*).
- **The historical reading:** "legal and social history is most accurately portrayed as a **perpetual struggle between the Genossenschaft and the Herrschaft**." Feudal society: tight hierarchical groups on property-holding; opposed in the Middle Ages by collaborative groups (guilds, cities); these degenerated; "with the Renaissance and Reformation the state appeared as the significant factor"; in his own day "the collaborative principle had prevailed and... the state encouraged the growth of independent collaborative organisations." "The pivot of social control, then, lay not in state organisation but rather in these collective bodies within the state."
- **Assessment:** a collectivist (not individualist) approach — touching the sociologists, but ranked among the historians for the historical line; his "mass psychology" doctrines "though largely fanciful, anticipated modern inquiries." He never reconciled "the independence of autonomous bodies with the supreme power of the state": he devised a pyramidal structure (hierarchy of corporate bodies culminating in the state) and tried to limit absolute state power "by arguing that the state was the expression of reason and the sense of right" — "easily brushed aside by those who wished to use Gierke's doctrines as a justification for absolute totalitarian power."

03.11 The Anthropological approach — Maine (1822–1888)

"Anthropological investigations into the nature of primitive and undeveloped systems of law are of modern origin and might be regarded as a product of the Historical School. Pride of place will here be accorded to **Sir Henry Maine**... the first and still remains the greatest representative of the historical movement in England."

- **Method:** built on the German School's Roman-law material, "but also to bring to bear a more balanced view of history than is found in Savigny"; learned in English, Roman, **Hindu** and Celtic law. "Instead of stressing the uniqueness of national institutions, he brought to bear a scientific urge to unify, classify and generalise the evolution of different legal orders. Thus he inaugurated both the **comparative and anthropological** approaches."
- **Static and progressive societies; the four stages** (roughly the same in early development of both): **(1)** law-making by personal command believed divinely inspired — the *Themistes* of ancient Greece, the dooms of the Anglo-Saxon kings; **(2)** commands crystallise into customs; **(3)** the ruler superseded by a minority controlling the law — the pontiffs in ancient Rome; **(4)** the revolt of the majority against "this oligarchic monopoly, and the publication of the law in the form of a code — e.g. the XII Tables in Rome." **Static societies do not progress beyond this point.**
- **Progressive societies** develop the law by three methods — **fiction, equity and legislation** (ample examples in Roman and early English law).
- **Maine's generalisations:** "no human institution was permanent, and... change was not necessarily for the better." Unlike Savigny, "he favoured legislation and codification" — the advance of civilisation demands an increasing use of legislation; the confused state of English law "was due to its preeminently judge-made character"; codification is "an advanced form of legislative development... the stage at which all the preceding phases... are woven into a coherent whole." He "did not share Savigny's mystique of the Volksgeist."
- **Status to Contract:** in early societies (static and progressive) the individual's legal condition is determined by **status**; the march of progressive societies "witnesses the disintegration of status and the determination of the legal condition of the individual by free negotiation." The famous generalisation: "**The movement of progressive societies has hitherto been a movement from Status to Contract.**"

THE HISTORICAL LINE IN ONE FLOW →

reaction against natural law (unhistorical reason) + nationalism + anti-French feeling →

SAVIGNY — law reflects the Volksgeist; found in custom; legislation subordinate; jurists its technical voice →

criticisms: no single spirit; reception contradicts; individuals matter; scope limited; conflict, oligarchy, imitation →

Gierke — associations; the Genossenschaft/Herrschaft struggle →

MAINE — comparative/anthropological generalisation; four stages; fiction-equity-legislation; Status→Contract

by Ankur R. Upadhyay

PART 04

(c) The Sociological School — Roscoe Pound

04.0 Coverage note

The excerpt is Dias's five-page outline (his book's 431–35) — and its special value is that **the criticism is by Dias himself**, printed inside the reading. Every proposition below is either Pound's (as reported) or Dias's (as assessed); grey marks only the few standard labels the excerpt does not use. **(grey: "jural postulates" and "law in books v. law in action" are Pound's doctrines but do not appear in these pages — use them only as labelled additions.)**

04.1 The school and the man

"Nowhere has the study of laws in society been taken up with such industry and enthusiasm as in America. Here, the law school and the jurist enjoy a status akin to that of jurists on the Continent and superior to that of their counterparts in Great Britain. These factors have combined to produce an American movement in sociological jurisprudence of great importance which draws its exponents both from the faculty and the bench. Outstanding among these was **Pound (1870–1964)**, of the Harvard Law School. As with Bentham, his theme was a constant one, maintained in his extensive writings throughout a long period."

The governing idea: "Sociological jurisprudence, according to Pound, should ensure that **the making, interpretation and application of laws take account of social facts**."

04.2 The eight-point programme

#	Component	Why it matters
(a)	A factual study of the **social effects of legal administration**	Law is judged by consequences
(b)	**Social investigations as preliminaries to legislation**	Legislation must be informed by facts

#	Component	Why it matters
(c)	A constant study of the means for **making laws more effective**	Effectiveness is the test
(d)	The study, **psychological and philosophical, of the judicial method**	The judge is not a logician only
(e)	A **sociological study of legal history**	History read as social fact
(f)	Allowance for the possibility of a **just and reasonable solution of individual cases**	Justice is particular, not merely systemic
(g)	A **ministry of justice** in English-speaking countries	Continuous legislative research (the "ministry" as a standing institution)
(h)	The **achievement of the purposes of the various laws**	Purpose, not form

"This comprehensive programme covers, as is evident, every aspect of the social study of laws."

04.3 The tasks of the legal order — and the five things to be done

"The common law, he said, still bears the impress of individual rights." To achieve the purposes of the legal order there must be — **(a) recognition of certain interests**, individual, public and social; **(b) definition of the limits** within which such interests will be legally recognised and given effect to; **(c) the securing** of those interests within the limits as defined.

When determining the scope and subject-matter of the system, **five things** must be done: **(i)** preparation of an **inventory of interests**, classifying them; **(ii) selection** of the interests which should be legally recognised; **(iii) demarcation of the limits** of securing the selected interests; **(iv)** consideration of the **means** whereby laws might secure them; **(v)** evolution of the **principles of valuation** of the interests.

04.4 Social engineering — the master analogy

"Pound likened the task of the lawyer to engineering — an analogy which he used repeatedly. **The aim of social engineering is to build as efficient a structure of society as possible, which requires satisfaction of the maximum of wants with the minimum of friction and waste.** It involves the balancing of competing interests."

Interests defined: "claims or wants or desires (or, I would like to say, expressions) which men assert *de facto*, **about which the law must do something if organised societies are to endure**. It is the task of the jurist to assist the courts by classifying and expatiating on the interests protected by law."

04.5 The inventory — Pound's taxonomy of interests

A · Individual interests

"Claims or demands or desires involved in and looked at from the standpoint of **individual life**."

1. **Personality:** (a) the physical person, (b) freedom of will, (c) honour and reputation, (d) privacy, (e) belief and opinion.
2. **Domestic relations** (distinguish from society's interest in the institution): (a) parents, (b) children, (c) husbands, (d) wives.
3. **Substance:** (a) property, (b) freedom of industry and contract, (c) promised advantages, (d) advantageous relations with others, (e) freedom of association, (f) continuity of employment.

B · Public interests

"Claims or demands or desires asserted by individuals involved in or looked at from the standpoint of **political life**" — "the claims asserted in title of a politically organised society; as one might say for convenience, the claims of the state, the political organization of society."

1. **Interests of the state as a juristic person:** (a) the integrity, freedom of action and honour of the state's personality; (b) claims of the politically organised society as a corporation to property acquired and held for corporate purposes. (Dias: "not applicable in this country where the position of the Crown has obviated the need for the personification of the state" — the British/Commonwealth point.)
2. **Interests of the state as guardian of social interests** — "This seems to overlap with the next major category."

C · Social interests `most important`

"Claims or demands or desires, even some of the foregoing in other aspects, thought of in terms of social life and generalised as claims of the social group. **This is much the most important category**, since most, if not all, the interests in category A would be statable here from a social, rather than an individual, point of view."

1. **General security** — security against "forms of action and courses of conduct which threaten its existence": (a) general safety, (b) general health, (c) peace and order, (d) security of acquisitions, (e) security of transactions.
2. **Security of social institutions** — (a) domestic, (b) religious, (c) political, (d) economic. Conflict: divorce legislation (institution of marriage v. the spouses' interests); disabilities on children of illegitimate and adulterous unions "with the object of preserving the sanctity of marriage" — "not altogether fortunate, since the extent to which such vicarious suffering has deterred would-be offenders is minimal"; tension between individual religious freedom and a state church's dominance.
3. **General morals** — security against acts "offensive to the moral sentiments of the general body of individuals therein for the time being": prostitution, drunkenness, gambling laws.
4. **Conservation of social resources** — "that the goods of existence shall not be wasted… the latter may be made to go as far as possible": (a) natural resources, (b) protection and training of dependants and defectives (human resources). Clashes with the individual interest in dealing with one's property as one pleases.
5. **General progress** — (a) *economic*: freedom of use and sale of property, free trade, free industry, encouragement of invention by patents — "(i) and (ii) are less marked today… progress has been achieved by a reversal of them"; restrictive-practice legislation checks private monopolies while demand grows for state or state-controlled monopolies; patents "open the possibility of acquiring patents in order to suppress inventions — on the whole, therefore, item (a) is the least happy." (b) *political*: free speech, free associations; (c) *cultural*: free science, free letters, free arts, promotion of education and learning, aesthetics.
6. **Individual life** — "that each individual be able to live a human life therein according to the standards of society": (a) self-assertion, (b) opportunity, (c) conditions of life.

Note the reading's own misprint: the "general progress" definition is printed twice in the casebook — the second occurrence (under item 5) is a repetition of the "conservation of social resources" formula; the correct general-progress idea is the one given under 5(a)–(c) in the text. Use the substance, not the duplicated sentence. **(grey flag: Dias's editors' slip.)**

04.6 The means of securing — and the "same plane" rule

Means: "the device of **legal person** and the attribution of **claims, duties, liberties, powers and immunities**. There is also the remedial machinery behind them, which aims sometimes at **punishment**, sometimes at **redress** and sometimes at **prevention**."

Balancing "on the same plane." "Interests, he insisted, should be weighed 'on the same plane,' as it were. **One cannot balance an individual interest against a social interest, since that very way of stating them may reflect a decision already made.** One should transfer the interests involved on to the same 'plane,' preferably in most cases to that of the social plane, which is the most general. Thus, freedom of the person might be regarded as an individual interest, but it is translatable as an interest of the society that its members should be free." Whether a choice can be given effect "depends on the **texture of the legal institutions** that are involved. Some are more flexible than others and permit freer play for the balancing process."

04.7 The classification of the institutions of the law (Pound's five)

Institution	Pound's description	Example to give
Rules	"Precepts attaching definite consequences to definite factual situations"	Speed limits; the rule against hearsay
Principles	"Authoritative points of departure for legal reasoning in cases not covered by rules"	No one should profit from his own wrong
Conceptions	"Categories to which types or classes of transactions and situations can be referred and on the basis of which a set of rules, principles or standards becomes applicable"	Trust; bailment; sale
Doctrines	"The union of rules, principles and conceptions with regard to particular situations or types of cases in logically independent schemes so that reasoning may proceed on the basis of the scheme and its logical implications"	The doctrine of consideration; contributory negligence
Standards	"Prescribing the limits of permissible conduct, which are to be applied according to the circumstances of each case"	Due care; reasonable notice; "the reasonable man"

Connect: standards are the most "sociological" of the five — they import the circumstances of each case. **(grey: the Austin "reasonable time" question from Unit 6 §02.10 and Pound's standards are the same problem viewed from two schools.)**

04.8 Pound's contribution — as Dias allows

"That his contribution is considerable goes without saying. **He more than anyone helped to bring home the vital connection between laws, their administration and the life of society.** His work also set the seal on prior demonstrations of the **responsible and creative task of lawyers, especially the judges**. In so far as his theory laid such heavy emphasis on the existence of varied and competing interests and the need for adjustment between them, **it will have enduring value**."

04.9 Dias's critique — the seven blows (the reading's own assessment)

1. **The engineering analogy misleads.** "What, for instance, is the 'waste and friction' in relation to the conflict of interests?" A bridge is built to a plan of the finished product — "the stresses and strains to be allowed to each part are worked out with a view to producing the best bridge of that kind in that place. **With laws there can be no plan, worked out in detail, of any finished product, for society is constantly developing and changing, and the pressures behind interests are changing too. Therefore, the value or importance to be allotted to each interest cannot be predetermined.**"
2. **Claims do not all pre-exist law.** "Pound assumed that de facto claims pre-exist laws, which are required to 'do something' about them. **Some claims, however, are consequent on law**, e.g. those that have resulted from welfare legislation." And "'do something'... is not enough... **'Recognition' has many gradations**... the cult of **Scientology** is not outlawed, but it has been officially condemned, which makes it difficult to say in what sense the law recognises or does not recognise it."
3. **It is the yardstick, not the interest, that matters.** "It is not interests as such, but the yardsticks with reference to which they are measured that matter." An interest may be treated as an ideal in itself: the slave-owner's proprietary right — upheld or not, "depends upon whether **sanctity of property or sanctity of the person** is adopted as the ideal." "The choice of an ideal, or even a choice between competing ideals, is **a matter of decision, not of balancing**."
4. **The balancing metaphor presupposes a scale that never exists.** "If two interests are to be balanced, that presupposes some 'scale' or 'yardstick'... The 'weight' to be attached to an interest will vary according to the ideal that is used" — with the ideal of individual freedom, self-assertion interests weigh more; with the welfare ideal, the reverse. "The point is that **the whole idea of balancing is subordinate to the ideal that is in view. The march of society is gauged by changes in its ideals and standards for measuring interests.**"
5. **Interests arise in cases, not in lists.** "All questions of interests and ideals should be considered in the context of particular issues as and when they come up for decision. An interest is not presented to a judge preclassified... but in relation to one or more other interests in a given situation. Each situation has a pattern of its own." "It is for the judge to translate the activity involved in the case before him in terms of an interest and to select the ideal... **therefore, the listing of interests is not as important as the views which particular judges take of given activities and the criteria by which they evaluate them.**"
6. **How do we know interests exist? When they are litigated.** "The answer is: when presented in litigation. Lists of interests can be drawn up, not in advance of, but after the various interests have been contended for in successive cases. **The recognition of a new interest is a matter of policy.**"
7. **The lists are personal opinion and the categories doubtful.** "Lists of interests are only the products of personal opinion... his distinction between categories B and C, Public and Social interests, is doubtful. Even the distinction between A and C... is of minor significance" — Pound himself says most cases are better considered by transferring individual interests to the social plane. "None of these remarks is intended to detract from the value of Pound's analysis of the interests themselves. All that is urged is that **as a guide to the administration of laws the listing of interests is unhelpful.**"

> **The final verdicts.** (1) "It is difficult to see how the balancing of interests will produce a cohesive society where there are minorities whose interests are irreconcilable with those of the majority... **Whichever interest is favoured, the decision will be resented by those espousing the other, a compromise will most likely be resented by both.**" (2) Where a substantial proportion of the populace is "parochially minded" with "little or no sense of nationhood," "the prime task in such countries is the **creation** of interests and the emphasis is, once more, on the need for ideals. **Pound's theory cannot be accepted too generally.**" (3) "The criticism here is not that Pound ignored ideals of guidance, but that **he seems to have devoted too little attention to them**" — witness his own distinction between 'natural law' (grey paraphrase: "a rationally conceived picture of justice as an ideal relation among men...") and 'positive natural law' ("a system of logically derived universal legal precepts shaped to the experience of the past..."). (4) "It is submitted with respect that **it would have been preferable had he enlarged on the criteria of evaluating interests instead of developing particular interests**. It is possible that **his work has not had the practical impact that it ought to have had because of this somewhat sterile preoccupation with interests and too little attention to the criteria of evaluation**."

THE POUND FLOW → | law must take account of social facts (the eight-point programme) →

recognise interests (A/B/C) · define limits · secure → | engineer: maximum satisfaction of wants, minimum friction and waste →

balance on the same plane; texture of institutions; rules→standards →

DIAS: no plan for a changing society; ideals, not lists, do the judging — "the listing of interests is unhelpful"

PART 05

Compare & Evaluate — Natural Law, Historical, Sociological, and the Positivism They Attack

05.1 The four schools on four questions

Question	Positivism (Unit 6)	Natural law — Fuller	Historical — Savigny	Sociological — Pound
Source of law	The sovereign's will / the rule of recognition / the basic norm	The moral qualities of the enterprise — the inner morality; ultimately "the moral attitudes of the community"	The Volksgeist — the spirit of the people; custom its manifestation	The de facto claims/ wants of men in organised society
Law is made by	Legislation (and adopted custom)	A reciprocal enterprise — ruler and citizen cooperating	Unconscious growth; jurists give technical expression	Social engineering — jurists, judges and legislators as engineers
The test of law	Valid if it meets the criteria (however immoral)	Makes law if it possesses the eight virtues; total failure = not law (Pickwickian sense)	Conformity with popular consciousness; violates it = doomed	Efficiency of the social structure; satisfaction of wants
Unjust law	Still law (separation thesis)	Externally unjust but internally valid law is possible — yet a system failing the internal morality is not a legal system	A law against the nation's continuity may survive but is an aberration; the Geist is the standard	Measured by interests and ideals — the critic's "decision, not balancing"
Methodology	Analytical description; conceptual analysis	Purposive analysis; allegory; the sliding scale	Historical research; comparative/ anthropological generalisation (Maine)	Factual study of social effects; inventory and valuation of interests

05.2 Hart v. Fuller — the debate in seven moves (the exam's favourite)

1 · HART (1958): law may be law though immoral; separate legal and moral duty; correct bad law by retrospective statute — "laws may be law but too immoral to obey" →

2 · RADBRUCH (1946): statute yields to justice where injustice is "beyond rational doubt" — "it lacks completely the very nature of law" →

3 · FULLER (1958): who should do the dirty work — courts or legislature? The result is the same; Nazi law was "tinsel of legal form" →

4 · HART (1965): the inner morality "is compatible with very great iniquity" — the requirements are principles of good craftsmanship; the poisoner's art →

5 · FULLER (1964/69): without generality/publicity/prospectivity we cannot judge morality at all; every departure affronts responsible agency; the three principles missing from management show law is reciprocal, not managerial →

6 · RATNAPALA (2009): Hart's utilitarian argument is no more conclusive; officials' deterrence; Rome Statute; *Oppenheimer*; "this was precisely Radbruch's argument" (Hart's own internal aspect)

The deepest point of the exchange (Ratnapala's fourth reply): Hart's own *Concept of Law* — the internal aspect that distinguishes law from the gunman's demand, and his own words "Law surely is not the gunman situation writ large" — concedes that law appeals to the subject's reasons, not merely his fears. "This was precisely Radbruch's argument": the validity of law is a matter of what people can accept, not only what they can be made to do. Fuller's reply: if Hart concedes reasons, he must concede the minimum conditions under which law can give reasons — publicity, prospectivity, generality, congruence — and these conditions are moral.

05.3 Savigny v. Austin — the historical school against the analytical

Point	Austin (Unit 6)	Savigny
Law's nature	Command of the sovereign; law set by political superiors	Manifestation of the common consciousness of the people

by Ankur R. Upadhyay

Point	Austin (Unit 6)	Savigny
Custom	Positive morality until adopted by courts — then a tacit command of the sovereign	The primary manifestation of the Volksgeist; "custom not only precedes legislation, but is superior to it"
Legislation	The paradigm of law (a general command)	Subordinate; to be judged by popular consciousness; codification at best premature
Universality	The analysis is universal — law anywhere is command-plus-sovereignty (international law is "positive morality"; but the structure is general)	"Law... varies with peoples and ages" — no universal structure
History	Irrelevant to the analytical province (matters of "ends" excluded)	Everything: "the indispensable means to the understanding and reform of the present"
Method	Definition and analysis of terms (command, duty, sanction, sovereignty)	Historical research; and in Maine, comparative generalisation (fiction, equity, legislation; Status→Contract)
Where Unit 5 meets them	**This is the disagreement Jain reported** (Unit 5 §03.2): Austin's "admirers of custom (and especially their German admirers)" who say custom obliges "independently of the sovereign or state" — those are Savigny and his school. Austin's answer ("the state... permits its ministers to enforce them... tacit commands") is the direct rebuttal. The Indian custom-law result — courts enforcing custom against texts — is closer to Savigny in practice than to Austin: the courts did not wait for sovereign adoption.	

05.4 Pound v. Kelsen and Austin — the sociological school's two quarrels

- **Against Kelsen's purity:** the purity doctrine "undertakes to delimit the cognition of law" from sociology (Unit 6 §04.1); Pound's whole programme is the opposite — "the making, interpretation and application of laws [must] take account of social facts"; (a) factual study of social effects; (b) social investigations as preliminaries to legislation. Where Kelsen studies the *ought* (validity), Pound studies the *is* (effectiveness and effect).
- **Against Austin's command:** law is not a "one-way projection of authority" — that is Fuller's phrase, but it captures the common positivist shape Pound rejected too. The common law "still bears the impress of individual rights," and the judge is a participant in securing interests, not a minister applying commands.
- **Both schools agree law must be judged by what it does** — Pound by its social effects, Kelsen by its validity-conditioned-on-effectiveness. But Pound's test is *evaluative* (better/worse engineering), Kelsen's is *descriptive* (effective/ineffective). Dias's criticism of Pound — that his work "has not had the practical impact that it ought to have had" — is the sociological school admitting its own unfinished business: the criteria of evaluation.

05.5 The bridge: social pressure — from Savigny to Pound (Dias's sentence unpacked)

NATURAL LAW: behind law stood moral authority — the law's legitimacy is its conformity with a moral order (Fuller: "the moral attitudes of the community"; Radbruch: the "meaning [of law] is to serve justice") →

HISTORICAL: in place of moral authority, social pressure — the Volksgeist's customary rules are sustained by the community's convictions, not by a legislator's fiat →

SOCIOLOGICAL: social pressure becomes the subject-matter — interests asserted de facto, about which "the law must do something if organised societies are to endure"; and Dias's critique adds the missing piece: what guides the law is the ideal by which interests are measured

Use this in any "unity of the unit" answer: the unit's three schools are one movement — from the moral to the social — and the casebook says so itself. Fuller, at the end, even supplies the vocabulary of the movement's completion: the internal morality of law, "under its other name, 'the rule of law,' is widely regarded as a moral imperative."

05.6 The Indian resonances

School	Indian application	Where the casebook supports it
Natural law (Fuller)	Art. 21's due process; the basic-structure doctrine — Parliament cannot destroy the Constitution's essential features even by amendment; *Maneka Gandhi* (Unit 4) reading procedure into substance = the internal morality made constitutional; the emergency's "rule by orders" (ADM Jabalpur dissent) = Fuller's regime B. **(grey: cases flagged, not in the readings.)**	Fuller's eight virtues map 1:1 onto the rule-of-law demands of Art. 21 procedure; Radbruch's "no attempt at justice" = Article 14's equality, "the core of justice"

School	Indian application	Where the casebook supports it
Historical (Savigny)	Rama Jois (Unit 5): the king registers *usages* (Kat. 48–50) and the parishad certifies the law — usage as Volksgeist; Jain (Unit 5): "starting with the same texts as the base, two major schools of Hindu law developed" — schools as juristic expression of regional spirits; the rejection of the French Code by the Dutch, and the adoption of English law by India (Unit 3) = the reception problem	Dias's own examples (India in the alien-system list! "the successful introduction of alien systems into India and Turkey affected the indigenous family laws least of all")
Sociological (Pound)	The Directive Principles + Art. 39-A as a constitutional inventory of interests; Art. 14's reasonable classification as "valuation"; PIL (Unit 4) as the court translating individual grievances onto the social plane; the "minister of justice" idea = India's Law Commissions and the 42nd Amendment's Art. 39-A	Pound's (e)–(h) items: sociological study of legal history; just and reasonable solution of individual cases; ministry of justice; achievement of the purposes of laws

05.7 The three one-paragraph verdicts

Fuller

The most rigorous modern form of natural law — and the most honest. He does not claim that unjust law is not law in the substantive sense; he claims that *lawless* law is not law — a system that fails the exigencies of its own enterprise (generality, publicity, prospectivity, clarity, consistency, possibility, constancy, congruence) cannot guide conduct, and a normative order that cannot guide conduct is not a legal system but a command system. The Nazi illustration does the work; the Rex allegory and the managerial-direction contrast do the argument. The price: Fuller's own concession that internal morality is compatible with external injustice (the one-child policy) shows the theory is a floor, not a ceiling — necessary conditions of legality, not sufficient conditions of justice.

Savigny

The valuable truth, ruined by overemphasis. The truth: law is not a timeless rational construct; it is embedded in a community's life, history, language and habits, and reforms that ignore this are fragile. The overemphasis: positing a single discoverable "spirit of the people" — which Dias dismantles in eleven steps (no single spirit; reception contradicts it; individuals create; scope limited to the "personal" branches; conflict, imitation and oligarchy play the larger part; and "far from the law being a reflection of the Volksgeist… the Volksgeist had been shaped by the law"). His practical legacy — make legislation historically informed, respect custom — survives; his metaphysics does not; and his own practice (purified Roman law for Germany; "logically impossible" negotiable instruments) betrayed his own theory.

Pound

The great mover of jurisprudence into the social world — and the great unfinished project. "He more than anyone helped to bring home the vital connection between laws, their administration and the life of society" — the interest inventory and the engineering analogy turned law into a means and society into its test. But the reading's own critique lands with force: an engineering analogy needs a plan, and society has none; a balance needs a scale, and the scale is an ideal — "the whole idea of balancing is subordinate to the ideal that is in view"; and the judge, not the list, does the valuing. Dias's diagnosis is the school's epitaph: "a somewhat sterile preoccupation with interests and too little attention to the criteria of evaluation." Pound made jurisprudence sociological; the criteria of evaluation remain the unfinished business.

PART 06

Authorities — Texts, Cases, Personalities, Thought-Experiments

Group A — the three prescribed texts (passports + load-bearing quotations). **Group B** — the cases (post-war trials; *Oppenheimer*; the wife-catcher). **Group C** — the thought-experiments and analogies (this unit's "case briefs"). **Group D** — the personalities and works cited within the readings (the unit's "casebook within a casebook"). **Group E** — the two master schemes (Fuller's eight; Pound's taxonomy).

Group B · The cases

Case	Facts / holding	Use
Nuremberg & Tokyo tribunals (IMT, 1945–46)	Allied tribunals trying Nazi and Japanese war criminals; common defence — lawful orders; nullum crimen sine lege objection; convictions precipitated the debate	The background of the whole Hart–Fuller debate

Case	Facts / holding	Use
***USA v. Altstötter* (The Justices Case)**, 3 TWC 1 (1948); 6 LRTWC 1; 14 Ann Dig 278	One of the "subsequent" Nuremberg trials — the source footnote for the Nazi regime's seven features (judges intimidated; Fuehrer principle; etc.)	Evidence for Fuller's factual claim about the system
The grudge informer cases (post-war German courts)	Informers betrayed critics of the regime knowing they faced execution; defence — no law violated; Radbruch: courts rightly convicted "in disregard of the Nazi law"	The vehicle of the Radbruch doctrine
The wife-catcher case (post-war West German court of appeal; Hart's example)	A woman reported her husband for criticising the Reich; he was sentenced to death but survived (sent to the front). Convicted of illegally depriving him of his freedom; Hart: the court violated "fidelity to law"; the state should have chosen between two evils	Hart's positivist answer to the dilemma
Oppenheimer v. Cattermole [1976] AC 249	The 1941 Nazi decree deprived Jews who left Germany of citizenship and confiscated property. **Lord Cross (278):** "so grave an infringement of human rights that the courts of this country ought to refuse to recognise it as a law at all." **Lord Salmon (281–2):** "on the grounds of public policy they should refuse to do so."	Ratnapala's answer to Hart: where no retrospective statute is possible, courts themselves must refuse recognition

Group C · The thought-experiments and analogies (briefed like cases)

Experiment	Its shape	It establishes
King Rex I (Fuller)	A selfish, incompetent king with unlimited law-making power who punishes obedience and rewards disobedience; then issues confused, ambiguous, inaudible, retroactive commands	Ad hoc command without rule = fails to make law; law requires generality and the guidance of conduct
The eight ways to fail (Fuller)	Ad hoc commands; unpromulgated; retroactive; unintelligible; contradictory; impossible; constantly changing; incongruently administered	Each is a mode of failing to make law; the corresponding eight virtues constitute the inner morality
The computer / the Martian (Fuller)	Describing a computer's parts without its purpose; describing law to a Martian by formal features alone	Purpose is essential to understanding law — the positivists' "one-way projection" description is incomplete
The motor car spectrum (Fuller)	Rolls Royce → cars in various conditions → a wreck ("a shell of what was once a car"); at some point "no longer a motor car"	Legal systems achieve law by degrees; below the point of no repair, "there is a law at all" becomes the question — the Pickwickian sense
The vertical moral scale and the pointer (Fuller)	Lower half = duty; upper half = aspiration; "an invisible pointer where the pressure of duty leaves off and the challenge of excellence begins"	The internal morality is both; social attitudes to praise/blame locate the pointer (theft; the cat in the torrents)
The Australian self-correction (Ratnapala)	Australia's law has retroactivity, discretions, complexity, contradictions — yet sits high on Fuller's scale	No system is perfect; what matters is "open to self-correction" — constitutional features secure the enterprise
The poisoner (Hart)	Common sense tells the poisoner to use an undetectable poison unseen	If inner morality = efficiency, even poisoning has a "moral" — the reductio against Fuller; answered by the three-management-principles argument
Managerial direction v. law (Fuller)	Five principles fit management; generality, prospectivity and congruence do not	Difference is constitutive: management = one-way authority; law = reciprocity, the citizen's framework, government as guardian
Regime A v. Regime B (Ratnapala)	A: clear, prospective, general, consistently enforced harsh laws; B: ad hoc, retroactive, secret, extra-judicial	A real moral difference despite both being "unjust" — internal morality is true morality; the rule of law as moral imperative
The one-child policy (Ratnapala)	PRC's family-limitation law is general, prospective, clear — yet condemned unjust	Inner morality is logically consistent with external injustice — the honest limit of Fuller's theory
The reception of Roman law (Dias on Savigny)	An alien system transplanted a thousand years later; codes adopted in Japan, Turkey, Egypt, Holland; Roman-Dutch law alive in South Africa and Sri Lanka	Counters the Volksgeist: law has supra-national adaptability and resilience

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Experiment	Its shape	It establishes
The rule in Shelley's case (Allen, via Dias)	"It is not possible to pretend that the rule in Shelley's case… is rooted in the instincts of the British"	Technical doctrine cannot be the people's spontaneous spirit — the lawyers-as-voice device is fictitious
Negotiable instruments (Dias on Savigny)	Roman privity of contract; Savigny condemned negotiable instruments as "logically impossible"	Veneration of past institutions without regard to present suitability; the Volksgeist's limits (the commercial class felt differently)
Bismarck's 1871 Accident Law (Dias)	Social legislation introduced deliberately "well before social conditions were ripe," to outflank the socialists	Law deliberately changes ideas — the Geist is not the only engine
Turkey's marriage law (Dias)	Deliberate policy replacing traditional law; fascinating action/reaction	The Geist's modern function is modifying and adapting, not creating — and only in "personal" branches
The bridge / the slave-owner (Dias on Pound)	Whether the slave-owner's proprietary right is upheld depends on the ideal: sanctity of property or sanctity of the person	Ideals, not interests, decide; the choice "is a matter of decision, not of balancing"
Scientology (Dias on Pound)	Not outlawed, but officially condemned	"Recognition" has gradations — the interest inventory can't tell us what law does
Maine's four stages (Dias)	Themistes/dooms → customs → minority monopoly (pontiffs) → codification (XII Tables)	The history of law's publication; static societies stop here; progressive societies use fiction, equity, legislation

Group D · Personalities and works inside the readings

Authority	Their function in the readings	Reading
Gustav Radbruch (1878–1949), *Rechtsphilosophie* (1932); "Statutory Lawlessness and Supra-Statutory Law" (1946)	The source of Fuller's inspiration; the three aspects (expediency, justice, certainty); the pre-war "shameful laws" and "power v. validity"; the post-war doctrine	Ratnapala
Herbert Hart (1958, 1961, 1965, 1997)	The opponent and, in one respect, the ally (minimum content of natural law; the internal aspect)	Ratnapala
Ronald Dworkin	Fuller's student; the second challenger; Ratnapala: "fundamentally similar" theories	Ratnapala
Kant; Adam Smith	Fuller's antecedents for morality of duty/aspiration	Ratnapala
Lord Cross of Chelsea; Lord Salmon	*Oppenheimer*: refusal to recognise Nazi law	Ratnapala
Thibaut of Heidelberg (1814)	Proposed the German code on Code Napoleon lines — the stimulus	Dias
Friedrich Carl von Savigny (1779–1861); *Das Recht des Besitzes* (1803); *History of Roman Law in the Middle Ages* (6 vols., 1815–31); *System of Modern Roman Law*; *On the Vocation* (1814)	The founder; the works; Prussian Minister of Legislation	Dias
Puchta, *Outlines of the Science of Jurisprudence* (trans. Hastie)	Named the Volksgeist; author of the "grows with the growth" sentence	Dias
Ihering (Jhering)	"with which… a new jurisprudence was born"	Dias
Montesquieu; Burke; Niebuhr	Pioneers of the historical way of thinking; Savigny's Berlin mentor	Dias
Accursius; Cujas; the Glossators; the Post-Glossators (Commentators)	The prelude: glosses; the Glossa Ordinaria; the recovery of the originals and the first historical perspective	Dias
Sir Carleton Allen	Shelley's case; "fetters upon… reformative enterprises"	Dias
Ehrlich	"Customs are norms of conduct, juristic laws are norms for decision. They are always the creation of jurists"	Dias

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Authority	Their function in the readings	Reading
Gierke (1841–1921), *Natural Law and the Theory of Society 1500–1800* (trans. Barker); **Eichorn**	Associations; Genossenschaft/Herrschaft; the pyramid; the Germanic-law rival at Berlin	Dias
Sir Henry Maine (1822–1888)	Four stages; fiction/equity/legislation; Status→Contract; in favour of codification	Dias
Stammler, "Fundamental Tendencies in Modern Jurisprudence" (1923) 21 Mich. L.R. 623	The reading's own footnote source for the events of 1814	Dias
Bentham	Compared to Pound: "his theme was a constant one"	Dias
Justinian's Corpus Juris; the Code Napoleon; the BGB (1900); XII Tables	The codification landmarks and the reception story	Dias

Group E · The two master schemes (learn as tables)

Fuller's eight (failings ↔ virtues)

1. Ad hoc, non-general rules ↔ **Generality**
2. Unpublished rules ↔ **Publicity**
3. Retroactive rules ↔ **Prospectivity**
4. Unintelligible rules ↔ **Clarity**
5. Contradictory rules ↔ **Consistency**
6. Impossible rules ↔ **Possibility of compliance**
7. Frequently changed rules ↔ **Constancy**
8. Announcement ≠ administration ↔ **Congruence**

Pound's interests (condensed)

- **A Individual:** personality (person, will, honour, privacy, belief); domestic relations (parents, children, husbands, wives); substance (property, industry and contract, promised advantages, advantageous relations, association, continuity of employment)
- **B Public:** the state as juristic person; the state as guardian of social interests (overlaps C)
- **C Social (most important):** general security (safety, health, peace and order, acquisitions, transactions); security of institutions (domestic, religious, political, economic); general morals; conservation of resources (natural; human); general progress (economic — property use/sale, free trade, free industry, patents; political — speech, association; cultural — science, letters, arts, education, aesthetics); individual life (self-assertion, opportunity, conditions of life)

by Ankur R. Upadhyay

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Previous Year & Syllabus-Pattern Questions — Unit 07: Western School of Thought – II: Natural Law, Historical & Sociological

Q.01 DU LL.B. LB-106 Examination Archive / Pattern
Fuller's internal morality of law. What are its elements, and what is the consequence of their total failure?

● Refer website for detailed notes — makelaweasy.in

Q.02 DU LL.B. LB-106 Examination Archive / Pattern
The Hart–Fuller debate. State the Radbruch doctrine, Hart's criticisms, Fuller's reply — and who has the better argument?

Q.03 DU LL.B. LB-106 Examination Archive / Pattern
Is the internal morality of law true morality, or only efficiency? Answer with the poisoner, and Fuller's reply.

Q.04 DU LL.B. LB-106 Examination Archive / Pattern
Savigny's historical school: law as Volksgeist. State the thesis and its practical consequences.

Q.05 DU LL.B. LB-106 Examination Archive / Pattern
Critically examine the idea of the Volksgeist." (or: "Discuss the objections to Savigny's theory.")

Q.06 DU LL.B. LB-106 Examination Archive / Pattern
Pound's sociological jurisprudence: law as social engineering. Explain the programme, the interests, and the balance.

Q.07 DU LL.B. LB-106 Examination Archive / Pattern
Dias's criticisms of Pound. Evaluate the sociological theory through them.

Q.08 DU LL.B. LB-106 Examination Archive / Pattern
Compare the Natural Law (Fuller), Historical (Savigny) and Sociological (Pound) schools as reactions to positivism.

by Ankur R. Upadhyay